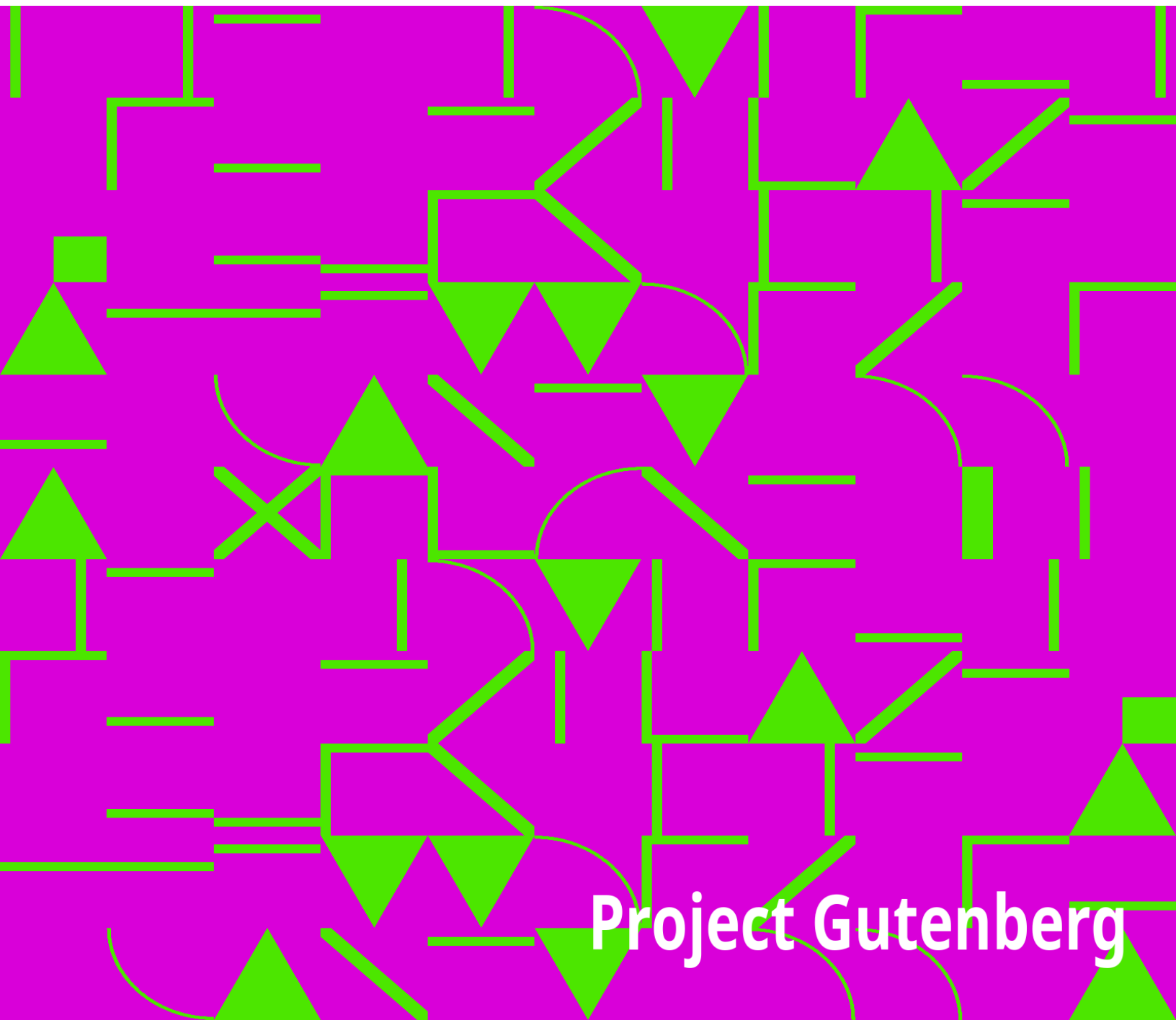


The History of England, from the Accession of James II — Volume 5

Baron Thomas Babington Macaulay



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**THE HISTORY OF ENGLAND
FROM THE ACCESSION OF
JAMES II,**

VOLUME 5 (of 5)

(Chapters XXIII-XXV)

by Thomas Babington Macaulay.

**Philadelphia
Porter & Coates**



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PREFACE TO THE FIFTH VOLUME.

I HAVE thought it right to publish that portion of the continuation of the "History of England" which was fairly transcribed and revised by Lord Macaulay. It is given to the world precisely as it was left: no connecting link has been added; no reference verified; no authority sought for or examined. It would indeed have been possible, with the help I might have obtained from his friends, to have supplied much that is wanting; but I preferred, and I believe the public will prefer, that the last thoughts of the great mind passed away from among us should be preserved sacred from any touch but his own. Besides the revised manuscript, a few pages containing the first rough sketch of the last two months of William's reign are all that is left. From this I have with some difficulty deciphered the account of the death of William. No attempt has been made to join it on to the preceding part, or to supply the corrections which would have been given by the improving hand of the author. But, imperfect as it must be, I believe it will be received with pleasure and interest as a fit conclusion to the life of his great hero.

I will only add my grateful thanks for the kind advice and assistance given me by his most dear and valued friends, Dean Milman and Mr. Ellis.

CHAPTER XXIII

Standing Armies—Sunderland—Lord Spencer—Controversy touching Standing Armies—Meeting of Parliament—The King's Speech well received; Debate on a Peace Establishment—Sunderland attacked—The Nation averse to a Standing Army—Mutiny Act; the Navy Acts concerning High Treason—Earl of Clancarty—Ways and Means; Rights of the Sovereign in reference to Crown Lands—Proceedings in Parliament on Grants of Crown Lands—Montague accused of Peculation—Bill of Pains and Penalties against Duncombe—Dissension between the houses—Commercial Questions—Irish Manufactures—East India Companies—Fire at Whitehall—Visit of the Czar—Portland's Embassy to France—The Spanish Succession—The Count of Tallard's Embassy—Newmarket Meeting: the insecure State of the Roads—Further Negotiations relating to the Spanish Succession—The King goes to Holland—Portland returns from his Embassy—William is reconciled to Marlborough

THE rejoicings, by which London, on the second of December 1697, celebrated the return of peace and prosperity, continued till long after midnight. On the following morning the Parliament met; and one of the most laborious sessions of that age commenced.

Among the questions which it was necessary that the Houses should speedily decide, one stood forth preeminent in interest and importance. Even in the first transports of joy with which the bearer of the treaty of Ryswick had been welcomed to England, men had eagerly and anxiously asked one another what was to be done with that army which had been formed in Ireland and Belgium, which had learned, in many hard campaigns, to obey and to conquer, and which now consisted of eighty-seven thousand excellent soldiers. Was any part of this great force to be retained in the service of the State? And, if any part, what part? The last two kings had, without the consent of the legislature, maintained military establishments in time of peace. But that they had done this in violation of the fundamental laws of England was acknowledged by all jurists, and had been expressly affirmed in the Bill of Rights. It was therefore impossible for William, now that the country was threatened by no foreign and no domestic enemy, to keep up even a single battalion without the sanction of the Estates of the Realm; and it might well be doubted whether such a sanction would be given.

It is not easy for us to see this question in the light in which it appeared to our ancestors.

No man of sense has, in our days, or in the days of our fathers, seriously maintained that our island could be safe without an army. And, even if our island were perfectly secure from attack, an army would still be indispensably necessary to us. The growth of the empire has left us no choice. The regions which we have colonized or conquered since the accession of the House of Hanover contain a population exceeding twenty-fold that which the House of Stuart governed. There are now more English soldiers on the other side of the tropic of Cancer in time of peace than Cromwell had under his command in time of war. All the troops of Charles II. would not have been sufficient to garrison the posts which we now occupy in the Mediterranean Sea alone. The regiments which defend the remote dependencies of the Crown cannot be duly recruited and relieved, unless a force far larger than that which James collected in the camp at Hounslow for the purpose of overawing his capital be constantly kept up within the kingdom. The old national antipathy to permanent military establishments, an antipathy which was once reasonable and salutary, but which lasted some time after it had become unreasonable and noxious, has gradually yielded to the irresistible force of circumstances. We have made the discovery, that an army may be so constituted as to be in the highest degree efficient against an enemy, and yet obsequious to the civil magistrate. We have long ceased to apprehend danger to law and to freedom from the license of troops, and from the ambition of victorious generals. An alarmist who should now talk such language, as was common five generations ago, who should call for the entire disbanding of the land force; of the realm, and who should gravely predict that the warriors of Inkerman and Delhi would depose the Queen, dissolve the Parliament, and plunder the Bank, would be regarded as fit only for a cell in Saint Luke's. But before the Revolution our ancestors had known a standing army only as an instrument of lawless power. Judging by their own experience, they thought it impossible that such an army should exist without danger to the rights both of the Crown and of the people. One class of politicians was never weary of repeating that an Apostolic Church, a loyal gentry, an ancient nobility, a sainted King, had been foully outraged by the Joyces and the Prides; another class recounted the atrocities committed by the Lambs of Kirke, and by the Beelzebubs and Lucifers of Dundee; and both classes, agreeing in scarcely any thing else, were disposed to agree in aversion to the red coats.

While such was the feeling of the nation, the King was, both as a statesman and as a general, most unwilling to see that superb body of troops which he had formed with infinite difficulty broken up and dispersed. But, as to this matter, he could not absolutely rely on the support of his ministers; nor could his ministers absolutely rely on the support of that parliamentary majority whose attachment had enabled them to confront enemies abroad and to crush traitors at home, to restore a debased currency, and to fix public credit on deep and solid foundations.

The difficulties of the King's situation are to be, in part at least, attributed to an error which he had committed in the preceding spring. The Gazette which announced that Sunderland had been appointed Chamberlain of the Royal Household, sworn of the Privy Council, and named one of the Lords Justices who were to administer the government during the summer had caused great uneasiness among plain men who remembered all the windings and doublings of his long career. In truth, his countrymen were unjust to him. For they thought him, not only an unprincipled and faithless politician, which he was, but a deadly enemy of the liberties of the nation, which he was not. What he wanted was simply to be safe, rich and great. To these objects he had been constant through all the vicissitudes of his life. For these objects he had passed from Church to Church and from faction to faction, had joined the most turbulent of oppositions without any zeal for freedom, and had served the most arbitrary of monarchs without any zeal for monarchy; had voted for the Exclusion Bill without being a Protestant, and had adored the Host without being a Papist; had sold his country at once to both the great parties which divided the Continent; had taken money from France, and had sent intelligence to Holland. As far, however, as he could be said to have any opinions, his opinions were Whiggish. Since his return from exile, his influence had been generally exerted in favour of the Whig party. It was by his counsel that the Great Seal had been entrusted to Somers, that Nottingham had been sacrificed to Russell, and that Montague had been preferred to Fox. It was by his dexterous management that the Princess Anne had been detached from the opposition, and that Godolphin had been removed from the head of the hoard of Treasury. The party which Sunderland had done so much to serve now held a new pledge for his fidelity. His only son, Charles Lord Spencer, was just entering on public life. The precocious maturity of the young man's intellectual and moral character had excited hopes which were not destined to be realized.

His knowledge of ancient literature, and his skill in imitating the styles of the masters of Roman eloquence, were applauded by veteran scholars. The sedateness of his deportment and the apparent regularity of his life delighted austere moralists. He was known indeed to have one expensive taste; but it was a taste of the most respectable kind. He loved books, and was bent on forming the most magnificent private library in England. While other heirs of noble houses were inspecting patterns of steinkirks and sword knots, dangling after actresses, or betting on fighting cocks, he was in pursuit of the Mentz editions of Tully's Offices, of the Parmesan Statius, and of the inestimable Virgin of Zarottus. [1](#) It was natural that high expectations should be formed of the virtue and wisdom of a youth whose very luxury and prodigality had a grave and erudite air, and that even discerning men should be unable to detect the vices which were hidden under that show of premature sobriety.

Spencer was a Whig, unhappily for the Whig party, which, before the unhonoured and unlamented close of his life, was more than once brought to the verge of ruin by his violent temper and his crooked politics. His Whiggism differed widely from that of his father. It was not a languid, speculative, preference of one theory of government to another, but a fierce and dominant passion. Unfortunately, though an ardent, it was at the same time a corrupt and degenerate, Whiggism; a Whiggism so narrow and oligarchical as to be little, if at all, preferable to the worst forms of Toryism. The young lord's imagination had been fascinated by those swelling sentiments of liberty which abound in the Latin poets and orators; and he, like those poets and orators, meant by liberty something very different from the only liberty which is of importance to the happiness of mankind. Like them, he could see no danger to liberty except from kings. A commonwealth, oppressed and pillaged by such men as Opimius and Verres, was free, because it had no king. A member of the Grand Council of Venice, who passed his whole life under tutelage and in fear, who could not travel where he chose, or visit whom he chose, or invest his property as he chose, whose path was beset with spies, who saw at the corners of the streets the mouth of bronze gaping for anonymous accusations against him, and whom the Inquisitors of State could, at any moment, and for any or no reason, arrest, torture, fling into the Grand Canal, was free, because he had no king. To curtail, for the benefit of a small privileged class, prerogatives which the Sovereign possesses and ought to possess for the benefit of the

whole nation, was the object on which Spencer's heart was set. During many years he was restrained by older and wiser men; and it was not till those whom he had early been accustomed to respect had passed away, and till he was himself at the head of affairs, that he openly attempted to obtain for the hereditary nobility a precarious and invidious ascendancy in the State, at the expense both of the Commons and of the Throne.

In 1695, Spencer had taken his seat in the House of Commons as member for Tiverton, and had, during two sessions, conducted himself as a steady and zealous Whig.

The party to which he had attached himself might perhaps have reasonably considered him as a hostage sufficient to ensure the good faith of his father; for the Earl was approaching that time of life at which even the most ambitious and rapacious men generally toil rather for their children than for themselves. But the distrust which Sunderland inspired was such as no guarantee could quiet. Many fancied that he was,—with what object they never took the trouble to inquire,—employing the same arts which had ruined James for the purpose of ruining William. Each prince had had his weak side. One was too much a Papist, and the other too much a soldier, for such a nation as this. The same intriguing sycophant who had encouraged the Papist in one fatal error was now encouraging the soldier in another. It might well be apprehended that, under the influence of this evil counsellor, the nephew might alienate as many hearts by trying to make England a military country as the uncle had alienated by trying to make her a Roman Catholic country.

The parliamentary conflict on the great question of a standing army was preceded by a literary conflict. In the autumn of 1697 began a controversy of no common interest and importance. The press was now free. An exciting and momentous political question could be fairly discussed. Those who held uncourtly opinions could express those opinions without resorting to illegal expedients and employing the agency of desperate men. The consequence was that the dispute was carried on, though with sufficient keenness, yet, on the whole, with a decency which would have been thought extraordinary in the days of the censorship.

On this occasion the Tories, though they felt strongly, wrote but little. The paper war was almost entirely carried on between two sections of the Whig party. The combatants on both sides were generally anonymous. But

it was well known that one of the foremost champions of the malecontent Whigs was John Trenchard, son of the late Secretary of State. Preeminent among the ministerial Whigs was one in whom admirable vigour and quickness of intellect were united to a not less admirable moderation and urbanity, one who looked on the history of past ages with the eye of a practical statesman, and on the events which were passing before him with the eye of a philosophical historian. It was not necessary for him to name himself. He could be none but Somers.

The pamphleteers who recommended the immediate and entire disbanding of the army had an easy task. If they were embarrassed, it was only by the abundance of the matter from which they had to make their selection. On their side were claptraps and historical commonplaces without number, the authority of a crowd of illustrious names, all the prejudices, all the traditions, of both the parties in the state. These writers laid it down as a fundamental principle of political science that a standing army and a free constitution could not exist together. What, they asked, had destroyed the noble commonwealths of Greece? What had enslaved the mighty Roman people? What had turned the Italian republics of the middle ages into lordships and duchies? How was it that so many of the kingdoms of modern Europe had been transformed from limited into absolute monarchies? The States General of France, the Cortes of Castile, the Grand Justiciary of Arragon, what had been fatal to them all? History was ransacked for instances of adventurers who, by the help of mercenary troops, had subjugated free nations or deposed legitimate princes; and such instances were easily found. Much was said about Pisistratus, Timophanes, Dionysius, Agathocles, Marius and Sylla, Julius Caesar and Augustus Caesar, Carthage besieged by her own mercenaries, Rome put up to auction by her own Praetorian cohorts, Sultan Osman butchered by his own Janissaries, Lewis Sforza sold into captivity by his own Switzers. But the favourite instance was taken from the recent history of our own land. Thousands still living had seen the great usurper, who, strong in the power of the sword, had triumphed over both royalty and freedom. The Tories were reminded that his soldiers had guarded the scaffold before the Banqueting House. The Whigs were reminded that those same soldiers had taken the mace from the table of the House of Commons. From such evils, it was said, no country could be secure which was cursed with a standing army. And what were the advantages which could be set off against such

evils? Invasion was the bugbear with which the Court tried to frighten the nation. But we were not children to be scared by nursery tales. We were at peace; and, even in time of war, an enemy who should attempt to invade us would probably be intercepted by our fleet, and would assuredly, if he reached our shores, be repelled by our militia. Some people indeed talked as if a militia could achieve nothing great. But that base doctrine was refuted by all ancient and all modern history. What was the Lacedaemonian phalanx in the best days of Lacedaemon? What was, the Roman legion in the best days of Rome? What were the armies which conquered at Cressy, at Poitiers, at Agincourt, at Halidon, or at Flodden? What was that mighty array which Elizabeth reviewed at Tilbury? In the fourteenth, fifteenth, and sixteenth centuries Englishmen who did not live by the trade of war had made war with success and glory. Were the English of the seventeenth century so degenerate that they could not be trusted to play the men for their own homesteads and parish churches?

For such reasons as these the disbanding of the forces was strongly recommended. Parliament, it was said, might perhaps, from respect and tenderness for the person of His Majesty, permit him to have guards enough to escort his coach and to pace the rounds before his palace. But this was the very utmost that it would be right to concede. The defence of the realm ought to be confided to the sailors and the militia. Even the Tower ought to have no garrison except the trainbands of the Tower Hamlets.

It must be evident to every intelligent and dispassionate man that these declaimers contradicted themselves. If an army composed of regular troops really was far more efficient than an army composed of husbandmen taken from the plough and burghers taken from the counter, how could the country be safe with no defenders but husbandmen and burghers, when a great prince, who was our nearest neighbour, who had a few months before been our enemy, and who might, in a few months, be our enemy again, kept up not less than a hundred and fifty thousand regular troops? If, on the other hand, the spirit of the English people was such that they would, with little or no training, encounter and defeat the most formidable array of veterans from the continent, was it not absurd to apprehend that such a people could be reduced to slavery by a few regiments of their own countrymen? But our ancestors were generally so much blinded by prejudice that this inconsistency passed unnoticed. They were secure where they ought to have been wary, and timorous where they might well have been secure. They

were not shocked by hearing the same man maintain, in the same breath, that, if twenty thousand professional soldiers were kept up, the liberty and property of millions of Englishmen would be at the mercy of the Crown, and yet that those millions of Englishmen, fighting for liberty and property, would speedily annihilate an invading army composed of fifty or sixty thousand of the conquerors of Steinkirk and Landen. Whoever denied the former proposition was called a tool of the Court. Whoever denied the latter was accused of insulting and slandering the nation.

Somers was too wise to oppose himself directly to the strong current of popular feeling. With rare dexterity he took the tone, not of an advocate, but of a judge. The danger which seemed so terrible to many honest friends of liberty he did not venture to pronounce altogether visionary. But he reminded his countrymen that a choice between dangers was sometimes all that was left to the wisest of mankind. No lawgiver had ever been able to devise a perfect and immortal form of government. Perils lay thick on the right and on the left; and to keep far from one evil was to draw near to another. That which, considered merely with reference to the internal polity of England, might be, to a certain extent, objectionable, might be absolutely essential to her rank among European Powers, and even to her independence. All that a statesman could do in such a case was to weigh inconveniences against each other, and carefully to observe which way the scale leaned. The evil of having regular soldiers, and the evil of not having them, Somers set forth and compared in a little treatise, which was once widely renowned as the *Balancing Letter*, and which was admitted, even by the malecontents, to be an able and plausible composition. He well knew that mere names exercise a mighty influence on the public mind; that the most perfect tribunal which a legislator could construct would be unpopular if it were called the *Star Chamber*; that the most judicious tax which a financier could devise would excite murmurs if it were called the *Shipmoney*; and that the words *Standing Army* then had to English ears a sound as unpleasing as either *Shipmoney* or *Star Chamber*. He declared therefore that he abhorred the thought of a standing army. What he recommended was, not a standing, but a temporary army, an army of which Parliament would annually fix the number, an army for which Parliament would annually frame a military code, an army which would cease to exist as soon as either the Lords or the Commons should think that its services were not needed. From such an army surely the danger to public liberty

could not by wise men be thought serious. On the other hand, the danger to which the kingdom would be exposed if all the troops were disbanded was such as might well disturb the firmest mind. Suppose a war with the greatest power in Christendom to break out suddenly, and to find us without one battalion of regular infantry, without one squadron of regular cavalry; what disasters might we not reasonably apprehend? It was idle to say that a descent could not take place without ample notice, and that we should have time to raise and discipline a great force. An absolute prince, whose orders, given in profound secrecy, were promptly obeyed at once by his captains on the Rhine and on the Scheld, and by his admirals in the Bay of Biscay and in the Mediterranean, might be ready to strike a blow long before we were prepared to parry it. We might be appalled by learning that ships from widely remote parts, and troops from widely remote garrisons, had assembled at a single point within sight of our coast. To trust to our fleet was to trust to the winds and the waves. The breeze which was favourable to the invader might prevent our men of war from standing out to sea. Only nine years ago this had actually happened. The Protestant wind, before which the Dutch armament had run full sail down the Channel, had driven King James's navy back into the Thames. It must then be acknowledged to be not improbable that the enemy might land. And, if he landed, what would he find? An open country; a rich country; provisions everywhere; not a river but which could be forded; no natural fastnesses such as protect the fertile plains of Italy; no artificial fastnesses such as, at every step, impede the progress of a conqueror in the Netherlands. Every thing must then be staked on the steadiness of the militia; and it was pernicious flattery to represent the militia as equal to a conflict in the field with veterans whose whole life had been a preparation for the day of battle. The instances which it was the fashion to cite of the great achievements of soldiers taken from the threshing floor and the shopboard were fit only for a schoolboy's theme. Somers, who had studied ancient literature like a man,—a rare thing in his time,—said that those instances refuted the doctrine which they were meant to prove. He disposed of much idle declamation about the Lacedaemonians by saying, most concisely, correctly and happily, that the Lacedaemonian commonwealth really was a standing army which threatened all the rest of Greece. In fact, the Spartan had no calling except war. Of arts, sciences and letters he was ignorant. The labour of the spade and of the loom, and the petty gains of trade, he contemptuously abandoned to men of a lower caste.

His whole existence from childhood to old age was one long military training. Meanwhile the Athenian, the Corinthian, the Argive, the Theban, gave his chief attention to his oliveyard or his vineyard, his warehouse or his workshop, and took up his shield and spear only for short terms and at long intervals. The difference therefore between a Lacedaemonian phalanx and any other phalanx was long as great as the difference between a regiment of the French household troops and a regiment of the London trainbands. Lacedaemon consequently continued to be dominant in Greece till other states began to employ regular troops. Then her supremacy was at an end. She was great while she was a standing army among militias. She fell when she had to contend with other standing armies. The lesson which is really to be learned from her ascendancy and from her decline is this, that the occasional soldier is no match for the professional soldier. [2](#)

The same lesson Somers drew from the history of Rome; and every scholar who really understands that history will admit that he was in the right. The finest militia that ever existed was probably that of Italy in the third century before Christ. It might have been thought that seven or eight hundred thousand fighting men, who assuredly wanted neither natural courage nor public spirit, would have been able to protect their own hearths and altars against an invader. An invader came, bringing with him an army small and exhausted by a march over the snows of the Alps, but familiar with battles and sieges. At the head of this army he traversed the peninsula to and fro, gained a succession of victories against immense numerical odds, slaughtered the hardy youth of Latium like sheep, by tens of thousands, encamped under the walls of Rome, continued during sixteen years to maintain himself in a hostile country, and was never dislodged till he had by a cruel discipline gradually taught his adversaries how to resist him.

It was idle to repeat the names of great battles won, in the middle ages, by men who did not make war their chief calling; those battles proved only that one militia might beat another, and not that a militia could beat a regular army. As idle was it to declaim about the camp at Tilbury. We had indeed reason to be proud of the spirit which all classes of Englishmen, gentlemen and yeomen, peasants and burgesses, had so signally displayed in the great crisis of 1588. But we had also reason to be thankful that, with all their spirit, they were not brought face to face with the Spanish battalions. Somers related an anecdote, well worthy to be remembered,

which had been preserved by tradition in the noble house of De Vere. One of the most illustrious men of that house, a captain who had acquired much experience and much fame in the Netherlands, had, in the crisis of peril, been summoned back to England by Elizabeth, and rode with her through the endless ranks of shouting pikemen. She asked him what he thought of the army. "It is," he said, "a brave army." There was something in his tone or manner which showed that he meant more than his words expressed. The Queen insisted on his speaking out. "Madam," he said, "Your Grace's army is brave indeed. I have not in the world the name of a coward, and yet I am the greatest coward here. All these fine fellows are praying that the enemy may land, and that there may be a battle; and I, who know that enemy well, cannot think of such a battle without dismay." De Vere was doubtless in the right. The Duke of Parma, indeed, would not have subjected our country; but it is by no means improbable that, if he had effected a landing, the island would have been the theatre of a war greatly resembling that which Hannibal waged in Italy, and that the invaders would not have been driven out till many cities had been sacked, till many counties had been wasted, and till multitudes of our stout-hearted rustics and artisans had perished in the carnage of days not less terrible than those of Thrasymene and Cannae.

While the pamphlets of Trenchard and Somers were in every hand, the Parliament met.

The words with which the King opened the session brought the great question to a speedy issue. "The circumstances," he said, "of affairs abroad are such, that I think myself obliged to tell you my opinion, that, for the present, England cannot be safe without a land force; and I hope we shall not give those that mean us ill the opportunity of effecting that under the notion of a peace which they could not bring to pass by war."

The speech was well received; for that Parliament was thoroughly well affected to the Government. The members had, like the rest of the community, been put into high good humour by the return of peace and by the revival of trade. They were indeed still under the influence of the feelings of the preceding day; and they had still in their ears the thanksgiving sermons and thanksgiving anthems; all the bonfires had hardly burned out; and the rows of lamps and candles had hardly been taken down. Many, therefore, who did not assent to all that the King had said, joined in a loud hum of approbation when he concluded. [3](#) As soon as the Commons

had retired to their own chamber, they resolved to present an address assuring His Majesty that they would stand by him in peace as firmly as they had stood by him in war. Seymour, who had, during the autumn, been going from shire to shire, for the purpose of inflaming the country gentlemen against the ministry, ventured to make some uncourtly remarks; but he gave so much offence that he was hissed down, and did not venture to demand a division. [4](#)

The friends of the Government were greatly elated by the proceedings of this day. During the following week hopes were entertained that the Parliament might be induced to vote a peace establishment of thirty thousand men. But these hopes were delusive. The hum with which William's speech had been received, and the hiss which had drowned the voice of Seymour, had been misunderstood. The Commons were indeed warmly attached to the King's person and government, and quick to resent any disrespectful mention of his name. But the members who were disposed to let him have even half as many troops as he thought necessary were a minority. On the tenth of December his speech was considered in a Committee of the whole House; and Harley came forward as the chief of the opposition. He did not, like some hot headed men, among both the Whigs and the Tories, contend that there ought to be no regular soldiers. But he maintained that it was unnecessary to keep up, after the peace of Ryswick, a larger force than had been kept up after the peace of Nimeguen. He moved, therefore, that the military establishment should be reduced to what it had been in the year 1680. The Ministers found that, on this occasion, neither their honest nor their dishonest supporters could be trusted. For, in the minds of the most respectable men, the prejudice against standing armies was of too long growth and too deep root to be at once removed; and those means by which the Court might, at another time, have secured the help of venal politicians were, at that moment, of less avail than usual. The Triennial Act was beginning to produce its effects. A general election was at hand. Every member who had constituents was desirous to please them; and it was certain that no member would please his constituents by voting for a standing army; and the resolution moved by Harvey was strongly supported by Howe, was carried, was reported to the House on the following day, and, after a debate in which several orators made a great display of their knowledge of ancient and modern history, was

confirmed by one hundred and eighty-five votes to one hundred and forty-eight. [5](#)

In this debate the fear and hatred with which many of the best friends of the Government regarded Sunderland were unequivocally manifested. "It is easy," such was the language of several members, "it is easy to guess by whom that unhappy sentence was inserted in the speech from the Throne. No person well acquainted with the disastrous and disgraceful history of the last two reigns can doubt who the minister is, who is now whispering evil counsel in the ear of a third master." The Chamberlain, thus fiercely attacked, was very feebly defended. There was indeed in the House of Commons a small knot of his creatures; and they were men not destitute of a certain kind of ability; but their moral character was as bad as his. One of them was the late Secretary of the Treasury, Guy, who had been turned out of his place for corruption. Another was the late Speaker, Trevor, who had, from the chair, put the question whether he was or was not a rogue, and had been forced to pronounce that the Ayes had it. A third was Charles Duncombe, long the greatest goldsmith of Lombard Street, and now one of the greatest landowners of the North Riding of Yorkshire. Possessed of a private fortune equal to that of any duke, he had not thought it beneath him to accept the place of Cashier of the Excise, and had perfectly understood how to make that place lucrative; but he had recently been ejected from office by Montague, who thought, with good reason, that he was not a man to be trusted. Such advocates as Trevor, Guy and Duncombe could do little for Sunderland in debate. The statesmen of the junto would do nothing for him. They had undoubtedly owed much to him. His influence, cooperating with their own great abilities and with the force of circumstances, had induced the King to commit the direction of the internal administration of the realm to a Whig Cabinet. But the distrust which the old traitor and apostate inspired was not to be overcome. The ministers could not be sure that he was not, while smiling on them, whispering in confidential tones to them, pouring out, as it might seem, all his heart to them, really calumniating them in the closet or suggesting to the opposition some ingenious mode of attacking them. They had very recently been thwarted by him. They were bent on making Wharton a Secretary of State, and had therefore looked forward with impatience to the retirement of Trumball, who was indeed hardly equal to the duties of his great place. To their surprise and mortification they learned, on the eve of the meeting of

Parliament, that Trumball had suddenly resigned, and Vernon, the Under Secretary, had been summoned to Kensington, and had returned thence with the seals. Vernon was a zealous Whig, and not personally unacceptable to the chiefs of his party. But the Lord Chancellor, the First Lord of the Treasury, and the First Lord of the Admiralty, might not unnaturally think it strange that a post of the highest importance should have been filled up in opposition to their known wishes, and with a haste and a secrecy which plainly showed that the King did not wish to be annoyed by their remonstrances. The Lord Chamberlain pretended that he had done all in his power to serve Wharton. But the Whig chiefs were not men to be duped by the professions of so notorious a liar. Montague bitterly described him as a fireship, dangerous at best, but on the whole most dangerous as a consort, and least dangerous when showing hostile colours. Smith, who was the most efficient of Montague's lieutenants, both in the Treasury and in the Parliament, cordially sympathised with his leader. Sunderland was therefore left undefended. His enemies became bolder and more vehement every day. Sir Thomas Dyke, member for Grinstead, and Lord Norris, son of the Earl of Abingdon, talked of moving an address requesting the King to banish for ever from the Court and the Council that evil adviser who had misled His Majesty's royal uncles, had betrayed the liberties of the people, and had abjured the Protestant religion.

Sunderland had been uneasy from the first moment at which his name had been mentioned in the House of Commons. He was now in an agony of terror. The whole enigma of his life, an enigma of which many unsatisfactory and some absurd explanations have been propounded, is at once solved if we consider him as a man insatiably greedy of wealth and power, and yet nervously apprehensive of danger. He rushed with ravenous eagerness at every bait which was offered to his cupidity. But any ominous shadow, any threatening murmur, sufficed to stop him in his full career, and to make him change his course or bury himself in a hiding place. He ought to have thought himself fortunate indeed, when, after all the crimes which he had committed, he found himself again enjoying his picture gallery and his woods at Althorpe, sitting in the House of Lords, admitted to the royal closet, pensioned from the Privy Purse, consulted about the most important affairs of state. But his ambition and avarice would not suffer him to rest till he held a high and lucrative office, till he was a regent of the kingdom. The

consequence was, as might have been expected, a violent clamour; and that clamour he had not the spirit to face.

His friends assured him that the threatened address would not be carried. Perhaps a hundred and sixty members might vote for it; but hardly more. "A hundred and sixty!" he cried: "No minister can stand against a hundred and sixty. I am sure that I will not try." It must be remembered that a hundred and sixty votes in a House of five hundred and thirteen members would correspond to more than two hundred votes in the present House of Commons; a very formidable minority on the unfavourable side of a question deeply affecting the personal character of a public man. William, unwilling to part with a servant whom he knew to be unprincipled, but whom he did not consider as more unprincipled than many other English politicians, and in whom he had found much of a very useful sort of knowledge, and of a very useful sort of ability, tried to induce the ministry to come to the rescue. It was particularly important to soothe Wharton, who had been exasperated by his recent disappointment, and had probably exasperated the other members of the junto. He was sent for to the palace. The King himself intreated him to be reconciled to the Lord Chamberlain, and to prevail on the Whig leaders in the Lower House to oppose any motion which Dyke or Norris might make. Wharton answered in a manner which made it clear that from him no help was to be expected. Sunderland's terrors now became insupportable. He had requested some of his friends to come to his house that he might consult them; they came at the appointed hour, but found that he had gone to Kensington, and had left word that he should soon be back. When he joined them, they observed that he had not the gold key which is the badge of the Lord Chamberlain, and asked where it was. "At Kensington," answered Sunderland. They found that he had tendered his resignation, and that it had been, after a long struggle, accepted. They blamed his haste, and told him that, since he had summoned them to advise him on that day, he might at least have waited till the morrow. "To morrow," he exclaimed, "would have ruined me. To night has saved me."

Meanwhile, both the disciples of Somers and the disciples of Trenchard were grumbling at Harley's resolution. The disciples of Somers maintained that, if it was right to have an army at all, it must be right to have an efficient army. The disciples of Trenchard complained that a great principle had been shamefully given up. On the vital issue, Standing Army or no

Standing Army, the Commons had pronounced an erroneous, a fatal decision. Whether that army should consist of five regiments or of fifteen was hardly worth debating. The great dyke which kept out arbitrary power had been broken. It was idle to say that the breach was narrow; for it would soon be widened by the flood which would rush in. The war of pamphlets raged more fiercely than ever. At the same time alarming symptoms began to appear among the men of the sword. They saw themselves every day described in print as the scum of society, as mortal enemies of the liberties of their country. Was it reasonable,—such was the language of some scribblers,—that an honest gentleman should pay a heavy land tax, in order to support in idleness and luxury a set of fellows who requited him by seducing his dairy maids and shooting his partridges? Nor was it only in Grub Street tracts that such reflections were to be found. It was known all over the town that uncivil things had been said of the military profession in the House of Commons, and that Jack Howe, in particular, had, on this subject, given the rein to his wit and to his ill nature. Some rough and daring veterans, marked with the scars of Steinkirk and singed with the smoke of Namur, threatened vengeance for these insults. The writers and speakers who had taken the greatest liberties went in constant fear of being accosted by fierce-looking captains, and required to make an immediate choice between fighting and being caned. One gentleman, who had made himself conspicuous by the severity of his language, went about with pistols in his pockets. Howe, whose courage was not proportionate to his malignity and petulance, was so much frightened, that he retired into the country. The King, well aware that a single blow given, at that critical conjuncture, by a soldier to a member of Parliament might produce disastrous consequences, ordered the officers of the army to their quarters, and, by the vigorous exertion of his authority and influence, succeeded in preventing all outrage.

6

All this time the feeling in favour of a regular force seemed to be growing in the House of Commons. The resignation of Sunderland had put many honest gentlemen in good humour. The Whig leaders exerted themselves to rally their followers, held meetings at the "Rose," and represented strongly the dangers to which the country would be exposed, if defended only by a militia. The opposition asserted that neither bribes nor promises were spared. The ministers at length flattered themselves that Harley's resolution might be rescinded. On the eighth of January they again

tried their strength, and were again defeated, though by a smaller majority than before. A hundred and sixty-four members divided with them. A hundred and eighty-eight were for adhering to the vote of the eleventh of December. It was remarked that on this occasion the naval men, with Rooke at their head, voted against the Government. [7](#)

It was necessary to yield. All that remained was to put on the words of the resolution of the eleventh of December the most favourable sense that they could be made to bear. They did indeed admit of very different interpretations. The force which was actually in England in 1680 hardly amounted to five thousand men. But the garrison of Tangier and the regiments in the pay of the Batavian federation, which, as they were available for the defence of England against a foreign or domestic enemy, might be said to be in some sort part of the English army, amounted to at least five thousand more. The construction which the ministers put on the resolution of the eleventh of December was, that the army was to consist of ten thousand men; and in this construction the House acquiesced. It was not held to be necessary that the Parliament should, as in our time, fix the amount of the land force. The Commons thought that they sufficiently limited the number of soldiers by limiting the sum which was to be expended in maintaining soldiers. What that sum should be was a question which raised much debate. Harley was unwilling to give more than three hundred thousand pounds. Montague struggled for four hundred thousand. The general sense of the House was that Harley offered too little, and that Montague demanded too much. At last, on the fourteenth of January, a vote was taken for three hundred and fifty thousand pounds. Four days later the House resolved to grant half-pay to the disbanded officers till they should be otherwise provided for. The half-pay was meant to be a retainer as well as a reward. The effect of this important vote therefore was that, whenever a new war should break out, the nation would be able to command the services of many gentlemen of great military experience. The ministry afterwards succeeded in obtaining, much against the will of a portion of the opposition, a separate vote for three thousand marines.

A Mutiny Act, which had been passed in 1697, expired in the spring of 1698. As yet no such Act had been passed except in time of war; and the temper of the Parliament and of the nation was such that the ministers did not venture to ask, in time of peace, for a renewal of powers unknown to the constitution. For the present, therefore, the soldier was again, as in the times

which preceded the Revolution, subject to exactly the same law which governed the citizen.

It was only in matters relating to the army that the government found the Commons unmanageable. Liberal provision was made for the navy. The number of seamen was fixed at ten thousand, a great force, according to the notions of that age, for a time of peace. The funds assigned some years before for the support of the civil list had fallen short of the estimate. It was resolved that a new arrangement should be made, and that a certain income should be settled on the King. The amount was fixed, by an unanimous vote, at seven hundred thousand pounds; and the Commons declared that, by making this ample provision for his comfort and dignity, they meant to express their sense of the great things which he had done for the country. It is probable, however, that so large a sum would not have been given without debates and divisions, had it not been understood that he meant to take on himself the charge of the Duke of Gloucester's establishment, and that he would in all probability have to pay fifty thousand pounds a year to Mary of Modena. The Tories were unwilling to disoblige the Princess of Denmark; and the Jacobites abstained from offering any opposition to a grant in the benefit of which they hoped that the banished family would participate.

It was not merely by pecuniary liberality that the Parliament testified attachment to the Sovereign. A bill was rapidly passed which withheld the benefit of the Habeas Corpus Act, during twelve months more, from Bernardi and some other conspirators who had been concerned in the Assassination Plot, but whose guilt, though demonstrated to the conviction of every reasonable man, could not be proved by two witnesses. At the same time new securities were provided against a new danger which threatened the government. The peace had put an end to the apprehension that the throne of William might be subverted by foreign arms, but had, at the same time, facilitated domestic treason. It was no longer necessary for an agent from Saint Germain's to cross the sea in a fishing boat, under the constant dread of being intercepted by a cruiser. It was no longer necessary for him to land on a desolate beach, to lodge in a thatched hovel, to dress himself like a carter, or to travel up to town on foot. He came openly by the Calais packet, walked into the best inn at Dover, and ordered posthorses for London. Meanwhile young Englishmen of quality and fortune were hastening in crowds to Paris. They would naturally wish to see him who had

once been their king; and this curiosity, though in itself innocent, might have evil consequences. Artful tempters would doubtless be on the watch for every such traveller; and many such travellers might be well pleased to be courteously accosted, in a foreign land, by Englishmen of honourable name, distinguished appearance, and insinuating address. It was not to be expected that a lad fresh from the university would be able to refute all the sophisms and calumnies which might be breathed in his ear by dexterous and experienced seducers. Nor would it be strange if he should, in no long time, accept an invitation to a private audience at Saint Germain, should be charmed by the graces of Mary of Modena, should find something engaging in the childish innocence of the Prince of Wales, should kiss the hand of James, and should return home an ardent Jacobite. An Act was therefore passed forbidding English subjects to hold any intercourse orally, or by writing, or by message, with the exiled family. A day was fixed after which no English subject, who had, during the late war, gone into France without the royal permission or borne arms against his country was to be permitted to reside in this kingdom, except under a special license from the King. Whoever infringed these rules incurred the penalties of high treason.

The dismay was at first great among the malecontents. For English and Irish Jacobites, who had served under the standards of Lewis or hung about the Court of Saint Germain, had, since the peace, come over in multitudes to England. It was computed that thousands were within the scope of the new Act. But the severity of that Act was mitigated by a beneficent administration. Some fierce and stubborn non-jurors who would not debase themselves by asking for any indulgence, and some conspicuous enemies of the government who had asked for indulgence in vain, were under the necessity of taking refuge on the Continent. But the great majority of those offenders who promised to live peaceably under William's rule obtained his permission to remain in their native land.

In the case of one great offender there were some circumstances which attracted general interest, and which might furnish a good subject to a novelist or a dramatist. Near fourteen years before this time, Sunderland, then Secretary of State to Charles the Second, had married his daughter Lady Elizabeth Spencer to Donough Macarthy, Earl of Clancarty, the lord of an immense domain in Munster. Both the bridegroom and the bride were mere children, the bridegroom only fifteen, the bride only eleven. After the ceremony they were separated; and many years full of strange vicissitudes

elapsed before they again met. The boy soon visited his estates in Ireland. He had been bred a member of the Church of England; but his opinions and his practice were loose. He found himself among kinsmen who were zealous Roman Catholics. A Roman Catholic king was on the throne. To turn Roman Catholic was the best recommendation to favour both at Whitehall and at Dublin Castle. Clancarty speedily changed his religion, and from a dissolute Protestant became a dissolute Papist. After the Revolution he followed the fortunes of James; sate in the Celtic Parliament which met at the King's Inns; commanded a regiment in the Celtic army; was forced to surrender himself to Marlborough at Cork; was sent to England, and was imprisoned in the Tower. The Clancarty estates, which were supposed to yield a rent of not much less than ten thousand a year, were confiscated. They were charged with an annuity to the Earl's brother, and with another annuity to his wife; but the greater part was bestowed by the King on Lord Woodstock, the eldest son of Portland; During some time, the prisoner's life was not safe. For the popular voice accused him of outrages for which the utmost license of civil war would not furnish a plea. It is said that he was threatened with an appeal of murder by the widow of a Protestant clergyman who had been put to death during the troubles. After passing three years in confinement, Clancarty made his escape to the Continent, was graciously received at St. Germain, and was entrusted with the command of a corps of Irish refugees. When the treaty of Ryswick had put an end to the hope that the banished dynasty would be restored by foreign arms, he flattered himself that he might be able to make his peace with the English Government. But he was grievously disappointed. The interest of his wife's family was undoubtedly more than sufficient to obtain a pardon for him. But on that interest he could not reckon. The selfish, base, covetous, father-in-law was not at all desirous to have a highborn beggar and the posterity of a highborn beggar to maintain. The ruling passion of the brother-in-law was a stern and acrimonious party spirit. He could not bear to think that he was so nearly connected with an enemy of the Revolution and of the Bill of Rights, and would with pleasure have seen the odious tie severed even by the hand of the executioner. There was one, however, from whom the ruined, expatriated, proscribed young nobleman might hope to find a kind reception. He stole across the Channel in disguise, presented himself at Sunderland's door, and requested to see Lady Clancarty. He was charged, he said, with a message to her from her mother, who was then

lying on a sick bed at Windsor. By this fiction he obtained admission, made himself known to his wife, whose thoughts had probably been constantly fixed on him during many years, and prevailed on her to give him the most tender proofs of an affection sanctioned by the laws both of God and of man. The secret was soon discovered and betrayed by a waiting woman. Spencer learned that very night that his sister had admitted her husband to her apartment. The fanatical young Whig, burning with animosity which he mistook for virtue, and eager to emulate the Corinthian who assassinated his brother, and the Roman who passed sentence of death on his son, flew to Vernon's office, gave information that the Irish rebel, who had once already escaped from custody, was in hiding hard by, and procured a warrant and a guard of soldiers. Clancarty was found in the arms of his wife, and dragged to the Tower. She followed him and implored permission to partake his cell. These events produced a great stir throughout the society of London. Sunderland professed everywhere that he heartily approved of his son's conduct; but the public had made up its mind about Sunderland's veracity, and paid very little attention to his professions on this or on any other subject. In general, honourable men of both parties, whatever might be their opinion of Clancarty, felt great compassion for his mother who was dying of a broken heart, and his poor young wife who was begging piteously to be admitted within the Traitor's Gate. Devonshire and Bedford joined with Ormond to ask for mercy. The aid of a still more powerful intercessor was called in. Lady Russell was esteemed by the King as a valuable friend; she was venerated by the nation generally as a saint, the widow of a martyr; and, when she deigned to solicit favours, it was scarcely possible that she should solicit in vain. She naturally felt a strong sympathy for the unhappy couple, who were parted by the walls of that gloomy old fortress in which she had herself exchanged the last sad endearments with one whose image was never absent from her. She took Lady Clancarty with her to the palace, obtained access to William, and put a petition into his hand. Clancarty was pardoned on condition that he should leave the kingdom and never return to it. A pension was granted to him, small when compared with the magnificent inheritance which he had forfeited, but quite sufficient to enable him to live like a gentleman on the Continent. He retired, accompanied by his Elizabeth, to Altona.

All this time the ways and means for the year were under consideration. The Parliament was able to grant some relief to the country. The land tax

was reduced from four shillings in the pound to three. But nine expensive campaigns had left a heavy arrear behind them; and it was plain that the public burdens must, even in the time of peace, be such as, before the Revolution, would have been thought more than sufficient to support a vigorous war. A country gentleman was in no very good humour, when he compared the sums which were now exacted from him with those which he had been in the habit of paying under the last two kings; his discontent became stronger when he compared his own situation with that of courtiers, and above all of Dutch courtiers, who had been enriched by grants of Crown property; and both interest and envy made him willing to listen to politicians who assured him that, if those grants were resumed, he might be relieved from another shilling.

The arguments against such a resumption were not likely to be heard with favour by a popular assembly composed of taxpayers, but to statesmen and legislators will seem unanswerable.

There can be no doubt that the Sovereign was, by the old polity of the realm, competent to give or let the domains of the Crown in such manner as seemed good to him. No statute defined the length of the term which he might grant, or the amount of the rent which he must reserve. He might part with the fee simple of a forest extending over a hundred square miles in consideration of a tribute of a brace of hawks to be delivered annually to his falconer, or of a napkin of fine linen to be laid on the royal table at the coronation banquet. In fact, there had been hardly a reign since the Conquest, in which great estates had not been bestowed by our princes on favoured subjects. Anciently, indeed, what had been lavishly given was not seldom violently taken away. Several laws for the resumption of Crown lands were passed by the Parliaments of the fourteenth and fifteenth centuries. Of those laws the last was that which, in the year 1485, immediately after the battle of Bosworth, annulled the donations of the kings of the House of York. More than two hundred years had since elapsed without any Resumption Act. An estate derived from the royal liberality had long been universally thought as secure as an estate which had descended from father to son since the compilation of Domesday Book. No title was considered as more perfect than that of the Russells to Woburn, given by Henry the Eighth to the first Earl of Bedford, or than that of the Cecils to Hatfield, purchased from the Crown for less than a third of the real value by the first Earl of Salisbury. The Long Parliament did not, even in that

celebrated instrument of nineteen articles, which was framed expressly for the purpose of making the King a mere Doge, propose to restrain him from dealing according to his pleasure with his parks and his castles, his fisheries and his mines. After the Restoration, under the government of an easy prince, who had indeed little disposition to give, but who could not bear to refuse, many noble private fortunes were carved out of the property of the Crown. Some of the persons who were thus enriched, Albemarle, for example, Sandwich and Clarendon, might be thought to have fairly earned their master's favour by their services. Others had merely amused his leisure or pandered to his vices. His mistresses were munificently rewarded. Estates sufficient to support the highest rank in the peerage were distributed among his illegitimate children. That these grants, however prodigal, were strictly legal, was tacitly admitted by the Estates of the Realm, when, in 1689, they recounted and condemned the unconstitutional acts of the kings of the House of Stuart. Neither in the Declaration of Right nor in the Bill of Rights is there a word on the subject. William, therefore, thought himself at liberty to give away his hereditary domains as freely as his predecessors had given away theirs. There was much murmuring at the profusion with which he rewarded his Dutch favourites; and we have seen that, on one occasion in the year 1696, the House of Commons interfered for the purpose of restraining his liberality. An address was presented requesting him not to grant to Portland an extensive territory in North Wales. But it is to be observed that, though in this address a strong opinion was expressed that the grant would be mischievous, the Commons did not deny, and must therefore be considered as having admitted, that it would be perfectly legal. The King, however, yielded; and Portland was forced to content himself with ten or twelve manors scattered over various counties from Cumberland to Sussex.

It seems, therefore, clear that our princes were, by the law of the land, competent to do what they would with their hereditary estates. It is perfectly true that the law was defective, and that the profusion with which mansions, abbeys, chaces, warrens, beds of ore, whole streets, whole market towns, had been bestowed on courtiers was greatly to be lamented. Nothing could have been more proper than to pass a prospective statute tying up in strict entail the little which still remained of the Crown property. But to annul by a retrospective statute patents, which in Westminster Hall were held to be legally valid, would have been simply robbery. Such robbery must

necessarily have made all property insecure; and a statesman must be short-sighted indeed who imagines that what makes property insecure can really make society prosperous.

But it is vain to expect that men who are inflamed by anger, who are suffering distress, and who fancy that it is in their power to obtain immediate relief from their distresses at the expense of those who have excited their anger, will reason as calmly as the historian who, biassed neither by interest nor passion, reviews the events of a past age. The public burdens were heavy. To whatever extent the grants of royal domains were revoked, those burdens would be lightened. Some of the recent grants had undoubtedly been profuse. Some of the living grantees were unpopular. A cry was raised which soon became formidably loud. All the Tories, all the malecontent Whigs, and multitudes who, without being either Tories or malecontent Whigs, disliked taxes and disliked Dutchmen, called for a resumption of all the Crown property which King William had, as it was phrased, been deceived into giving away.

On the seventh of February 1698, this subject, destined to irritate the public mind at intervals during many years, was brought under the consideration of the House of Commons. The opposition asked leave to bring in a bill vacating all grants of Crown property which had been made since the Revolution. The ministers were in a great strait; the public feeling was strong; a general election was approaching; it was dangerous and it would probably be vain to encounter the prevailing sentiment directly. But the shock which could not be resisted might be eluded. The ministry accordingly professed to find no fault with the proposed bill, except that it did not go far enough, and moved for leave to bring in two more bills, one for annulling the grants of James the Second, the other for annulling the grants of Charles the Second. The Tories were caught in their own snare. For most of the grants of Charles and James had been made to Tories; and a resumption of those grants would have reduced some of the chiefs of the Tory party to poverty. Yet it was impossible to draw a distinction between the grants of William and those of his two predecessors. Nobody could pretend that the law had been altered since his accession. If, therefore, the grants of the Stuarts were legal, so were his; if his grants were illegal, so were the grants of his uncles. And, if both his grants and the grants of his uncles were illegal, it was absurd to say that the mere lapse of time made a difference. For not only was it part of the alphabet of the law that there was

no prescription against the Crown, but the thirty-eight years which had elapsed since the Restoration would not have sufficed to bar a writ of right brought by a private demandant against a wrongful tenant. Nor could it be pretended that William had bestowed his favours less judiciously than Charles and James. Those who were least friendly to the Dutch would hardly venture to say that Portland, Zulestein and Ginkell was less deserving of the royal bounty than the Duchess of Cleveland and the Duchess of Portsmouth, than the progeny of Nell Gwynn, than the apostate Arlington or the butcher Jeffreys. The opposition, therefore, sullenly assented to what the ministry proposed. From that moment the scheme was doomed. Everybody affected to be for it; and everybody was really against it. The three bills were brought in together, read a second time together, ordered to be committed together, and were then, first mutilated, and at length quietly dropped.

In the history of the financial legislation of this session, there were some episodes which deserve to be related. Those members, a numerous body, who envied and dreaded Montague readily became the unconscious tools of the cunning malice of Sunderland, whom Montague had refused to defend in Parliament, and who, though detested by the opposition, contrived to exercise some influence over that party through the instrumentality of Charles Duncombe. Duncombe indeed had his own reasons for hating Montague, who had turned him out of the place of Cashier of the Excise. A serious charge was brought against the Board of Treasury, and especially against its chief. He was the inventor of Exchequer Bills; and they were popularly called Montague's notes. He had induced the Parliament to enact that those bills, even when at a discount in the market, should be received at par by the collectors of the revenue. This enactment, if honestly carried into effect, would have been unobjectionable. But it was strongly rumoured that there had been foul play, speculation, even forgery. Duncombe threw the most serious imputations on the Board of Treasury, and pretended that he had been put out of his office only because he was too shrewd to be deceived, and too honest to join in deceiving the public. Tories and malecontent Whigs, elated by the hope that Montague might be convicted of malversation, eagerly called for inquiry. An inquiry was instituted; but the result not only disappointed but utterly confounded the accusers. The persecuted minister obtained both a complete acquittal, and a signal revenge. Circumstances were discovered which seemed to indicate that

Duncombe himself was not blameless. The clue was followed; he was severely cross-examined; he lost his head; made one unguarded admission after another, and was at length compelled to confess, on the floor of the House, that he had been guilty of an infamous fraud, which, but for his own confession, it would have been scarcely possible to bring home to him. He had been ordered by the Commissioners of the Excise to pay ten thousand pounds into the Exchequer for the public service. He had in his hands, as cashier, more than double that sum in good milled silver. With some of this money he bought Exchequer Bills which were then at a considerable discount; he paid those bills in; and he pocketed the discount, which amounted to about four hundred pounds. Nor was this all. In order to make it appear that the depreciated paper, which he had fraudulently substituted for silver, had been received by him in payment of taxes, he had employed a knavish Jew to forge endorsements of names, some real and some imaginary. This scandalous story, wrung out of his own lips, was heard by the opposition with consternation and shame, by the ministers and their friends with vindictive exultation. It was resolved, without any division, that he should be sent to the Tower, that he should be kept close prisoner there, that he should be expelled from the House. Whether any further punishment could be inflicted on him was a perplexing question. The English law touching forgery became, at a later period, barbarously severe; but, in 1698, it was absurdly lax. The prisoner's offence was certainly not a felony; and lawyers apprehended that there would be much difficulty in convicting him even of a misdemeanour. But a recent precedent was fresh in the minds of all men. The weapon which had reached Fenwick might reach Duncombe. A bill of pains and penalties was brought in, and carried through the earlier stages with less opposition than might have been expected. Some Noes might perhaps be uttered; but no members ventured to say that the Noes had it. The Tories were mad with shame and mortification, at finding that their rash attempt to ruin an enemy had produced no effect except the ruin of a friend. In their rage, they eagerly caught at a new hope of revenge, a hope destined to end, as their former hope had ended, in discomfiture and disgrace. They learned, from the agents of Sunderland, as many people suspected, but certainly from informants who were well acquainted with the offices about Whitehall, that some securities forfeited to the Crown in Ireland had been bestowed by the King ostensibly on one Thomas Railton, but really on the Chancellor of the

Exchequer. The value of these securities was about ten thousand pounds. On the sixteenth of February this transaction was brought without any notice under the consideration of the House of Commons by Colonel Granville, a Tory member, nearly related to the Earl of Bath. Montague was taken completely by surprise, but manfully avowed the whole truth, and defended what he had done. The orators of the opposition declaimed against him with great animation and asperity. "This gentleman," they said, "has at once violated three distinct duties. He is a privy councillor, and, as such, is bound to advise the Crown with a view, not to his own selfish interests, but to the general good. He is the first minister of finance, and is, as such, bound to be a thrifty manager of the royal treasure. He is a member of this House, and is, as such, bound to see that the burdens borne by his constituents are not made heavier by rapacity and prodigality. To all these trusts he has been unfaithful. The advice of the privy councillor to his master is, 'Give me money.' The first Lord of the Treasury signs a warrant for giving himself money out of the Treasury. The member for Westminster puts into his pocket money which his constituents must be taxed to replace." The surprise was complete; the onset was formidable; but the Whig majority, after a moment of dismay and wavering, rallied firmly round their leader. Several speakers declared that they highly approved of the prudent liberality with which His Majesty had requited the services of a most able, diligent and trusty counsellor. It was miserable economy indeed to grudge a reward of a few thousands to one who had made the State richer by millions. Would that all the largesses of former kings had been as well bestowed! How those largesses had been bestowed none knew better than some of the austere patriots who harangued so loudly against the avidity of Montague. If there is, it was said, a House in England which has been gorged with undeserved riches by the prodigality of weak sovereigns, it is the House of Bath. Does it lie in the mouth of a son of that house to blame the judicious munificence of a wise and good King? Before the Granvilles complain that distinguished merit has been rewarded with ten thousand pounds, let them refund some part of the hundreds of thousands which they have pocketed without any merit at all.

The rule was, and still is, that a member against whom a charge is made must be heard in his own defence, and must then leave the House. The Opposition insisted that Montague should retire. His friends maintained that this case did not fall within the rule. Distinctions were drawn; precedents

were cited; and at length the question was put, that Mr. Montague do withdraw. The Ayes were only ninety-seven; the Noes two hundred and nine. This decisive result astonished both parties. The Tories lost heart and hope. The joy of the Whigs was boundless. It was instantly moved that the Honourable Charles Montague, Esquire, Chancellor of the Exchequer, for his good services to this Government does deserve His Majesty's favour. The Opposition, completely cowed, did not venture to demand another division. Montague scornfully thanked them for the inestimable service which they had done him. But for their malice he never should have had the honour and happiness of being solemnly pronounced by the Commons of England a benefactor of his country. As to the grant which had been the subject of debate, he was perfectly ready to give it up, if his accusers would engage to follow his example.

Even after this defeat the Tories returned to the charge. They pretended that the frauds which had been committed with respect to the Exchequer Bills had been facilitated by the mismanagement of the Board of Treasury, and moved a resolution which implied a censure on that Board, and especially on its chief. This resolution was rejected by a hundred and seventy votes to eighty-eight. It was remarked that Spencer, as if anxious to show that he had taken no part in the machinations of which his father was justly or unjustly suspected, spoke in this debate with great warmth against Duncombe and for Montague.

A few days later, the bill of pains and penalties against Duncombe passed the Commons. It provided that two thirds of his enormous property, real and personal, should be confiscated and applied to the public service. Till the third reading there was no serious opposition. Then the Tories mustered their strength. They were defeated by a hundred and thirty-eight votes to a hundred and three; and the bill was carried up to the Lords by the Marquess of Hartington, a young nobleman whom the great body of Whigs respected as one of their hereditary chiefs, as the heir of Devonshire, and as the son in law of Russell.

That Duncombe had been guilty of shameful dishonesty was acknowledged by all men of sense and honour in the party to which he belonged. He had therefore little right to expect indulgence from the party which he had unfairly and malignantly assailed. Yet it is not creditable to the Whigs that they should have been so much disgusted by his frauds, or so

much irritated by his attacks, as to have been bent on punishing him in a manner inconsistent with all the principles which governments ought to hold most sacred.

Those who concurred in the proceeding against Duncombe tried to vindicate their conduct by citing as an example the proceeding against Fenwick. So dangerous is it to violate, on any pretence, those principles which the experience of ages has proved to be the safeguards of all that is most precious to a community. Twelve months had hardly elapsed since the legislature had, in very peculiar circumstances, and for very plausible reasons, taken upon itself to try and to punish a great criminal whom it was impossible to reach in the ordinary course of justice; and already the breach then made in the fences which protect the dearest rights of Englishmen was widening fast. What had last year been defended only as a rare exception seemed now to be regarded as the ordinary rule. Nay, the bill of pains and penalties which now had an easy passage through the House of Commons was infinitely more objectionable than the bill which had been so obstinately resisted at every stage in the preceding session.

The writ of attainder against Fenwick was not, as the vulgar imagined and still imagine, objectionable because it was retrospective. It is always to be remembered that retrospective legislation is bad in principle only when it affects the substantive law. Statutes creating new crimes or increasing the punishment of old crimes ought in no case to be retrospective. But statutes which merely alter the procedure, if they are in themselves good statutes, ought to be retrospective. To take examples from the legislation of our own time, the Act passed in 1845, for punishing the malicious destruction of works of art with whipping, was most properly made prospective only. Whatever indignation the authors of that Act might feel against the ruffian who had broken the Barberini Vase, they knew that they could not, without the most serious detriment to the commonwealth, pass a law for scourging him. On the other hand the Act which allowed the affirmation of a Quaker to be received in criminal cases allowed, and most justly and reasonably, such affirmation to be received in the case of a past as well as of a future misdemeanour or felony. If we try the Act which attainted Fenwick by these rules we shall find that almost all the numerous writers who have condemned it have condemned it on wrong grounds. It made no retrospective change in the substantive law. The crime was not new. It was high treason as defined by the Statute of Edward the Third. The punishment

was not new. It was the punishment which had been inflicted on traitors of ten generations. All that was new was the procedure; and, if the new procedure had been intrinsically better than the old procedure, the new procedure might with perfect propriety have been employed. But the procedure employed in Fenwick's case was the worst possible, and would have been the worst possible if it had been established from time immemorial. However clearly political crime may have been defined by ancient laws, a man accused of it ought not to be tried by a crowd of five hundred and thirteen eager politicians, of whom he can challenge none even with cause, who have no judge to guide them, who are allowed to come in and go out as they choose, who hear as much or as little as they choose of the accusation and of the defence, who are exposed, during the investigation, to every kind of corrupting influence, who are inflamed by all the passions which animated debates naturally excite, who cheer one orator and cough down another, who are roused from sleep to cry Aye or No, or who are hurried half drunk from their suppers to divide. For this reason, and for no other, the attainder of Fenwick is to be condemned. It was unjust and of evil example, not because it was a retrospective Act, but because it was an act essentially judicial, performed by a body destitute of all judicial qualities.

The bill for punishing Duncombe was open to all the objections which can be urged against the bill for punishing Fenwick, and to other objections of even greater weight. In both cases the judicial functions were usurped by a body unfit to exercise such functions. But the bill against Duncombe really was, what the bill against Fenwick was not, objectionable as a retrospective bill. It altered the substantive criminal law. It visited an offence with a penalty of which the offender, at the time when he offended, had no notice.

It may be thought a strange proposition that the bill against Duncombe was a worse bill than the bill against Fenwick, because the bill against Fenwick struck at life, and the bill against Duncombe struck only at property. Yet this apparent paradox is a sober truth. Life is indeed more precious than property. But the power of arbitrarily taking away the lives of men is infinitely less likely to be abused than the power of arbitrarily taking away their property. Even the lawless classes of society generally shrink from blood. They commit thousands of offences against property to one murder; and most of the few murders which they do commit are committed

for the purpose of facilitating or concealing some offence against property. The unwillingness of juries to find a fellow creature guilty of a capital felony even on the clearest evidence is notorious; and it may well be suspected that they frequently violate their oaths in favour of life. In civil suits, on the other hand, they too often forget that their duty is merely to give the plaintiff a compensation for evil suffered; and, if the conduct of the defendant has moved their indignation and his fortune is known to be large, they turn themselves into a criminal tribunal, and, under the name of damages, impose a large fine. As housebreakers are more likely to take plate and jewellery than to cut throats; as juries are far more likely to err on the side of pecuniary severity in assessing damages than to send to the gibbet any man who has not richly deserved it; so a legislature, which should be so unwise as to take on itself the functions properly belonging to the Courts of Law, would be far more likely to pass Acts of Confiscation than Acts of Attainder. We naturally feel pity even for a bad man whose head is about to fall. But, when a bad man is compelled to disgorge his ill-gotten gains, we naturally feel a vindictive pleasure, in which there is much danger that we may be tempted to indulge too largely.

The hearts of many stout Whigs doubtless bled at the thought of what Fenwick must have suffered, the agonizing struggle, in a mind not of the firmest temper, between the fear of shame and the fear of death, the parting from a tender wife, and all the gloomy solemnity of the last morning. But whose heart was to bleed at the thought that Charles Duncombe, who was born to carry parcels and to sweep down a counting-house, was to be punished for his knavery by having his income reduced to eight thousand a year, more than most earls then possessed?

His judges were not likely to feel compassion for him; and they all had strong selfish reasons to vote against him. They were all in fact bribed by the very bill by which he would be punished.

His property was supposed to amount to considerably more than four hundred thousand pounds. Two thirds of that property were equivalent to about sevenpence in the pound on the rental of the kingdom as assessed to the land tax. If, therefore, two thirds of that property could have been brought into the Exchequer, the land tax for 1699, a burden most painfully felt by the class which had the chief power in England, might have been reduced from three shillings to two and fivepence. Every squire of a

thousand a year in the House of Commons would have had thirty pounds more to spend; and that sum might well have made to him the whole difference between being at ease and being pinched during twelve months. If the bill had passed, if the gentry and yeomanry of the kingdom had found that it was possible for them to obtain a welcome remission of taxation by imposing on a Shylock or an Overreach, by a retrospective law, a fine not heavier than his misconduct might, in a moral view, seem to have deserved, it is impossible to believe that they would not soon have recurred to so simple and agreeable a resource. In every age it is easy to find rich men who have done bad things for which the law has provided no punishment or an inadequate punishment. The estates of such men would soon have been considered as a fund applicable to the public service. As often as it was necessary to vote an extraordinary supply to the Crown, the Committee of Ways and Means would have looked about for some unpopular capitalist to plunder. Appetite would have grown with indulgence. Accusations would have been eagerly welcomed. Rumours and suspicions would have been received as proofs. The wealth of the great goldsmiths of the Royal Exchange would have become as insecure as that of a Jew under the Plantagenets, as that of a Christian under a Turkish Pasha. Rich men would have tried to invest their acquisitions in some form in which they could lie closely hidden and could be speedily removed. In no long time it would have been found that of all financial resources the least productive is robbery, and that the public had really paid far more dearly for Duncombe's hundreds of thousands than if it had borrowed them at fifty per cent.

These considerations had more weight with the Lords than with the Commons. Indeed one of the principal uses of the Upper House is to defend the vested rights of property in cases in which those rights are unpopular, and are attacked on grounds which to shortsighted politicians seem valid. An assembly composed of men almost all of whom have inherited opulence, and who are not under the necessity of paying court to constituent bodies, will not easily be hurried by passion or seduced by sophistry into robbery. As soon as the bill for punishing Duncombe had been read at the table of the Peers, it became clear that there would be a sharp contest. Three great Tory noblemen, Rochester, Nottingham and Leeds, headed the opposition; and they were joined by some who did not ordinarily act with them. At an early stage of the proceedings a new and perplexing question was raised. How did it appear that the facts set forth in the preamble were

true, that Duncombe had committed the frauds for which it was proposed to punish him in so extraordinary a manner? In the House of Commons, he had been taken by surprise; he had made admissions of which he had not foreseen the consequences; and he had then been so much disconcerted by the severe manner in which he had been interrogated that he had at length avowed everything. But he had now had time to prepare himself; he had been furnished with advice by counsel; and, when he was placed at the bar of the Peers, he refused to criminate himself and defied his persecutors to prove him guilty. He was sent back to the Tower. The Lords acquainted the Commons with the difficulty which had arisen. A conference was held in the Painted Chamber; and there Hartington, who appeared for the Commons, declared that he was authorized, by those who had sent him, to assure the Lords that Duncombe had, in his place in Parliament, owned the misdeeds which he now challenged his accusers to bring home to him. The Lords, however, rightly thought that it would be a strange and a dangerous thing to receive a declaration of the House of Commons in its collective character as conclusive evidence of the fact that a man had committed a crime. The House of Commons was under none of those restraints which were thought necessary in ordinary cases to protect innocent defendants against false witnesses. The House of Commons could not be sworn, could not be cross-examined, could not be indicted, imprisoned, pilloried, mutilated, for perjury. Indeed the testimony of the House of Commons in its collective character was of less value than the uncontradicted testimony of a single member. For it was only the testimony of the majority of the House. There might be a large respectable minority whose recollections might materially differ from the recollections of the majority. This indeed was actually the case. For there had been a dispute among those who had heard Duncombe's confession as to the precise extent of what he had confessed; and there had been a division; and the statement which the Upper House was expected to receive as decisive on the point of fact had been at last carried only by ninety votes to sixty-eight. It should seem therefore that, whatever moral conviction the Lords might feel of Duncombe's guilt, they were bound, as righteous judges, to absolve him.

After much animated debate, they divided; and the bill was lost by forty-eight votes to forty-seven. It was proposed by some of the minority that proxies should be called; but this scandalous proposition was strenuously resisted; and the House, to its great honour, resolved that on questions

which were substantially judicial, though they might be in form legislative, no peer who was absent should be allowed to have a voice.

Many of the Whig Lords protested. Among them were Orford and Wharton. It is to be lamented that Burnet, and the excellent Hough, who was now Bishop of Oxford, should have been impelled by party spirit to record their dissent from a decision which all sensible and candid men will now pronounce to have been just and salutary. Somers was present; but his name is not attached to the protest which was subscribed by his brethren of the junto. We may therefore not unreasonably infer that, on this as on many other occasions, that wise and virtuous statesman disapproved of the violence of his friends.

In rejecting the bill, the Lords had only exercised their indisputable right. But they immediately proceeded to take a step of which the legality was not equally clear. Rochester moved that Duncombe should be set at liberty. The motion was carried; a warrant for the discharge of the prisoner was sent to the Tower, and was obeyed without hesitation by Lord Lucas, who was Lieutenant of that fortress. As soon as this was known, the anger of the Commons broke forth with violence. It was by their order that the upstart Duncombe had been put in ward. He was their prisoner; and it was monstrous insolence in the Peers to release him. The Peers defended what they had done by arguments which must be allowed to have been ingenious, if not satisfactory. It was quite true that Duncombe had originally been committed to the Tower by the Commons. But, it was said, the Commons, by sending a penal bill against him to the Lords, did, by necessary implication, send him also to the Lords. For it was plainly impossible for the Lords to pass the bill without hearing what he had to say against it. The Commons had felt this, and had not complained when he had, without their consent, been brought from his place of confinement, and set at the bar of the Peers. From that moment he was the prisoner of the Peers. He had been taken back from the bar to the Tower, not by virtue of the Speaker's warrant, of which the force was spent, but by virtue of their order which had remanded him. They, therefore, might with perfect propriety discharge him.

Whatever a jurist might have thought of these arguments, they had no effect on the Commons. Indeed, violent as the spirit of party was in those times, it was less violent than the spirit of caste. Whenever a dispute arose between the two Houses, many members of both forgot that they were

Whigs or Tories, and remembered only that they were Patricians or Plebeians. On this occasion nobody was louder in asserting the privileges of the representatives of the people in opposition to the encroachments of the nobility than Harley. Duncombe was again arrested by the Serjeant at Arms, and remained in confinement till the end of the session. Some eager men were for addressing the King to turn Lucas out of office. This was not done; but during several days the ill humour of the Lower House showed itself by a studied discourtesy. One of the members was wanted as a witness in a matter which the Lords were investigating. They sent two judges with a message requesting the permission of the Commons to examine him. At any other time the judges would have been called in immediately, and the permission would have been granted as of course. But on this occasion the judges were kept waiting some hours at the door; and such difficulties were made about the permission that the Peers desisted from urging a request which seemed likely to be ungraciously refused.

The attention of the Parliament was, during the remainder of the session, chiefly occupied by commercial questions. Some of those questions required so much investigation, and gave occasion to so much dispute, that the prorogation did not take place till the fifth of July. There was consequently some illness and much discontent among both Lords and Commons. For, in that age, the London season usually ended soon after the first notes of the cuckoo had been heard, and before the poles had been decked for the dances and mummeries which welcomed the genial May day of the ancient calendar. Since the year of the Revolution, a year which was an exception to all ordinary rules, the members of the two Houses had never been detained from their woods and haycocks even so late as the beginning of June.

The Commons had, soon after they met, appointed a Committee to enquire into the state of trade, and had referred to this Committee several petitions from merchants and manufacturers who complained that they were in danger of being undersold, and who asked for additional protection.

A highly curious report on the importation of silks and the exportation of wool was soon presented to the House. It was in that age believed by all but a very few speculative men that the sound commercial policy was to keep out of the country the delicate and brilliantly tinted textures of southern looms, and to keep in the country the raw material on which most of our

own looms were employed. It was now fully proved that, during eight years of war, the textures which it was thought desirable to keep out had been constantly coming in, and the material which it was thought desirable to keep in had been constantly going out. This interchange, an interchange, as it was imagined, pernicious to England, had been chiefly managed by an association of Huguenot refugees, residing in London. Whole fleets of boats with illicit cargoes had been passing and repassing between Kent and Picardy. The loading and unloading had taken place sometimes in Romney Marsh, sometimes on the beach under the cliffs between Dover and Folkstone. All the inhabitants of the south eastern coast were in the plot. It was a common saying among them that, if a gallows were set up every quarter of a mile along the coast, the trade would still go on briskly. It had been discovered, some years before, that the vessels and the hiding places which were necessary to the business of the smuggler had frequently afforded accommodation to the traitor. The report contained fresh evidence upon this point. It was proved that one of the contrabandists had provided the vessel in which the ruffian O'Brien had carried Scum Goodman over to France.

The inference which ought to have been drawn from these facts was that the prohibitory system was absurd. That system had not destroyed the trade which was so much dreaded, but had merely called into existence a desperate race of men who, accustomed to earn their daily bread by the breach of an unreasonable law, soon came to regard the most reasonable laws with contempt, and, having begun by eluding the custom house officers, ended by conspiring against the throne. And, if, in time of war, when the whole Channel was dotted with our cruisers, it had been found impossible to prevent the regular exchange of the fleeces of Cotswold for the alamoses of Lyons, what chance was there that any machinery which could be employed in time of peace would be more efficacious? The politicians of the seventeenth century, however, were of opinion that sharp laws sharply administered could not fail to save Englishmen from the intolerable grievance of selling dear what could be best produced by themselves, and of buying cheap what could be best produced by others. The penalty for importing French silks was made more severe. An Act was passed which gave to a joint stock company an absolute monopoly of lustrings for a term of fourteen years. The fruit of these wise counsels was such as might have been foreseen. French silks were still imported; and,

long before the term of fourteen years had expired, the funds of the Lustring Company had been spent, its offices had been shut up, and its very name had been forgotten at Jonathan's and Garraway's.

Not content with prospective legislation, the Commons unanimously determined to treat the offences which the Committee had brought to light as high crimes against the State, and to employ against a few cunning mercers in Nicholas Lane and the Old Jewry all the gorgeous and cumbrous machinery which ought to be reserved for the delinquencies of great Ministers and Judges. It was resolved, without a division, that several Frenchmen and one Englishman who had been deeply concerned in the contraband trade should be impeached. Managers were appointed; articles were drawn up; preparations were made for fitting up Westminster Hall with benches and scarlet hangings; and at one time it was thought that the trials would last till the partridge shooting began. But the defendants, having little hope of acquittal, and not wishing that the Peers should come to the business of fixing the punishment in the temper which was likely to be the effect of an August passed in London, very wisely declined to give their lordships unnecessary trouble, and pleaded guilty. The sentences were consequently lenient. The French offenders were merely fined; and their fines probably did not amount to a fifth part of the sums which they had realised by unlawful traffic. The Englishman who had been active in managing the escape of Goodman was both fined and imprisoned.

The progress of the woollen manufactures of Ireland excited even more alarm and indignation than the contraband trade with France. The French question indeed had been simply commercial. The Irish question, originally commercial, became political. It was not merely the prosperity of the clothiers of Wiltshire and of the West Riding that was at stake; but the dignity of the Crown, the authority of the Parliament, and the unity of the empire. Already might be discerned among the Englishry, who were now, by the help and under the protection of the mother country, the lords of the conquered island, some signs of a spirit, feeble indeed, as yet, and such as might easily be put down by a few resolute words, but destined to revive at long intervals, and to be stronger and more formidable at every revival.

The person who on this occasion came forward as the champion of the colonists, the forerunner of Swift and of Grattan, was William Molyneux. He would have rejected the name of Irishman as indignantly as a citizen of

Marseilles or Cyrene, proud of his pure Greek blood, and fully qualified to send a chariot to the Olympic race course, would have rejected the name of Gaul or Libyan. He was, in the phrase of that time, an English gentleman of family and fortune born in Ireland. He had studied at the Temple, had travelled on the Continent, had become well known to the most eminent scholars and philosophers of Oxford and Cambridge, had been elected a member of the Royal Society of London, and had been one of the founders of the Royal Society of Dublin. In the days of Popish ascendancy he had taken refuge among his friends here; he had returned to his home when the ascendancy of his own caste had been reestablished; and he had been chosen to represent the University of Dublin in the House of Commons. He had made great efforts to promote the manufactures of the kingdom in which he resided; and he had found those efforts impeded by an Act of the English Parliament which laid severe restrictions on the exportation of woollen goods from Ireland. In principle this Act was altogether indefensible. Practically it was altogether unimportant. Prohibitions were not needed to prevent the Ireland of the seventeenth century from being a great manufacturing country; nor could the most liberal bounties have made her so. The jealousy of commerce, however, is as fanciful and unreasonable as the jealousy of love. The clothiers of Wilts and Yorkshire were weak enough to imagine that they should be ruined by the competition of a half barbarous island, an island where there was far less capital than in England, where there was far less security for life and property than in England, and where there was far less industry and energy among the labouring classes than in England. Molyneux, on the other hand, had the sanguine temperament of a projector. He imagined that, but for the tyrannical interference of strangers, a Ghent would spring up in Connemara, and a Bruges in the Bog of Allen. And what right had strangers to interfere? Not content with showing that the law of which he complained was absurd and unjust, he undertook to prove that it was null and void. Early in the year 1698 he published and dedicated to the King a treatise in which it was asserted in plain terms that the English Parliament had no authority over Ireland.

Whoever considers without passion or prejudice the great constitutional question which was thus for the first time raised will probably be of opinion that Molyneux was in error. The right of the Parliament of England to legislate for Ireland rested on the broad general principle that the paramount

authority of the mother country extends over all colonies planted by her sons in all parts of the world. This principle was the subject of much discussion at the time of the American troubles, and was then maintained, without any reservation, not only by the English Ministers, but by Burke and all the adherents of Rockingham, and was admitted, with one single reservation, even by the Americans themselves. Down to the moment of separation the Congress fully acknowledged the competency of the King, Lords and Commons to make laws, of any kind but one, for Massachusetts and Virginia. The only power which such men as Washington and Franklin denied to the Imperial legislature was the power of taxing. Within living memory, Acts which have made great political and social revolutions in our Colonies have been passed in this country; nor has the validity of those Acts ever been questioned; and conspicuous among them were the law of 1807 which abolished the slave trade, and the law of 1833 which abolished slavery.

The doctrine that the parent state has supreme power over the colonies is not only borne out by authority and by precedent, but will appear, when examined, to be in entire accordance with justice and with policy. During the feeble infancy of colonies independence would be pernicious, or rather fatal, to them. Undoubtedly, as they grow stronger and stronger, it will be wise in the home government to be more and more indulgent. No sensible parent deals with a son of twenty in the same way as with a son of ten. Nor will any government not infatuated treat such a province as Canada or Victoria in the way in which it might be proper to treat a little band of emigrants who have just begun to build their huts on a barbarous shore, and to whom the protection of the flag of a great nation is indispensably necessary. Nevertheless, there cannot really be more than one supreme power in a society. If, therefore, a time comes at which the mother country finds it expedient altogether to abdicate her paramount authority over a colony, one of two courses ought to be taken. There ought to be complete incorporation, if such incorporation be possible. If not, there ought to be complete separation. Very few propositions in politics can be so perfectly demonstrated as this, that parliamentary government cannot be carried on by two really equal and independent parliaments in one empire.

And, if we admit the general rule to be that the English parliament is competent to legislate for colonies planted by English subjects, what reason was there for considering the case of the colony in Ireland as an exception?

For it is to be observed that the whole question was between the mother country and the colony. The aboriginal inhabitants, more than five sixths of the population, had no more interest in the matter than the swine or the poultry; or, if they had an interest, it was for their interest that the caste which domineered over them should not be emancipated from all external control. They were no more represented in the parliament which sate at Dublin than in the parliament which sate at Westminster. They had less to dread from legislation at Westminster than from legislation at Dublin. They were, indeed, likely to obtain but a very scanty measure of justice from the English Tories, a more scanty measure still from the English Whigs; but the most acrimonious English Whig did not feel towards them that intense antipathy, compounded of hatred, fear and scorn, with which they were regarded by the Cromwellian who dwelt among them. ⁸ For the Irishry Molyneux, though boasting that he was the champion of liberty, though professing to have learned his political principles from Locke's writings, and though confidently expecting Locke's applause, asked nothing but a more cruel and more hopeless slavery. What he claimed was that, as respected the colony to which he belonged, England should forego rights which she has exercised and is still exercising over every other colony that she has ever planted. And what reason could be given for making such a distinction? No colony had owed so much to England. No colony stood in such need of the support of England. Twice, within the memory of men then living, the natives had attempted to throw off the alien yoke; twice the intruders had been in imminent danger of extirpation; twice England had come to the rescue, and had put down the Celtic population under the feet of her own progeny. Millions of English money had been expended in the struggle. English blood had flowed at the Boyne and at Athlone, at Aghrim and at Limerick. The graves of thousands of English soldiers had been dug in the pestilential morass of Dundalk. It was owing to the exertions and sacrifices of the English people that, from the basaltic pillars of Ulster to the lakes of Kerry, the Saxon settlers were trampling on the children of the soil. The colony in Ireland was therefore emphatically a dependency; a dependency, not merely by the common law of the realm, but by the nature of things. It was absurd to claim independence for a community which could not cease to be dependent without ceasing to exist.

Molyneux soon found that he had ventured on a perilous undertaking. A member of the English House of Commons complained in his place that a

book which attacked the most precious privileges of the supreme legislature was in circulation. The volume was produced; some passages were read; and a Committee was appointed to consider the whole subject. The Committee soon reported that the obnoxious pamphlet was only one of several symptoms which indicated a spirit such as ought to be suppressed. The Crown of Ireland had been most improperly described in public instruments as an imperial Crown. The Irish Lords and Commons had presumed, not only to reenact an English Act passed expressly for the purpose of binding them, but to reenact it with alterations. The alterations were indeed small; but the alteration even of a letter was tantamount to a declaration of independence. Several addresses were voted without a division. The King was entreated to discourage all encroachments of subordinate powers on the supreme authority of the English legislature, to bring to justice the pamphleteer who had dared to question that authority, to enforce the Acts which had been passed for the protection of the woollen manufactures of England, and to direct the industry and capital of Ireland into the channel of the linen trade, a trade which might grow and flourish in Leinster and Ulster without exciting the smallest jealousy at Norwich or at Halifax.

The King promised to do what the Commons asked; but in truth there was little to be done. The Irish, conscious of their impotence, submitted without a murmur. The Irish woollen manufacture languished and disappeared, as it would, in all probability, have languished and disappeared if it had been left to itself. Had Molyneux lived a few months longer he would probably have been impeached. But the close of the session was approaching; and before the Houses met again a timely death had snatched him from their vengeance; and the momentous question which had been first stirred by him slept a deep sleep till it was revived in a more formidable shape, after the lapse of twenty-six years, by the fourth letter of *The Drapier*.

Of the commercial questions which prolonged this session far into the summer the most important respected India. Four years had elapsed since the House of Commons had decided that all Englishmen had an equal right to traffic in the Asiatic Seas, unless prohibited by Parliament; and in that decision the King had thought it prudent to acquiesce. Any merchant of London or Bristol might now fit out a ship for Bengal or for China, without the least apprehension of being molested by the Admiralty or sued in the

Courts of Westminster. No wise man, however, was disposed to stake a large sum on such a venture. For the vote which protected him from annoyance here left him exposed to serious risks on the other side of the Cape of Good Hope. The Old Company, though its exclusive privileges were no more, and though its dividends had greatly diminished, was still in existence, and still retained its castles and warehouses, its fleet of fine merchantmen, and its able and zealous factors, thoroughly qualified by a long experience to transact business both in the palaces and in the bazaars of the East, and accustomed to look for direction to the India House alone. The private trader therefore still ran great risk of being treated as a smuggler, if not as a pirate. He might indeed, if he was wronged, apply for redress to the tribunals of his country. But years must elapse before his cause could be heard; his witnesses must be conveyed over fifteen thousand miles of sea; and in the meantime he was a ruined man. The experiment of free trade with India had therefore been tried under every disadvantage, or, to speak more correctly, had not been tried at all. The general opinion had always been that some restriction was necessary; and that opinion had been confirmed by all that had happened since the old restrictions had been removed. The doors of the House of Commons were again besieged by the two great contending factions of the City. The Old Company offered, in return for a monopoly secured by law, a loan of seven hundred thousand pounds; and the whole body of Tories was for accepting the offer. But those indefatigable agitators who had, ever since the Revolution, been striving to obtain a share in the trade of the Eastern seas exerted themselves at this conjuncture more strenuously than ever, and found a powerful patron in Montague.

That dexterous and eloquent statesman had two objects in view. One was to obtain for the State, as the price of the monopoly, a sum much larger than the Old Company was able to give. The other was to promote the interest of his own party. Nowhere was the conflict between Whigs and Tories sharper than in the City of London; and the influence of the City of London was felt to the remotest corner of the realm. To elevate the Whig section of that mighty commercial aristocracy which congregated under the arches of the Royal Exchange, and to depress the Tory section, had long been one of Montague's favourite schemes. He had already formed one citadel in the heart of that great emporium; and he now thought that it might be in his power to erect and garrison a second stronghold in a position scarcely less

commanding. It had often been said, in times of civil war, that whoever was master of the Tower and of Tilbury Fort was master of London. The fastnesses by means of which Montague proposed to keep the capital obedient in times of peace and of constitutional government were of a different kind. The Bank was one of his fortresses; and he trusted that a new India House would be the other.

The task which he had undertaken was not an easy one. For, while his opponents were united, his adherents were divided. Most of those who were for a New Company thought that the New Company ought, like the Old Company, to trade on a joint stock. But there were some who held that our commerce with India would be best carried on by means of what is called a regulated Company. There was a Turkey Company, the members of which contributed to a general fund, and had in return the exclusive privilege of trafficking with the Levant; but those members trafficked, each on his own account; they forestalled each other; they undersold each other; one became rich; another became bankrupt. The Corporation meanwhile watched over the common interest of all the members, furnished the Crown with the means of maintaining an embassy at Constantinople, and placed at several important ports consuls and vice-consuls, whose business was to keep the Pacha and the Cadi in good humour, and to arbitrate in disputes among Englishmen. Why might not the same system be found to answer in regions lying still further to the east? Why should not every member of the New Company be at liberty to export European commodities to the countries beyond the Cape, and to bring back shawls, saltpetre and bohea to England, while the Company, in its collective capacity, might treat with Asiatic potentates, or exact reparation from them, and might be entrusted with powers for the administration of justice and for the government of forts and factories?

Montague tried to please all those whose support was necessary to him; and this he could effect only by bringing forward a plan so intricate that it cannot without some pains be understood. He wanted two millions to extricate the State from its financial embarrassments. That sum he proposed to raise by a loan at eight per cent. The lenders might be either individuals or corporations. But they were all, individuals and corporations, to be united in a new corporation, which was to be called the General Society. Every member of the General Society, whether individual or corporation, might trade separately with India to an extent not exceeding the amount

which such member had advanced to the government. But all the members or any of them might, if they so thought fit, give up the privilege of trading separately, and unite themselves under a royal Charter for the purpose of trading in common. Thus the General Society was, by its original constitution, a regulated company; but it was provided that either the whole Society or any part of it might become a joint stock company.

The opposition to the scheme was vehement and pertinacious. The Old Company presented petition after petition. The Tories, with Seymour at their head, appealed both to the good faith and to the compassion of Parliament. Much was said about the sanctity of the existing Charter, and much about the tenderness due to the numerous families which had, in reliance on that Charter, invested their substance in India stock. On the other side there was no want of plausible topics or of skill to use them. Was it not strange that those who talked so much about the Charter should have altogether overlooked the very clause of the Charter on which the whole question turned? That clause expressly reserved to the government power of revocation, after three years' notice, if the Charter should not appear to be beneficial to the public. The Charter had not been found beneficial to the public; the three years' notice should be given; and in the year 1701 the revocation would take effect. What could be fairer? If anybody was so weak as to imagine that the privileges of the Old Company were perpetual, when the very instrument which created those privileges expressly declared them to be terminable, what right had he to blame the Parliament, which was bound to do the best for the State, for not saving him, at the expense of the State, from the natural punishment of his own folly? It was evident that nothing was proposed inconsistent with strict justice. And what right had the Old Company to more than strict justice? These petitioners who implored the legislature to deal indulgently with them in their adversity, how had they used their boundless prosperity? Had not the India House recently been the very den of corruption, the tainted spot from which the plague had spread to the Court and the Council, to the House of Commons and the House of Lords? Were the disclosures of 1695 forgotten, the eighty thousand pounds of secret service money disbursed in one year, the enormous bribes direct and indirect, Seymour's saltpetre contracts, Leeds's bags of golds? By the malpractices which the inquiry in the Exchequer Chamber then brought to light, the Charter had been forfeited; and it would have been well if the forfeiture had been immediately enforced. "Had not

time then pressed," said Montague, "had it not been necessary that the session should close, it is probable that the petitioners, who now cry out that they cannot get justice, would have got more justice than they desired. If they had been called to account for great and real wrong in 1695, we should not have had them here complaining of imaginary wrong in 1698."

The fight was protracted by the obstinacy and dexterity of the Old Company and its friends from the first week of May to the last week in June. It seems that many even of Montague's followers doubted whether the promised two millions would be forthcoming. His enemies confidently predicted that the General Society would be as complete a failure as the Land Bank had been in the year before the last, and that he would in the autumn find himself in charge of an empty exchequer. His activity and eloquence, however, prevailed. On the twenty-sixth of June, after many laborious sittings, the question was put that this Bill do pass, and was carried by one hundred and fifteen votes to seventy-eight. In the upper House, the conflict was short and sharp. Some peers declared that, in their opinion, the subscription to the proposed loan, far from amounting to the two millions which the Chancellor of the Exchequer expected, would fall far short of one million. Others, with much reason, complained that a law of such grave importance should have been sent up to them in such a shape that they must either take the whole or throw out the whole. The privilege of the Commons with respect to money bills had of late been grossly abused. The Bank had been created by one money bill; this General Society was to be created by another money bill. Such a bill the Lords could not amend; they might indeed reject it; but to reject it was to shake the foundations of public credit and to leave the kingdom defenceless. Thus one branch of the legislature was systematically put under duress by the other, and seemed likely to be reduced to utter insignificance. It was better that the government should be once pinched for money than that the House of Peers should cease to be part of the Constitution. So strong was this feeling that the Bill was carried only by sixty-five to forty-eight. It received the royal sanction on the fifth of July. The King then spoke from the throne. This was the first occasion on which a King of England had spoken to a Parliament of which the existence was about to be terminated, not by his own act, but by the act of the law. He could not, he said, take leave of the Lords and Gentlemen before him without publicly acknowledging the great things which they had done for his dignity and for the welfare of the nation. He

recounted the chief services which they had, during three eventful sessions, rendered to the country. "These things will," he said, "give a lasting reputation to this Parliament, and will be a subject of emulation to Parliaments which shall come after." The Houses were then prorogued.

During the week which followed there was some anxiety as to the result of the subscription for the stock of the General Society. If that subscription failed, there would be a deficit; public credit would be shaken; and Montague would be regarded as a pretender who had owed his reputation to a mere run of good luck, and who had tempted chance once too often. But the event was such as even his sanguine spirit had scarcely ventured to anticipate. At one in the afternoon of the 14th of July the books were opened at the Hall of the Company of Mercers in Cheapside. An immense crowd was already collected in the street. As soon as the doors were flung wide, wealthy citizens, with their money in their hands, pressed in, pushing and elbowing each other. The guineas were paid down faster than the clerks could count them. Before night six hundred thousand pounds had been subscribed. The next day the throng was as great. More than one capitalist put down his name for thirty thousand pounds. To the astonishment of those ill boding politicians who were constantly repeating that the war, the debt, the taxes, the grants to Dutch courtiers, had ruined the kingdom, the sum, which it had been doubted whether England would be able to raise in many weeks, was subscribed by London in a few hours. The applications from the provincial towns and rural districts came too late. The merchants of Bristol had intended to take three hundred thousand pounds of the stock, but had waited to learn how the subscription went on before they gave their final orders; and, by the time that the mail had gone down to Bristol and returned, there was no more stock to be had.

This was the moment at which the fortunes of Montague reached the meridian. The decline was close at hand. His ability and his constant success were everywhere talked of with admiration and envy. That man, it was commonly said, has never wanted, and never will want, an expedient.

During the long and busy session which had just closed, some interesting and important events had taken place which may properly be mentioned here. One of those events was the destruction of the most celebrated palace in which the sovereigns of England have ever dwelt. On the evening of the 4th of January, a woman,—the patriotic journalists and pamphleteers of that

time did not fail to note that she was a Dutchwoman,—who was employed as a laundress at Whitehall, lighted a charcoal fire in her room and placed some linen round it. The linen caught fire and burned furiously. The tapestry, the bedding, the wainscots were soon in a blaze. The unhappy woman who had done the mischief perished. Soon the flames burst out of the windows. All Westminster, all the Strand, all the river were in commotion. Before midnight the King's apartments, the Queen's apartments, the Wardrobe, the Treasury, the office of the Privy Council, the office of the Secretary of State, had been destroyed. The two chapels perished together; that ancient chapel where Wolsey had heard mass in the midst of gorgeous copes, golden candlesticks, and jewelled crosses, and that modern edifice which had been erected for the devotions of James and had been embellished by the pencil of Verrio and the chisel of Gibbons. Meanwhile a great extent of building had been blown up; and it was hoped that by this expedient a stop had been put to the conflagration. But early in the morning a new fire broke out of the heaps of combustible matter which the gunpowder had scattered to right and left. The guard room was consumed. No trace was left of that celebrated gallery which had witnessed so many balls and pageants, in which so many maids of honour had listened too easily to the vows and flatteries of gallants, and in which so many bags of gold had changed masters at the hazard table. During some time men despaired of the Banqueting House. The flames broke in on the south of that beautiful hall, and were with great difficulty extinguished by the exertions of the guards, to whom Cutts, mindful of his honourable nickname of the Salamander, set as good an example on this night of terror as he had set in the breach of Namur. Many lives were lost, and many grievous wounds were inflicted by the falling masses of stone and timber, before the fire was effectually subdued. When day broke, the heaps of smoking ruins spread from Scotland Yard to the Bowling Green, where the mansion of the Duke of Buccleuch now stands. The Banqueting House was safe; but the graceful columns and festoons designed by Inigo were so much defaced and blackened that their form could hardly be discerned. There had been time to move the most valuable effects which were moveable. Unfortunately some of Holbein's finest pictures were painted on the walls, and are consequently known to us only by copies and engravings. The books of the Treasury and of the Privy Council were rescued, and are still preserved. The Ministers whose offices had been burned down were provided with new offices in the

neighbourhood. Henry the Eighth had built, close to St. James's Park, two appendages to the Palace of Whitehall, a cockpit and a tennis court. The Treasury now occupies the site of the cockpit, the Privy Council Office the site of the tennis court.

Notwithstanding the many associations which make the name of Whitehall still interesting to an Englishman, the old building was little regretted. It was spacious indeed and commodious, but mean and inelegant. The people of the capital had been annoyed by the scoffing way in which foreigners spoke of the principal residence of our sovereigns, and often said that it was a pity that the great fire had not spared the old portico of St. Paul's and the stately arcades of Gresham's Bourse, and taken in exchange that ugly old labyrinth of dingy brick and plastered timber. It might now be hoped that we should have a Louvre. Before the ashes of the old palace were cold, plans for a new palace were circulated and discussed. But William, who could not draw his breath in the air of Westminster, was little disposed to expend a million on a house which it would have been impossible for him to inhabit. Many blamed him for not restoring the dwelling of his predecessors; and a few Jacobites, whom evil temper and repeated disappointments had driven almost mad, accused him of having burned it down. It was not till long after his death that Tory writers ceased to call for the rebuilding of Whitehall, and to complain that the King of England had no better town house than St. James's, while the delightful spot where the Tudors and the Stuarts had held their councils and their revels was covered with the mansions of his jobbing courtiers. [9](#)

In the same week in which Whitehall perished, the Londoners were supplied with a new topic of conversation by a royal visit, which, of all royal visits, was the least pompous and ceremonious and yet the most interesting and important. On the 10th of January a vessel from Holland anchored off Greenwich and was welcomed with great respect. Peter the First, Czar of Muscovy, was on board. He took boat with a few attendants and was rowed up the Thames to Norfolk Street, where a house overlooking the river had been prepared for his reception.

His journey is an epoch in the history, not only of his own country, but of our's, and of the world. To the polished nations of Western Europe, the empire which he governed had till then been what Bokhara or Siam is to us. That empire indeed, though less extensive than at present, was the most

extensive that had ever obeyed a single chief. The dominions of Alexander and of Trajan were small when compared with the immense area of the Scythian desert. But in the estimation of statesmen that boundless expanse of larch forest and morass, where the snow lay deep during eight months of every year, and where a wretched peasantry could with difficulty defend their hovels against troops of famished wolves, was of less account than the two or three square miles into which were crowded the counting houses, the warehouses, and the innumerable masts of Amsterdam. On the Baltic Russia had not then a single port. Her maritime trade with the other rations of Christendom was entirely carried on at Archangel, a place which had been created and was supported by adventurers from our island. In the days of the Tudors, a ship from England, seeking a north east passage to the land of silk and spice, had discovered the White Sea. The barbarians who dwelt on the shores of that dreary gulf had never before seen such a portent as a vessel of a hundred and sixty tons burden. They fled in terror; and, when they were pursued and overtaken, prostrated themselves before the chief of the strangers and kissed his feet. He succeeded in opening a friendly communication with them; and from that time there had been a regular commercial intercourse between our country and the subjects of the Czar. A Russia Company was incorporated in London. An English factory was built at Archangel. That factory was indeed, even in the latter part of the seventeenth century, a rude and mean building. The walls consisted of trees laid one upon another; and the roof was of birch bark. This shelter, however, was sufficient in the long summer day of the Arctic regions. Regularly at that season several English ships cast anchor in the bay. A fair was held on the beach. Traders came from a distance of many hundreds of miles to the only mart where they could exchange hemp and tar, hides and tallow, wax and honey, the fur of the sable and the wolverine, and the roe of the sturgeon of the Volga, for Manchester stuffs, Sheffield knives, Birmingham buttons, sugar from Jamaica and pepper from Malabar. The commerce in these articles was open. But there was a secret traffic which was not less active or less lucrative, though the Russian laws had made it punishable, and though the Russian divines pronounced it damnable. In general the mandates of princes and the lessons of priests were received by the Muscovite with profound reverence. But the authority of his princes and of his priests united could not keep him from tobacco. Pipes he could not obtain; but a cow's horn perforated served his turn. From every Archangel

fair rolls of the best Virginia speedily found their way to Novgorod and Tobolsk.

The commercial intercourse between England and Russia made some diplomatic intercourse necessary. The diplomatic intercourse however was only occasional. The Czar had no permanent minister here. We had no permanent minister at Moscow; and even at Archangel we had no consul. Three or four times in a century extraordinary embassies were sent from Whitehall to the Kremlin and from the Kremlin to Whitehall.

The English embassies had historians whose narratives may still be read with interest. Those historians described vividly, and sometimes bitterly, the savage ignorance and the squalid poverty of the barbarous country in which they had sojourned. In that country, they said, there was neither literature nor science, neither school nor college. It was not till more than a hundred years after the invention of printing that a single printing press had been introduced into the Russian empire; and that printing press had speedily perished in a fire which was supposed to have been kindled by the priests. Even in the seventeenth century the library of a prelate of the first dignity consisted of a few manuscripts. Those manuscripts too were in long rolls; for the art of bookbinding was unknown. The best educated men could barely read and write. It was much if the secretary to whom was entrusted the direction of negotiations with foreign powers had a sufficient smattering of Dog Latin to make himself understood. The arithmetic was the arithmetic of the dark ages. The denary notation was unknown. Even in the Imperial Treasury the computations were made by the help of balls strung on wires. Round the person of the Sovereign there was a blaze of gold and jewels; but even in his most splendid palaces were to be found the filth and misery of an Irish cabin. So late as the year 1663 the gentlemen of the retinue of the Earl of Carlisle were, in the city of Moscow, thrust into a single bedroom, and were told that, if they did not remain together, they would be in danger of being devoured by rats.

Such was the report which the English legations made of what they had seen and suffered in Russia; and their evidence was confirmed by the appearance which the Russian legations made in England. The strangers spoke no civilised language. Their garb, their gestures, their salutations, had a wild and barbarous character. The ambassador and the grandees who accompanied him were so gorgeous that all London crowded to stare at

them, and so filthy that nobody dared to touch them. They came to the court balls dropping pearls and vermin. It was said that one envoy cudgelled the lords of his train whenever they soiled or lost any part of their finery, and that another had with difficulty been prevented from putting his son to death for the crime of shaving and dressing after the French fashion.

Our ancestors therefore were not a little surprised to learn that a young barbarian, who had, at seventeen years of age, become the autocrat of the immense region stretching from the confines of Sweden to those of China, and whose education had been inferior to that of an English farmer or shopman, had planned gigantic improvements, had learned enough of some languages of Western Europe to enable him to communicate with civilised men, had begun to surround himself with able adventurers from various parts of the world, had sent many of his young subjects to study languages, arts and sciences in foreign cities, and finally had determined to travel as a private man, and to discover, by personal observation, the secret of the immense prosperity and power enjoyed by some communities whose whole territory was far less than the hundredth part of his dominions.

It might have been expected that France would have been the first object of his curiosity. For the grace and dignity of the French King, the splendour of the French Court, the discipline of the French armies, and the genius and learning of the French writers, were then renowned all over the world. But the Czar's mind had early taken a strange ply which it retained to the last. His empire was of all empires the least capable of being made a great naval power. The Swedish provinces lay between his States and the Baltic. The Bosphorus and the Dardanelles lay between his States and the Mediterranean. He had access to the ocean only in a latitude in which navigation is, during a great part of every year, perilous and difficult. On the ocean he had only a single port, Archangel; and the whole shipping of Archangel was foreign. There did not exist a Russian vessel larger than a fishing-boat. Yet, from some cause which cannot now be traced, he had a taste for maritime pursuits which amounted to a passion, indeed almost to a monomania. His imagination was full of sails, yardarms, and rudders. That large mind, equal to the highest duties of the general and the statesman, contracted itself to the most minute details of naval architecture and naval discipline. The chief ambition of the great conqueror and legislator was to be a good boatswain and a good ship's carpenter. Holland and England therefore had for him an attraction which was wanting to the galleries and

terraces of Versailles. He repaired to Amsterdam, took a lodging in the dockyard, assumed the garb of a pilot, put down his name on the list of workmen, wielded with his own hand the caulking iron and the mallet, fixed the pumps, and twisted the ropes. Ambassadors who came to pay their respects to him were forced, much against their will, to clamber up the rigging of a man of war, and found him enthroned on the cross trees.

Such was the prince whom the populace of London now crowded to behold. His stately form, his intellectual forehead, his piercing black eyes, his Tartar nose and mouth, his gracious smile, his frown black with all the stormy rage and hate of a barbarian tyrant, and above all a strange nervous convulsion which sometimes transformed his countenance during a few moments, into an object on which it was impossible to look without terror, the immense quantities of meat which he devoured, the pints of brandy which he swallowed, and which, it was said, he had carefully distilled with his own hands, the fool who jabbered at his feet, the monkey which grinned at the back of his chair, were, during some weeks, popular topics of conversation. He meanwhile shunned the public gaze with a haughty shyness which inflamed curiosity. He went to a play; but, as soon as he perceived that pit, boxes and galleries were staring, not at the stage, but at him, he retired to a back bench where he was screened from observation by his attendants. He was desirous to see a sitting of the House of Lords; but, as he was determined not to be seen, he was forced to climb up to the leads, and to peep through a small window. He heard with great interest the royal assent given to a bill for raising fifteen hundred thousand pounds by land tax, and learned with amazement that this sum, though larger by one half than the whole revenue which he could wring from the population of the immense empire of which he was absolute master, was but a small part of what the Commons of England voluntarily granted every year to their constitutional King.

William judiciously humoured the whims of his illustrious guest, and stole to Norfolk Street so quietly that nobody in the neighbourhood recognised His Majesty in the thin gentleman who got out of the modest looking coach at the Czar's lodgings. The Czar returned the visit with the same precautions, and was admitted into Kensington House by a back door. It was afterwards known that he took no notice of the fine pictures with which the palace was adorned. But over the chimney of the royal sitting

room was a plate which, by an ingenious machinery, indicated the direction of the wind; and with this plate he was in raptures.

He soon became weary of his residence. He found that he was too far from the objects of his curiosity, and too near to the crowds to which he was himself an object of curiosity. He accordingly removed to Deptford, and was there lodged in the house of John Evelyn, a house which had long been a favourite resort of men of letters, men of taste and men of science. Here Peter gave himself up to his favourite pursuits. He navigated a yacht every day up and down the river. His apartment was crowded with models of three deckers and two deckers, frigates, sloops and fireships. The only Englishman of rank in whose society he seemed to take much pleasure was the eccentric Caermarthen, whose passion for the sea bore some resemblance to his own, and who was very competent to give an opinion about every part of a ship from the stem to the stern. Caermarthen, indeed, became so great a favourite that he prevailed on the Czar to consent to the admission of a limited quantity of tobacco into Russia. There was reason to apprehend that the Russian clergy would cry out against any relaxation of the ancient rule, and would strenuously maintain that the practice of smoking was condemned by that text which declares that man is defiled, not by those things which enter in at the mouth, but by those which proceed out of it. This apprehension was expressed by a deputation of merchants who were admitted to an audience of the Czar; but they were reassured by the air with which he told them that he knew how to keep priests in order.

He was indeed so free from any bigoted attachment to the religion in which he had been brought up that both Papists and Protestants hoped at different times to make him a proselyte. Burnet, commissioned by his brethren, and impelled, no doubt, by his own restless curiosity and love of meddling, repaired to Deptford and was honoured with several audiences. The Czar could not be persuaded to exhibit himself at Saint Paul's; but he was induced to visit Lambeth palace. There he saw the ceremony of ordination performed, and expressed warm approbation of the Anglican ritual. Nothing in England astonished him so much as the Archbishop's library. It was the first good collection of books that he had seen; and he declared that he had never imagined that there were so many printed volumes in the world.

The impression which he made on Burnet was not favourable. The good bishop could not understand that a mind which seemed to be chiefly occupied with questions about the best place for a capstan and the best way of rigging a jury mast might be capable, not merely of ruling an empire, but of creating a nation. He complained that he had gone to see a great prince, and had found only an industrious shipwright. Nor does Evelyn seem to have formed a much more favourable opinion of his august tenant. It was, indeed, not in the character of tenant that the Czar was likely to gain the good word of civilised men. With all the high qualities which were peculiar to himself, he had all the filthy habits which were then common among his countrymen. To the end of his life, while disciplining armies, founding schools, framing codes, organising tribunals, building cities in deserts, joining distant seas by artificial rivers, he lived in his palace like a hog in a sty; and, when he was entertained by other sovereigns, never failed to leave on their tapestried walls and velvet state beds unequivocal proof that a savage had been there. Evelyn's house was left in such a state that the Treasury quieted his complaints with a considerable sum of money.

Towards the close of March the Czar visited Portsmouth, saw a sham seafight at Spithead, watched every movement of the contending fleets with intense interest, and expressed in warm terms his gratitude to the hospitable government which had provided so delightful a spectacle for his amusement and instruction. After passing more than three months in England, he departed in high good humour. [10](#)

His visit, his singular character, and what was rumoured of his great designs, excited much curiosity here, but nothing more than curiosity. England had as yet nothing to hope or to fear from his vast empire. All her serious apprehensions were directed towards a different quarter. None could say how soon France, so lately an enemy, might be an enemy again.

The new diplomatic relations between the two great western powers were widely different from those which had existed before the war. During the eighteen years which had elapsed between the signing of the Treaty of Dover and the Revolution, all the envoys who had been sent from Whitehall to Versailles had been mere sycophants of the great King. In England the French ambassador had been the object of a degrading worship. The chiefs of both the great parties had been his pensioners and his tools. The ministers of the Crown had paid him open homage. The leaders of the opposition had

stolen into his house by the back door. Kings had stooped to implore his good offices, had persecuted him for money with the importunity of street beggars; and, when they had succeeded in obtaining from him a box of doubloons or a bill of exchange, had embraced him with tears of gratitude and joy. But those days were past. England would never again send a Preston or a Skelton to bow down before the majesty of France. France would never again send a Barillon to dictate to the cabinet of England. Henceforth the intercourse between the two states would be on terms of perfect equality.

William thought it necessary that the minister who was to represent him at the French Court should be a man of the first consideration, and one on whom entire reliance could be reposed. Portland was chosen for this important and delicate mission; and the choice was eminently judicious. He had, in the negotiations of the preceding year, shown more ability than was to be found in the whole crowd of formalists who had been exchanging notes and drawing up protocols at Ryswick. Things which had been kept secret from the plenipotentiaries who had signed the treaty were well known to him. The clue of the whole foreign policy of England and Holland was in his possession. His fidelity and diligence were beyond all praise. These were strong recommendations. Yet it seemed strange to many that William should have been willing to part, for a considerable time, from a companion with whom he had during a quarter of a century lived on terms of entire confidence and affection. The truth was that the confidence was still what it had long been, but that the affection, though it was not yet extinct, though it had not even cooled, had become a cause of uneasiness to both parties. Till very recently, the little knot of personal friends who had followed William from his native land to his place of splendid banishment had been firmly united. The aversion which the English nation felt for them had given him much pain; but he had not been annoyed by any quarrel among themselves. Zulestein and Auverquerque had, without a murmur, yielded to Portland the first place in the royal favour; nor had Portland grudged to Zulestein and Auverquerque very solid and very signal proofs of their master's kindness. But a younger rival had lately obtained an influence which created much jealousy. Among the Dutch gentlemen who had sailed with the Prince of Orange from Helvoetsluys to Torbay was one named Arnold Van Keppel. Keppel had a sweet and obliging temper, winning manners, and a quick, though not a profound, understanding. Courage,

loyalty and secrecy were common between him and Portland. In other points they differed widely. Portland was naturally the very opposite of a flatterer, and, having been the intimate friend of the Prince of Orange at a time when the interval between the House of Orange and the House of Bentinck was not so wide as it afterwards became, had acquired a habit of plain speaking which he could not unlearn when the comrade of his youth had become the sovereign of three kingdoms. He was a most trusty, but not a very respectful, subject. There was nothing which he was not ready to do or suffer for William. But in his intercourse with William he was blunt and sometimes surly. Keppel, on the other hand, had a great desire to please, and looked up with unfeigned admiration to a master whom he had been accustomed, ever since he could remember, to consider as the first of living men. Arts, therefore, which were neglected by the elder courtier were assiduously practised by the younger. So early as the spring of 1691 shrewd observers were struck by the manner in which Keppel watched every turn of the King's eye, and anticipated the King's unuttered wishes. Gradually the new servant rose into favour. He was at length made Earl of Albemarle and Master of the Robes. But his elevation, though it furnished the Jacobites with a fresh topic for calumny and ribaldry, was not so offensive to the nation as the elevation of Portland had been. Portland's manners were thought dry and haughty; but envy was disarmed by the blandness of Albemarle's temper and by the affability of his deportment.

Portland, though strictly honest, was covetous; Albemarle was generous. Portland had been naturalised here only in name and form; but Albemarle affected to have forgotten his own country, and to have become an Englishman in feelings and manners. The palace was soon disturbed by quarrels in which Portland seems to have been always the aggressor, and in which he found little support either among the English or among his own countrymen. William, indeed, was not the man to discard an old friend for a new one. He steadily gave, on all occasions, the preference to the companion of his youthful days. Portland had the first place in the bed-chamber. He held high command in the army. On all great occasions he was trusted and consulted. He was far more powerful in Scotland than the Lord High Commissioner, and far deeper in the secret of foreign affairs than the Secretary of State. He wore the Garter, which sovereign princes coveted. Lands and money had been bestowed on him so liberally that he was one of the richest subjects in Europe. Albemarle had as yet not even a regiment; he

had not been sworn of the Council; and the wealth which he owed to the royal bounty was a pittance when compared with the domains and the hoards of Portland. Yet Portland thought himself aggrieved. He could not bear to see any other person near him, though below him, in the royal favour. In his fits of resentful sullenness, he hinted an intention of retiring from the Court. William omitted nothing that a brother could have done to soothe and conciliate a brother. Letters are still extant in which he, with the utmost solemnity, calls God to witness that his affection for Bentinck still is what it was in their early days. At length a compromise was made. Portland, disgusted with Kensington, was not sorry to go to France as ambassador; and William with deep emotion consented to a separation longer than had ever taken place during an intimacy of twenty-five years. A day or two after the new plenipotentiary had set out on his mission, he received a touching letter from his master. "The loss of your society," the King wrote, "has affected me more than you can imagine. I should be very glad if I could believe that you felt as much pain at quitting me as I felt at seeing you depart; for then I might hope that you had ceased to doubt the truth of what I so solemnly declared to you on my oath. Assure yourself that I never was more sincere. My feeling towards you is one which nothing but death can alter." It should seem that the answer returned to these affectionate assurances was not perfectly gracious; for, when the King next wrote, he gently complained of an expression which had wounded him severely.

But, though Portland was an unreasonable and querulous friend, he was a most faithful and zealous minister. His despatches show how indefatigably he toiled for the interests, and how punctiliously he guarded the dignity, of the prince by whom he imagined that he had been unjustly and unkindly treated.

The embassy was the most magnificent that England had ever sent to any foreign court. Twelve men of honourable birth and ample fortune, some of whom afterwards filled high offices in the State, attended the mission at their own charge. Each of them had his own carriage, his own horses, and his own train of servants. Two less wealthy persons, who, in different ways, attained great note in literature, were of the company. Rapin, whose history of England might have been found, a century ago, in every library, was the preceptor of the ambassador's eldest son, Lord Woodstock. Prior was Secretary of Legation. His quick parts, his industry, his politeness, and his perfect knowledge of the French language, marked him out as eminently

fitted for diplomatic employment. He had, however, found much difficulty in overcoming an odd prejudice which his chief had conceived against him. Portland, with good natural abilities and great expertness in business, was no scholar. He had probably never read an English book; but he had a general notion, unhappily but too well founded, that the wits and poets who congregated at Will's were a most profane and licentious set; and, being himself a man of orthodox opinions and regular life, he was not disposed to give his confidence to one whom he supposed to be a ribald scoffer. Prior, with much address, and perhaps with the help of a little hypocrisy, completely removed this unfavourable impression. He talked on serious subjects seriously, quoted the New Testament appositely, vindicated Hammond from the charge of popery, and, by way of a decisive blow, gave the definition of a true Church from the nineteenth Article. Portland stared at him. "I am glad, Mr. Prior, to find you so good a Christian. I was afraid that you were an atheist." "An atheist, my good lord!" cried Prior. "What could lead your Lordship to entertain such a suspicion?" "Why," said Portland, "I knew that you were a poet; and I took it for granted that you did not believe in God." "My lord," said the wit, "you do us poets the greatest injustice. Of all people we are the farthest from atheism. For the atheists do not even worship the true God, whom the rest of mankind acknowledge; and we are always invoking and hymning false gods whom everybody else has renounced." This jest will be perfectly intelligible to all who remember the eternally recurring allusions to Venus and Minerva, Mars, Cupid and Apollo, which were meant to be the ornaments, and are the blemishers, of Prior's compositions. But Portland was much puzzled. However, he declared himself satisfied; and the young diplomatist withdrew, laughing to think with how little learning a man might shine in courts, lead armies, negotiate treaties, obtain a coronet and a garter, and leave a fortune of half a million.

The citizens of Paris and the courtiers of Versailles, though more accustomed than the Londoners to magnificent pageantry, allowed that no minister from any foreign state had ever made so superb an appearance as Portland. His horses, his liveries, his plate, were unrivalled. His state carriage, drawn by eight fine Neapolitan greys decorated with orange ribands, was specially admired. On the day of his public entry the streets, the balconies, and the windows were crowded with spectators along a line of three miles. As he passed over the bridge on which the statue of Henry

IV. stands, he was much amused by hearing one of the crowd exclaim: "Was it not this gentleman's master that we burned on this very bridge eight years ago?" The Ambassador's hotel was constantly thronged from morning to night by visitors in plumes and embroidery. Several tables were sumptuously spread every day under his roof; and every English traveller of decent station and character was welcome to dine there. The board at which the master of the house presided in person, and at which he entertained his most distinguished guests, was said to be more luxurious than that of any prince of the House of Bourbon. For there the most exquisite cookery of France was set off by a certain neatness and comfort which then, as now, peculiarly belonged to England. During the banquet the room was filled with people of fashion, who went to see the grandees eat and drink. The expense of all this splendour and hospitality was enormous, and was exaggerated by report. The cost to the English government really was fifty thousand pounds in five months. It is probable that the opulent gentlemen who accompanied the mission as volunteers laid out nearly as much more from their private resources.

The malecontents at the coffeehouses of London murmured at this profusion, and accused William of ostentation. But, as this fault was never, on any other occasion, imputed to him even by his detractors, we may not unreasonably attribute to policy what to superficial or malicious observers seemed to be vanity. He probably thought it important, at the commencement of a new era in the relations between the two great kingdoms of the West, to hold high the dignity of the Crown which he wore. He well knew, indeed, that the greatness of a prince does not depend on piles of silver bowls and chargers, trains of gilded coaches, and multitudes of running footmen in brocade, and led horses in velvet housings. But he knew also that the subjects of Lewis had, during the long reign of their magnificent sovereign, been accustomed to see power constantly associated with pomp, and would hardly believe that the substance existed unless they were dazzled by the trappings.

If the object of William was to strike the imagination of the French people, he completely succeeded. The stately and gorgeous appearance which the English embassy made on public occasions was, during some time, the general topic of conversation at Paris. Portland enjoyed a popularity which contrasts strangely with the extreme unpopularity which he had incurred in England. The contrast will perhaps seem less strange

when we consider what immense sums he had accumulated at the expense of the English, and what immense sums he was laying out for the benefit of the French. It must also be remembered that he could not confer or correspond with Englishmen in their own language, and that the French tongue was at least as familiar to him, as that of his native Holland. He, therefore, who here was called greedy, niggardly, dull, brutal, whom one English nobleman had described as a block of wood, and another as just capable of carrying a message right, was in the brilliant circles of France considered as a model of grace, of dignity and of munificence, as a dexterous negotiator and a finished gentleman. He was the better liked because he was a Dutchman. For, though fortune had favoured William, though considerations of policy had induced the Court of Versailles to acknowledge him, he was still, in the estimation of that Court, an usurper; and his English councillors and captains were perjured traitors who richly deserved axes and halters, and might, perhaps, get what they deserved. But Bentinck was not to be confounded with Leeds and Marlborough, Orford and Godolphin. He had broken no oath, had violated no law. He owed no allegiance to the House of Stuart; and the fidelity and zeal with which he had discharged his duties to his own country and his own master entitled him to respect. The noble and powerful vied with each other in paying honour to the stranger.

The Ambassador was splendidly entertained by the Duke of Orleans at St. Cloud, and by the Dauphin at Meudon. A Marshal of France was charged to do the honours of Marli; and Lewis graciously expressed his concern that the frosts of an ungenial spring prevented the fountains and flower beds from appearing to advantage. On one occasion Portland was distinguished, not only by being selected to hold the waxlight in the royal bedroom, but by being invited to go within the balustrade which surrounded the couch, a magic circle which the most illustrious foreigners had hitherto found impassable. The Secretary shared largely in the attentions which were paid to his chief. The Prince of Conde took pleasure in talking with him on literary subjects. The courtesy of the aged Bossuet, the glory of the Church of Rome, was long gratefully remembered by the young heretic. Boileau had the good sense and good feeling to exchange a friendly greeting with the aspiring novice who had administered to him a discipline as severe as he had administered to Quinault. The great King himself warmly praised Prior's manners and conversation, a circumstance which will be thought

remarkable when it is remembered that His Majesty was an excellent model and an excellent judge of gentlemanlike deportment, and that Prior had passed his boyhood in drawing corks at a tavern, and his early manhood in the seclusion of a college. The Secretary did not however carry his politeness so far as to refrain from asserting, on proper occasions, the dignity of his country and of his master. He looked coldly on the twenty-one celebrated pictures in which Le Brun had represented on the coifing of the gallery of Versailles the exploits of Lewis. When he was sneeringly asked whether Kensington Palace could boast of such decorations, he answered, with spirit and propriety: "No, Sir. The memorials of the great things which my master has done are to be seen in many places; but not in his own house."

Great as was the success of the embassy, there was one drawback. James was still at Saint Germain; and round the mock King were gathered a mock Court and Council, a Great Seal and a Privy Seal, a crowd of garters and collars, white staves and gold keys. Against the pleasure which the marked attentions of the French princes and grandees gave to Portland, was to be set off the vexation which he felt when Middleton crossed his path with the busy look of a real Secretary of State. But it was with emotions far deeper that the Ambassador saw on the terraces and in the antechambers of Versailles men who had been deeply implicated in plots against the life of his master. He expressed his indignation loudly and vehemently. "I hope," he said, "that there is no design in this; that these wretches are not purposely thrust in my way. When they come near me all my blood runs back in my veins." His words were reported to Lewis. Lewis employed Boufflers to smooth matters; and Boufflers took occasion to say something on the subject as if from himself. Portland easily divined that in talking with Boufflers he was really talking with Lewis, and eagerly seized the opportunity of representing the expediency, the absolute necessity, of removing James to a greater distance from England. "It was not contemplated, Marshal," he said, "when we arranged the terms of peace in Brabant, that a palace in the suburbs of Paris was to continue to be an asylum for outlaws and murderers." "Nay, my Lord," said Boufflers, uneasy doubtless on his own account, "you will not; I am sure, assert that I gave you any pledge that King James would be required to leave France. You are too honourable a man, you are too much my friend, to say any such thing." "It is true," answered Portland, "that I did not insist on a positive promise

from you; but remember what passed. I proposed that King James should retire to Rome or Modena. Then you suggested Avignon; and I assented. Certainly my regard for you makes me very unwilling to do anything that would give you pain. But my master's interests are dearer to me than all the friends that I have in the world put together. I must tell His Most Christian Majesty all that passed between us; and I hope that, when I tell him, you will be present, and that you will be able to bear witness that I have not put a single word of mine into your mouth."

When Boufflers had argued and expostulated in vain, Villeroy was sent on the same errand, but had no better success. A few days later Portland had a long private audience of Lewis. Lewis declared that he was determined to keep his word, to preserve the peace of Europe, to abstain from everything which could give just cause of offence to England, but that, as a man of honour, as a man of humanity, he could not refuse shelter to an unfortunate King, his own first cousin. Portland replied that nobody questioned His Majesty's good faith; but that while Saint Germain's was occupied by its present inmates it would be beyond even His Majesty's power to prevent eternal plotting between them and the malecontents on the other side of the Straits of Dover, and that, while such plotting went on, the peace must necessarily be insecure. The question was really not one of humanity. It was not asked, it was not wished, that James should be left destitute. Nay, the English government was willing to allow him an income larger than that which he derived from the munificence of France. Fifty thousand pounds a year, to which in strictness of law he had no right, awaited his acceptance, if he would only move to a greater distance from the country which, while he was near it, could never be at rest. If, in such circumstances, he refused to move, this was the strongest reason for believing that he could not safely be suffered to stay. The fact that he thought the difference between residing at Saint Germain's and residing at Avignon worth more than fifty thousand a year sufficiently proved that he had not relinquished the hope of being restored to his throne by means of a rebellion or of something worse. Lewis answered that on that point his resolution was unalterable. He never would compel his guest and kinsman to depart. "There is another matter," said Portland, "about which I have felt it my duty to make representations. I mean the countenance given to the assassins." "I know nothing about assassins," said Lewis. "Of course," answered the Ambassador, "your Majesty knows nothing about such men. At least your Majesty does not

know them for what they are. But I can point them out, and can furnish ample proofs of their guilt." He then named Berwick. For the English Government, which had been willing to make large allowances for Berwick's peculiar position as long as he confined himself to acts of open and manly hostility, conceived that he had forfeited all claim to indulgence by becoming privy to the Assassination Plot. This man, Portland said, constantly haunted Versailles. Barclay, whose guilt was of a still deeper dye,—Barclay, the chief contriver of the murderous ambushade of Turnham Green,—had found in France, not only an asylum, but an honourable military position. The monk who was sometimes called Harrison and sometimes went by the alias of Johnson, but who, whether Harrison or Johnson, had been one of the earliest and one of the most bloodthirsty of Barclays accomplices, was now comfortably settled as prior of a religious house in France. Lewis denied or evaded all these charges. "I never," he said, "heard of your Harrison. As to Barclay, he certainly once had a company; but it has been disbanded; and what has become of him I do not know. It is true that Berwick was in London towards the close of 1695; but he was there only for the purpose of ascertaining whether a descent on England was practicable; and I am confident that he was no party to any cruel and dishonourable design." In truth Lewis had a strong personal motive for defending Berwick. The guilt of Berwick as respected the Assassination Plot does not appear to have extended beyond connivance; and to the extent of connivance Lewis himself was guilty.

Thus the audience terminated. All that was left to Portland was to announce that the exiles must make their choice between Saint Germain and fifty thousand a year; that the protocol of Ryswick bound the English government to pay to Mary of Modena only what the law gave her; that the law gave her nothing; that consequently the English government was bound to nothing; and that, while she, her husband and her child remained where they were, she should have nothing. It was hoped that this announcement would produce a considerable effect even in James's household; and indeed some of his hungry courtiers and priests seem to have thought the chance of a restoration so small that it would be absurd to refuse a splendid income, though coupled with a condition which might make that small chance somewhat smaller. But it is certain that, if there was murmuring among the Jacobites, it was disregarded by James. He was fully resolved not to move, and was only confirmed in his resolution by learning that he was regarded

by the usurper as a dangerous neighbour. Lewis paid so much regard to Portland's complaints as to intimate to Middleton a request, equivalent to a command, that the Lords and gentlemen who formed the retinue of the banished King of England would not come to Versailles on days on which the representative of the actual King was expected there. But at other places there was constant risk of an encounter which might have produced several duels, if not an European war. James indeed, far from shunning such encounters, seems to have taken a perverse pleasure in thwarting his benefactor's wish to keep the peace, and in placing the Ambassador in embarrassing situations. One day his Excellency, while drawing on his boots for a run with the Dauphin's celebrated wolf pack, was informed that King James meant to be of the party, and was forced to stay at home. Another day, when his Excellency had set his heart on having some sport with the royal staghounds, he was informed by the Grand Huntsman that King James might probably come to the rendezvous without any notice. Melfort was particularly active in laying traps for the young noblemen and gentlemen of the Legation. The Prince of Wales was more than once placed in such a situation that they could scarcely avoid passing close to him. Were they to salute him? Were they to stand erect and covered while every body else saluted him? No Englishman zealous for the Bill of Rights and the Protestant religion would willingly do any thing which could be construed into an act of homage to a Popish pretender. Yet no goodnatured and generous man, however firm in his Whig principles, would willingly offer any thing which could look like an affront to an innocent and a most unfortunate child.

Meanwhile other matters of grave importance claimed Portland's attention. There was one matter in particular about which the French ministers anxiously expected him to say something, but about which he observed strict silence. How to interpret that silence they scarcely knew. They were certain only that it could not be the effect of unconcern. They were well assured that the subject which he so carefully avoided was never, during two waking hours together, out of his thoughts or out of the thoughts of his master. Nay, there was not in all Christendom a single politician, from the greatest ministers of state down to the silliest newsmongers of coffeehouses, who really felt that indifference which the prudent Ambassador of England affected. A momentous event, which had during many years been constantly becoming more and more probable, was now

certain and near. Charles the Second of Spain, the last descendant in the male line of the Emperor Charles the Fifth, would soon die without posterity. Who would then be the heir to his many kingdoms, dukedoms, counties, lordships, acquired in different ways, held by different titles and subject to different laws? That was a question about which jurists differed, and which it was not likely that jurists would, even if they were unanimous, be suffered to decide. Among the claimants were the mightiest sovereigns of the continent; there was little chance that they would submit to any arbitration but that of the sword; and it could not be hoped that, if they appealed to the sword, other potentates who had no pretension to any part of the disputed inheritance would long remain neutral. For there was in Western Europe no government which did not feel that its own prosperity, dignity and security might depend on the event of the contest.

It is true that the empire, which had, in the preceding century, threatened both France and England with subjugation, had of late been of hardly so much account as the Duchy of Savoy or the Electorate of Brandenburg. But it by no means followed that the fate of that empire was matter of indifference to the rest of the world. The paralytic helplessness and drowsiness of the body once so formidable could not be imputed to any deficiency of the natural elements of power. The dominions of the Catholic King were in extent and in population superior to those of Lewis and of William united. Spain alone, without a single dependency, ought to have been a kingdom of the first rank; and Spain was but the nucleus of the Spanish monarchy. The outlying provinces of that monarchy in Europe would have sufficed to make three highly respectable states of the second order. One such state might have been formed in the Netherlands. It would have been a wide expanse of cornfield, orchard and meadow, intersected by navigable rivers and canals. At short intervals, in that thickly peopled and carefully tilled region, rose stately old towns, encircled by strong fortifications, embellished by fine cathedrals and senate-houses, and renowned either as seats of learning or as seats of mechanical industry. A second flourishing principality might have been created between the Alps and the Po, out of that well watered garden of olives and mulberry trees which spreads many miles on every side of the great white temple of Milan. Yet neither the Netherlands nor the Milanese could, in physical advantages, vie with the kingdom of the Two Sicilies, a land which nature had taken pleasure in enriching and adorning, a land which would have been paradise,

if tyranny and superstition had not, during many ages, lavished all their noxious influences on the bay of Campania, the plain of Enna, and the sunny banks of Galesus.

In America the Spanish territories spread from the Equator northward and southward through all the signs of the Zodiac far into the temperate zone. Thence came gold and silver to be coined in all the mints, and curiously wrought in all the jewellers' shops, of Europe and Asia. Thence came the finest tobacco, the finest chocolate, the finest indigo, the finest cochineal, the hides of innumerable wild oxen, quinquina, coffee, sugar. Either the viceroyalty of Mexico or the viceroyalty of Peru would, as an independent state with ports open to all the world, have been an important member of the great community of nations.

And yet the aggregate, made up of so many parts, each of which separately might have been powerful and highly considered, was impotent to a degree which moved at once pity and laughter. Already one most remarkable experiment had been tried on this strange empire. A small fragment, hardly a three hundredth part of the whole in extent, hardly a thirtieth part of the whole in population, had been detached from the rest, had from that moment begun to display a new energy and to enjoy a new prosperity, and was now, after the lapse of a hundred and twenty years, far more feared and revered than the huge mass of which it had once been an obscure corner. What a contrast between the Holland which Alva had oppressed and plundered, and the Holland from which William had sailed to deliver England! And who, with such an example before him, would venture to foretell what changes might be at hand, if the most languid and torpid of monarchies should be dissolved, and if every one of the members which had composed it should enter on an independent existence?

To such a dissolution that monarchy was peculiarly liable. The King, and the King alone, held it together. The populations which acknowledged him as their chief either knew nothing of each other, or regarded each other with positive aversion. The Biscayan was in no sense the countryman of the Valencian, nor the Lombard of the Biscayan, nor the Fleeting of the Lombard, nor the Sicilian of the Fleeting. The Arragonese had never ceased to pine for their lost independence. Within the memory of many persons still living the Catalans had risen in rebellion, had entreated Lewis the Thirteenth of France to become their ruler with the old title of Count of

Barcelona, and had actually sworn fealty to him. Before the Catalans had been quieted, the Neapolitans had taken arms, had abjured their foreign master, had proclaimed their city a republic, and had elected a Loge. In the New World the small caste of born Spaniards which had the exclusive enjoyment of power and dignity was hated by Creoles and Indians, Mestizos and Quadroons. The Mexicans especially had turned their eyes on a chief who bore the name and had inherited the blood of the unhappy Montezuma. Thus it seemed that the empire against which Elizabeth and Henry the Fourth had been scarcely able to contend would not improbably fall to pieces of itself, and that the first violent shock from without would scatter the ill-cemented parts of the huge fabric in all directions.

But, though such a dissolution had no terrors for the Catalanian or the Fleming, for the Lombard or the Calabrian, for the Mexican or the Peruvian, the thought of it was torture and madness to the Castilian. Castile enjoyed the supremacy in that great assemblage of races and languages. Castile sent out governors to Brussels, Milan, Naples, Mexico, Lima. To Castile came the annual galleons laden with the treasures of America. In Castile was ostentatiously displayed and lavishly spent great fortunes made in remote provinces by oppression and corruption. In Castile were the King and his Court. There stood the stately Escorial, once the centre of the politics of the world, the place to which distant potentates looked, some with hope and gratitude, some with dread and hatred, but none without anxiety and awe. The glory of the house had indeed departed. It was long since couriers bearing orders big with the fate of kings and commonwealths had ridden forth from those gloomy portals. Military renown, maritime ascendancy, the policy once reputed so profound, the wealth once deemed inexhaustible, had passed away. An undisciplined army, a rotting fleet, an incapable council, an empty treasury, were all that remained of that which had been so great. Yet the proudest of nations could not bear to part even with the name and the shadow of a supremacy which was no more. All, from the grandee of the first class to the peasant, looked forward with dread to the day when God should be pleased to take their king to himself. Some of them might have a predilection for Germany; but such predilections were subordinate to a stronger feeling. The paramount object was the integrity of the empire of which Castile was the head; and the prince who should appear to be most likely to preserve that integrity unviolated would have the best right to the allegiance of every true Castilian.

No man of sense, however, out of Castile, when he considered the nature of the inheritance and the situation of the claimants, could doubt that a partition was inevitable. Among those claimants three stood preeminent, the Dauphin, the Emperor Leopold, and the Electoral Prince of Bavaria.

If the question had been simply one of pedigree, the right of the Dauphin would have been incontestable. Lewis the Fourteenth had married the Infanta Maria Theresa, eldest daughter of Philip the Fourth and sister of Charles the Second. Her eldest son, the Dauphin, would therefore, in the regular course of things, have been her brother's successor. But she had, at the time of her marriage, renounced, for herself and her posterity, all pretensions to the Spanish crown.

To that renunciation her husband had assented. It had been made an article of the Treaty of the Pyrenees. The Pope had been requested to give his apostolical sanction to an arrangement so important to the peace of Europe; and Lewis had sworn, by every thing that could bind a gentleman, a king, and a Christian, by his honour, by his royal word, by the canon of the Mass, by the Holy Gospels, by the Cross of Christ, that he would hold the renunciation sacred. [11](#)

The claim of the Emperor was derived from his mother Mary Anne, daughter of Philip the Third, and aunt of Charles the Second, and could not therefore, if nearness of blood alone were to be regarded, come into competition with the claim of the Dauphin. But the claim of the Emperor was barred by no renunciation. The rival pretensions of the great Houses of Bourbon and Habsburg furnished all Europe with an inexhaustible subject of discussion. Plausible topics were not wanting to the supporters of either cause. The partisans of the House of Austria dwelt on the sacredness of treaties; the partisans of France on the sacredness of birthright. How, it was asked on one side, can a Christian king have the effrontery, the impiety, to insist on a claim which he has with such solemnity renounced in the face of heaven and earth? How, it was asked on the other side, can the fundamental laws of a monarchy be annulled by any authority but that of the supreme legislature? The only body which was competent to take away from the children of Maria Theresa their hereditary rights was the Comes. The Comes had not ratified her renunciation. That renunciation was therefore a nullity; and no swearing, no signing, no sealing, could turn that nullity into a reality.

Which of these two mighty competitors had the better case may perhaps be doubted. What could not be doubted was that neither would obtain the prize without a struggle which would shake the world. Nor can we justly blame either for refusing to give way to the other. For, on this occasion, the chief motive which actuated them was, not greediness, but the fear of degradation and ruin. Lewis, in resolving to put every thing to hazard rather than suffer the power of the House of Austria to be doubled; Leopold, in determining to put every thing to hazard rather than suffer the power of the House of Bourbon to be doubled; merely obeyed the law of self preservation. There was therefore one way, and one alone, by which the great woe which seemed to be coming on Europe could be averted. Was it possible that the dispute might be compromised? Might not the two great rivals be induced to make to a third party concessions such as neither could reasonably be expected to make to the other?

The third party, to whom all who were anxious for the peace of Christendom looked as their best hope, was a child of tender age, Joseph, son of the Elector of Bavaria. His mother, the Electress Mary Antoinette, was the only child of the Emperor Leopold by his first wife Margaret, a younger sister of the Queen of Lewis the Fourteenth. Prince Joseph was, therefore, nearer in blood to the Spanish throne than his grandfather the Emperor, or than the sons whom the Emperor had by his second wife. The Infanta Margaret had indeed, at the time of her marriage, renounced her rights to the kingdom of her forefathers. But the renunciation wanted many formalities which had been observed in her sister's case, and might be considered as cancelled by the will of Philip the Fourth, which had declared that, failing his issue male, Margaret and her posterity would be entitled to inherit his Crown. The partisans of France held that the Bavarian claim was better than the Austrian claim; the partisans of Austria held that the Bavarian claim was better than the French claim. But that which really constituted the strength of the Bavarian claim was the weakness of the Bavarian government. The Electoral Prince was the only candidate whose success would alarm nobody; would not make it necessary for any power to raise another regiment, to man another frigate, to have in store another barrel of gunpowder. He was therefore the favourite candidate of prudent and peaceable men in every country.

Thus all Europe was divided into the French, the Austrian, and the Bavarian factions. The contests of these factions were daily renewed in

every place where men congregated, from Stockholm to Malta, and from Lisbon to Smyrna. But the fiercest and most obstinate conflict was that which raged in the palace of the Catholic King. Much depended on him. For, though it was not pretended that he was competent to alter by his sole authority the law which regulated the descent of the Crown, yet, in a case in which the law was doubtful, it was probable that his subjects might be disposed to accept the construction which he might put upon it, and to support the claimant whom he might, either by a solemn adoption or by will, designate as the rightful heir. It was also in the power of the reigning sovereign to entrust all the most important offices in his kingdom, the government of all the provinces subject to him in the Old and in the New World, and the keys of all his fortresses and arsenals, to persons zealous for the family which he was inclined to favour. It was difficult to say to what extent the fate of whole nations might be affected by the conduct of the officers who, at the time of his decease, might command the garrisons of Barcelona, of Mons, and of Namur.

The prince on whom so much depended was the most miserable of human beings. In old times he would have been exposed as soon as he came into the world; and to expose him would have been a kindness. From his birth a blight was on his body and on his mind. With difficulty his almost imperceptible spark of life had been screened and fanned into a dim and flickering flame. His childhood, except when he could be rocked and sung into sickly sleep, was one long piteous wail. Until he was ten years old his days were passed on the laps of women; and he has never once suffered to stand on his rickety legs. None of those tawny little urchins, clad in rags stolen from scarecrows, whom Murillo loved to paint begging or rolling in the sand, owed less to education than this despotic ruler of thirty millions of subjects. The most important events in the history of his own kingdom, the very names of provinces and cities which were among his most valuable possessions, were unknown to him. It may well be doubted whether he was aware that Sicily was an island, that Christopher Columbus had discovered America, or that the English were not Mahometans. In his youth, however, though too imbecile for study or for business, he was not incapable of being amused. He shot, hawked and hunted. He enjoyed with the delight of a true Spaniard two delightful spectacles, a horse with its bowels gored out, and a Jew writhing in the fire. The time came when the mightiest of instincts ordinarily wakens from its repose. It was hoped that the young King would

not prove invincible to female attractions, and that he would leave a Prince of Asturias to succeed him. A consort was found for him in the royal family of France; and her beauty and grace gave him a languid pleasure. He liked to adorn her with jewels, to see her dance, and to tell her what sport he had had with his dogs and his falcons. But it was soon whispered that she was a wife only in name. She died; and her place was supplied by a German princess nearly allied to the Imperial House. But the second marriage, like the first, proved barren; and, long before the King had passed the prime of life, all the politicians of Europe had begun to take it for granted in all their calculations that he would be the last descendant, in the male line, of Charles the Fifth. Meanwhile a sullen and abject melancholy took possession of his soul. The diversions which had been the serious employment of his youth became distasteful to him. He ceased to find pleasure in his nets and boar spears, in the fandango and the bullfight. Sometimes he shut himself up in an inner chamber from the eyes of his courtiers. Sometimes he loitered alone, from sunrise to sunset, in the dreary and rugged wilderness which surrounds the Escorial. The hours which he did not waste in listless indolence were divided between childish sports and childish devotions. He delighted in rare animals, and still more in dwarfs. When neither strange beasts nor little men could dispel the black thoughts which gathered in his mind, he repeated Aves and Cremos; he walked in processions; sometimes he starved himself; sometimes he whipped himself. At length a complication of maladies completed the ruin of all his faculties. His stomach failed; nor was this strange; for in him the malformation of the jaw, characteristic of his family, was so serious that he could not masticate his food; and he was in the habit of swallowing ollas and sweetmeats in the state in which they were set before him. While suffering from indigestion he was attacked by ague. Every third day his convulsive tremblings, his dejection, his fits of wandering, seemed to indicate the approach of dissolution. His misery was increased by the knowledge that every body was calculating how long he had to live, and wondering what would become of his kingdoms when he should be dead. The stately dignitaries of his household, the physicians who ministered to his diseased body, the divines whose business was to soothe his not less diseased mind, the very wife who should have been intent on those gentle offices by which female tenderness can alleviate even the misery of hopeless decay, were all thinking of the new world which was to commence with his death, and

would have been perfectly willing to see him in the hands of the embalmer if they could have been certain that his successor would be the prince whose interest they espoused. As yet the party of the Emperor seemed to predominate. Charles had a faint sort of preference for the House of Austria, which was his own house, and a faint sort of antipathy to the House of Bourbon, with which he had been quarrelling, he did not well know why, ever since he could remember. His Queen, whom he did not love, but of whom he stood greatly in awe, was devoted to the interests of her kinsman the Emperor; and with her was closely leagued the Count of Melgar, Hereditary Admiral of Castile and Prime Minister.

Such was the state of the question of the Spanish succession at the time when Portland had his first public audience at Versailles. The French ministers were certain that he must be constantly thinking about that question, and were therefore perplexed by his evident determination to say nothing about it. They watched his lips in the hope that he would at least let fall some unguarded word indicating the hopes or fears entertained by the English and Dutch Governments. But Portland was not a man out of whom much was to be got in that way. Nature and habit cooperating had made him the best keeper of secrets in Europe. Lewis therefore directed Pomponne and Torcy, two ministers of eminent ability, who had, under himself, the chief direction of foreign affairs, to introduce the subject which the discreet confidant of William seemed studiously to avoid. Pomponne and Torcy accordingly repaired to the English embassy; and there opened one of the most remarkable negotiations recorded in the annals of European diplomacy.

The two French statesmen professed in their master's name the most earnest desire, not only that the peace might remain unbroken, but that there might be a close union between the Courts of Versailles and Kensington. One event only seemed likely to raise new troubles. If the Catholic King should die before it had been settled who should succeed to his immense dominions, there was but too much reason to fear that the nations, which were just beginning to breathe after an exhausting and devastating struggle of nine years, would be again in arms. His Most Christian Majesty was therefore desirous to employ the short interval which might remain, in concerting with the King of England the means of preserving the tranquillity of the world.

Portland made a courteous but guarded answer. He could not, he said, presume to say exactly what William's sentiments were; but this he knew, that it was not solely or chiefly by the sentiments of the King of England that the policy of England on a great occasion would be regulated. The islanders must and would have their government administered according to certain maxims which they held sacred; and of those maxims they held none more sacred than this, that every increase of the power of France ought to be viewed with extreme jealousy.

Pomponne and Torcy answered that their master was most desirous to avoid every thing which could excite the jealousy of which Portland had spoken. But was it of France alone that a nation so enlightened as the English must be jealous? Was it forgotten that the House of Austria had once aspired to universal dominion? And would it be wise in the princes and commonwealths of Europe to lend their aid for the purpose of reconstructing the gigantic monarchy which, in the sixteenth century, had seemed likely to overwhelm them all?

Portland answered that, on this subject, he must be understood to express only the opinions of a private man. He had however now lived, during some years, among the English, and believed himself to be pretty well acquainted with their temper. They would not, he thought, be much alarmed by any augmentation of power which the Emperor might obtain. The sea was their element. Traffic by sea was the great source of their wealth; ascendancy on the sea the great object of their ambition. Of the Emperor they had no fear. Extensive as was the area which he governed, he had not a frigate on the water; and they cared nothing for his Pandours and Croats. But France had a great navy. The balance of maritime power was what would be anxiously watched in London; and the balance of maritime power would not be affected by an union between Spain and Austria, but would be most seriously deranged by an union between Spain and France.

Pomponne and Torcy declared that every thing should be done to quiet the apprehensions which Portland had described. It was not contemplated, it was not wished, that France and Spain should be united. The Dauphin and his eldest son the Duke of Burgundy would waive their rights. The younger brothers of the Duke of Burgundy, Philip Duke of Anjou and Charles Duke of Berry, were not named; but Portland perfectly understood what was meant. There would, he said, be scarcely less alarm in England if the

Spanish dominions devolved on a grandson of His Most Christian Majesty than if they were annexed to the French crown. The laudable affection of the young princes for their country and their family, and their profound respect for the great monarch from whom they were descended, would inevitably determine their policy. The two kingdoms would be one; the two navies would be one; and all other states would be reduced to vassalage. England would rather see the Spanish monarchy added to the Emperor's dominions than governed by one of the younger French princes, who would, though nominally independent, be really a viceroy of France. But in truth there was no risk that the Spanish monarchy would be added to the Emperor's dominions. He and his eldest son the Archduke Joseph would, no doubt, be as ready to waive their rights as the Dauphin and the Duke of Burgundy could be; and thus the Austrian claim to the disputed heritage would pass to the younger Archduke Charles. A long discussion followed. At length Portland plainly avowed, always merely as his own private opinion, what was the opinion of every intelligent man who wished to preserve the peace of the world. "France is afraid," he said, "of every thing which can increase the power of the Emperor. All Europe is afraid of every thing which can increase the power of France. Why not put an end to all these uneasy feelings at once, by agreeing to place the Electoral Prince of Bavaria on the throne of Spain?" To this suggestion no decisive answer was returned. The conference ended; and a courier started for England with a despatch informing William of what had passed, and soliciting further instructions.

William, who was, as he had always been, his own Secretary for Foreign Affairs, did not think it necessary to discuss the contents of this despatch with any of his English ministers. The only person whom he consulted was Heinsius. Portland received a kind letter warmly approving all that he had said in the conference, and directing him to declare that the English government sincerely wished to avert the calamities which were but too likely to follow the death of the King of Spain, and would therefore be prepared to take into serious consideration any definite plan which His Most Christian Majesty might think fit to suggest. "I will own to you," William wrote to his friend, "that I am so unwilling to be again at war during the short time which I still have to live, that I will omit nothing that I can honestly and with a safe conscience do for the purpose of maintaining peace."

William's message was delivered by Portland to Lewis at a private audience. In a few days Pomponne and Torcy were authorised to propose a plan. They fully admitted that all neighbouring states were entitled to demand the strongest security against the union of the French and Spanish crowns. Such security should be given. The Spanish government might be requested to choose between the Duke of Anjou and the Duke of Berry. The youth who was selected would, at the utmost, be only fifteen years old, and could not be supposed to have any very deeply rooted national prejudices. He should be sent to Madrid without French attendants, should be educated by Spaniards, should become a Spaniard. It was absurd to imagine that such a prince would be a mere viceroy of France. Apprehensions had been sometimes hinted that a Bourbon, seated on the throne of Spain, might cede his dominions in the Netherlands to the head of his family. It was undoubtedly important to England, and all important to Holland, that those provinces should not become a part of the French monarchy. All danger might be averted by making them over to the Elector of Bavaria, who was now governing them as representative of the Catholic King. The Dauphin would be perfectly willing to renounce them for himself and for all his descendants. As to what concerned trade, England and Holland had only to say what they desired, and every thing in reason should be done to give them satisfaction.

As this plan was, in the main, the same which had been suggested by the French ministers in the former conference, Portland did little more than repeat what he had then said. As to the new scheme respecting the Netherlands, he shrewdly propounded a dilemma which silenced Pomponne and Torcy.

If renunciations were of any value, the Dauphin and his posterity were excluded from the Spanish succession; and, if renunciations were of no value, it was idle to offer England and Holland a renunciation as a guarantee against a great danger.

The French Ministers withdrew to make their report to their master, and soon returned to say that their proposals had been merely first thoughts, that it was now the turn of King William to suggest something, and that whatever he might suggest should receive the fullest and fairest consideration.

And now the scene of the negotiation was shifted from Versailles to Kensington. The Count of Tallard had just set out for England as Ambassador. He was a fine gentleman; he was a brave soldier; and he was as yet reputed a skilful general. In all the arts and graces which were prized as qualifications for diplomatic missions of the highest class, he had, among the brilliant aristocracy to which he belonged, no superior and only one equal, the Marquess of Harcourt, who was entrusted with the care of the interests of the House of Bourbon at Madrid.

Tallard carried with him instructions carefully framed in the French Foreign Office. He was reminded that his situation would be widely different from that of his predecessors who had resided in England before the Revolution. Even his predecessors, however, had considered it as their duty to study the temper, not only of the Court, but of the nation. It would now be more than ever necessary to watch the movements of the public mind. A man of note was not to be slighted merely because he was out of place. Such a man, with a great name in the country and a strong following in Parliament, might exercise as much influence on the politics of England, and consequently of Europe, as any minister. The Ambassador must therefore try to be on good terms with those who were out as well as with those who were in. To this rule, however, there was one exception which he must constantly bear in mind. With nonjurors and persons suspected of plotting against the existing government he must not appear to have any connection. They must not be admitted into his house. The English people evidently wished to be at rest, and had given the best proof of their pacific disposition by insisting on the reduction of the army. The sure way to stir up jealousies and animosities which were just sinking to sleep would be to make the French embassy the head quarters of the Jacobite party. It would be wise in Tallard to say and to charge his agents to say, on all fit occasions, and particularly in societies where members of Parliament might be present, that the Most Christian King had never been an enemy of the liberties of England. His Majesty had indeed hoped that it might be in his power to restore his cousin, but not without the assent of the nation. In the original draft of the instructions was a curious paragraph which, on second thoughts, it was determined to omit. The Ambassador was directed to take proper opportunities of cautioning the English against a standing army, as the only thing which could really be fatal to their laws and liberties. This passage was suppressed, no doubt, because it occurred to Pomponne and Torcy that,

with whatever approbation the English might listen to such language when uttered by a demagogue of their own race, they might be very differently affected by hearing it from a French diplomatist, and might think that there could not be a better reason for arming, than that Lewis and his emissaries earnestly wished them to disarm.

Tallard was instructed to gain, if possible, some members of the House of Commons. Every thing, he was told, was now subjected to the scrutiny of that assembly; accounts of the public income, of the public expenditure, of the army, of the navy, were regularly laid on the table; and it would not be difficult to find persons who would supply the French legation with copious information on all these subjects.

The question of the Spanish succession was to be mentioned to William at a private audience. Tallard was fully informed of all that had passed in the conferences which the French ministers had held with Portland; and was furnished with all the arguments that the ingenuity of publicists could devise in favour of the claim of the Dauphin.

The French embassy made as magnificent an appearance in England as the English embassy had made in France. The mansion of the Duke of Ormond, one of the finest houses in Saint James's Square, was taken for Tallard. On the day of the public entry, all the streets from Tower Hill to Pall Mall were crowded with gazers who admired the painting and gilding of his Excellency's carriages, the surpassing beauty of his horses, and the multitude of his running footmen, dressed in gorgeous liveries of scarlet and gold lace. The Ambassador was graciously received at Kensington, and was invited to accompany William to Newmarket, where the largest and most splendid Spring Meeting ever known was about to assemble. The attraction must be supposed to have been great; for the risks of the journey were not trifling. The peace had, all over Europe, and nowhere more than in England, turned crowds of old soldiers into marauders. [12](#) Several aristocratical equipages had been attacked even in Hyde Park. Every newspaper contained stories of travellers stripped, bound and flung into ditches. One day the Bristol mail was robbed; another day the Dover coach; then the Norwich waggon. On Hounslow Heath a company of horsemen, with masks on their faces, waited for the great people who had been to pay their court to the King at Windsor. Lord Ossulston escaped with the loss of two horses. The Duke of Saint Albans, with the help of his servants, beat off the

assailants. His brother the Duke of Northumberland, less strongly guarded, fell into their hands. They succeeded in stopping thirty or forty coaches, and rode off with a great booty in guineas, watches and jewellery. Nowhere, however, does the peal seem to have been so great as on the Newmarket road. There indeed robbery was organised on a scale unparalleled in the kingdom since the days of Robin Hood and Little John. A fraternity of plunderers, thirty in number according to the lowest estimate, squatted, near Waltham Cross, under the shades of Epping Forest, and built themselves huts, from which they sallied forth with sword and pistol to bid passengers stand. The King and Tallard were doubtless too well attended to be in jeopardy. But, soon after they had passed the dangerous spot, there was a fight on the highway attended with loss of life. A warrant of the Lord Chief justice broke up the Maroon village for a short time, but the dispersed thieves soon mustered again, and had the impudence to bid defiance to the government in a cartel signed, it was said, with their real names. The civil power was unable to deal with this frightful evil. It was necessary that, during some time, cavalry should patrol every evening on the roads near the boundary between Middlesex and Essex.

The state of those roads, however, though contemporaries described it as dangerous beyond all example, did not deter men of rank and fashion from making the joyous pilgrimages to Newmarket. Half the Dukes in the kingdom were there. Most of the chief ministers of state swelled the crowd; nor was the opposition unrepresented. Montague stole two or three days from the Treasury, and Orford from the Admiralty. Godolphin was there, looking after his horses and his bets, and probably went away a richer man than he came. But racing was only one of the many amusements of that festive season. On fine mornings there was hunting. For those who preferred hawking choice falcons had been brought from Holland. On rainy days the cockpit was encircled by stars and blue ribands. On Sundays William went to church in state, and the most eminent divines of the neighbouring University of Cambridge preached before him. He omitted no opportunity of showing marked civility to Tallard. The Ambassador informed his Court that his place at table was next to the royal arm chair, and that his health had been most graciously drunk by the King.

All this time, both at Kensington and Newmarket, the Spanish question was the subject of constant and earnest discussion. To trace all the windings of the negotiation would be tedious. The general course which it took may

easily be described. The object of William was to place the Electoral Prince of Bavaria on the Spanish throne. To obtain the consent of Lewis to such an arrangement seemed all but impossible; but William manoeuvred with rare skill. Though he frankly acknowledged that he preferred the Electoral Prince to any other candidate, he professed himself desirous to meet, as far as he honourably or safely could, the wishes of the French King. There were conditions on which England and Holland might perhaps consent, though not without reluctance, that a son of the Dauphin should reign at Madrid, and should be master of the treasures of the New World. Those conditions were that the Milanese and the Two Sicilies should belong to the Archduke Charles, that the Elector of Bavaria should have the Spanish Netherlands, that Lewis should give up some fortified towns in Artois for the purpose of strengthening the barrier which protected the United Provinces, and that some important places both in the Mediterranean sea and in the Gulf of Mexico should be made over to the English and Dutch for the security of trade. Minorca and Havanna were mentioned as what might satisfy England.

Against these terms Lewis exclaimed loudly. Nobody, he said, who knew with how sensitive a jealousy the Spaniards watched every encroachment on their colonial empire would believe that they would ever consent to give up any part of that empire either to England or to Holland. The demand which was made upon himself was altogether inadmissible. A barrier was not less necessary to France than to Holland; and he never would break the iron chain of frontier fastnesses which was the defence of his own kingdom, even in order to purchase another kingdom for his grandson. On that subject he begged that he might hear no more. The proposition was one which he would not discuss, one to which he would not listen.

As William, however, resolutely maintained that the terms which he had offered, hard as they might seem, were the only terms on which England and Holland could suffer a Bourbon to reign at Madrid, Lewis began seriously to consider, whether it might not be on the whole for his interest and that of his family rather to sell the Spanish crown dear than to buy it dear. He therefore now offered to withdraw his opposition to the Bavarian claim, provided a portion of the disputed inheritance were assigned to him in consideration of his disinterestedness and moderation. William was perfectly willing and even eager to treat on this basis. The first demands of Lewis were, as might have been expected, exorbitantly high. He asked for

the kingdom of Navarre, which would have made him little less than master of the whole Iberian peninsula, and for the duchy of Luxemburg, which would have made him more dangerous than ever to the United Provinces. On both points he encountered a steady resistance. The impression which, throughout these transactions, the firmness and good faith of William made on Tallard is remarkable. At first the dexterous and keen witted Frenchman was all suspicion. He imagined that there was an evasion in every phrase, a hidden snare in every offer. But after a time he began to discover that he had to do with a man far too wise to be false. "The King of England," he wrote, and it is impossible to doubt that he wrote what he thought, "acts with good faith in every thing. His way of dealing is upright and sincere." [13](#) "The King of England," he wrote a few days later, "has hitherto acted with great sincerity; and I venture to say that, if he once enters into a treaty, he will steadily adhere to it." But in the same letter the Ambassador thought it necessary to hint to his master that the diplomatic chicanery which might be useful in other negotiations would be all thrown away here. "I must venture to observe to Your Majesty that the King of England is very sharpsighted, that his judgment is sound, and that, if we try to spin the negotiation out, he will very soon perceive that we are trifling with him." [14](#)

During some time projects and counterprojects continued to pass and repass between Kensington and Versailles. Something was conceded on both sides; and when the session of Parliament ended there seemed to be fair hopes of a settlement. And now the scene of the negotiation was again changed. Having been shifted from France to England, it was shifted from England to Holland. As soon as William had prorogued the Houses, he was impatient to be again in his native land. He felt all the glee of a schoolboy who is leaving harsh masters and quarrelsome comrades to pass the Christmas holidays at a happy home. That stern and composed face which had been the same in the pursuit at the Boyne and in the rout at Landen, and of which the keenest politicians had in vain tried to read the secrets, now wore an expression but too intelligible. The English were not a little provoked by seeing their King so happy. Hitherto his annual visits to the Continent had been not only pardoned but approved. It was necessary that he should be at the head of his army. If he had left his people, it had been in order to put his life in jeopardy for their independence, their liberty, and their religion. But they had hoped that, when peace had been restored, when no call of duty required him to cross the sea, he would generally, during the

summer and autumn, reside in his fair palaces and parks on the banks of the Thames, or travel from country seat to country seat, and from cathedral town to cathedral town, making himself acquainted with every shire of his realm, and giving his hand to be kissed by multitudes of squires, clergymen and aldermen who were not likely ever to see him unless he came among them. It now appeared that he was sick of the noble residences which had descended to him from ancient princes; that he was sick even of those mansions which the liberality of Parliament had enabled him to build and embellish according to his own taste; that he was sick of Windsor, of Richmond, and of Hampton; that he promised himself no enjoyment from a progress through those flourishing and populous counties which he had never seen, Yorkshire and Norfolk, Cheshire, Shropshire and Worcestershire. While he was forced to be with us, he was weary of us, pining for his home, counting the hours to the prorogation. As soon as the passing of the last bill of supply had set him at liberty, he turned his back on his English subjects; he hastened to his seat in Guelders, where, during some months, he might be free from the annoyance of seeing English faces and hearing English words; and he would with difficulty tear himself away from his favourite spot when it became absolutely necessary that he should again ask for English money.

Thus his subjects murmured; but, in spite of their murmurs, he set off in high spirits. It had been arranged that Tallard should speedily follow him, and that the discussion in which they had been engaged at Kensington should be resumed at Loo.

Heinsius, whose cooperation was indispensable, would be there. Portland too would lend his assistance. He had just returned. He had always considered his mission as an extraordinary mission, of which the object was to put the relations between the two great Western powers on a proper footing after a long series of years during which England had been sometimes the enemy, but never the equal friend, of France. His task had been well performed; and he now came back, leaving behind him the reputation of an excellent minister, firm yet cautious as to substance, dignified yet conciliating in manner. His last audience at Versailles was unusually long; and no third person was present. Nothing could be more gracious than the language and demeanour of Lewis. He condescended to trace a route for the embassy, and insisted that Portland should make a circuit for the purpose of inspecting some of the superb fortresses of the French Netherlands. At every one of those fortresses the governors and engineers had orders to pay every attention to the distinguished stranger. Salutes were everywhere fired to welcome him. A guard of honour was everywhere in attendance on him. He stopped during three days at Chantilly, and was entertained there by the Prince of Condé with all that taste and magnificence for which Chantilly had long been renowned. There were boar hunts in the morning and concerts in the evening. Every gentleman of the legation had a gamekeeper specially assigned to him. The guests, who, in their own island were accustomed to give extravagant vails at every country house which they visited, learned, with admiration, that His Highness's servants were strictly forbidden to receive presents. At his luxurious table, by a refinement of politeness, choice cider from the orchards round the Malvern Hills made its appearance in company with the Champagne and the Burgundy.

Portland was welcomed by his master with all the kindness of old times. But that kindness availed nothing. For Albemarle was still in the royal household, and appeared to have been, during the last few months, making progress in the royal favour. Portland was angry, and the more angry because he could not but perceive that his enemies enjoyed his anger, and

that even his friends generally thought it unreasonable; nor did he take any pains to conceal his vexation. But he was the very opposite of the vulgar crowd of courtiers who fawn on a master while they betray him. He neither disguised his ill humour, nor suffered it to interfere with the discharge of his duties. He gave his prince sullen looks, short answers, and faithful and strenuous services. His first wish, he said, was to retire altogether from public life. But he was sensible that, having borne a chief part in the negotiation on which the fate of Europe depended, he might be of use at Loo; and, with devoted loyalty, though with a sore heart and a gloomy brow, he prepared to attend William thither.

Before the King departed he delegated his power to nine Lords Justices. The public was well pleased to find that Sunderland was not among them. Two new names appeared in the list. That of Montague could excite no surprise. But that of Marlborough awakened many recollections and gave occasion to many speculations. He had once enjoyed a large measure of royal favour. He had then been dismissed, disgraced, imprisoned. The Princess Anne, for refusing to discard his wife, had been turned out of the palace, and deprived of the honours which had often been enjoyed by persons less near to the throne. Ministers who were supposed to have great influence in the closet had vainly tried to overcome the dislike with which their master regarded the Churchills. It was not till he had been some time reconciled to his sister in law that he ceased to regard her two favourite servants as his enemies. So late as the year 1696 he had been heard to say, "If I had been a private gentleman, my Lord Marlborough and I must have measured swords." All these things were now, it seemed, forgotten. The Duke of Gloucester's household had just been arranged. As he was not yet nine years old, and the civil list was burdened with a heavy debt, fifteen thousand pounds was thought for the present a sufficient provision. The child's literary education was directed by Burnet, with the title of Preceptor. Marlborough was appointed Governor; and the London Gazette announced his appointment, not with official dryness, but in the fervid language of panegyric. He was at the same time again sworn a member of the Privy Council from which he had been expelled with ignominy; and he was honoured a few days later with a still higher mark of the King's confidence, a seat at the board of Regency.

Some persons imagined that they saw in this strange reconciliation a sign that the influence of Portland was on the wane and that the influence of

Albemarle was growing. For Marlborough had been many years at feud with Portland, and had even—a rare event indeed—been so much irritated as to speak of Portland in coarse and ungentlemanlike terms. With Albemarle, on the other hand, Marlborough had studiously ingratiated himself by all the arts which a mind singularly observant and sagacious could learn from a long experience in courts; and it is possible that Albemarle may have removed some difficulties. It is hardly necessary, however, to resort to that supposition for the purpose of explaining why so wise a man as William forced himself, after some delay caused by very just and natural resentment, to act wisely. His opinion of Marlborough's character was probably unaltered. But he could not help perceiving that Marlborough's situation was widely different from what it had been a few years before. That very ambition, that very avarice, which had, in former times, impelled him to betray two masters, were now sufficient securities for his fidelity to the order of things which had been established by the Bill of Rights. If that order of things could be maintained inviolate, he could scarcely fail to be, in a few years, the greatest and wealthiest subject in Europe. His military and political talents might therefore now be used without any apprehension that they would be turned against the government which used them. It is to be remembered too that he derived his importance less from his military and political talents, great as they were, than from the dominion which, through the instrumentality of his wife, he exercised over the mind of the Princess. While he was on good terms with the Court it was certain that she would lend no countenance to any cabal which might attack either the title or the prerogatives of her brother in law. Confident that from this quarter, a quarter once the darkest and most stormy in the whole political horizon, nothing but sunshine and calm was now to be expected, William set out cheerfully on his expedition to his native country.

CHAPTER XXIV

Altered Position of the Ministry—The Elections—First Partition Treaty—Domestic Discontent—Littleton chosen Speaker—King's Speech; Proceedings relating to the Amount of the Land Force—Unpopularity of Montague—Bill for Disbanding the Army—The King's Speech—Death of the Electoral Prince of Bavaria.—Renewed Discussion of the Army Question—Naval Administration—Commission on Irish Forfeitures.—Prorogation of Parliament—Changes in the Ministry and Household—Spanish Succession—Darien

THE Gazette which informed the public that the King had set out for Holland announced also the names of the first members returned, in obedience to his writ, by the constituent bodies of the Realm. The history of those times has been so little studied that few persons are aware how remarkable an epoch the general election of 1698 is in the history of the English Constitution.

We have seen that the extreme inconvenience which had resulted from the capricious and headstrong conduct of the House of Commons during the years immediately following the Revolution had forced William to resort to a political machinery which had been unknown to his predecessors, and of which the nature and operation were but very imperfectly understood by himself or by his ablest advisers. For the first time the administration was confided to a small body of statesmen, who, on all grave and pressing questions, agreed with each other and with the majority of the representatives of the people. The direction of war and of diplomacy the King reserved to himself; and his servants, conscious that they were less versed than he in military affairs and in foreign affairs, were content to leave to him the command of the army, and to know only what he thought fit to communicate about the instructions which he gave to his own ambassadors and about the conferences which he held with the ambassadors of other princes. But, with these important exceptions, the government was entrusted to what then began to be called the Ministry.

The first English ministry was gradually formed; nor is it possible to say quite precisely when it began to exist. But, on the whole, the date from which the era of ministries may most properly be reckoned is the day of the meeting of the Parliament after the general election of 1695. That election

had taken place at a time when peril and distress had called forth all the best qualities of the nation. The hearts of men were in the struggle against France for independence, for liberty, and for the Protestant religion. Everybody knew that such a struggle could not be carried on without large establishments and heavy taxes. The government therefore could hardly ask for more than the country was ready to give. A House of Commons was chosen in which the Whig party had a decided preponderance. The leaders of that party had presently been raised, one by one, to the highest executive offices. The majority, therefore, readily arranged itself in admirable order under the ministers, and during three sessions gave them on almost every occasion a cordial support. The consequence was that the country was rescued from its dangerous position, and, when that Parliament had lived out its three years, enjoyed prosperity after a terrible commercial crisis, peace after a long and sanguinary war, and liberty united with order after civil troubles which had lasted during two generations, and in which sometimes order and sometimes liberty had been in danger of perishing.

Such were the fruits of the general election of 1695. The ministers had flattered themselves that the general election of 1698 would be equally favourable to them, and that in the new Parliament the old Parliament would revive. Nor is it strange that they should have indulged such a hope. Since they had been called to the direction of affairs every thing had been changed, changed for the better, and changed chiefly by their wise and resolute policy, and by the firmness with which their party had stood by them. There was peace abroad and at home. The sentinels had ceased to watch by the beacons of Dorsetshire and Sussex. The merchant ships went forth without fear from the Thames and the Avon. Soldiers had been disbanded by tens of thousands. Taxes had been remitted. The value of all public and private securities had risen. Trade had never been so brisk. Credit had never been so solid. All over the kingdom the shopkeepers and the farmers, the artisans and the ploughmen, relieved, beyond all hope, from the daily and hourly misery of the clipped silver, were blessing the broad faces of the new shillings and half crowns. The statesmen whose administration had been so beneficent might be pardoned if they expected the gratitude and confidence which they had fairly earned. But it soon became clear that they had served their country only too well for their own interest. In 1695 adversity and danger had made men amenable to that control to which it is the glory of free nations to submit themselves, the

control of superior minds. In 1698 prosperity and security had made men querulous, fastidious and unmanageable. The government was assailed with equal violence from widely different quarters. The opposition, made up of Tories many of whom carried Toryism to the length of Jacobitism, and of discontented Whigs some of whom carried Whiggism to the length of republicanism, called itself the Country party, a name which had been popular before the words Whig and Tory were known in England. The majority of the late House of Commons, a majority which had saved the State, was nicknamed the Court party. The Tory gentry, who were powerful in all the counties, had special grievances. The whole patronage of the government, they said, was in Whig hands. The old landed interest, the old Cavalier interest, had now no share in the favours of the Crown. Every public office, every bench of justice, every commission of Lieutenancy, was filled with Roundheads. The Tory rectors and vicars were not less exasperated. They accused the men in power of systematically protecting and preferring Presbyterians, Latitudinarians, Arians, Socinians, Deists, Atheists. An orthodox divine, a divine who held high the dignity of the priesthood and the mystical virtue of the sacraments, who thought schism as great a sin as theft and venerated the Icon as much as the Gospel, had no more chance of a bishopric or a deanery than a Papist recusant. Such complaints as these were not likely to call forth the sympathy of the Whig malecontents. But there were three war cries in which all the enemies of the government, from Trenchard to Seymour, could join: No standing army; No grants of Crown property; and No Dutchmen. Multitudes of honest freeholders and freemen were weak enough to believe that, unless the land force, which had already been reduced below what the public safety required, were altogether disbanded, the nation would be enslaved, and that, if the estates which the King had given away were resumed, all direct taxes might be abolished. The animosity to the Dutch mingled itself both with the animosity to standing armies and with the animosity to Crown grants. For a brigade of Dutch troops was part of the military establishment which was still kept up; and it was to Dutch favourites that William had been most liberal of the royal domains.

The elections, however, began auspiciously for the government. The first great contest was in Westminster. It must be remembered that Westminster was then by far the greatest city in the island, except only the neighbouring city of London, and contained more than three times as large a population

as Bristol or Norwich, which came next in size. The right of voting at Westminster was in the householders paying scot and lot; and the householders paying scot and lot were many thousands. It is also to be observed that their political education was much further advanced than that of the great majority of the electors of the kingdom. A burgess in a country town, or a forty shilling freeholder in an agricultural district, then knew little about public affairs except what he could learn from reading the Postman at the alehouse, and from hearing, on the 30th of January, the 29th of May or the 5th of November, a sermon in which questions of state were discussed with more zeal than sense. But the citizen of Westminster passed his days in the vicinity of the palace, of the public offices, of the houses of parliament, of the courts of law. He was familiar with the faces and voices of ministers, senators and judges. In anxious times he walked in the great Hall to pick up news. When there was an important trial, he looked into the Court of King's Bench, and heard Cowper and Harcourt contending, and Holt moderating between them. When there was an interesting debate, in the House of Commons, he could at least squeeze himself into the lobby or the Court of Requests, and hear who had spoken, and how and what were the numbers on the division. He lived in a region of coffeehouses, of booksellers' shops, of clubs, of pamphlets, of newspapers, of theatres where poignant allusions to the most exciting questions of the day perpetually called forth applause and hisses, of pulpits where the doctrines of the High Churchman, of the Low Churchman, of the Nonjuror, of the Nonconformist, were explained and defended every Sunday by the most eloquent and learned divines of every persuasion. At that time, therefore, the metropolitan electors were, as a class, decidedly superior in intelligence and knowledge to the provincial electors.

Montague and Secretary Vernon were the ministerial candidates for Westminster. They were opposed by Sir Henry Colt, a dull, surly, stubborn professor of patriotism, who tired everybody to death with his endless railing at standing armies and placemen. The electors were summoned to meet on an open space just out of the streets. The first Lord of the Treasury and the Secretary of State appeared at the head of three thousand horsemen. Colt's followers were almost all on foot. He was a favourite with the keepers of pot-houses, and had enlisted a strong body of porters and chairmen. The two parties, after exchanging a good deal of abuse, came to blows. The adherents of the ministers were victorious, put the adverse mob

to the rout, and cudgelled Colt himself into a muddy ditch. The poll was taken in Westminster Hall. From the first there was no doubt of the result. But Colt tried to prolong the contest by bringing up a voter an hour. When it became clear that this artifice was employed for the purpose of causing delay, the returning officer took on himself the responsibility of closing the books, and of declaring Montague and Vernon duly elected.

At Guildhall the junto was less fortunate. Three ministerial Aldermen were returned. But the fourth member, Sir John Fleet, was not only a Tory, but was Governor of the old East India Company, and had distinguished himself by the pertinacity with which he had opposed the financial and commercial policy of the first Lord of the Treasury. While Montague suffered the mortification of finding that his empire over the city was less absolute than he had imagined, Wharton, notwithstanding his acknowledged preeminence in the art of electioneering, underwent a succession of defeats in boroughs and counties for which he had expected to name the members. He failed at Brackley, at Malmesbury and at Cockermouth. He was unable to maintain possession even of his own strongholds, Wycombe and Aylesbury. He was beaten in Oxfordshire. The freeholders of Buckinghamshire, who had been true to him during many years, and who in 1685, when the Whig party was in the lowest state of depression, had, in spite of fraud and tyranny, not only placed him at the head of the poll but put their second votes at his disposal, now rejected one of his candidates, and could hardly be induced to return the other, his own brother, by a very small majority.

The elections for Exeter appear to have been in that age observed by the nation with peculiar interest. For Exeter was not only one of the largest and most thriving cities in the Kingdom, but was also the capital of the West of England, and was much frequented by the gentry of several counties. The franchise was popular. Party spirit ran high; and the contests were among the fiercest and the longest of which there is any record in our history. Seymour had represented Exeter in the Parliament of James, and in the two first Parliaments of William. In 1695, after a struggle of several weeks which had attracted much attention not only here but on the Continent, he had been defeated by two Whig candidates, and forced to take refuge in a small borough. But times had changed. He was now returned in his absence by a large majority; and with him was joined another Tory less able and, if possible, more unprincipled than himself, Sir Bartholomew Shower. Shower

had been notorious as one of the hangmen of James. When that cruel King was bent on punishing with death soldiers who deserted from the army which he kept up in defiance of the constitution, he found that he could expect no assistance from Holt, who was the Recorder of London. Holt was accordingly removed. Shower was made Recorder, and showed his gratitude for his promotion by sending to Tyburn men who, as every barrister in the Inns of Court knew, were guilty of no offence at all. He richly deserved to have been excepted from the Act of Grace, and left to the vengeance of the laws which he had so foully perverted. The return which he made for the clemency which spared him was most characteristic. He missed no opportunity of thwarting and damaging the Government which had saved him from the gallows. Having shed innocent blood for the purpose of enabling James to keep up thirty thousand troops without the consent of Parliament, he now pretended to think it monstrous that William should keep up ten thousand with the consent of Parliament. That a great constituent body should be so forgetful of the past and so much out of humour with the present as to take this base and hardhearted pettifogger for a patriot was an omen which might well justify the most gloomy prognostications.

When the returns were complete, it appeared that the new House of Commons contained an unusual number of men about whom little was known, and on whose support neither the government nor the opposition could with any confidence reckon. The ranks of the staunch ministerial Whigs were certainly much thinned; but it did not appear that the Tory ranks were much fuller than before. That section of the representative body which was Whiggish without being ministerial had gained a great accession of strength, and seemed likely to have, during some time, the fate of the country in its hands. It was plain that the next session would be a trying one. Yet it was not impossible that the servants of the Crown might, by prudent management, succeed in obtaining a working majority. Towards the close of August the statesmen of the junto, disappointed and anxious but not hopeless, dispersed in order to lay in a stock of health and vigour for the next parliamentary campaign. There were races at that season in the neighbourhood of Winchenden, Wharton's seat in Buckinghamshire; and a large party assembled there. Orford, Montague and Shrewsbury repaired to the muster. But Somers, whose chronic maladies, aggravated by sedulous application to judicial and political business, made it necessary for him to

avoid crowds and luxurious banquets, retired to Tunbridge Wells, and tried to repair his exhausted frame with the water of the springs and the air of the heath. Just at this moment despatches of the gravest importance arrived from Guelders at Whitehall.

The long negotiation touching the Spanish succession had at length been brought to a conclusion. Tallard had joined William at Loo, and had there met Heinsius and Portland. After much discussion, the price in consideration of which the House of Bourbon would consent to waive all claim to Spain and the Indies, and to support the pretensions of the Electoral Prince of Bavaria, was definitively settled. The Dauphin was to have the Province of Guipuscoa, Naples, Sicily and some small Italian islands which were part of the Spanish monarchy. The Milanese was allotted to the Archduke Charles. As the Electoral Prince was still a child, it was agreed that his father, who was then governing the Spanish Netherlands as Viceroy, should be Regent of Spain during the minority. Such was the first Partition Treaty, a treaty which has been during five generations confidently and noisily condemned, and for which scarcely any writer has ventured to offer even a timid apology, but which it may perhaps not be impossible to defend by grave and temperate argument.

It was said, when first the terms of the Partition Treaty were made public, and has since been many times repeated, that the English and Dutch Governments, in making this covenant with France, were guilty of a violation of plighted faith. They had, it was affirmed, by a secret article of a Treaty of Alliance concluded in 1689, bound themselves to support the pretensions of the Emperor to the Spanish throne; and they now, in direct defiance of that article, agreed to an arrangement by which he was excluded from the Spanish throne. The truth is that the secret article will not, whether construed according to the letter or according to the spirit, bear the sense which has generally been put upon it. The stipulations of that article were introduced by a preamble, in which it was set forth that the Dauphin was preparing to assert by arms his claim to the great heritage which his mother had renounced, and that there was reason to believe that he also aspired to the dignity of King of the Romans. For these reasons, England and the States General, considering the evil consequences which must follow if he should succeed in attaining either of his objects, promised to support with all their power his Caesarean Majesty against the French and their adherents. Surely we cannot reasonably interpret this engagement to mean

that, when the dangers mentioned in the preamble had ceased to exist, when the eldest Archduke was King of the Romans, and when the Dauphin had, for the sake of peace, withdrawn his claim to the Spanish Crown, England and the United Provinces would be bound to go to war for the purpose of supporting the cause of the Emperor, not against the French but against his own grandson, against the only prince who could reign at Madrid without exciting fear and jealousy throughout all Christendom.

While some persons accused William of breaking faith with the House of Austria, others accused him of interfering unjustly in the internal affairs of Spain. In the most ingenious and humorous political satire extant in our language, Arbuthnot's *History of John Bull*, England and Holland are typified by a clothier and a linendraper, who take upon themselves to settle the estate of a bedridden old gentleman in their neighbourhood. They meet at the corner of his park with paper and pencils, a pole, a chain and a semicircle, measure his fields, calculate the value of his mines, and then proceed to his house in order to take an inventory of his plate and furniture. But this pleasantry, excellent as pleasantry, hardly deserves serious refutation. No person who has a right to give any opinion at all about politics can think that the question, whether two of the greatest empires in the world should be virtually united so as to form one irresistible mass, was a question with which other states had nothing to do, a question about which other states could not take counsel together without being guilty of impertinence as gross as that of a busybody in private life who should insist on being allowed to dictate the wills of other people. If the whole Spanish monarchy should pass to the House of Bourbon, it was highly probable that in a few years England would cease to be great and free, and that Holland would be a mere province of France. Such a danger England and Holland might lawfully have averted by war; and it would be absurd to say that a danger which may be lawfully averted by war cannot lawfully be averted by peaceable means. If nations are so deeply interested in a question that they would be justified in resorting to arms for the purpose of settling it, they must surely be sufficiently interested in it to be justified in resorting to amicable arrangements for the purpose of settling it. Yet, strange to say, a multitude of writers who have warmly praised the English and Dutch governments for waging a long and bloody war in order to prevent the question of the Spanish succession from being settled in a manner prejudicial to them, have severely blamed those governments for trying to

attain the same end without the shedding of a drop of blood, without the addition of a crown to the taxation of any country in Christendom, and without a moment's interruption of the trade of the world by land or by sea.

It has been said to have been unjust that three states should have combined to divide a fourth state without its own consent; and, in recent times, the partition of the Spanish monarchy which was meditated in 1698 has been compared to the greatest political crime which stains the history of modern Europe, the partition of Poland. But those who hold such language cannot have well considered the nature of the Spanish monarchy in the seventeenth century. That monarchy was not a body pervaded by one principle of vitality and sensation. It was an assemblage of distinct bodies, none of which had any strong sympathy with the rest, and some of which had a positive antipathy for each other. The partition planned at Loo was therefore the very opposite of the partition of Poland. The partition of Poland was the partition of a nation. It was such a partition as is effected by hacking a living man limb from limb. The partition planned at Loo was the partition of an ill governed empire which was not a nation. It was such a partition as is effected by setting loose a drove of slaves who have been fastened together with collars and handcuffs, and whose union has produced only pain, inconvenience and mutual disgust. There is not the slightest reason to believe that the Neapolitans would have preferred the Catholic King to the Dauphin, or that the Lombards would have preferred the Catholic King to the Archduke. How little the Guipuscoans would have disliked separation from Spain and annexation to France we may judge from the fact that, a few years later, the States of Guipuscoa actually offered to transfer their allegiance to France on condition that their peculiar franchises should be held sacred.

One wound the partition would undoubtedly have inflicted, a wound on the Castilian pride. But surely the pride which a nation takes in exercising over other nations a blighting and withering dominion, a dominion without prudence or energy, without justice or mercy, is not a feeling entitled to much respect. And even a Castilian who was not greatly deficient in sagacity must have seen that an inheritance claimed by two of the greatest potentates in Europe could hardly pass entire to one claimant; that a partition was therefore all but inevitable; and that the question was in truth merely between a partition effected by friendly compromise and a partition effected by means of a long and devastating war.

There seems, therefore, to be no ground at all for pronouncing the terms of the Treaty of Loo unjust to the Emperor, to the Spanish monarchy considered as a whole, or to any part of that monarchy. Whether those terms were or were not too favourable to France is quite another question. It has often been maintained that she would have gained more by permanently annexing to herself Guipuscoa, Naples and Sicily than by sending the Duke of Anjou or the Duke of Berry to reign at the Escorial. On this point, however, if on any point, respect is due to the opinion of William. That he thoroughly understood the politics of Europe is as certain as that jealousy of the greatness of France was with him a passion, a ruling passion, almost an infirmity. Before we blame him, therefore, for making large concessions to the power which it was the chief business of his life to keep within bounds, we shall do well to consider whether those concessions may not, on close examination, be found to be rather apparent than real. The truth is that they were so, and were well known to be so both by William and by Lewis.

Naples and Sicily formed indeed a noble kingdom, fertile, populous, blessed with a delicious climate, and excellently situated for trade. Such a kingdom, had it been contiguous to Provence, would indeed have been a most formidable addition to the French monarchy. But a glance at the map ought to have been sufficient to undeceive those who imagined that the great antagonist of the House of Bourbon could be so weak as to lay the liberties of Europe at the feet of that house. A King of France would, by acquiring territories in the South of Italy, have really bound himself over to keep the peace; for, as soon as he was at war with his neighbours, those territories were certain to be worse than useless to him. They were hostages at the mercy of his enemies. It would be easy to attack them. It would be hardly possible to defend them. A French army sent to them by land would have to force its way through the passes of the Alps, through Piedmont, through Tuscany, and through the Pontifical States, in opposition probably to great German armies. A French fleet would run great risk of being intercepted and destroyed by the squadrons of England and Holland. Of all this Lewis was perfectly aware. He repeatedly declared that he should consider the kingdom of the Two Sicilies as a source, not of strength, but of weakness. He accepted it at last with murmurs; he seems to have intended to make it over to one of his younger grandsons; and he would beyond all doubt have gladly given it in exchange for a thirtieth part of the same area in the Netherlands. [15](#) But in the Netherlands England and Holland were

determined to allow him nothing. What he really obtained in Italy was little more than a splendid provision for a cadet of his house. Guipuscoa was then in truth the price in consideration of which France consented that the Electoral Prince of Bavaria should be King of Spain and the Indies. Guipuscoa, though a small, was doubtless a valuable province, and was in a military point of view highly important. But Guipuscoa was not in the Netherlands. Guipuscoa would not make Lewis a more formidable neighbour to England or to the United Provinces. And, if the Treaty should be broken off, if the vast Spanish empire should be struggled for and torn in pieces by the rival races of Bourbon and Habsburg, was it not possible, was it not probable, that France might lay her iron grasp, not on Guipuscoa alone, but on Luxemburg and Namur, on Hainault, Brabant and Antwerp, on Flanders East and West? Was it certain that the united force of all her neighbours would be sufficient to compel her to relinquish her prey? Was it not certain that the contest would be long and terrible? And would not the English and Dutch think themselves most fortunate if, after many bloody and costly campaigns, the French King could be compelled to sign a treaty, the same, word for word, with that which he was ready uncompelled to sign now?

William, firmly relying on his own judgment, had not yet, in the whole course of this momentous negotiation, asked the advice or employed the agency of any English minister. But the treaty could not be formally concluded without the instrumentality of one of the Secretaries of State and of the Great Seal. Portland was directed to write to Vernon. The King himself wrote to the Chancellor. Somers was authorised to consult any of his colleagues whom he might think fit to be entrusted with so high a secret; and he was requested to give his own opinion of the proposed arrangement. If that opinion should be favourable, not a day must be lost. The King of Spain might die at any moment, and could hardly live till the winter. Full powers must be sent to Loo, sealed, but with blanks left for the names of the plenipotentiaries. Strict secrecy must be observed; and care must be taken that the clerks whose duty it was to draw up the necessary documents should not entertain any suspicion of the importance of the work which they were performing.

The despatch from Loo found Somers at a distance from all his political friends, and almost incapacitated by infirmities and by remedies from attending to serious business, his delicate frame worn out by the labours and

vigils of many months, his head aching and giddy with the first draughts from the chalybeate spring. He roused himself, however, and promptly communicated by writing with Shrewsbury and Orford. Montague and Vernon came down to Tunbridge Wells, and conferred fully with him. The opinion of the leading Whig statesmen was communicated to the King in a letter which was not many months later placed on the records of Parliament. These statesmen entirely agreed with William in wishing to see the question of the Spanish succession speedily and peaceably settled. They apprehended that, if Charles should die leaving that question unsettled, the immense power of the French King and the geographical situation of his dominions would enable him to take immediate possession of the most important parts of the great inheritance. Whether he was likely to venture on so bold a course, and whether, if he did venture on it, any continental government would have the means and the spirit to withstand him, were questions as to which the English ministers, with unfeigned deference, submitted their opinion to that of their master, whose knowledge of the interests and tempers of all the courts of Europe was unrivalled. But there was one important point which must not be left out of consideration, and about which his servants might perhaps be better informed than himself, the temper of their own country. It was, the Chancellor wrote, their duty to tell His Majesty that the recent elections had indicated the public feeling in a manner which had not been expected, but which could not be mistaken. The spirit which had borne the nation up through nine years of exertions and sacrifices seemed to be dead. The people were sick of taxes; they hated the thought of war. As it would, in such circumstances, be no easy matter to form a coalition capable of resisting the pretensions of France, it was most desirable that she should be induced to withdraw those pretensions; and it was not to be expected that she would withdraw them without securing for herself a large compensation. The principle of the Treaty of Loo, therefore, the English Ministers cordially approved. But whether the articles of that treaty were or were not too favourable to the House of Bourbon, and whether the House of Bourbon was likely faithfully to observe them, were questions about which Somers delicately hinted that he and his colleagues felt some misgivings. They had their fears that Lewis might be playing false. They had their fears also that, possessed of Sicily, he would be master of the trade of the Levant; and that, possessed of Guipuscoa, he would be able at any moment to push an army into the heart of Castile. But they had

been reassured by the thought that their Sovereign thoroughly understood this department of politics, that he had fully considered all these things, that he had neglected no precaution, and that the concessions which he had made to France were the smallest which could have averted the calamities impending over Christendom. It was added that the service which His Majesty had rendered to the House of Bavaria gave him a right to ask for some return. Would it be too much to expect, from the gratitude of the prince who was soon to be a great king, some relaxation of the rigorous system which excluded the English trade from the Spanish colonies? Such a relaxation would greatly endear His Majesty to his subjects.

With these suggestions the Chancellor sent off the powers which the King wanted. They were drawn up by Vernon with his own hand, and sealed in such a manner that no subordinate officer was let into the secret. Blanks were left, as the King had directed, for the names of two Commissioners. But Somers gently hinted that it would be proper to fill those blanks with the names of persons who were English by naturalisation, if not by birth, and who would therefore be responsible to Parliament.

The King now had what he wanted from England. The peculiarity of the Batavian polity threw some difficulties in his way; but every difficulty gelded to his authority and to the dexterous management of Heinsius. And in truth the treaty could not but be favourably regarded by the States General; for it had been carefully framed with the especial object of preventing France from obtaining any accession of territory, or influence on the side of the Netherlands; and Dutchmen, who remembered the terrible year when the camp of Lewis had been pitched between Utrecht and Amsterdam, were delighted to find that he was not to add to his dominions a single fortress in their neighbourhood, and were quite willing to buy him off with whole provinces under the Pyrenees and the Apennines. The sanction both of the federal and of the provincial governments was given with ease and expedition; and in the evening of the fourth of September 1698, the treaty was signed. As to the blanks in the English powers, William had attended to his Chancellor's suggestion, and had inserted the names of Sir Joseph Williamson, minister at the Hague, a born Englishman, and of Portland, a naturalised Englishman. The Grand Pensionary and seven other Commissioners signed on behalf of the United Provinces. Tallard alone signed for France. He seems to have been extravagantly elated by what seemed to be the happy issue of the negotiation in which he had borne so

great a part, and in his next despatch to Lewis boasted of the new treaty as destined to be the most famous that had been made during many centuries.

William too was well pleased; and he had reason to be so. Had the King of Spain died, as all men expected, before the end of that year, it is highly probable that France would have kept faith with England and the United Provinces; and it is almost certain that, if France had kept faith, the treaty would have been carried into effect without any serious opposition in any quarter. The Emperor might have complained and threatened; but he must have submitted; for what could he do? He had no fleet; and it was therefore impossible for him even to attempt to possess himself of Castile, of Arragon, of Sicily, of the Indies, in opposition to the united navies of the three greatest maritime powers in the world. In fact, the only part of the Spanish empire which he could hope to seize and hold by force against the will of the confederates of Loo was the Milanese; and the Milanese the confederates of Loo had agreed to assign to his family. He would scarcely have been so mad as to disturb the peace of the world when the only thing which he had any chance of gaining by war was offered him without war. The Castilians would doubtless have resented the dismemberment of the unwieldy body of which they formed the head. But they would have perceived that by resisting they were much more likely to lose the Indies than to preserve Guipuscoa. As to Italy, they could no more make war there than in the moon. Thus the crisis which had seemed likely to produce an European war of ten years would have produced nothing worse than a few angry notes and plaintive manifestoes.

Both the confederate Kings wished their compact to remain a secret while their brother Charles lived; and it probably would have remained secret, had it been confided only to the English and French Ministers. But the institutions of the United Provinces were not well fitted for the purpose of concealment. It had been necessary to trust so many deputies and magistrates that rumours of what had been passing at Loo got abroad. Quiros, the Spanish Ambassador at the Hague, followed the trail with such skill and perseverance that he discovered, if not the whole truth, yet enough to furnish materials for a despatch which produced much irritation and alarm at Madrid. A council was summoned, and sate long in deliberation. The grandees of the proudest of Courts could hardly fail to perceive that their next sovereign, be he who he might, would find it impossible to avoid sacrificing part of his defenceless and widely scattered empire in order to

preserve the rest; they could not bear to think that a single fort, a single islet, in any of the four quarters of the world was about to escape from the sullen domination of Castile. To this sentiment all the passions and prejudices of the haughty race were subordinate. "We are ready," such was the phrase then in their mouths, "to go to any body, to go to the Dauphin, to go to the Devil, so that we all go together." In the hope of averting the threatened dismemberment, the Spanish ministers advised their master to adopt as his heir the candidate whose pretensions it was understood that France, England and Holland were inclined to support. The advice was taken; and it was soon every where known that His Catholic Majesty had solemnly designated as his successor his nephew Francis Joseph, Electoral Prince of Bavaria. France protested against this arrangement, not, as far as can now be judged, because she meant to violate the Treaty of Loo, but because it would have been difficult for her, if she did not protest, to insist on the full execution of that treaty. Had she silently acquiesced in the nomination of the Electoral Prince, she would have appeared to admit that the Dauphin's pretensions were unfounded; and, if she admitted the Dauphin's pretensions to be unfounded, she could not, without flagrant injustice, demand several provinces as the price in consideration of which she would consent to waive those pretensions. Meanwhile the confederates had secured the cooperation of a most important person, the Elector of Bavaria, who was actually Governor of the Netherlands, and was likely to be in a few months, at farthest, Regent of the whole Spanish monarchy. He was perfectly sensible that the consent of France, England and Holland to his son's elevation was worth purchasing at almost any cost, and, with much alacrity, promised that, when the time came, he would do all in his power to facilitate the execution of the Treaty of Partition. He was indeed bound by the strongest ties to the confederates of Loo. They had, by a secret article, added to the treaty, agreed that, if the Electoral Prince should become King of Spain, and then die without issue, his father should be his heir. The news that young Francis Joseph had been declared heir to the throne of Spain was welcome to all the potentates of Europe with the single exception of his grandfather the Emperor. The vexation and indignation of Leopold were extreme. But there could be no doubt that, graciously or ungraciously, he would submit. It would have been madness in him to contend against all Western Europe on land; and it was physically impossible for him to wage war on the sea. William was therefore able to indulge, during some weeks,

the pleasing belief that he had by skill and firmness averted from the civilised world a general war which had lately seemed to be imminent, and that he had secured the great community of nations against the undue predominance of one too powerful member.

But the pleasure and the pride with which he contemplated the success of his foreign policy gave place to very different feelings as soon as he again had to deal with our domestic factions. And, indeed, those who most revere his memory must acknowledge that, in dealing with these factions, he did not, at this time, show his wonted statesmanship. For a wise man, he seems never to have been sufficiently aware how much offence is given by discourtesy in small things. His ministers had apprised him that the result of the elections had been unsatisfactory, and that the temper of the new representatives of the people would require much management. Unfortunately he did not lay this intimation to heart. He had by proclamation fixed the opening of the Parliament for the 29th of November. This was then considered as a very late day. For the London season began together with Michaelmas Term; and, even during the war, the King had scarcely ever failed to receive the compliments of his faithful Lords and Commons on the fifth of November, the anniversary both of his birth and of his memorable landing. The numerous members of the House of Commons who were in town, having their time on their hands, formed cabals, and heated themselves and each other by murmuring at his partiality for the country of his birth. He had been off to Holland, they said, at the earliest possible moment. He was now lingering in Holland till the latest possible moment. This was not the worst. The twenty-ninth of November came; but the King was not come. It was necessary that the Lords Justices should prorogue the Parliament to the sixth of December. The delay was imputed, and justly, to adverse winds. But the malecontents asked, with some reason, whether His Majesty had not known that there were often gales from the West in the German Ocean, and whether, when he had made a solemn appointment with the Estates of his Realm for a particular day, he ought not to have arranged things in such a way that nothing short of a miracle could have prevented him from keeping that appointment.

Thus the ill humour which a large proportion of the new legislators had brought up from their country seats became more and more aced every day, till they entered on their functions. One question was much agitated during this unpleasant interval. Who was to be Speaker? The junto wished to place

Sir Thomas Littleton in the chair. He was one of their ablest, most zealous and most steadfast friends; and had been, both in the House of Commons and at the Board of Treasury, an invaluable second to Montague. There was reason indeed to expect a strong opposition. That Littleton was a Whig was a grave objection to him in the opinion of the Tories. That he was a placeman, and that he was for a standing army, were grave objections to him in the opinion of many who were not Tories. But nobody else came forward. The health of the late Speaker Foley had failed. Musgrave was talked of in coffeehouses; but the rumour that he would be proposed soon died away. Seymour's name was in a few mouths; but Seymour's day had gone by. He still possessed, indeed, those advantages which had once made him the first of the country gentlemen of England, illustrious descent, ample fortune, ready and weighty eloquence, perfect familiarity with parliamentary business. But all these things could not do so much to raise him as his moral character did to drag him down. Haughtiness such as his, though it could never have been liked, might, if it had been united with elevated sentiments of virtue and honour, have been pardoned. But of all the forms of pride, even the pride of upstart wealth not excepted, the most offensive is the pride of ancestry when found in company with sordid and ignoble vices, greediness, mendacity, knavery and impudence; and such was the pride of Seymour. Many, even of those who were well pleased to see the ministers galled by his keen and skilful rhetoric, remembered that he had sold himself more than once, and suspected that he was impatient to sell himself again. On the very eve of the opening of Parliament, a little tract entitled "Considerations on the Choice of a Speaker" was widely circulated, and seems to have produced a great sensation. The writer cautioned the representatives of the people, at some length, against Littleton; and then, in even stronger language, though more concisely, against Seymour; but did not suggest any third person. The sixth of December came, and found the Country party, as it called itself, still unprovided with a candidate. The King, who had not been many hours in London, took his seat in the House of Lords. The Commons were summoned to the bar, and were directed to choose a Speaker. They returned to their Chamber. Hartington proposed Littleton; and the proposition was seconded by Spencer. No other person was put in nomination; but there was a warm debate of two hours. Seymour, exasperated by finding that no party was inclined to support his pretensions, spoke with extravagant violence.

He who could well remember the military despotism of Cromwell, who had been an active politician in the days of the Cabal, and who had seen his own beautiful county turned into a Golgotha by the Bloody Circuit, declared that the liberties of the nation had never been in greater danger than at that moment, and that their doom would be fixed if a courtier should be called to the chair. The opposition insisted on dividing. Hartington's motion was carried by two hundred and forty-two votes to a hundred and thirty-five, Littleton himself, according to the childish old usage which has descended to our times, voting in the minority. Three days later, he was presented and approved.

The King then spoke from the throne. He declared his firm conviction that the Houses were disposed to do whatever was necessary for the safety, honour and happiness of the kingdom; and he asked them for nothing more. When they came to consider the military and naval establishments, they would remember that, unless England were secure from attack, she could not continue to hold the high place which she had won for herself among European powers; her trade would languish; her credit would fail; and even her internal tranquillity would be in danger. He also expressed a hope that some progress would be made in the discharge of the debts contracted during the War. "I think," he said, "an English Parliament can never make such a mistake as not to hold sacred all Parliamentary engagements."

The speech appeared to be well received; and during a short time William flattered himself that the great fault, as he considered it, of the preceding session would be repaired, that the army would be augmented, and that he should be able, at the important conjuncture which was approaching, to speak to foreign powers in tones of authority, and especially to keep France steady to her engagements. The Whigs of the junto, better acquainted with the temper of the country and of the new House of Commons, pronounced it impossible to carry a vote for a land force of more than ten thousand men. Ten thousand men would probably be obtained if His Majesty would authorise his servants to ask in his name for that number, and to declare that with a smaller number he could not answer for the public safety. William, firmly convinced that twenty thousand would be too few, refused to make or empower others to make a proposition which seemed to him absurd and disgraceful. Thus, at a moment at which it was peculiarly desirable that all who bore a part in the executive administration should act cordially together, there was serious dissension between him and his ablest

councillors. For that dissension neither he nor they can be severely blamed. They were differently situated, and necessarily saw the same objects from different points of view. He, as was natural, considered the question chiefly as an European question. They, as was natural, considered it chiefly as an English question. They had found the antipathy to a standing army insurmountably strong even in the late Parliament, a Parliament disposed to place large confidence in them and in their master. In the new Parliament that antipathy amounted almost to a mania. That liberty, law, property, could never be secured while the Sovereign had a large body of regular troops at his command in time of peace, and that of all regular troops foreign troops were the most to be dreaded, had, during the recent elections, been repeated in every town hall and market place, and scrawled upon every dead wall. The reductions of the preceding year, it was said, even if they had been honestly carved into effect, would not have been sufficient; and they had not been honestly carried into effect. On this subject the ministers pronounced the temper of the Commons to be such that, if any person high in office were to ask for what His Majesty thought necessary, there would assuredly be a violent explosion; the majority would probably be provoked into disbanding all that remained of the army; and the kingdom would be left without a single soldier. William, however, could not be brought to believe that the case was so hopeless. He listened too easily to some secret adviser, Sunderland was probably the man, who accused Montague and Somers of cowardice and insincerity. They had, it was whispered in the royal ear, a majority, whenever they really wanted one. They were bent upon placing their friend Littleton in the Speaker's chair; and they had carried their point triumphantly. They would carry as triumphantly a vote for a respectable military establishment if the honour of their master and the safety of their country were as dear to them as the petty interests of their own faction. It was to no purpose that the King was told, what was nevertheless perfectly true, that not one half of the members who had voted for Littleton, could, by any art or eloquence, be induced to vote for an augmentation of the land force. While he was urging his ministers to stand up manfully against the popular prejudice, and while they were respectfully representing to him that by so standing up they should only make that prejudice stronger and more noxious, the day came which the Commons had fixed for taking the royal speech into consideration. The House resolved itself into a Committee. The great question was instantly raised;

What provision should be made for the defence of the realm? It was naturally expected that the confidential advisers of the Crown would propose something. As they remained silent, Harley took the lead which properly belonged to them, and moved that the army should not exceed seven thousand men. Sir Charles Sedley suggested ten thousand. Vernon, who was present, was of opinion that this number would have been carved if it had been proposed by one who was known to speak on behalf of the King. But few members cared to support an amendment which was certain to be less pleasing to their constituents, and did not appear to be more pleasing to the Court, than the original motion. Harley's resolution passed the Committee. On the morrow it was reported and approved. The House also resolved that all the seven thousand men who were to be retained should be natural born English subjects. Other votes were carried without a single division either in the Committee or when the mace was on the table.

The King's indignation and vexation were extreme. He was angry with the opposition, with the ministers, with all England. The nation seemed to him to be under a judicial infatuation, blind to dangers which his sagacity perceived to be real, near and formidable, and morbidly apprehensive of dangers which his conscience told him were no dangers at all. The perverse islanders were willing to trust every thing that was most precious to them, their independence, their property, their laws, their religion, to the moderation and good faith of France, to the winds and the waves, to the steadiness and expertness of battalions of ploughmen commanded by squires; and yet they were afraid to trust him with the means of protecting them lest he should use those means for the destruction of the liberties which he had saved from extreme peril, which he had fenced with new securities, which he had defended with the hazard of his life, and which from the day of his accession he had never once violated. He was attached, and not without reason, to the Blue Dutch Foot Guards. That brigade had served under him for many years, and had been eminently distinguished by courage, discipline and fidelity. In December 1688 that brigade had been the first in his army to enter the English capital, and had been entrusted with the important duty of occupying Whitehall and guarding the person of James. Eighteen months later, that brigade had been the first to plunge into the waters of the Boyne. Nor had the conduct of these veteran soldiers been less exemplary in their quarters than in the field. The vote which required the King to discard them merely because they were what he himself was

seemed to him a personal affront. All these vexations and scandals he imagined that his ministers might have averted, if they had been more solicitous for his honour and for the success of his great schemes of policy, and less solicitous about their own popularity. They, on the other hand, continued to assure him, and, as far as can now be judged, to assure him with perfect truth, that it was altogether out of their power to effect what he wished. Something they might perhaps be able to do. Many members of the House of Commons had said in private that seven thousand men was too small a number. If His Majesty would let it be understood that he should consider those who should vote for ten thousand as having done him good service, there might be hopes. But there could be no hope if gentlemen found that by voting for ten thousand they should please nobody, that they should be held up to the counties and towns which they represented as turncoats and slaves for going so far to meet his wishes, and that they should be at the same time frowned upon at Kensington for not going farther. The King was not to be moved. He had been too great to sink into littleness without a struggle. He had been the soul of two great coalitions, the dread of France, the hope of all oppressed nations. And was he to be degraded into a mere puppet of the Harleys and the Hooves, a petty prince who could neither help nor hurt, a less formidable enemy and less valuable ally than the Elector of Brandenburg or the Duke of Savoy? His spirit, quite as arbitrary and as impatient of control as that of any of his predecessors, Stuart, Tudor or Plantagenet, swelled high against this ignominious bondage. It was well known at Versailles that he was cruelly mortified and incensed; and, during a short time, a strange hope was cherished there that, in the heat of his resentment, he might be induced to imitate his uncles, Charles and James, to conclude another treaty of Dover, and to sell himself into vassalage for a subsidy which might make him independent of his niggardly and mutinous Parliament. Such a subsidy, it was thought, might be disguised under the name of a compensation for the little principality of Orange, which Lewis had long been desirous to purchase even at a fancy price. A despatch was drawn up containing a paragraph by which Tallard was to be apprised of his master's views, and instructed not to hazard any distinct proposition, but to try the effect of cautious and delicate insinuations, and, if possible, to draw William on to speak first. This paragraph was, on second thoughts, cancelled; but that it should ever have been written must be considered a most significant circumstance.

It may with confidence be affirmed that William would never have stooped to be the pensioner of France; but it was with difficulty that he was, at this conjuncture, dissuaded from throwing up the government of England. When first he threw out hints about retiring to the Continent, his ministers imagined that he was only trying to frighten them into making a desperate effort to obtain for him an efficient army. But they soon saw reason to believe that he was in earnest. That he was in earnest, indeed, can hardly be doubted. For, in a confidential letter to Heinsius, whom he could have no motive for deceiving, he intimated his intention very clearly. "I foresee," he writes, "that I shall be driven to take an extreme course, and that I shall see you again in Holland sooner than I had imagined." [16](#) In fact he had resolved to go down to the Lords, to send for the Commons, and to make his last speech from the throne. That speech he actually prepared and had it translated. He meant to tell his hearers that he had come to England to rescue their religion and their liberties; that, for that end, he had been under the necessity of waging a long and cruel war; that the war had, by the blessing of God, ended in an honourable and advantageous peace; and that the nation might now be tranquil and happy, if only those precautions were adopted which he had on the first day of the session recommended as essential to the public security. Since, however, the Estates of the Realm thought fit to slight his advice, and to expose themselves to the imminent risk of ruin, he would not be the witness of calamities which he had not caused and which he could not avert. He must therefore request the Houses to present to him a bill providing for the government of the realm; he would pass that bill, and withdraw from a post in which he could no longer be useful, but he should always take a deep interest in the welfare of England; and, if what he foreboded should come to pass, if in some day of danger she should again need his services, his life should be hazarded as freely as ever in her defence.

When the King showed his speech to the Chancellor, that wise minister forgot for a moment his habitual self-command. "This is extravagance, Sir," he said: "this is madness. I implore your Majesty, for the sake of your own honour, not to say to anybody else what you have said to me." He argued the matter during two hours, and no doubt lucidly and forcibly. William listened patiently; but his purpose remained unchanged.

The alarm of the ministers seems to have been increased by finding that the King's intention had been confided to Marlborough, the very last man to

whom such a secret would have been imparted unless William had really made up his mind to abdicate in favour of the Princess of Denmark. Somers had another audience, and again began to expostulate. But William cut him short. "We shall not agree, my Lord; my mind is made up." "Then, Sir," said Somers, "I have to request that I may be excused from assisting as Chancellor at the fatal act which Your Majesty meditates. It was from my King that I received this seal; and I beg that he will take it from me while he is still my King."

In these circumstances the ministers, though with scarcely the faintest hope of success, determined to try what they could do to meet the King's wishes. A select Committee had been appointed by the House of Commons to frame a bill for the disbanding of all the troops above seven thousand. A motion was made by one of the Court party that this Committee should be instructed to reconsider the number of men. Vernon acquitted himself well in the debate. Montague spoke with even more than his wonted ability and energy, but in vain. So far was he from being able to rally round him such a majority as that which had supported him in the preceding Parliament, that he could not count on the support even of the placemen who sate at the same executive board with him. Thomas Pelham, who had, only a few months before, been made a Lord of the Treasury, tried to answer him. "I own," said Pelham, "that last year I thought a large land force necessary; this year I think such a force unnecessary; but I deny that I have been guilty of any inconsistency. Last year the great question of the Spanish succession was unsettled, and there was serious danger of a general war. That question has now been settled in the best possible way; and we may look forward to many years of peace." A Whig of still greater note and authority, the Marquess of Hartington, separated himself on this occasion from the junto. The current was irresistible. At last the voices of those who tried to speak for the Instruction were drowned by clamour. When the question was put, there was a great shout of No, and the minority submitted. To divide would have been merely to have exposed their weakness.

By this time it became clear that the relations between the executive government and the Parliament were again what they had been before the year 1695. The history of our polity at this time is closely connected with the history of one man. Hitherto Montague's career had been more splendidly and uninterruptedly successful than that of any member of the House of Commons, since the House of Commons had begun to exist. And

now fortune had turned. By the Tories he had long been hated as a Whig; and the rapidity of his rise, the brilliancy of his fame, and the unvarying good luck which seemed to attend him, had made many Whigs his enemies. He was absurdly compared to the upstart favourites of a former age, Carr and Villiers, men whom he resembled in nothing but in the speed with which he had mounted from a humble to a lofty position. They had, without rendering any service to the State, without showing any capacity for the conduct of great affairs, been elevated to the highest dignities, in spite of the murmurs of the whole nation, by the mere partiality of the Sovereign. Montague owed every thing to his own merit and to the public opinion of his merit. With his master he appears to have had very little intercourse, and none that was not official. He was in truth a living monument of what the Revolution had done for the Country. The Revolution had found him a young student in a cell by the Cam, poring on the diagrams which illustrated the newly discovered laws of centripetal and centrifugal force, writing little copies of verses, and indulging visions of parsonages with rich glebes, and of closes in old cathedral towns had developed in him new talents; had held out to him the hope of prizes of a very different sort from a rectory or a prebend. His eloquence had gained for him the ear of the legislature. His skill in fiscal and commercial affairs had won for him the confidence of the City. During four years he had been the undisputed leader of the majority of the House of Commons; and every one of those years he had made memorable by great parliamentary victories, and by great public services. It should seem that his success ought to have been gratifying to the nation, and especially to that assembly of which he was the chief ornament, of which indeed he might be called the creature. The representatives of the people ought to have been well pleased to find that their approbation could, in the new order of things, do for the man whom they delighted to honour all that the mightiest of the Tudors could do for Leicester, or the most arbitrary of the Stuarts for Strafford. But, strange to say, the Commons soon began to regard with an evil eye that greatness which was their own work. The fault indeed was partly Montague's. With all his ability, he had not the wisdom to avert, by suavity and moderation, that curse, the inseparable concomitant of prosperity and glory, which the ancients personified under the name of Nemesis. His head, strong for all the purposes of debate and arithmetical calculation, was weak against the intoxicating influence of success and fame. He became proud even to insolence. Old companions,

who, a very few years before, had punned and rhymed with him in garrets, had dined with him at cheap ordinaries, had sate with him in the pit, and had lent him some silver to pay his seamstress's bill, hardly knew their friend Charles in the great man who could not forget for one moment that he was First Lord of the Treasury, that he was Chancellor of the Exchequer, that he had been a Regent of the kingdom, that he had founded the Bank of England and the new East India Company, that he had restored the currency, that he had invented the Exchequer Bills, that he had planned the General Mortgage, and that he had been pronounced, by a solemn vote of the Commons, to have deserved all the favours which he had received from the Crown. It was said that admiration of himself and contempt of others were indicated by all his gestures and written in all the lines of his face. The very way in which the little jackanapes, as the hostile pamphleteers loved to call him, strutted through the lobby, making the most of his small figure, rising on his toe, and perking up his chin, made him enemies. Rash and arrogant sayings were imputed to him, and perhaps invented for him. He was accused of boasting that there was nothing that he could not carry through the House of Commons, that he could turn the majority round his finger. A crowd of libellers assailed him with much more than political hatred. Boundless rapacity and corruption were laid to his charge. He was represented as selling all the places in the revenue department for three years' purchase. The opprobrious nickname of Filcher was fastened on him. His luxury, it was said, was not less inordinate than his avarice. There was indeed an attempt made at this time to raise against the leading Whig politicians and their allies, the great moneyed men of the City, a cry much resembling the cry which, seventy or eighty years later, was raised against the English Nabobs. Great wealth, suddenly acquired, is not often enjoyed with moderation, dignity and good taste. It is therefore not impossible that there may have been some small foundation for the extravagant stories with which malecontent pamphleteers amused the leisure of malecontent squires. In such stories Montague played a conspicuous part. He contrived, it was said, to be at once as rich as Croesus and as riotous as Mark Antony. His stud and his cellar were beyond all price. His very lacqueys turned up their noses at claret. He and his confederates were described as spending the immense sums of which they had plundered the public in banquets of four courses, such as Lucullus might have eaten in the Hall of Apollo. A supper for twelve Whigs, enriched by jobs, grants, bribes, lucky purchases and

lucky sales of stock, was cheap at eighty pounds. At the end of every course all the fine linen on the table was changed. Those who saw the pyramids of choice wild fowl imagined that the entertainment had been prepared for fifty epicures at the least. Only six birds' nests from the Nicobar islands were to be had in London; and all the six, bought at an enormous price, were smoking in soup on the board. These fables were destitute alike of probability and of evidence. But Grub Street could devise no fable injurious to Montague which was not certain to find credence in more than half the manor houses and vicarages of England.

It may seem strange that a man who loved literature passionately, and rewarded literary merit munificently, should have been more savagely reviled both in prose and verse than almost any other politician in our history. But there is really no cause for wonder. A powerful, liberal and discerning protector of genius is very likely to be mentioned with honour long after his death, but is very likely also to be most brutally libelled during his life. In every age there will be twenty bad writers for one good one; and every bad writer will think himself a good one. A ruler who neglects all men of letters alike does not wound the self love of any man of letters. But a ruler who shows favour to the few men of letters who deserve it inflicts on the many the miseries of disappointed hope, of affronted pride, of jealousy cruel as the grave. All the rage of a multitude of authors, irritated at once by the sting of want and by the sting of vanity, is directed against the unfortunate patron. It is true that the thanks and eulogies of those whom he has befriended will be remembered when the invectives of those whom he has neglected are forgotten. But in his own time the obloquy will probably make as much noise and find as much credit as the panegyric. The name of Maecenas has been made immortal by Horace and Virgil, and is popularly used to designate an accomplished statesman, who lives in close intimacy with the greatest poets and wits of his time, and heaps benefits on them with the most delicate generosity. But it may well be suspected that, if the verses of Alpinus and Fannius, of Bavius and Maevius, had come down to us, we might see Maecenas represented as the most niggardly and tasteless of human beings, nay as a man who, on system, neglected and persecuted all intellectual superiority. It is certain that Montague was thus represented by contemporary scribblers. They told the world in essays, in letters, in dialogues, in ballads, that he would do nothing for anybody without being paid either in money or in some vile services;

that he not only never rewarded merit, but hated it whenever he saw it; that he practised the meanest arts for the purpose of depressing it; that those whom he protected and enriched were not men of ability and virtue, but wretches distinguished only by their sycophancy and their low debaucheries. And this was said of the man who made the fortune of Joseph Addison, and of Isaac Newton.

Nothing had done more to diminish the influence of Montague in the House of Commons than a step which he had taken a few weeks before the meeting of the Parliament. It would seem that the result of the general election had made him uneasy, and that he had looked anxiously round him for some harbour in which he might take refuge from the storms which seemed to be gathering. While his thoughts were thus employed, he learned that the Auditorship of the Exchequer had suddenly become vacant. The Auditorship was held for life. The duties were formal and easy. The gains were uncertain; for they rose and fell with the public expenditure; but they could hardly, in time of peace, and under the most economical administration, be less than four thousand pounds a year, and were likely, in time of war, to be more than double of that sum. Montague marked this great office for his own. He could not indeed take it, while he continued to be in charge of the public purse. For it would have been indecent, and perhaps illegal, that he should audit his own accounts. He therefore selected his brother Christopher, whom he had lately made a Commissioner of the Excise, to keep the place for him. There was, as may easily be supposed, no want of powerful and noble competitors for such a prize. Leeds had, more than twenty years before, obtained from Charles the Second a patent granting the reversion to Caermarthen. Godolphin, it was said, pleaded a promise made by William. But Montague maintained, and was, it seems, right in maintaining, that both the patent of Charles and the promise of William had been given under a mistake, and that the right of appointing the Auditor belonged, not to the Crown, but to the Board of Treasury. He carried his point with characteristic audacity and celerity. The news of the vacancy reached London on a Sunday. On the Tuesday the new Auditor was sworn in. The ministers were amazed. Even the Chancellor, with whom Montague was on terms of intimate friendship, had not been consulted. Godolphin devoured his ill temper. Caermarthen ordered out his wonderful yacht, and hastened to complain to the King, who was then at Loo. But what had been done could not be undone.

This bold stroke placed Montague's fortune, in the lower sense of the word, out of hazard, but increased the animosity of his enemies and cooled the zeal of his adherents. In a letter written by one of his colleagues, Secretary Vernon, on the day after the appointment, the Auditorship is described as at once a safe and lucrative place. "But I thought," Vernon proceeds, "Mr. Montague was too aspiring to stoop to any thing below the height he was in, and that he least considered profit." This feeling was no doubt shared by many of the friends of the ministry. It was plain that Montague was preparing a retreat for himself. This flinching of the captain, just on the eve of a perilous campaign, naturally disheartened the whole army. It deserves to be remarked that, more than eighty years later, another great parliamentary leader was placed in a very similar situation. The younger William Pitt held in 1784 the same offices which Montague had held in 1698. Pitt was pressed in 1784 by political difficulties not less than those with which Montague had contended in 1698. Pitt was also in 1784 a much poorer man than Montague in 1698. Pitt, in 1784, like Montague in 1698, had at his own absolute disposal a lucrative sinecure place in the Exchequer. Pitt gave away the office which would have made him an opulent man, and gave it away in such a manner as at once to reward unfortunate merit, and to relieve the country from a burden. For this disinterestedness he was repaid by the enthusiastic applause of his followers, by the enforced respect of his opponents, and by the confidence which, through all the vicissitudes of a chequered and at length disastrous career, the great body of Englishmen reposed in his public spirit and in his personal integrity. In the intellectual qualities of a statesman Montague was probably not inferior to Pitt. But the magnanimity, the dauntless courage, the contempt for riches and for baubles, to which, more than to any intellectual quality, Pitt owed his long ascendancy, were wanting to Montague.

The faults of Montague were great; but his punishment was cruel. It was indeed a punishment which must have been more bitter than the bitterness of death to a man whose vanity was exquisitely sensitive, and who had been spoiled by early and rapid success and by constant prosperity. Before the new Parliament had been a month sitting it was plain that his empire was at an end. He spoke with the old eloquence; but his speeches no longer called forth the old response. Whatever he proposed was maliciously scrutinised. The success of his budget of the preceding year had surpassed all

expectation. The two millions which he had undertaken to find had been raised with a rapidity which seemed magical. Yet for bringing the riches of the City, in an unprecedented flood, to overflow the Exchequer he was reviled as if his scheme had failed more ludicrously than the Tory Land Bank. Emboldened by his unpopularity, the Old East India Company presented a petition praying that the General Society Act, which his influence and eloquence had induced the late Parliament to pass, might be extensively modified. Howe took the matter up. It was moved that leave should be given to bring in a bill according to the prayer of the petition; the motion was carried by a hundred and seventy-five votes to a hundred and forty-eight; and the whole question of the trade with the Eastern seas was reopened. The bill was brought in, but was, with great difficulty and by a very small majority, thrown out on the second reading. [17](#) On other financial questions Montague, so lately the oracle of the Committee of Supply, was now heard with malevolent distrust. If his enemies were unable to detect any flaw in his reasonings and calculations, they could at least whisper that Mr. Montague was very cunning, that it was not easy to track him, but that it might be taken for granted that for whatever he did he had some sinister motive, and that the safest course was to negative whatever he proposed. Though that House of Commons was economical even to a vice, the majority preferred paying high interest to paying low interest, solely because the plan for raising money at low interest had been framed by him. In a despatch from the Dutch embassy the States General were informed that many of the votes of that session which had caused astonishment out of doors were to be ascribed to nothing but to the bitter envy which the ability and fame of Montague had excited. It was not without a hard struggle and a sharp pang that the first Englishman who has held that high position which has now been long called the Leadership of the House of Commons submitted to be deposed. But he was set upon with cowardly malignity by whole rows of small men none of whom singly would have dared to look him in the face. A contemporary pamphleteer compared him to an owl in the sunshine pursued and pecked to death by flights of tiny birds. On one occasion he was irritated into uttering an oath. Then there was a cry of Order; and he was threatened with the Serjeant and the Tower. On another occasion he was moved even to shedding tears of rage and vexation, tears which only moved the mockery of his low minded and bad hearted foes.

If a minister were now to find himself thus situated in a House of Commons which had just been elected, and from which it would therefore be idle to appeal to the electors, he would instantly resign his office, and his adversaries would take his place. The change would be most advantageous to the public, even if we suppose his successor to be both less virtuous and less able than himself. For it is much better for the country to have a bad ministry than to have no ministry at all, and there would be no ministry at all if the executive departments were filled by men whom the representatives of the people took every opportunity of thwarting and insulting. That an unprincipled man should be followed by a majority of the House of Commons is no doubt an evil. But, when this is the case, he will nowhere be so harmless as at the head of affairs. As he already possesses the power to do boundless mischief, it is desirable to give him a strong motive to abstain from doing mischief; and such a motive he has from the moment that he is entrusted with the administration. Office of itself does much to equalise politicians. It by no means brings all characters to a level; but it does bring high characters down and low characters up towards a common standard. In power the most patriotic and most enlightened statesman finds that he must disappoint the expectations of his admirers; that, if he effects any good, he must effect it by compromise; that he must relinquish many favourite schemes; that he must bear with many abuses. On the other hand, power turns the very vices of the most worthless adventurer, his selfish ambition, his sordid cupidity, his vanity, his cowardice, into a sort of public spirit. The most greedy and cruel wrecker that ever put up false lights to lure mariners to their destruction will do his best to preserve a ship from going to pieces on the rocks, if he is taken on board of her and made pilot; and so the most profligate Chancellor of the Exchequer most wish that trade may flourish, that the revenue may come in well, and that he may be able to take taxes off instead of putting them on. The most profligate First Lord of the Admiralty must wish to receive news of a victory like that of the Nile rather than of a mutiny like that at the Nore. There is, therefore, a limit to the evil which is to be apprehended from the worst ministry that is likely ever to exist in England. But to the evil of having no ministry, to the evil of having a House of Commons permanently at war with the executive government, there is absolutely no limit. This was signally proved in 1699 and 1700. Had the statesmen of the junto, as soon as they had ascertained the temper of the new Parliament, acted as

statesmen similarly situated would now act, great calamities would have been averted. The chiefs of the opposition must then have been called upon to form a government. With the power of the late ministry the responsibility of the late ministry would have been transferred to them; and that responsibility would at once have sobered them. The orator whose eloquence had been the delight of the Country party would have had to exert his ingenuity on a new set of topics. There would have been an end of his invectives against courtiers and placemen, of piteous meanings about the intolerable weight of the land tax, of his boasts that the militia of Kent and Sussex, without the help of a single regular soldier, would turn the conquerors of Landen to the right about. He would himself have been a courtier; he would himself have been a placeman; he would have known that he should be held accountable for all the misery which a national bankruptcy or a French invasion might produce; and, instead of labouring to get up a clamour for the reduction of imposts, and the disbanding of regiments, he would have employed all his talents and influence for the purpose of obtaining from Parliament the means of supporting public credit, and of putting the country in a good posture of defence. Meanwhile the statesmen who were out might have watched the new men, might have checked them when they were wrong, might have come to their help when, by doing right, they had raised a mutiny in their own absurd and perverse faction. In this way Montague and Somers might, in opposition, have been really far more powerful than they could be while they filled the highest posts in the executive government and were outvoted every day in the House of Commons. Their retirement would have mitigated envy; their abilities would have been missed and regretted; their unpopularity would have passed to their successors, who would have grievously disappointed vulgar expectation, and would have been under the necessity of eating their own words in every debate. The league between the Tories and the discontented Whigs would have been dissolved; and it is probable that, in a session or two, the public voice would have loudly demanded the recall of the best Keeper of the Great Seal, and of the best First Lord of the Treasury, the oldest man living could remember.

But these lessons, the fruits of the experience of five generations, had never been taught to the politicians of the seventeenth century. Notions imbibed before the Revolution still kept possession of the public mind. Not even Somers, the foremost man of his age in civil wisdom, thought it

strange that one party should be in possession of the executive administration while the other predominated in the legislature. Thus, at the beginning of 1699, there ceased to be a ministry; and years elapsed before the servants of the Crown and the representatives of the people were again joined in an union as harmonious as that which had existed from the general election of 1695 to the general election of 1698. The anarchy lasted, with some short intervals of composedness, till the general election of 1765. No portion of our parliamentary history is less pleasing or more instructive. It will be seen that the House of Commons became altogether ungovernable, abused its gigantic power with unjust and insolent caprice, browbeat King and Lords, the Courts of Common Law and the Constituent bodies, violated rights guaranteed by the Great Charter, and at length made itself so odious that the people were glad to take shelter, under the protection of the throne and of the hereditary aristocracy, from the tyranny of the assembly which had been chosen by themselves.

The evil which had brought on so much discredit on representative institutions was of gradual though of rapid growth, and did not, in the first session of the Parliament of 1698, take the most alarming form. The lead of the House of Commons had, however, entirely passed away from Montague, who was still the first minister of finance, to the chiefs of the turbulent and discordant opposition. Among those chiefs the most powerful was Harley, who, while almost constantly acting with the Tories and High Churchmen, continued to use, on occasions cunningly selected, the political and religious phraseology which he had learned in his youth among the Roundheads. He thus, while high in the esteem of the country gentlemen and even of his hereditary enemies, the country parsons, retained a portion of the favour with which he and his ancestors had long been regarded by Whigs and Nonconformists. He was therefore peculiarly well qualified to act as mediator between the two sections of the majority.

The bill for the disbanding of the army passed with little opposition through the House till it reached the last stage. Then, at length, a stand was made, but in vain. Vernon wrote the next day to Shrewsbury that the ministers had had a division which they need not be ashamed of; for that they had mustered a hundred and fifty-four against two hundred and twenty-one. Such a division would not be considered as matter of boast by a Secretary of State in our time.

The bill went up to the House of Lords, where it was regarded with no great favour. But this was not one of those occasions on which the House of Lords can act effectually as a check on the popular branch of the legislature. No good would have been done by rejecting the bill for disbanding the troops, unless the King could have been furnished with the means of maintaining them; and with such means he could be furnished only by the House of Commons. Somers, in a speech of which both the eloquence and the wisdom were greatly admired, placed the question in the true light. He set forth strongly the dangers to which the jealousy and parsimony of the representatives of the people exposed the country. But any thing, he said, was better than that the King and the Peers should engage, without hope of success, in an acrimonious conflict with the Commons. Tankerville spoke with his usual ability on the same side. Nottingham and the other Tories remained silent; and the bill passed without a division.

By this time the King's strong understanding had mastered, as it seldom failed, after a struggle, to master, his rebellious temper. He had made up his mind to fulfil his great mission to the end. It was with no common pain that he admitted it to be necessary for him to give his assent to the disbanding bill. But in this case it would have been worse than useless to resort to his veto. For, if the bill had been rejected, the army would have been dissolved, and he would have been left without even the seven thousand men whom the Commons were willing to allow him. He determined, therefore, to comply with the wish of his people, and at the same time to give them a weighty and serious but friendly admonition. Never had he succeeded better in suppressing the outward signs of his emotions than on the day on which he carried this determination into effect. The public mind was much excited. The crowds in the parks and streets were immense. The Jacobites came in troops, hoping to enjoy the pleasure of reading shame and rage on the face of him whom they most hated and dreaded. The hope was disappointed. The Prussian Minister, a discerning observer, free from the passions which distracted English society, accompanied the royal procession from St. James's Palace to Westminster Hall. He well knew how bitterly William had been mortified, and was astonished to see him present himself to the public gaze with a serene and cheerful aspect.

The speech delivered from the throne was much admired; and the correspondent of the States General acknowledged that he despaired of exhibiting in a French translation the graces of style which distinguished the

original. Indeed that weighty, simple and dignified eloquence which becomes the lips of a sovereign was seldom wanting in any composition of which the plan was furnished by William and the language by Somers. The King informed the Lords and Commons that he had come down to pass their bill as soon as it was ready for him. He could not indeed but think that they had carried the reduction of the army to a dangerous extent. He could not but feel that they had treated him unkindly in requiring him to part with those guards who had come over with him to deliver England, and who had since been near him on every field of battle. But it was his fixed opinion that nothing could be so pernicious to the State as that he should be regarded by his people with distrust, distrust of which he had not expected to be the object after what he had endeavoured, ventured, and acted, to restore and to secure their liberties. He had now, he said, told the Houses plainly the reason, the only reason, which had induced him to pass their bill; and it was his duty to tell them plainly, in discharge of his high trust, and in order that none might hold him accountable for the evils which he had vainly endeavoured to avert, that, in his judgment, the nation was left too much exposed.

When the Commons had returned to their chamber, and the King's speech had been read from the chair, Howe attempted to raise a storm. A gross insult had been offered to the House. The King ought to be asked who had put such words into his mouth. But the spiteful agitator found no support. The majority were so much pleased with the King for promptly passing the bill that they were not disposed to quarrel with him for frankly declaring that he disliked it. It was resolved without a division that an address should be presented, thanking him for his gracious speech and for his ready compliance with the wishes of his people, and assuring him that his grateful Commons would never forget the great things which he had done for the country, would never give him cause to think them unkind or undutiful, and would, on all occasions, stand by him against all enemies.

Just at this juncture tidings arrived which might well raise misgivings in the minds of those who had voted for reducing the national means of defence. The Electoral Prince of Bavaria was no more. The Gazette which announced that the Disbanding Bill had received the royal assent informed the public that he was dangerously ill at Brussels. The next Gazette contained the news of his death. Only a few weeks had elapsed since all who were anxious for the peace of the world had learned with joy that he

had been named heir to the Spanish throne. That the boy just entering upon life with such hopes should die, while the wretched Charles, long ago half dead, continued to creep about between his bedroom and his chapel, was an event for which, notwithstanding the proverbial uncertainty of life, the minds of men were altogether unprepared. A peaceful solution of the great question now seemed impossible. France and Austria were left confronting each other. Within a month the whole Continent might be in arms. Pious men saw in this stroke, so sudden and so terrible, the plain signs of the divine displeasure. God had a controversy with the nations. Nine years of fire, of slaughter and of famine had not been sufficient to reclaim a guilty world; and a second and more severe chastisement was at hand. Others muttered that the event which all good men lamented was to be ascribed to unprincipled ambition. It would indeed have been strange if, in that age, so important a death, happening at so critical a moment, had not been imputed to poison. The father of the deceased Prince loudly accused the Court of Vienna; and the imputation, though not supported by the slightest evidence, was, during some time, believed by the vulgar.

The politicians at the Dutch embassy imagined that now at length the parliament would listen to reason. It seemed that even the country gentlemen must begin to contemplate the probability of an alarming crisis. The merchants of the Royal Exchange, much better acquainted than the country gentlemen with foreign lands, and much more accustomed than the country gentlemen to take large views, were in great agitation. Nobody could mistake the beat of that wonderful pulse which had recently begun, and has during five generations continued, to indicate the variations of the body politic. When Littleton was chosen speaker, the stocks rose. When it was resolved that the army should be reduced to seven thousand men, the stocks fell. When the death of the Electoral Prince was known, they fell still lower. The subscriptions to a new loan, which the Commons had, from mere spite to Montague, determined to raise on conditions of which he disapproved, came in very slowly. The signs of a reaction of feeling were discernible both in and out of Parliament. Many men are alarmists by constitution. Trenchard and Howe had frightened most men by writing and talking about the danger to which liberty and property would be exposed if the government were allowed to keep a large body of Janissaries in pay. The danger had ceased to exist; and those people who must always be afraid of something, as they could no longer be afraid of a standing army, began to

be afraid of the French King. There was a turn in the tide of public opinion; and no part of statesmanship is more important than the art of taking the tide of public opinion at the turn. On more than one occasion William showed himself a master of that art. But, on the present occasion, a sentiment, in itself amiable and respectable, led him to commit the greatest mistake of his whole life. Had he at this conjuncture again earnestly pressed on the Houses the importance of providing for the defence of the kingdom, and asked of them an additional number of English troops, it is not improbable that he might have carried his point; it is certain that, if he had failed, there would have been nothing ignominious in his failure. Unhappily, instead of raising a great public question, on which he was in the right, on which he had a good chance of succeeding, and on which he might have been defeated without any loss of dignity, he chose to raise a personal question, on which he was in the wrong, on which, right or wrong, he was sure to be beaten, and on which he could not be beaten without being degraded. Instead of pressing for more English regiments, he exerted all his influence to obtain for the Dutch guards permission to remain in the island.

The first trial of strength was in the Upper House. A resolution was moved there to the effect that the Lords would gladly concur in any plan that could be suggested for retaining the services of the Dutch brigade. The motion was carried by fifty-four votes to thirty-eight. But a protest was entered, and was signed by all the minority. It is remarkable that Devonshire was, and that Marlborough was not, one of the Dissentients. Marlborough had formerly made himself conspicuous by the keenness and pertinacity with which he had attacked the Dutch. But he had now made his peace with the Court, and was in the receipt of a large salary from the civil list. He was in the House on that day; and therefore, if he voted, must have voted with the majority. The Cavendishes had generally been strenuous supporters of the King and the junto. But on the subject of the foreign troops Hartington in one House and his father in the other were intractable.

This vote of the Lords caused much murmuring among the Commons. It was said to be most unparliamentary to pass a bill one week, and the next week to pass a resolution condemning that bill. It was true that the bill had been passed before the death of the Electoral Prince was known in London. But that unhappy event, though it might be a good reason for increasing the English army, could be no reason for departing from the principle that the

English army should consist of Englishmen. A gentleman who despised the vulgar clamour against professional soldiers, who held the doctrine of Somers's Balancing Letter, and who was prepared to vote for twenty or even thirty thousand men, might yet well ask why any of those men should be foreigners. Were our countrymen naturally inferior to men of other races in any of the qualities which, under proper training, make excellent soldiers? That assuredly was not the opinion of the Prince who had, at the head of Ormond's Life Guards, driven the French household troops, till, then invincible, back over the ruins of Neerwinden, and whose eagle eye and applauding voice had followed Cutts's grenadiers up the glacis of Namur. Bitter spirited malecontents muttered that, since there was no honourable service which could not be as well performed by the natives of the realm as by alien mercenaries, it might well be suspected that the King wanted his alien mercenaries for some service not honourable. If it were necessary to repel a French invasion or to put down an Irish insurrection, the Blues and the Buffs would stand by him to the death. But, if his object were to govern in defiance of the votes of his Parliament and of the cry of his people, he might well apprehend that English swords and muskets would, at the crisis, fail him, as they had failed his father in law, and might well wish to surround himself with men who were not of our blood, who had no reverence for our laws, and no sympathy with our feelings. Such imputations could find credit with no body superior in intelligence to those clownish squires who with difficulty managed to spell out Dyer's Letter over their ale. Men of sense and temper admitted that William had never shown any disposition to violate the solemn compact which he had made with the nation, and that, even if he were depraved enough to think of destroying the constitution by military violence, he was not imbecile enough to imagine that the Dutch brigade, or five such brigades, would suffice for his purpose. But such men, while they fully acquitted him of the design attributed to him by factious malignity, could not acquit him of a partiality which it was natural that he should feel, but which it would have been wise in him to hide, and with which it was impossible that his subjects should sympathise. He ought to have known that nothing is more offensive to free and proud nations than the sight of foreign uniforms and standards. Though not much conversant with books, he must have been acquainted with the chief events in the history of his own illustrious House; and he could hardly have been ignorant that his great grandfather had commenced

a long and glorious struggle against despotism by exciting the States General of Ghent to demand that all Spanish troops should be withdrawn from the Netherlands. The final parting between the tyrant and the future deliverer was not an event to be forgotten by any of the race of Nassau. "It was the States, Sir," said the Prince of Orange. Philip seized his wrist with a convulsive grasp, and exclaimed, "Not the States, but you, you, you."

William, however, determined to try whether a request made by himself in earnest and almost supplicating terms would induce his subjects to indulge his national partiality at the expense of their own. None of his ministers could flatter him with any hope of success. But on this subject he was too much excited to hear reason. He sent down to the Commons a message, not merely signed by himself according to the usual form, but written throughout with his own hand. He informed them that the necessary preparations had been made for sending away the guards who came with him to England, and that they would immediately embark, unless the House should, out of consideration for him, be disposed to retain them, which he should take very kindly. When the message had been read, a member proposed that a day might be fixed for the consideration of the subject. But the chiefs of the majority would not consent to any thing which might seem to indicate hesitation, and moved the previous question. The ministers were in a false position. It was out of their power to answer Harley when he sarcastically declared that he did not suspect them of having advised His Majesty on this occasion. If, he said, those gentlemen had thought it desirable that the Dutch brigade should remain in the kingdom, they would have done so before. There had been many opportunities of raising the question in a perfectly regular manner during the progress of the Disbanding Bill. Of those opportunities nobody had thought fit to avail himself; and it was now too late to reopen the question. Most of the other members who spoke against taking the message into consideration took the same line, declined discussing points which might have been discussed when the Disbanding Bill was before the House, and declared merely that they could not consent to any thing so unparliamentary as the repealing of an Act which had just been passed. But this way of dealing with the message was far too mild and moderate to satisfy the implacable malice of Howe. In his courtly days he had vehemently called on the King to use the Dutch for the purpose of quelling the insubordination of the English regiments. "None but the Dutch troops," he said, "are to be trusted." He was

now not ashamed to draw a parallel between those very Dutch troops and the Popish Kernes whom James had brought over from Munster and Connaught to enslave our island. The general feeling was such that the previous question was carried without a division. A Committee was immediately appointed to draw up an address explaining the reasons which made it impossible for the House to comply with His Majesty's wish. At the next sitting the Committee reported; and on the report there was an animated debate. The friends of the government thought the proposed address offensive. The most respectable members of the majority felt that it would be ungraceful to aggravate by harsh language the pain which must be caused by their conscientious opposition to the King's wishes. Some strong expressions were therefore softened down; some courtly phrases were inserted; but the House refused to omit one sentence which almost reproachfully reminded the King that in his memorable Declaration of 1688 he had promised to send back all the foreign forces as soon as he had effected the deliverance of this country. The division was, however, very close. There were one hundred and fifty-seven votes for omitting this passage, and one hundred and sixty-three for retaining it. [18](#)

The address was presented by the whole House. William's answer was as good as it was possible for him, in the unfortunate position in which he had placed himself, to return. It showed that he was deeply hurt; but it was temperate and dignified. Those who saw him in private knew that his feelings had been cruelly lacerated. His body sympathised with his mind. His sleep was broken. His headaches tormented him more than ever. From those whom he had been in the habit of considering as his friends, and who had failed him in the recent struggle, he did not attempt to conceal his displeasure. The lucrative see of Worcester was vacant; and some powerful Whigs of the cider country wished to obtain it for John Hall, Bishop of Bristol. One of the Foleys, a family zealous for the Revolution, but hostile to standing armies, spoke to the King on the subject. "I will pay as much respect to your wishes," said William, "as you and yours have paid to mine." Lloyd of St. Asaph was translated to Worcester.

The Dutch Guards immediately began to march to the coast. After all the clamour which had been raised against them, the populace witnessed their departure rather with sorrow than with triumph. They had been long domiciled here; they had been honest and inoffensive; and many of them were accompanied by English wives and by young children who talked no

language but English. As they traversed the capital, not a single shout of exultation was raised; and they were almost everywhere greeted with kindness. One rude spectator, indeed, was heard to remark that Hans made a much better figure, now that he had been living ten years on the fat of the land, than when he first came. "A pretty figure you would have made," said a Dutch soldier, "if we had not come." And the retort was generally applauded. It would not, however, be reasonable to infer from the signs of public sympathy and good will with which the foreigners were dismissed that the nation wished them to remain. It was probably because they were going that they were regarded with favour by many who would never have seen them relieve guard at St. James's without black looks and muttered curses.

Side by side with the discussion about the land force had been proceeding a discussion, scarcely less animated, about the naval administration. The chief minister of marine was a man whom it had once been useless and even perilous to attack in the Commons. It was to no purpose that, in 1693, grave charges, resting on grave evidence, had been brought against the Russell who had conquered at La Hogue. The name of Russell acted as a spell on all who loved English freedom. The name of La Hogue acted as a spell on all who were proud of the glory of the English arms. The accusations, unexamined and unrefuted, were contemptuously flung aside; and the thanks of the House were voted to the accused commander without one dissentient voice. But times had changed. The Admiral still had zealous partisans; but the fame of his exploits had lost their gloss; people in general were quick to discern his faults; and his faults were but too discernible. That he had carried on a traitorous correspondence with Saint Germain had not been proved, and had been pronounced by the representatives of the people to be a foul calumny. Yet the imputation had left a stain on his name. His arrogant, insolent and quarrelsome temper made him an object of hatred. His vast and growing wealth made him an object of envy. What his official merits and demerits really were it is not easy to discover through the mist made up of factious abuse and factious panegyric. One set of writers described him as the most ravenous of all the plunderers of the poor overtaxed nation. Another set asserted that under him the ships were better built and rigged, the crews were better disciplined and better tempered, the biscuit was better, the beer was better, the slops were better, than under any of his predecessors; and yet that the charge to the

public was less than it had been when the vessels were unseaworthy, when the sailors were riotous, when the food was alive with vermin, when the drink tasted like tanpickle, and when the clothes and hammocks were rotten. It may, however, be observed that these two representations are not inconsistent with each other; and there is strong reason to believe that both are, to a great extent, true. Orford was covetous and unprincipled; but he had great professional skill and knowledge, great industry, and a strong will. He was therefore an useful servant of the state when the interests of the state were not opposed to his own; and this was more than could be said of some who had preceded him. He was, for example, an incomparably better administrator than Torrington. For Torrington's weakness and negligence caused ten times as much mischief as his rapacity. But, when Orford had nothing to gain by doing what was wrong, he did what was right, and did it ably and diligently. Whatever Torrington did not embezzle he wasted. Orford may have embezzled as much as Torrington; but he wasted nothing.

Early in the session, the House of Commons resolved itself into a Committee on the state of the Navy. This Committee sate at intervals during more than three months. Orford's administration underwent a close scrutiny, and very narrowly escaped a severe censure. A resolution condemning the manner in which his accounts had been kept was lost by only one vote. There were a hundred and forty against him, and a hundred and forty-one for him. When the report was presented to the House, another attempt was made to put a stigma upon him. It was moved that the King should be requested to place the direction of maritime affairs in other hands. There were a hundred and sixty Ayes to a hundred and sixty-four Noes. With this victory, a victory hardly to be distinguished from a defeat, his friends were forced to be content. An address setting forth some of the abuses in the naval department, and beseeching King William to correct them, was voted without a division. In one of those abuses Orford was deeply interested. He was First Lord of the Admiralty; and he had held, ever since the Revolution, the lucrative place of Treasurer of the Navy. It was evidently improper that two offices, one of which was meant to be a check on the other, should be united in the same person; and this the Commons represented to the King.

Questions relating to the military and naval Establishments occupied the attention of the Commons so much during the session that, until the prorogation was at hand, little was said about the resumption of the Crown

grants. But, just before the Land Tax Bill was sent up to the Lords, a clause was added to it by which seven Commissioners were empowered to take account of the property forfeited in Ireland during the late troubles. The selection of those Commissioners the House reserved to itself. Every member was directed to bring a list containing the names of seven persons who were not members; and the seven names which appeared in the greatest number of lists were inserted in the bill. The result of the ballot was unfavourable to the government. Four of the seven on whom the choice fell were connected with the opposition; and one of them, Trenchard, was the most conspicuous of the pamphleteers who had been during many months employed in raising a cry against the army.

The Land Tax Bill, with this clause tacked to it, was carried to the Upper House. The Peers complained, and not without reason, of this mode of proceeding. It may, they said, be very proper that Commissioners should be appointed by Act of Parliament to take account of the forfeited property in Ireland. But they should be appointed by a separate Act. Then we should be able to make amendments, to ask for conferences, to give and receive explanations. The Land Tax Bill we cannot amend. We may indeed reject it; but we cannot reject it without shaking public credit, without leaving the kingdom defenceless, without raising a mutiny in the navy. The Lords yielded, but not without a protest which was signed by some strong Whigs and some strong Tories. The King was even more displeased than the Peers. "This Commission," he said, in one of his private letters, "will give plenty of trouble next winter." It did indeed give more trouble than he at all anticipated, and brought the nation nearer than it has ever since been to the verge of another revolution.

And now the supplies had been voted. The spring was brightening and blooming into summer. The lords and squires were sick of London; and the King was sick of England. On the fourth day of May he prorogued the Houses with a speech very different from the speeches with which he had been in the habit of dismissing the preceding Parliament. He uttered not one word of thanks or praise. He expressed a hope that, when they should meet again, they would make effectual provision for the public safety. "I wish," these were his concluding words, "no mischief may happen in the mean time." The gentlemen who thronged the bar withdrew in wrath, and, as they could not take immediate vengeance, laid up his reproaches in their hearts against the beginning of the next session.

The Houses had broken up; but there was still much to be done before the King could set out for Loo. He did not yet perceive that the true way to escape from his difficulties was to form an entirely new ministry possessing the confidence of the majority which had, in the late session, been found so unmanageable. But some partial changes he could not help making. The recent votes of the Commons forced him seriously to consider the state of the Board of Admiralty. It was impossible that Orford could continue to preside at that Board and be at the same time Treasurer of the Navy. He was offered his option. His own wish was to keep the Treasurership, which was both the more lucrative and the more secure of his two places. But it was so strongly represented to him that he would disgrace himself by giving up great power for the sake of gains which, rich and childless as he was, ought to have been beneath his consideration, that he determined to remain at the Admiralty. He seems to have thought that the sacrifice which he had made entitled him to govern despotically the department at which he had been persuaded to remain. But he soon found that the King was determined to keep in his own hands the power of appointing and removing the junior Lords. One of these Lords, especially, the First Commissioner hated, and was bent on ejecting, Sir George Rooke, who was Member of Parliament for Portsmouth. Rooke was a brave and skilful officer, and had, therefore, though a Tory in politics, been suffered to keep his place during the ascendancy of the Whig junto. Orford now complained to the King that Rooke had been in correspondence with the factious opposition which had given so much trouble, and had lent the weight of his professional and official authority to the accusations which had been brought against the naval administration. The King spoke to Rooke, who declared that Orford had been misinformed. "I have a great respect for my Lord; and on proper occasions I have not failed to express it in public. There have certainly been abuses at the Admiralty which I am unable to defend. When those abuses have been the subject of debate in the House of Commons, I have sate silent. But, whenever any personal attack has been made on my Lord, I have done him the best service that I could." William was satisfied, and thought that Orford should have been satisfied too. But that haughty and perverse nature could be content with nothing but absolute dominion. He tendered his resignation, and could not be induced to retract it. He said that he could be of no use. It would be easy to supply his place; and his successors should have his best wishes. He then retired to the country,

where, as was reported and may easily be believed, he vented his ill humour in furious invectives against the King. The Treasurership of the Navy was given to the Speaker Littleton. The Earl of Bridgewater, a nobleman of very fair character and of some experience in business, became First Lord of the Admiralty.

Other changes were made at the same time. There had during some time been really no Lord President of the Council. Leeds, indeed, was still called Lord President, and, as such, took precedence of dukes of older creation; but he had not performed any of the duties of his office since the prosecution instituted against him by the Commons in 1695 had been suddenly stopped by an event which made the evidence of his guilt at once legally defective and morally complete. It seems strange that a statesman of eminent ability, who had been twice Prime Minister, should have wished to hold, by so ignominious a tenure, a place which can have had no attraction for him but the salary. To that salary, however, Leeds had clung, year after year; and he now relinquished it with a very bad grace. He was succeeded by Pembroke; and the Privy Seal which Pembroke laid down was put into the hands of a peer of recent creation, Viscount Lonsdale. Lonsdale had been distinguished in the House of Commons as Sir John Lowther, and had held high office, but had quitted public life in weariness and disgust, and had passed several years in retirement at his hereditary seat in Cumberland. He had planted forests round his house, and had employed Verrio to decorate the interior with gorgeous frescoes which represented the gods at their banquet of ambrosia. Very reluctantly, and only in compliance with the earnest and almost angry importunity of the King, Lonsdale consented to leave his magnificent retreat, and again to encounter the vexations of public life.

Trumbull resigned the Secretaryship of State; and the Seals which he had held were given to Jersey, who was succeeded at Paris by the Earl of Manchester.

It is to be remarked that the new Privy Seal and the new Secretary of State were moderate Tories. The King had probably hoped that, by calling them to his councils, he should conciliate the opposition. But the device proved unsuccessful; and soon it appeared that the old practice of filling the chief offices of state with men taken from various parties, and hostile to one another, or, at least, unconnected with one another, was altogether unsuited

to the new state of affairs; and that, since the Commons had become possessed of supreme power, the only way to prevent them from abusing that power with boundless folly and violence was to intrust the government to a ministry which enjoyed their confidence.

While William was making these changes in the great offices of state, a change in which he took a still deeper interest was taking place in his own household. He had laboured in vain during many months to keep the peace between Portland and Albemarle. Albemarle, indeed, was all courtesy, good humour, and submission; but Portland would not be conciliated. Even to foreign ministers he railed at his rival and complained of his master. The whole Court was divided between the competitors, but divided very unequally. The majority took the side of Albemarle, whose manners were popular and whose power was evidently growing. Portland's few adherents were persons who, like him, had already made their fortunes, and who did not therefore think it worth their while to transfer their homage to a new patron. One of these persons tried to enlist Prior in Portland's faction, but with very little success. "Excuse me," said the poet, "if I follow your example and my Lord's. My Lord is a model to us all; and you have imitated him to good purpose. He retires with half a million. You have large grants, a lucrative employment in Holland, a fine house. I have nothing of the kind. A court is like those fashionable churches into which we have looked at Paris. Those who have received the benediction are instantly away to the Opera House or the wood of Boulogne. Those who have not received the benediction are pressing and elbowing each other to get near the altar. You and my Lord have got your blessing, and are quite right to take yourselves off with it. I have not been blest, and must fight my way up as well as I can." Prior's wit was his own. But his worldly wisdom was common to him with multitudes; and the crowd of those who wanted to be lords of the bedchamber, rangers of parks, and lieutenants of counties, neglected Portland and tried to ingratiate themselves with Albemarle.

By one person, however, Portland was still assiduously courted; and that person was the King. Nothing was omitted which could soothe an irritated mind. Sometimes William argued, expostulated and implored during two hours together. But he found the comrade of his youth an altered man, unreasonable, obstinate and disrespectful even before the public eye. The Prussian minister, an observant and impartial witness, declared that his hair had more than once stood on end to see the rude discourtesy with which the

servant repelled the gracious advances of the master. Over and over William invited his old friend to take the long accustomed seat in his royal coach, that seat which Prince George himself had never been permitted to invade; and the invitation was over and over declined in a way which would have been thought uncivil even between equals. A sovereign could not, without a culpable sacrifice of his personal dignity, persist longer in such a contest. Portland was permitted to withdraw from the palace. To Heinsius, as to a common friend, William announced this separation in a letter which shows how deeply his feelings had been wounded. "I cannot tell you what I have suffered. I have done on my side every thing that I could do to satisfy him; but it was decreed that a blind jealousy should make him regardless of every thing that ought to have been dear to him." To Portland himself the King wrote in language still more touching. "I hope that you will oblige me in one thing. Keep your key of office. I shall not consider you as bound to any attendance. But I beg you to let me see you as often as possible. That will be a great mitigation of the distress which you have caused me. For, after all that has passed, I cannot help loving you tenderly."

Thus Portland retired to enjoy at his ease immense estates scattered over half the shires of England, and a hoard of ready money, such, it was said, as no other private man in Europe possessed. His fortune still continued to grow. For, though, after the fashion of his countrymen, he laid out large sums on the interior decoration of his houses, on his gardens, and on his aviaries, his other expenses were regulated with strict frugality. His repose was, however, during some years not uninterrupted. He had been trusted with such grave secrets, and employed in such high missions, that his assistance was still frequently necessary to the government; and that assistance was given, not, as formerly, with the ardour of a devoted friend, but with the exactness of a conscientious servant. He still continued to receive letters from William; letters no longer indeed overflowing with kindness, but always indicative of perfect confidence and esteem.

The chief subject of those letters was the question which had been for a time settled in the previous autumn at Loo, and which had been reopened in the spring by the death of the Electoral Prince of Bavaria.

As soon as that event was known at Paris, Lewis directed Tallard to sound William as to a new treaty. The first thought which occurred to William was that it might be possible to put the Elector of Bavaria in his

son's place. But this suggestion was coldly received at Versailles, and not without reason. If, indeed, the young Francis Joseph had lived to succeed Charles, and had then died a minor without issue, the case would have been very different. Then the Elector would have been actually administering the government of the Spanish monarchy, and, supported by France, England and the United Provinces, might without much difficulty have continued to rule as King the empire which he had begun to rule as Regent. He would have had also, not indeed a right, but something which to the vulgar would have looked like a right, to be his son's heir. Now he was altogether unconnected with Spain. No more reason could be given for selecting him to be the Catholic King than for selecting the Margrave of Baden or the Grand Duke of Tuscany. Something was said about Victor Amadeus of Savoy, and something about the King of Portugal; but to both there were insurmountable objections. It seemed, therefore, that the only choice was between a French Prince and an Austrian Prince; and William learned, with agreeable surprise, that Lewis might possibly be induced to suffer the younger Archduke to be King of Spain and the Indies. It was intimated at the same time that the House of Bourbon would expect, in return for so great a concession to the rival House of Habsburg, greater advantages than had been thought sufficient when the Dauphin consented to waive his claims in favour of a candidate whose elevation could cause no jealousies. What Lewis demanded, in addition to the portion formerly assigned to France, was the Milanese. With the Milanese he proposed to buy Lorraine from its Duke. To the Duke of Lorraine this arrangement would have been beneficial, and to the people of Lorraine more beneficial still. They were, and had long been, in a singularly unhappy situation. Lewis domineered over them as if they had been his subjects, and troubled himself as little about their happiness as if they had been his enemies. Since he exercised as absolute a power over them as over the Normans and Burgundians, it was desirable that he should have as great an interest in their welfare as in the welfare of the Normans and Burgundians.

On the basis proposed by France William was willing to negotiate; and, when, in June 1699, he left Kensington to pass the summer at Loo, the terms of the treaty known as the Second Treaty of Partition were very nearly adjusted. The great object now was to obtain the consent of the Emperor. That consent, it should seem, ought to have been readily and even eagerly given. Had it been given, it might perhaps have saved Christendom

from a war of eleven years. But the policy of Austria was, at that time, strangely dilatory and irresolute. It was in vain that William and Heinsius represented the importance of every hour. "The Emperor's ministers go on dawdling," so the King wrote to Heinsius, "not because there is any difficulty about the matter, not because they mean to reject the terms, but solely because they are people who can make up their minds to nothing." While the negotiation at Vienna was thus drawn out into endless length, evil tidings came from Madrid.

Spain and her King had long been sunk so low that it seemed impossible for him to sink lower. Yet the political maladies of the monarchy and the physical maladies of the monarch went on growing, and exhibited every day some new and frightful symptom. Since the death of the Bavarian Prince, the Court had been divided between the Austrian faction, of which the Queen and the leading ministers Oropesa and Melgar were the chiefs, and the French faction, of which the most important member was Cardinal Portocarrero, Archbishop of Toledo. At length an event which, as far as can now be judged, was not the effect of a deeply meditated plan, and was altogether unconnected with the disputes about the succession, gave the advantage to the adherents of France. The government, having committed the great error of undertaking to supply Madrid with food, committed the still greater error of neglecting to perform what it had undertaken. The price of bread doubled. Complaints were made to the magistrates, and were heard with the indolent apathy characteristic of the Spanish administration from the highest to the lowest grade. Then the populace rose, attacked the house of Oropesa, poured by thousands into the great court of the palace, and insisted on seeing the King. The Queen appeared in a balcony, and told the rioters that His Majesty was asleep. Then the multitude set up a roar of fury. "It is false; we do not believe you. We will see him." "He has slept too long," said one threatening voice; "and it is high time that he should wake." The Queen retired weeping; and the wretched being on whose dominions the sun never set tottered to the window, bowed as he had never bowed before, muttered some gracious promises, waved a handkerchief in the air, bowed again, and withdrew. Oropesa, afraid of being torn to pieces, retired to his country seat. Melgar made some show of resistance, garrisoned his house, and menaced the rabble with a shower of grenades, but was soon forced to go after Oropesa; and the supreme power passed to Portocarrero.

Portocarrero was one of a race of men of whom we, happily for us, have seen very little, but whose influence has been the curse of Roman Catholic countries. He was, like Sixtus the Fourth and Alexander the Sixth, a politician made out of an impious priest. Such politicians are generally worse than the worst of the laity, more merciless than any ruffian that can be found in camps, more dishonest than any pettifogger who haunts the tribunals. The sanctity of their profession has an unsanctifying influence on them. The lessons of the nursery, the habits of boyhood and of early youth, leave in the minds of the great majority of avowed infidels some traces of religion, which, in seasons of mourning and of sickness, become plainly discernible. But it is scarcely possible that any such trace should remain in the mind of the hypocrite who, during many years, is constantly going through what he considers as the mummery of preaching, saying mass, baptizing, shriving. When an ecclesiastic of this sort mixes in the contests of men of the world, he is indeed much to be dreaded as an enemy, but still more to be dreaded as an ally. From the pulpit where he daily employs his eloquence to embellish what he regards as fables, from the altar whence he daily looks down with secret scorn on the prostrate dupes who believe that he can turn a drop of wine into blood, from the confessional where he daily studies with cold and scientific attention the morbid anatomy of guilty consciences, he brings to courts some talents which may move the envy of the more cunning and unscrupulous of lay courtiers; a rare skill in reading characters and in managing tempers, a rare art of dissimulation, a rare dexterity in insinuating what it is not safe to affirm or to propose in explicit terms. There are two feelings which often prevent an unprincipled layman from becoming utterly depraved and despicable, domestic feeling, and chivalrous feeling. His heart may be softened by the endearments of a family. His pride may revolt from the thought of doing what does not become a gentleman. But neither with the domestic feeling nor with the chivalrous feeling has the wicked priest any sympathy. His gown excludes him from the closest and most tender of human relations, and at the same time dispenses him from the observation of the fashionable code of honour.

Such a priest was Portocarrero; and he seems to have been a consummate master of his craft. To the name of statesman he had no pretensions. The lofty part of his predecessor Ximenes was out of the range, not more of his intellectual, than his moral capacity. To reanimate a paralysed and torpid monarchy, to introduce order and economy into a bankrupt treasury, to

restore the discipline of an army which had become a mob, to refit a navy which was perishing from mere rottenness, these were achievements beyond the power, beyond even the ambition, of that ignoble nature. But there was one task for which the new minister was admirably qualified, that of establishing, by means of superstitious terror, an absolute dominion over a feeble mind; and the feeblest of all minds was that of his unhappy sovereign. Even before the riot which had made the cardinal supreme in the state, he had succeeded in introducing into the palace a new confessor selected by himself. In a very short time the King's malady took a new form. That he was too weak to lift his food to his misshapen mouth, that, at thirty-seven, he had the bald head and wrinkled face of a man of seventy, that his complexion was turning from yellow to green, that he frequently fell down in fits and remained long insensible, these were no longer the worst symptoms of his malady. He had always been afraid of ghosts and demons; and it had long been necessary that three friars should watch every night by his restless bed as a guard against hobgoblins. But now he was firmly convinced that he was bewitched, that he was possessed, that there was a devil within him, that there were devils all around him. He was exorcised according to the forms of his Church; but this ceremony, instead of quieting him, scared him out of almost all the little reason that nature had given him. In his misery and despair he was induced to resort to irregular modes of relief. His confessor brought to court impostors who pretended that they could interrogate the powers of darkness. The Devil was called up, sworn and examined. This strange deponent made oath, as in the presence of God, that His Catholic Majesty was under a spell, which had been laid on him many years before, for the purpose of preventing the continuation of the royal line. A drug had been compounded out of the brains and kidneys of a human corpse, and had been administered in a cup of chocolate. This potion had dried up all the sources of life; and the best remedy to which the patient could now resort would be to swallow a bowl of consecrated oil every morning before breakfast. Unhappily, the authors of this story fell into contradictions which they could excuse only by throwing the blame on Satan, who, they said, was an unwilling witness, and a liar from the beginning. In the midst of their conjuring, the Inquisition came down upon them. It must be admitted that, if the Holy Office had reserved all its terrors for such cases, it would not now have been remembered as the most hateful judicature that was ever known among civilised men. The subaltern

impostors were thrown into dungeons. But the chief criminal continued to be master of the King and of the kingdom. Meanwhile, in the distempered mind of Charles one mania succeeded another. A longing to pry into those mysteries of the grave from which human beings avert their thoughts had long been hereditary in his house. Juana, from whom the mental constitution of her posterity seems to have derived a morbid taint, had sate, year after year, by the bed on which lay the ghastly remains of her husband, apparelled in the rich embroidery and jewels which he had been wont to wear while living. Her son Charles found an eccentric pleasure in celebrating his own obsequies, in putting on his shroud, placing himself in the coffin, covering himself with the pall; and lying as one dead till the requiem had been sung, and the mourners had departed leaving him alone in the tomb. Philip the Second found a similar pleasure in gazing on the huge chest of bronze in which his remains were to be laid, and especially on the skull which, encircled with the crown of Spain, grinned at him from the cover. Philip the Fourth, too, hankered after burials and burial places, gratified his curiosity by gazing on the remains of his great grandfather, the Emperor, and sometimes stretched himself out at full length like a corpse in the niche which he had selected for himself in the royal cemetery. To that cemetery his son was now attracted by a strange fascination. Europe could show no more magnificent place of sepulture. A staircase encrusted with jasper led down from the stately church of the Escorial into an octagon situated just beneath the high altar. The vault, impervious to the sun, was rich with gold and precious marbles, which reflected the blaze from a huge chandelier of silver. On the right and on the left reposed, each in a massy sarcophagus, the departed kings and queens of Spain. Into this mausoleum the King descended with a long train of courtiers, and ordered the coffins to be unclosed. His mother had been embalmed with such consummate skill that she appeared as she had appeared on her death bed. The body of his grandfather too seemed entire, but crumbled into dust at the first touch. From Charles neither the remains of his mother nor those of his grandfather could draw any sign of sensibility. But, when the gentle and graceful Louisa of Orleans, the miserable man's first wife, she who had lighted up his dark existence with one short and pale gleam of happiness, presented herself, after the lapse of ten years, to his eyes, his sullen apathy gave way. "She is in heaven," he cried; "and I shall soon be there with her;" and, with all the speed of which his limbs were capable, he tottered back to the upper air.

Such was the state of the Court of Spain when, in the autumn of 1699, it became known that, since the death of the Electoral Prince of Bavaria, the governments of France, of England and of the United Provinces, were busily engaged in framing a second Treaty of Partition. That Castilians would be indignant at learning that any foreign potentate meditated the dismemberment of that empire of which Castile was the head might have been foreseen. But it was less easy to foresee that William would be the chief and indeed almost the only object of their indignation. If the meditated partition really was unjustifiable, there could be no doubt that Lewis was far more to blame than William. For it was by Lewis, and not by William, that the partition had been originally suggested; and it was Lewis, and not William, who was to gain an accession of territory by the partition. Nobody could doubt that William would most gladly have acceded to any arrangement by which the Spanish monarchy, could be preserved entire without danger to the liberties of Europe, and that he had agreed to the division of that monarchy solely for the purpose of contenting Lewis. Nevertheless the Spanish ministers carefully avoided whatever could give offence to Lewis, and indemnified themselves by offering a gross indignity to William. The truth is that their pride had, as extravagant pride often has, a close affinity with meanness. They knew that it was unsafe to insult Lewis; and they believed that they might with perfect safety insult William. Lewis was absolute master of his large kingdom. He had at no great distance armies and fleets which one word from him would put in motion. If he were provoked, the white flag might in a few days be again flying on the walls of Barcelona. His immense power was contemplated by the Castilians with hope as well as with fear. He and he alone, they imagined, could avert that dismemberment of which they could not bear to think. Perhaps he might yet be induced to violate the engagements into which he had entered with England and Holland, if one of his grandsons were named successor to the Spanish throne. He, therefore, must be respected and courted. But William could at that moment do little to hurt or to help. He could hardly be said to have an army. He could take no step which would require an outlay of money without the sanction of the House of Commons; and it seemed to be the chief study of the House of Commons to cross him and to humble him. The history of the late session was known to the Spaniards principally by inaccurate reports brought by Irish friars. And, had those reports been accurate, the real nature of a Parliamentary struggle

between the Court party and the Country party could have been but very imperfectly understood by the magnates of a realm in which there had not, during several generations, been any constitutional opposition to the royal pleasure. At one time it was generally believed at Madrid, not by the mere rabble, but by Grandees who had the envied privilege of going in coaches and four through the streets of the capital, that William had been deposed, that he had retired to Holland, that the Parliament had resolved that there should be no more kings, that a commonwealth had been proclaimed, and that a Doge was about to be appointed and, though this rumour turned out to be false, it was but too true that the English government was, just at that conjuncture, in no condition to resent slights. Accordingly, the Marquess of Canales, who represented the Catholic King at Westminster, received instructions to remonstrate in strong language, and was not afraid to go beyond those instructions. He delivered to the Secretary of State a note abusive and impertinent beyond all example and all endurance. His master, he wrote, had learnt with amazement that King William, Holland and other powers,—for the ambassador, prudent even in his blustering, did not choose to name the King of France,—were engaged in framing a treaty, not only for settling the succession to the Spanish crown, but for the detestable purpose of dividing the Spanish monarchy. The whole scheme was vehemently condemned as contrary to the law of nature and to the law of God. The ambassador appealed from the King of England to the Parliament, to the nobility, and to the whole nation, and concluded by giving notice that he should lay the whole case before the two Houses when next they met.

The style of this paper shows how strong an impression had been made on foreign nations by the unfortunate events of the late session. The King, it was plain, was no longer considered as the head of the government. He was charged with having committed a wrong; but he was not asked to make reparation. He was treated as a subordinate officer who had been guilty of an offence against public law, and was threatened with the displeasure of the Commons, who, as the real rulers of the state, were bound to keep their servants in order. The Lords justices read this outrageous note with indignation, and sent it with all speed to Loo. Thence they received, with equal speed, directions to send Canales out of the country. Our ambassador was at the same time recalled from Madrid; and all diplomatic intercourse between England and Spain was suspended.

It is probable that Canales would have expressed himself in a less unbecoming manner, had there not already existed a most unfortunate quarrel between Spain and William, a quarrel in which William was perfectly blameless, but in which the unanimous feeling of the English Parliament and of the English nation was on the side of Spain.

It is necessary to go back some years for the purpose of tracing the origin and progress of this quarrel. Few portions of our history are more interesting or instructive; but few have been more obscured and distorted by passion and prejudice. The story is an exciting one; and it has generally been told by writers whose judgment had been perverted by strong national partiality. Their invectives and lamentations have still to be temperately examined; and it may well be doubted whether, even now, after the lapse of more than a century and a half, feelings hardly compatible with temperate examination will not be stirred up in many minds by the name of Darien. In truth that name is associated with calamities so cruel that the recollection of them may not unnaturally disturb the equipoise even of a fair and sedate mind.

The man who brought these calamities on his country was not a mere visionary or a mere swindler. He was that William Paterson whose name is honourably associated with the auspicious commencement of a new era in English commerce and in English finance. His plan of a national bank, having been examined and approved by the most eminent statesmen who sate in the Parliament house at Westminster and by the most eminent merchants who walked the Exchange of London, had been carried into execution with signal success. He thought, and perhaps thought with reason, that his services had been ill requited. He was, indeed, one of the original Directors of the great corporation which owed its existence to him; but he was not reelected. It may easily be believed that his colleagues, citizens of ample fortune and of long experience in the practical part of trade, aldermen, wardens of companies, heads of firms well known in every Bourse throughout the civilised world, were not well pleased to see among them in Grocers' Hall a foreign adventurer whose whole capital consisted in an inventive brain and a persuasive tongue. Some of them were probably weak enough to dislike him for being a Scot; some were probably mean enough to be jealous of his parts and knowledge; and even persons who were not unfavourably disposed to him might have discovered, before they had known him long, that, with all his cleverness, he was deficient in common

sense; that his mind was full of schemes which, at the first glance, had a specious aspect, but which, on closer examination, appeared to be impracticable or pernicious; and that the benefit which the public had derived from one happy project formed by him would be very dearly purchased if it were taken for granted that all his other projects must be equally happy. Disgusted by what he considered as the ingratitude of the English, he repaired to the Continent, in the hope that he might be able to interest the traders of the Hanse Towns and the princes of the German Empire in his plans. From the Continent he returned unsuccessful to London; and then at length the thought that he might be more justly appreciated by his countrymen than by strangers seems to have risen in his mind. Just at this time he fell in with Fletcher of Saltoun, who happened to be in England. These eccentric men soon became intimate. Each of them had his monomania; and the two monomaniac suited each other perfectly. Fletcher's whole soul was possessed by a sore, jealous, punctilious patriotism. His heart was ulcerated by the thought of the poverty, the feebleness, the political insignificance of Scotland, and of the indignities which she had suffered at the hand of her powerful and opulent neighbour. When he talked of her wrongs his dark meagre face took its sternest expression; his habitual frown grew blacker, and his eyes flashed more than their wonted fire. Paterson, on the other hand, firmly believed himself to have discovered the means of making any state which would follow his counsel great and prosperous in a time which, when compared with the life of an individual, could hardly be called long, and which, in the life of a nation, was but as a moment. There is not the least reason to believe that he was dishonest. Indeed he would have found more difficulty in deceiving others had he not begun by deceiving himself. His faith to his own schemes was strong even to martyrdom; and the eloquence with which he illustrated and defended them had all the charm of sincerity and of enthusiasm. Very seldom has any blunder committed by fools, or any villany devised by impostors, brought on any society miseries so great as the dreams of these two friends, both of them men of integrity and both of them men of parts, were destined to bring on Scotland.

In 1695 the pair went down together to their native country. The Parliament of that country was then about to meet under the presidency of Tweeddale, an old acquaintance and country neighbour of Fletcher. On Tweeddale the first attack was made. He was a shrewd, cautious, old

politician. Yet it should seem that he was not able to hold out against the skill and energy of the assailants. Perhaps, however, he was not altogether a dupe. The public mind was at that moment violently agitated. Men of all parties were clamouring for an inquiry into the slaughter of Glencoe. There was reason to fear that the session which was about to commence would be stormy. In such circumstances the Lord High Commissioner might think that it would be prudent to appease the anger of the Estates by offering an almost irresistible bait to their cupidity. If such was the policy of Tweeddale, it was, for the moment, eminently successful. The Parliament, which met burning with indignation, was soothed into good humour. The blood of the murdered Macdonalds continued to cry for vengeance in vain. The schemes of Paterson, brought forward under the patronage of the ministers of the Crown, were sanctioned by the unanimous voice of the Legislature.

The great projector was the idol of the whole nation. Men spoke to him with more profound respect than to the Lord High Commissioner. His antechamber was crowded with solicitors desirous to catch some drops of that golden shower of which he was supposed to be the dispenser. To be seen walking with him in the High Street, to be honoured by him with a private interview of a quarter of an hour, were enviable distinctions. He, after the fashion of all the false prophets who have deluded themselves and others, drew new faith in his own lie from the credulity of his disciples. His countenance, his voice, his gestures, indicated boundless self-importance. When he appeared in public he looked,—such is the language of one who probably had often seen him,—like Atlas conscious that a world was on his shoulders. But the airs which he gave himself only heightened the respect and admiration which he inspired. His demeanour was regarded as a model. Scotch men who wished to be thought wise looked as like Paterson as they could.

His plan, though as yet disclosed to the public only by glimpses, was applauded by all classes, factions and sects, lords, merchants, advocates, divines, Whigs and Jacobites, Cameronians and Episcopalians. In truth, of all the ten thousand bubbles of which history has preserved the memory, none was ever more skilfully puffed into existence; none ever soared higher, or glittered more brilliantly; and none ever burst with a more lamentable explosion. There was, however, a certain mixture of truth in the magnificent day dream which produced such fatal effects.

Scotland was, indeed, not blessed with a mild climate or a fertile soil. But the richest spots that had ever existed on the face of the earth had been spots quite as little favoured by nature. It was on a bare rock, surrounded by deep sea, that the streets of Tyre were piled up to a dizzy height. On that sterile crag were woven the robes of Persian satraps and Sicilian tyrants; there were fashioned silver bowls and chargers for the banquets of kings; and there Pomeranian amber was set in Lydian gold to adorn the necks of queens. In the warehouses were collected the fine linen of Egypt and the odorous gums of Arabia; the ivory of India, and the tin of Britain. In the port lay fleets of great ships which had weathered the storms of the Euxine and the Atlantic. Powerful and wealthy colonies in distant parts of the world looked up with filial reverence to the little island; and despots, who trampled on the laws and outraged the feelings of all the nations between the Hydaspes and the Aegean, condescended to court the population of that busy hive. At a later period, on a dreary bank formed by the soil which the Alpine streams swept down to the Adriatic, rose the palaces of Venice. Within a space which would not have been thought large enough for one of the parks of a rude northern baron were collected riches far exceeding those of a northern kingdom. In almost every one of the prorate dwellings which fringed the Great Canal were to be seen plate, mirrors, jewellery, tapestry, paintings, carving, such as might move the envy of the master of Holyrood. In the arsenal were munitions of war sufficient to maintain a contest against the whole power of the Ottoman Empire. And, before the grandeur of Venice had declined, another commonwealth, still less favoured, if possible, by nature, had rapidly risen to a power and opulence which the whole civilised world contemplated with envy and admiration. On a desolate marsh overhung by fogs and exhaling diseases, a marsh where there was neither wood nor stone, neither firm earth nor drinkable water, a marsh from which the ocean on one side and the Rhine on the other were with difficulty kept out by art, was to be found the most prosperous community in Europe. The wealth which was collected within five miles of the Stadthouse of Amsterdam would purchase the fee simple of Scotland. And why should this be? Was there any reason to believe that nature had bestowed on the Phoenician, on the Venetian, or on the Hollander, a larger measure of activity, of ingenuity, of forethought, of self command, than on the citizen of Edinburgh or Glasgow? The truth was that, in all those qualities which conduce to success in life, and especially in commercial

life, the Scot had never been surpassed; perhaps he had never been equalled. All that was necessary was that his energy should take a proper direction, and a proper direction Paterson undertook to give.

His esoteric project was the original project of Christopher Columbus, extended and modified. Columbus had hoped to establish a communication between our quarter of the world and India across the great western ocean. But he was stopped by an unexpected obstacle. The American continent, stretching far north and far south into cold and inhospitable regions, presented what seemed an insurmountable barrier to his progress; and, in the same year in which he first set foot on that continent, Gama reached Malabar by doubling the Cape of Good Hope. The consequence was that during two hundred years the trade of Europe with the remoter parts of Asia had been carried on by rounding the immense peninsula of Africa. Paterson now revived the project of Columbus, and persuaded himself and others that it was possible to carry that project into effect in such a manner as to make his country the greatest emporium that had ever existed on our globe.

For this purpose it was necessary to occupy in America some spot which might be a resting place between Scotland and India. It was true that almost every habitable part of America had already been seized by some European power. Paterson, however, imagined that one province, the most important of all, had been overlooked by the short-sighted cupidity of vulgar politicians and vulgar traders. The isthmus which joined the two great continents of the New World remained, according to him, unappropriated. Great Spanish viceroyalties, he said, lay on the east and on the west; but the mountains and forests of Darien were abandoned to rude tribes which followed their own usages and obeyed their own princes. He had been in that part of the world, in what character was not quite clear. Some said that he had gone thither to convert the Indians, and some that he had gone thither to rob the Spaniards. But, missionary or pirate, he had visited Darien, and had brought away none but delightful recollections. The havens, he averred, were capacious and secure; the sea swarmed with turtle; the country was so mountainous that, within nine degrees of the equator, the climate was temperate; and yet the inequalities of the ground offered no impediment to the conveyance of goods. Nothing would be easier than to construct roads along which a string of mules or a wheeled carriage might in the course of a single day pass from sea to sea. The soil was, to the depth of several feet, a rich black mould, on which a profusion of valuable herbs

and fruits grew spontaneously, and on which all the choicest productions of tropical regions might easily be raised by human industry and art; and yet the exuberant fertility of the earth had not tainted the purity of the air. Considered merely as a place of residence, the isthmus was a paradise. A colony placed there could not fail to prosper, even if it had no wealth except what was derived from agriculture. But agriculture was a secondary object in the colonization of Darien. Let but that precious neck of land be occupied by an intelligent, an enterprising, a thrifty race; and, in a few years, the whole trade between India and Europe must be drawn to that point. The tedious and perilous passage round Africa would soon be abandoned. The merchant would no longer expose his cargoes to the mountainous billows and capricious gales of the Antarctic seas. The greater part of the voyage from Europe to Darien, and the whole voyage from Darien to the richest kingdoms of Asia, would be a rapid yet easy gliding before the trade winds over blue and sparkling waters. The voyage back across the Pacific would, in the latitude of Japan, be almost equally speedy and pleasant. Time, labour, money, would be saved. The returns would come in more quickly. Fewer hands would be required to navigate the ships. The loss of a vessel would be a rare event. The trade would increase fast. In a short time it would double; and it would all pass through Darien. Whoever possessed that door of the sea, that key of the universe,—such were the bold figures which Paterson loved to employ,—would give law to both hemispheres; and would, by peaceful arts, without shedding one drop of blood, establish an empire as splendid as that of Cyrus or Alexander. Of the kingdoms of Europe, Scotland was, as yet, the poorest and the least considered. If she would but occupy Darien, if she would but become one great free port, one great warehouse for the wealth which the soil of Darien might produce, and for the still greater wealth which would be poured into Darien from Canton and Siam, from Ceylon and the Moluccas, from the mouths of the Ganges and the Gulf of Cambay, she would at once take her place in the first rank among nations. No rival would be able to contend with her either in the West Indian or in the East Indian trade. The beggarly country, as it had been insolently called by the inhabitants of warmer and more fruitful regions, would be the great mart for the choicest luxuries, sugar, rum, coffee, chocolate, tobacco, the tea and porcelain of China, the muslin of Dacca, the shawls of Cashmere, the diamonds of Golconda, the pearls of Karrack, the delicious birds' nests of Nicobar, cinnamon and pepper, ivory and sandal

wood. From Scotland would come all the finest jewels and brocade worn by duchesses at the balls of St. James's and Versailles. From Scotland would come all the saltpetre which would furnish the means of war to the fleets and armies of contending potentates. And on all the vast riches which would be constantly passing through the little kingdom a toll would be paid which would remain behind. There would be a prosperity such as might seem fabulous, a prosperity of which every Scotchman, from the peer to the cadie, would partake. Soon, all along the now desolate shores of the Forth and Clyde, villas and pleasure grounds would be as thick as along the edges of the Dutch canals. Edinburgh would vie with London and Paris; and the baillie of Glasgow or Dundee would have as stately and well furnished a mansion, and as fine a gallery of pictures, as any burgomaster of Amsterdam.

This magnificent plan was at first but partially disclosed to the public. A colony was to be planted; a vast trade was to be opened between both the Indies and Scotland; but the name of Darien was as yet pronounced only in whispers by Paterson and by his most confidential friends. He had however shown enough to excite boundless hopes and desires. How well he succeeded in inspiring others with his own feelings is sufficiently proved by the memorable Act to which the Lord High Commissioner gave the Royal sanction on the 26th of June 1695. By this Act some persons who were named, and such other persons as should join with them, were formed into a corporation, which was to be named the Company of Scotland trading to Africa and the Indies. The amount of the capital to be employed was not fixed by law; but it was provided that one half of the stock at least must be held by Scotchmen resident in Scotland, and that no stock which had been originally held by a Scotchman resident in Scotland should ever be transferred to any but a Scotchman resident in Scotland. An entire monopoly of the trade with Asia, Africa and America, for a term of thirty-one years, was granted to the Company. All goods imported by the Company were during twenty-one years to be duty free, with the exception of foreign sugar and tobacco. Sugar and tobacco grown on the Company's own plantations were exempted from all taxation. Every member and every servant of the Company was to be privileged against impressment and arrest. If any of these privileged persons was impressed or arrested, the Company was authorised to release him, and to demand the assistance both of the civil and of the military power. The Company was authorised to take

possession of unoccupied territories in any part of Asia, Africa or America, and there to plant colonies, to build towns and forts, to impose taxes, and to provide magazines, arms and ammunition, to raise troops, to wage war, to conclude treaties; and the King was made to promise that, if any foreign state should injure the Company, he would interpose, and would, at the public charge, obtain reparation. Lastly it was provided that, in order to give greater security and solemnity to this most exorbitant grant, the whole substance of the Act should be set forth in Letters Patent to which the Chancellor was directed to put the Great Seal without delay.

The letters were drawn; the Great Seal was affixed; the subscription books were opened; the shares were fixed at a hundred pounds sterling each; and from the Pentland Firth to the Solway Firth every man who had a hundred pounds was impatient to put down his name. About two hundred and twenty thousand pounds were actually paid up. This may not, at first sight, appear a large sum to those who remember the bubbles of 1825 and of 1845, and would assuredly not have sufficed to defray the charge of three months of war with Spain. Yet the effort was marvellous when it may be affirmed with confidence that the Scotch people voluntarily contributed for the colonisation of Darien a larger proportion of their substance than any other people ever, in the same space of time, voluntarily contributed to any commercial undertaking. A great part of Scotland was then as poor and rude as Iceland now is. There were five or six shires which did not altogether contain so many guineas and crowns as were tossed about every day by the shovels of a single goldsmith in Lombard Street. Even the nobles had very little ready money. They generally took a large part of their rents in kind, and were thus able, on their own domains, to live plentifully and hospitably. But there were many esquires in Kent and Somersetshire who received from their tenants a greater quantity of gold and silver than a Duke of Cordon or a Marquess of Atholl drew from extensive provinces. The pecuniary remuneration of the clergy was such as would have moved the pity of the most needy curate who thought it a privilege to drink his ale and smoke his pipe in the kitchen of an English manor house. Even in the fertile Merse there were parishes of which the minister received only from four to eight pounds sterling in cash. The official income of the Lord President of the Court of Session was only five hundred a year; that of the Lord Justice Clerk only four hundred a year. The land tax of the whole kingdom was fixed some years later by the Treaty of Union at little more than half the

land tax of the single county of Norfolk. Four hundred thousand pounds probably bore as great a ratio to the wealth of Scotland then as forty millions would bear now.

The list of the members of the Darien Company deserves to be examined. The number of shareholders was about fourteen hundred. The largest quantity of stock registered in one name was three thousand pounds. The heads of three noble houses took three thousand pounds each, the Duke of Hamilton, the Duke of Queensbury and Lord Belhaven, a man of ability, spirit and patriotism, who had entered into the design with enthusiasm not inferior to that of Fletcher. Argyle held fifteen hundred pounds. John Dalrymple, but too well known as the Master of Stair, had just succeeded to his father's title and estate, and was now Viscount Stair. He put down his name for a thousand pounds. The number of Scotch peers who subscribed was between thirty and forty. The City of Edinburgh, in its corporate capacity, took three thousand pounds, the City of Glasgow three thousand, the City of Perth two thousand. But the great majority of the subscribers contributed only one hundred or two hundred pounds each. A very few divines who were settled in the capital or in other large towns were able to purchase shares. It is melancholy to see in the roll the name of more than one professional man whose paternal anxiety led him to lay out probably all his hardly earned savings in purchasing a hundred pound share for each of his children. If, indeed, Paterson's predictions had been verified, such a share would, according to the notions of that age and country, have been a handsome portion for the daughter of a writer or a surgeon.

That the Scotch are a people eminently intelligent, wary, resolute and self possessed, is obvious to the most superficial observation. That they are a people peculiarly liable to dangerous fits of passion and delusions of the imagination is less generally acknowledged, but is not less true. The whole kingdom seemed to have gone mad. Paterson had acquired an influence resembling rather that of the founder of a new religion, that of a Mahomet, that of a Joseph Smith, than that of a commercial projector. Blind faith in a religion, fanatical zeal for a religion, are too common to astonish us. But such faith and zeal seem strangely out of place in the transactions of the money market. It is true that we are judging after the event. But before the event materials sufficient for the forming of a sound judgment were within the reach of all who cared to use them. It seems incredible that men of sense, who had only a vague and general notion of Paterson's scheme,

should have staked every thing on the success of that scheme. It seems more incredible still that men to whom the details of that scheme had been confided should not have looked into any of the common books of history or geography in which an account of Darien might have been found, and should not have asked themselves the simple question, whether Spain was likely to endure a Scotch colony in the midst of her Transatlantic dominions. It was notorious that she claimed the sovereignty of the isthmus on specious, nay, on solid, grounds. A Spaniard had been the first discoverer of the coast of Darien. A Spaniard had built a town and established a government on that coast. A Spaniard had, with great labour and peril, crossed the mountainous neck of land, had seen rolling beneath him the vast Pacific, never before revealed to European eyes, had descended, sword in hand, into the waves up to his girdle, and had there solemnly taken possession of sea and shore in the name of the Crown of Castile. It was true that the region which Paterson described as a paradise had been found by the first Castilian settlers to be a land of misery and death. The poisonous air, exhaled from rank jungle and stagnant water, had compelled them to remove to the neighbouring haven of Panama; and the Red Indians had been contemptuously permitted to live after their own fashion on the pestilential soil. But that soil was still considered, and might well be considered, by Spain as her own. In many countries there were tracts of morass, of mountain, of forest, in which governments did not think it worth while to be at the expense of maintaining order, and in which rude tribes enjoyed by connivance a kind of independence. It was not necessary for the members of the Company of Scotland trading to Africa and the Indies to look very far for an example. In some highland districts, not more than a hundred miles from Edinburgh, dwelt clans which had always regarded the authority of King, Parliament, Privy Council and Court of Session, quite as little as the aboriginal population of Darien regarded the authority of the Spanish Viceroy and Audiencias. Yet it would surely have been thought an outrageous violation of public law in the King of Spain to take possession of Appin and Lochaber. And would it be a less outrageous violation of public law in the Scots to seize on a province in the very centre of his possessions, on the plea that this province was in the same state in which Appin and Lochaber had been during centuries?

So grossly unjust was Paterson's scheme; and yet it was less unjust than impolitic. Torpid as Spain had become, there was still one point on which

she was exquisitely sensitive. The slightest encroachment of any other European power even on the outskirts of her American dominions sufficed to disturb her repose and to brace her paralysed nerves. To imagine that she would tamely suffer adventurers from one of the most insignificant kingdoms of the Old World to form a settlement in the midst of her empire, within a day's sail of Portobello on one side and of Carthagená on the other, was ludicrously absurd. She would have been just as likely to let them take possession of the Escorial. It was, therefore, evident that, before the new Company could even begin its commercial operations, there must be a war with Spain and a complete triumph over Spain. What means had the Company of waging such a war, and what chance of achieving such a triumph? The ordinary revenue of Scotland in time of peace was between sixty and seventy thousand a year. The extraordinary supplies granted to the Crown during the war with France had amounted perhaps to as much more. Spain, it is true, was no longer the Spain of Pavia and Lepanto. But, even in her decay, she possessed in Europe resources which exceeded thirty fold those of Scotland; and in America, where the struggle must take place, the disproportion was still greater. The Spanish fleets and arsenals were doubtless in wretched condition. But there were Spanish fleets; there were Spanish arsenals. The galleons, which sailed every year from Seville to the neighbourhood of Darien and from the neighbourhood of Darien back to Seville, were in tolerable condition, and formed, by themselves, a considerable armament. Scotland had not a single ship of the line, nor a single dockyard where such a ship could be built. A marine sufficient to overpower that of Spain must be, not merely equipped and manned, but created. An armed force sufficient to defend the isthmus against the whole power of the viceroyalties of Mexico and Peru must be sent over five thousand miles of ocean. What was the charge of such an expedition likely to be? Oliver had, in the preceding generation, wrested a West Indian island from Spain; but, in order to do this, Oliver, a man who thoroughly understood the administration of war, who wasted nothing, and who was excellently served, had been forced to spend, in a single year, on his navy alone, twenty times the ordinary revenue of Scotland; and, since his days, war had been constantly becoming more and more costly.

It was plain that Scotland could not alone support the charge of a contest with the enemy whom Paterson was bent on provoking. And what assistance was she likely to have from abroad? Undoubtedly the vast

colonial empire and the narrow colonial policy of Spain were regarded with an evil eye by more than one great maritime power. But there was no great maritime power which would not far rather have seen the isthmus between the Atlantic and the Pacific in the hands of Spain than in the hands of the Darien Company. Lewis could not but dread whatever tended to aggrandise a state governed by William. To Holland the East India trade was as the apple of her eye. She had been the chief gainer by the discoveries of Gama; and it might be expected that she would do all that could be done by craft, and, if need were, by violence, rather than suffer any rival to be to her what she had been to Venice. England remained; and Paterson was sanguine enough to flatter himself that England might be induced to lend her powerful aid to the Company. He and Lord Belhaven repaired to London, opened an office in Clement's Lane, formed a Board of Directors auxiliary to the Central Board at Edinburgh, and invited the capitalists of the Royal Exchange to subscribe for the stock which had not been reserved for Scotchmen resident in Scotland. A few moneyed men were allured by the bait; but the clamour of the City was loud and menacing; and from the City a feeling of indignation spread fast through the country. In this feeling there was undoubtedly a large mixture of evil. National antipathy operated on some minds, religious antipathy on others. But it is impossible to deny that the anger which Paterson's schemes excited throughout the south of the island was, in the main, just and reasonable. Though it was not yet generally known in what precise spot his colony was to be planted, there could be little doubt that he intended to occupy some part of America; and there could be as little doubt that such occupation would be resisted. There would be a maritime war; and such a war Scotland had no means of carrying on. The state of her finances was such that she must be quite unable to fit out even a single squadron of moderate size. Before the conflict had lasted three months, she would have neither money nor credit left. These things were obvious to every coffeehouse politician; and it was impossible to believe that they had escaped the notice of men so able and well informed as some who sate in the Privy Council and Parliament at Edinburgh. In one way only could the conduct of these schemers be explained. They meant to make a dupe and a tool of the Southron. The two British kingdoms were so closely connected, physically and politically, that it was scarcely possible for one of them to be at peace with a power with which the other was at war. If the Scotch drew King William into a quarrel, England must, from regard to her

own dignity which was bound up with his, support him in it. She was to be tricked into a bloody and expensive contest in the event of which she had no interest; nay, into a contest in which victory would be a greater calamity to her than defeat. She was to lavish her wealth and the lives of her seamen, in order that a set of cunning foreigners might enjoy a monopoly by which she would be the chief sufferer. She was to conquer and defend provinces for this Scotch Corporation; and her reward was to be that her merchants were to be undersold, her customers decoyed away, her exchequer beggared. There would be an end to the disputes between the old East India Company and the new East India Company; for both Companies would be ruined alike. The two great springs of revenue would be dried up together. What would be the receipt of the Customs, what of the Excise, when vast magazines of sugar, rum, tobacco, coffee, chocolate, tea, spices, silks, muslins, all duty free, should be formed along the estuaries of the Forth and of the Clyde, and along the border from the mouth of the Esk to the mouth of the Tweed? What army, what fleet, would be sufficient to protect the interests of the government and of the fair trader when the whole kingdom of Scotland should be turned into one great smuggling establishment? Paterson's plan was simply this, that England should first spend millions in defence of the trade of his Company, and should then be plundered of twice as many millions by means of that very trade.

The cry of the city and of the nation was soon echoed by the legislature. When the Parliament met for the first time after the general election of 1695, Rochester called the attention of the Lords to the constitution and designs of the Company. Several witnesses were summoned to the bar, and gave evidence which produced a powerful effect on the House. "If these Scots are to have their way," said one peer, "I shall go and settle in Scotland, and not stay here to be made a beggar." The Lords resolved to represent strongly to the King the injustice of requiring England to exert her power in support of an enterprise which, if successful, must be fatal to her commerce and to her finances. A representation was drawn up and communicated to the Commons. The Commons eagerly concurred, and complimented the Peers on the promptitude with which their Lordships had, on this occasion, stood forth to protect the public interests. The two Houses went up together to Kensington with the address. William had been under the walls of Namur when the Act for incorporating the Company had been touched with his sceptre at Edinburgh, and had known nothing about that

Act till his attention had been called to it by the clamour of his English subjects. He now said, in plain terms, that he had been ill served in Scotland, but that he would try to find a remedy for the evil which had been brought to his notice. The Lord High Commissioner Tweeddale and Secretary Johnstone were immediately dismissed. But the Act which had been passed by their management still continued to be law in Scotland, nor was it in their master's power to undo what they had done.

The Commons were not content with addressing the throne. They instituted an inquiry into the proceedings of the Scotch Company in London. Belhaven made his escape to his own country, and was there beyond the reach of the Serjeant-at-Arms. But Paterson and some of his confederates were severely examined. It soon appeared that the Board which was sitting in Clement's Lane had done things which were certainly imprudent and perhaps illegal. The Act of Incorporation empowered the detectors to take and to administer to their servants an oath of fidelity. But that Act was on the south of the Tweed a nullity. Nevertheless the directors had, in the heart of the City of London, taken and administered this oath, and had thus, by implication, asserted that the powers conferred on them by the legislature of Scotland accompanied them to England. It was resolved that they had been guilty of a high crime and misdemeanour, and that they should be impeached. A committee was appointed to frame articles of impeachment; but the task proved a difficult one; and the prosecution was suffered to drop, not however till the few English capitalists who had at first been friendly to Paterson's project had been terrified into renouncing all connection with him.

Now, surely, if not before, Paterson ought to have seen that his project could end in nothing but shame to himself and ruin to his worshippers. From the first it had been clear that England alone could protect his Company against the enmity of Spain; and it was now clear that Spain would be a less formidable enemy than England. It was impossible that his plan could excite greater indignation in the Council of the Indies at Madrid, or in the House of Trade at Seville, than it had excited in London. Unhappily he was given over to a strong delusion, and the blind multitude eagerly followed their blind leader. Indeed his dupes were maddened by that which should have sobered them. The proceedings of the Parliament which sate at Westminster, proceedings just and reasonable in substance, but in manner doubtless harsh and insolent, had roused the angry passions

of a nation, feeble indeed in numbers and in material resources, but eminently high spirited. The proverbial pride of the Scotch was too much for their proverbial shrewdness. The votes of the English Lords and Commons were treated with marked contempt. The populace of Edinburgh burned Rochester in effigy. Money was poured faster than ever into the treasury of the Company. A stately house, in Milne Square, then the most modern and fashionable part of Edinburgh, was purchased and fitted up at once as an office and a warehouse. Ships adapted both for war and for trade were required; but the means of building such ships did not exist in Scotland; and no firm in the south of the island was disposed to enter into a contract which might not improbably be considered by the House of Commons as an impeachable offence. It was necessary to have recourse to the dockyards of Amsterdam and Hamburg. At an expense of fifty thousand pounds a few vessels were procured, the largest of which would hardly have ranked as sixtieth in the English navy; and with this force, a force not sufficient to keep the pirates of Sallee in check, the Company threw down the gauntlet to all the maritime powers in the world.

It was not till the summer of 1698 that all was ready for the expedition which was to change the face of the globe. The number of seamen and colonists who embarked at Leith was twelve hundred. Of the colonists many were younger sons of honourable families, or officers who had been disbanded since the peace. It was impossible to find room for all who were desirous of emigrating. It is said that some persons who had vainly applied for a passage hid themselves in dark corners about the ships, and, when discovered, refused to depart, clung to the rigging, and were at last taken on shore by main force. This infatuation is the more extraordinary because few of the adventurers knew to what place they were going. All that was quite certain was that a colony was to be planted somewhere, and to be named Caledonia. The general opinion was that the fleet would steer for some part of the coast of America. But this opinion was not universal. At the Dutch Embassy in Saint James's Square there was an uneasy suspicion that the new Caledonia would be founded among those Eastern spice islands with which Amsterdam had long carried on a lucrative commerce.

The supreme direction of the expedition was entrusted to a Council of Seven. Two Presbyterian chaplains and a preceptor were on board. A cargo had been laid in which was afterwards the subject of much mirth to the enemies of the Company, slippers innumerable, four thousand periwigs of

all kinds from plain bobs to those magnificent structures which, in that age, towered high above the foreheads and descended to the elbows of men of fashion, bales of Scotch woollen stuffs which nobody within the tropics could wear, and many hundreds of English bibles which neither Spaniard nor Indian could read. Paterson, flushed with pride and hope, not only accompanied the expedition, but took with him his wife, a comely dame, whose heart he had won in London, where she had presided over one of the great coffeehouses in the neighbourhood of the Royal Exchange. At length on the twenty-fifth of July the ships, followed by many tearful eyes, and commended to heaven in many vain prayers, sailed out of the estuary of the Forth.

The voyage was much longer than a voyage to the Antipodes now is; and the adventurers suffered much. The rations were scanty; there were bitter complaints both of the bread and of the meat; and, when the little fleet, after passing round the Orkneys and Ireland, touched at Madeira, those gentlemen who had fine clothes among their baggage were glad to exchange embroidered coats and laced waistcoats for provisions and wine. From Madeira the adventurers ran across the Atlantic, landed on an uninhabited islet lying between Porto Rico and St. Thomas, took possession of this desolate spot in the name of the Company, set up a tent, and hoisted the white cross of St. Andrew. Soon, however, they were warned off by an officer who was sent from St. Thomas to inform them that they were trespassing on the territory of the King of Denmark. They proceeded on their voyage, having obtained the services of an old buccaneer who knew the coast of Central America well. Under his pilotage they anchored on the first of November close to the Isthmus of Darien. One of the greatest princes of the country soon came on board. The courtiers who attended him, ten or twelve in number, were stark naked; but he was distinguished by a red coat, a pair of cotton drawers, and an old hat. He had a Spanish name, spoke Spanish, and affected the grave deportment of a Spanish don. The Scotch propitiated Andreas, as he was called, by a present of a new hat blazing with gold lace, and assured him that, if he would trade with them, they would treat him better than the Castilians had done.

A few hours later the chiefs of the expedition went on shore, took formal possession of the country, and named it Caledonia. They were pleased with the aspect of a small peninsula about three miles in length and a quarter of a mile in breadth, and determined to fix here the city of New Edinburgh,

destined, as they hoped, to be the great emporium of both Indies. The peninsula terminated in a low promontory of about thirty acres, which might easily be turned into an island by digging a trench. The trench was dug; and on the ground thus separated from the main land a fort was constructed; fifty guns were placed on the ramparts; and within the enclosures houses were speedily built and thatched with palm leaves.

Negotiations were opened with the chieftains, as they were called, who governed the neighbouring tribes. Among these savage rulers were found as insatiable a cupidity, as watchful a jealousy, and as punctilious a pride, as among the potentates whose disputes had seemed likely to make the Congress of Ryswick eternal. One prince hated the Spaniards because a fine rifle had been taken away from him by the Governor of Portobello on the plea that such a weapon was too good for a red man. Another loved the Spaniards because they had given him a stick tipped with silver. On the whole, the new comers succeeded in making friends of the aboriginal race. One mighty monarch, the Lewis the Great of the isthmus, who wore with pride a cap of white reeds lined with red silk and adorned with an ostrich feather, seemed well inclined to the strangers, received them hospitably in a palace built of canes and covered with palmetto royal, and regaled them with calabashes of a sort of ale brewed from Indian corn and potatoes. Another chief set his mark to a treaty of peace and alliance with the colony. A third consented to become a vassal of the Company, received with great delight a commission embellished with gold thread and flowered riband, and swallowed to the health of his new masters not a few bumpers of their own brandy.

Meanwhile the internal government of the colony was organised according to a plan devised by the directors at Edinburgh. The settlers were divided into bands of fifty or sixty; each band chose a representative; and thus was formed an assembly which took the magnificent name of Parliament. This Parliament speedily framed a curious code. The first article provided that the precepts, instructions, examples, commands and prohibitions expressed and contained in the Holy Scriptures should have the full force and effect of laws in New Caledonia, an enactment which proves that those who drew it up either did not know what the Holy Scriptures contained or did not know what a law meant. There is another provision which shows not less clearly how far these legislators were from understanding the first principles of legislation. "Benefits received and good

services done shall always be generously and thankfully compensated, whether a prior bargain hath been made or not; and, if it shall happen to be otherwise, and the Benefactor obliged justly to complain of the ingratitude, the Ungrateful shall in such case be obliged to give threefold satisfaction at the least." An article much more creditable to the little Parliament, and much needed in a community which was likely to be constantly at war, prohibits, on pain of death, the violation of female captives.

By this time all the Antilles and all the shores of the Gulf of Mexico were in a ferment. The new colony was the object of universal hatred. The Spaniards began to fit out armaments. The chiefs of the French dependencies in the West Indies eagerly offered assistance to the Spaniards. The governors of the English settlements put forth proclamations interdicting all communication with this nest of buccaneers. Just at this time, the Dolphin, a vessel of fourteen guns, which was the property of the Scotch Company, was driven on shore by stress of weather under the walls of Carthagena. The ship and cargo were confiscated, the crew imprisoned and put in irons. Some of the sailors were treated as slaves, and compelled to sweep the streets and to work on the fortifications. Others, and among them the captain, were sent to Seville to be tried for piracy. Soon an envoy with a flag of truce arrived at Carthagena, and, in the name of the Council of Caledonia, demanded the release of the prisoners. He delivered to the authorities a letter threatening them with the vengeance of the King of Great Britain, and a copy of the Act of Parliament by which the Company had been created. The Castilian governor, who probably knew that William, as Sovereign of England, would not, and, as Sovereign of Scotland, could not, protect the squatters who had occupied Darien, flung away both letter and Act of Parliament with a gesture of contempt, called for a guard, and was with difficulty dissuaded from throwing the messenger into a dungeon. The Council of Caledonia, in great indignation, issued letters of mark and reprisal against Spanish vessels. What every man of common sense must have foreseen had taken place. The Scottish flag had been but a few months planted on the walls of New Edinburgh; and already a war, which Scotland, without the help of England, was utterly unable to sustain, had begun.

By this time it was known in Europe that the mysterious voyage of the adventurers from the Forth had ended at Darien. The ambassador of the Catholic King repaired to Kensington, and complained bitterly to William of this outrageous violation of the law of nations. Preparations were made

in the Spanish ports for an expedition against the intruders; and in no Spanish port were there more fervent wishes for the success of that expedition than in the cities of London and Bristol. In Scotland, on the other hand, the exultation was boundless. In the parish churches all over the kingdom the ministers gave public thanks to God for having vouchsafed thus far to protect and bless the infant colony. At some places a day was set apart for religious exercises on this account. In every borough bells were rung; bonfires were lighted; and candles were placed in the windows at night. During some months all the reports which arrived from the other side of the Atlantic were such as to excite hope and joy in the north of the island, and alarm and envy in the south. The colonists, it was asserted, had found rich gold mines, mines in which the precious metal was far more abundant and in a far purer state than on the coast of Guinea. Provisions were plentiful. The rainy season had not proved unhealthy. The settlement was well fortified. Sixty guns were mounted on the ramparts. An immense crop of Indian corn was expected. The aboriginal tribes were friendly. Emigrants from various quarters were coming in. The population of Caledonia had already increased from twelve hundred to ten thousand. The riches of the country,—these are the words of a newspaper of that time,—were great beyond imagination. The mania in Scotland rose to the highest point. Munitions of war and implements of agriculture were provided in large quantities. Multitudes were impatient to emigrate to the land of promise.

In August 1699 four ships, with thirteen hundred men on board, were despatched by the Company to Caledonia. The spiritual care of these emigrants was entrusted to divines of the Church of Scotland. One of these was that Alexander Shields whose *Hind Let Loose* proves that in his zeal for the Covenant he had forgotten the Gospel. To another, John Borland, we owe the best account of the voyage which is now extant. The General Assembly had charged the chaplains to divide the colonists into congregations, to appoint ruling elders, to constitute a presbytery, and to labour for the propagation of divine truth among the Pagan inhabitants of Darien. The second expedition sailed as the first had sailed, amidst the acclamations and blessings of all Scotland. During the earlier part of September the whole nation was dreaming a delightful dream of prosperity and glory; and triumphing, somewhat maliciously, in the vexation of the English. But, before the close of that month, it began to be rumoured about Lombard Street and Cheapside that letters had arrived from Jamaica with

strange news. The colony from which so much had been hoped and dreaded was no more. It had disappeared from the face of the earth. The report spread to Edinburgh, but was received there with scornful incredulity. It was an impudent lie devised by some Englishmen who could not bear to see that, in spite of the votes of the English Parliament, in spite of the proclamations of the governors of the English colonies, Caledonia was waxing great and opulent. Nay, the inventor of the fable was named. It was declared to be quite certain that Secretary Vernon was the man. On the fourth of October was put forth a vehement contradiction of the story.

On the fifth the whole truth was known. Letters were received from New York announcing that a few miserable men, the remains of the colony which was to have been the garden, the warehouse, the mart, of the whole world, their bones peeping through their skin, and hunger and fever written in their faces, had arrived in the Hudson.

The grief, the dismay and the rage of those who had a few hours before fancied themselves masters of all the wealth of both Indies may easily be imagined. The Directors, in their fury, lost all self command, and, in their official letters, railed at the betrayers of Scotland, the white-livered deserters. The truth is that those who used these hard words were far more deserving of blame than the wretches whom they had sent to destruction, and whom they now reviled for not staying to be utterly destroyed. Nothing had happened but what might easily have been foreseen. The Company had, in childish reliance on the word of an enthusiastic projector, and in defiance of facts known to every educated man in Europe, taken it for granted that emigrants born and bred within ten degrees of the Arctic Circle would enjoy excellent health within ten degrees of the Equator. Nay, statesmen and scholars had been deluded into the belief that a country which, as they might have read in books so common as those of Hakluyt and Purchas, was noted even among tropical countries for its insalubrity, and had been abandoned by the Spaniards solely on account of its insalubrity, was a Montpellier. Nor had any of Paterson's dupes considered how colonists from Fife or Lothian, who had never in their lives known what it was to feel the heat of a distressing midsummer day, could endure the labour of breaking clods and carrying burdens under the fierce blaze of a vertical sun. It ought to have been remembered that such colonists would have to do for themselves what English, French, Dutch, and Spanish colonists employed Negroes or Indians to do for them. It was seldom indeed that a white

freeman in Barbadoes or Martinique, in Guiana or at Panama, was employed in severe bodily labour. But the Scotch who settled at Darien must at first be without slaves, and must therefore dig the trench round their town, build their houses, cultivate their fields, hew wood, and draw water, with their own hands. Such toil in such an atmosphere was too much for them. The provisions which they had brought out had been of no good quality, and had not been improved by lapse of time or by change of climate. The yams and plantains did not suit stomachs accustomed to good oatmeal. The flesh of wild animals and the green fat of the turtle, a luxury then unknown in Europe, went but a small way; and supplies were not to be expected from any foreign settlement. During the cool months, however, which immediately followed the occupation of the isthmus there were few deaths. But, before the equinox, disease began to make fearful havoc in the little community. The mortality gradually rose to ten or twelve a day. Both the clergymen who had accompanied the expedition died. Paterson buried his wife in that soil which, as he had assured his too credulous countrymen, exhaled health and vigour. He was himself stretched on his pallet by an intermittent fever. Still he would not admit that the climate of his promised land was bad. There could not be a purer air. This was merely the seasoning which people who passed from one country to another must expect. In November all would be well again. But the rate at which the emigrants died was such that none of them seemed likely to live till November. Those who were not laid on their beds were yellow, lean, feeble, hardly able to move the sick and to bury the dead, and quite unable to repel the expected attack of the Spaniards. The cry of the whole community was that death was all around them, and that they must, while they still had strength to weigh an anchor or spread a sail, fly to some less fatal region. The men and provisions were equally distributed among three ships, the Caledonia, the Unicorn, and the Saint Andrew. Paterson, though still too ill to sit in the Council, begged hard that he might be left behind with twenty or thirty companions to keep up a show of possession, and to await the next arrivals from Scotland. So small a number of people, he said, might easily subsist by catching fish and turtles. But his offer was disregarded; he was carried, utterly helpless, on board of the Saint Andrew; and the vessel stood out to sea.

The voyage was horrible. Scarcely any Guinea slave ship has ever had such a middle passage. Of two hundred and fifty persons who were on

board of the Saint Andrew, one hundred and fifty fed the sharks of the Atlantic before Sandy Hook was in sight. The Unicorn lost almost all its officers, and about a hundred and forty men. The Caledonia, the healthiest ship of the three, threw overboard a hundred corpses. The squalid survivors, as if they were not sufficiently miserable, raged fiercely against one another. Charges of incapacity, cruelty, brutal insolence, were hurled backward and forward. The rigid Presbyterians attributed the calamities of the colony to the wickedness of Jacobites, Prelatists, Sabbath-breakers, Atheists, who hated in others that image of God which was wanting in themselves. The accused malignants, on the other hand, complained bitterly of the impertinence of meddling fanatics and hypocrites. Paterson was cruelly reviled, and was unable to defend himself. He had been completely prostrated by bodily and mental suffering. He looked like a skeleton. His heart was broken. His inventive faculties and his plausible eloquence were no more; and he seemed to have sunk into second childhood.

Meanwhile the second expedition had been on the seas. It reached Darien about four months after the first settlers had fled. The new comers had fully expected to find a flourishing young town, secure fortifications, cultivated fields, and a cordial welcome. They found a wilderness. The castle of New Edinburgh was in ruins. The huts had been burned. The site marked out for the proud capital which was to have been the Tyre, the Venice, the Amsterdam of the eighteenth century was overgrown with jungle, and inhabited only by the sloth and the baboon. The hearts of the adventurers sank within them. For their fleet had been fitted out, not to plant a colony, but to recruit a colony already planted and supposed to be prospering. They were therefore worse provided with every necessary of life than their predecessors had been. Some feeble attempts, however, were made to restore what had perished. A new fort was constructed on the old ground; and within the ramparts was built a hamlet, consisting of eighty or ninety cabins, generally of twelve feet by ten. But the work went on languidly. The alacrity which is the effect of hope, the strength which is the effect of union, were alike wanting to the little community. From the councillors down to the humblest settlers all was despondency and discontent. The stock of provisions was scanty. The stewards embezzled great part of it. The rations were small; and soon there was a cry that they were unfairly distributed. Factions were formed. Plots were laid. One ringleader of the malecontents was hanged. The Scotch were generally, as they still are, a religious people;

and it might therefore have been expected that the influence of the divines to whom the spiritual charge of the colony had been confided would have been employed with advantage for the preserving of order and the calming of evil passions. Unfortunately those divines seem to have been at war with almost all the rest of the society. They described their companions as the most profligate of mankind, and declared that it was impossible to constitute a presbytery according to the directions of the General Assembly; for that persons fit to be ruling elders of a Christian Church were not to be found among the twelve or thirteen hundred emigrants. Where the blame lay it is now impossible to decide. All that can with confidence be said is that either the clergymen must have been most unreasonably and most uncharitably austere, or the laymen must have been most unfavourable specimens of the nation and class to which they belonged.

It may be added that the provision by the General Assembly for the spiritual wants of the colony was as defective as the provision made for temporal wants by the directors of the Company. Nearly one third of the emigrants who sailed with the second expedition were Highlanders, who did not understand a word of English; and not one of the four chaplains could speak a word of Gaelic. It was only through interpreters that a pastor could communicate with a large portion of the Christian flock of which he had charge. Even by the help of interpreters he could not impart religious instruction to those heathen tribes which the Church of Scotland had solemnly recommended to his care. In fact, the colonists left behind them no mark that baptized men had set foot on Darien, except a few Anglo-Saxon curses, which, having been uttered more frequently and with greater energy than any other words in our language, had caught the ear and been retained in the memory of the native population of the isthmus.

The months which immediately followed the arrival of the new comers were the coolest and most salubrious of the year. But, even in those months, the pestilential influence of a tropical sun, shining on swamps rank with impenetrable thickets of black mangroves, began to be felt. The mortality was great; and it was but too clear that, before the summer was far advanced, the second colony would, like the first, have to choose between death and flight. But the agony of the inevitable dissolution was shortened by violence. A fleet of eleven vessels under the flag of Castile anchored off New Edinburgh. At the same time an irregular army of Spaniards, Creoles,

negroes, mulattoes and Indians marched across the isthmus from Panama; and the fort was blockaded at once by sea and land.

A drummer soon came with a message from the besiegers, but a message which was utterly unintelligible to the besieged. Even after all that we have seen of the perverse imbecility of the directors of the Company, it must be thought strange that they should have sent a colony to a remote part of the world, where it was certain that there must be constant intercourse, peaceable or hostile, with Spaniards, and yet should not have taken care that there should be in the whole colony a single person who knew a little Spanish.

With some difficulty a negotiation was carried on in such French and such Latin as the two parties could furnish. Before the end of March a treaty was signed by which the Scotch bound themselves to evacuate Darien in fourteen days; and on the eleventh of April they departed, a much less numerous body than when they arrived. In little more than four months, although the healthiest months of the year, three hundred men out of thirteen hundred had been swept away by disease. Of the survivors very few lived to see their native country again. Two of the ships perished at sea. Many of the adventurers, who had left their homes flushed with hopes of speedy opulence, were glad to hire themselves out to the planters of Jamaica, and laid their bones in that land of exile. Shields died there, worn out and heart broken. Borland was the only minister who came back. In his curious and interesting narrative, he expresses his feelings, after the fashion of the school in which he had been bred, by grotesque allusions to the Old Testament, and by a profusion of Hebrew words. On his first arrival, he tells us, he found New Edinburgh a Ziklag. He had subsequently been compelled to dwell in the tents of Kedar. Once, indeed, during his sojourn, he had fallen in with a Beer-lahai-roi, and had set up his Ebenezer; but in general Darien was to him a Magor Missabib, a Kibroth-hattaavah. The sad story is introduced with the words in which a great man of old, delivered over to the malice of the Evil Power, was informed of the death of his children and of the ruin of his fortunes: "I alone am escaped to tell thee."

CHAPTER XXV.

Trial of Spencer Cowper—Duels—Discontent of the Nation—Captain Kidd—Meeting of Parliament—Attacks on Burnet—Renewed Attack on Somers—Question of the Irish Forfeitures: Dispute between the Houses—Somers again attacked—Prorogation of Parliament—Death of James the Second—The Pretender recognised as King—Return of the King—General Election—Death of William

THE passions which had agitated the Parliament during the late session continued to ferment in the minds of men during the recess, and, having no longer a vent in the senate, broke forth in every part of the empire, destroyed the peace of towns, brought into peril the honour and the lives of innocent men, and impelled magistrates to leave the bench of justice and attack one another sword in hand. Private calamities, private brawls, which had nothing to do with the disputes between court and country, were turned by the political animosities of that unhappy summer into grave political events.

One mournful tale, which called forth the strongest feelings of the contending factions, is still remembered as a curious part of the history of our jurisprudence, and especially of the history of our medical jurisprudence. No Whig member of the lower House, with the single exception of Montague, filled a larger space in the public eye than William Cowper. In the art of conciliating an audience, Cowper was preeminent. His graceful and engaging eloquence cast a spell on juries; and the Commons, even in those stormy moments when no other defender of the administration could obtain a hearing, would always listen to him. He represented Hertford, a borough in which his family had considerable influence; but there was a strong Tory minority among the electors, and he had not won his seat without a hard fight, which had left behind it many bitter recollections. His younger brother Spencer, a man of parts and learning, was fast rising into practice as a barrister on the Home Circuit.

At Hertford resided an opulent Quaker family named Stout. A pretty young woman of this family had lately sunk into a melancholy of a kind not very unusual in girls of strong sensibility and lively imagination who are subject to the restraints of austere religious societies. Her dress, her looks, her gestures, indicated the disturbance of her mind. She sometimes hinted

her dislike of the sect to which she belonged. She complained that a canting waterman who was one of the brotherhood had held forth against her at a meeting. She threatened to go beyond sea, to throw herself out of window, to drown herself. To two or three of her associates she owned that she was in love; and on one occasion she plainly said that the man whom she loved was one whom she never could marry. In fact, the object of her fondness was Spencer Cowper, who was already married. She at length wrote to him in language which she never would have used if her intellect had not been disordered. He, like an honest man, took no advantage of her unhappy state of mind, and did his best to avoid her. His prudence mortified her to such a degree that on one occasion she went into fits. It was necessary, however, that he should see her, when he came to Hertford at the spring assizes of 1699. For he had been entrusted with some money which was due to her on mortgage. He called on her for this purpose late one evening, and delivered a bag of gold to her. She pressed him to be the guest of her family; but he excused himself and retired. The next morning she was found dead among the stakes of a mill dam on the stream called the Priory River. That she had destroyed herself there could be no reasonable doubt. The coroner's inquest found that she had drowned herself while in a state of mental derangement. But her family was unwilling to admit that she had shortened her own life, and looked about for somebody who might be accused of murdering her. The last person who could be proved to have been in her company was Spencer Cowper. It chanced that two attorneys and a scrivener, who had come down from town to the Hertford assizes, had been overheard, on that unhappy night, talking over their wine about the charms and flirtations of the handsome Quaker girl, in the light way in which such subjects are sometimes discussed even at the circuit tables and mess tables of our more refined generation. Some wild words, susceptible of a double meaning, were used about the way in which she had jilted one lover, and the way in which another lover would punish her for her coquetry. On no better grounds than these her relations imagined that Spencer Cowper had, with the assistance of these three retainers of the law, strangled her, and thrown her corpse into the water. There was absolutely no evidence of the crime. There was no evidence that any one of the accused had any motive to commit such a crime; there was no evidence that Spencer Cowper had any connection with the persons who were said to be his accomplices. One of those persons, indeed, he had never seen. But no story is too absurd to be

imposed on minds blinded by religious and political fanaticism. The Quakers and the Tories joined to raise a formidable clamour. The Quakers had, in those days, no scruples about capital punishments. They would, indeed, as Spencer Cowper said bitterly, but too truly, rather send four innocent men to the gallows than let it be believed that one who had their light within her had committed suicide. The Tories exulted in the prospect of winning two seats from the Whigs. The whole kingdom was divided between Stouts and Cowpers. At the summer assizes Hertford was crowded with anxious faces from London and from parts of England more distant than London. The prosecution was conducted with a malignity and unfairness which to us seem almost incredible; and, unfortunately, the dullest and most ignorant judge of the twelve was on the bench. Cowper defended himself and those who were said to be his accomplices with admirable ability and self possession. His brother, much more distressed than himself, sat near him through the long agony of that day. The case against the prisoners rested chiefly on the vulgar error that a human body, found, as this poor girl's body had been found, floating in water, must have been thrown into the water while still alive. To prove this doctrine the counsel for the Crown called medical practitioners, of whom nothing is now known except that some of them had been active against the Whigs at Hertford elections. To confirm the evidence of these gentlemen two or three sailors were put into the witness box. On the other side appeared an array of men of science whose names are still remembered. Among them was William Cowper, not a kinsman of the defendant, but the most celebrated anatomist that England had then produced. He was, indeed, the founder of a dynasty illustrious in the history of science; for he was the teacher of William Cheselden, and William Cheselden was the teacher of John Hunter. On the same side appeared Samuel Garth, who, among the physicians of the capital, had no rival except Radcliffe, and Hans Sloane, the founder of the magnificent museum which is one of the glories of our country. The attempt of the prosecutors to make the superstitions of the fore-castle evidence for the purpose of taking away the lives of men was treated by these philosophers with just disdain. The stupid judge asked Garth what he could say in answer to the testimony of the seamen. "My Lord," replied Garth, "I say that they are mistaken. I will find seamen in abundance to swear that they have known whistling raise the wind."

The jury found the prisoners Not guilty; and the report carried back to London by persons who had been present at the trial was that everybody applauded the verdict, and that even the Stouts seemed to be convinced of their error. It is certain, however, that the malevolence of the defeated party soon revived in all its energy. The lives of the four men who had just been absolved were again attacked by means of the most absurd and odious proceeding known to our old law, the appeal of murder. This attack too failed. Every artifice of chicane was at length exhausted; and nothing was left to the disappointed sect and the disappointed faction except to calumniate those whom it had been found impossible to murder. In a succession of libels Spencer Cowper was held up to the execration of the public. But the public did him justice. He rose to high eminence in his profession; he at length took his seat, with general applause, on the judicial bench, and there distinguished himself by the humanity which he never failed to show to unhappy men who stood, as he had once stood, at the bar. Many who seldom trouble themselves about pedigrees may be interested by learning that he was the grandfather of that excellent man and excellent poet William Cowper, whose writings have long been peculiarly loved and prized by the members of the religious community which, under a strong delusion, sought to slay his innocent progenitor. [19](#)

Though Spencer Cowper had escaped with life and honour, the Tories had carried their point. They had secured against the next election the support of the Quakers of Hertford; and the consequence was that the borough was lost to the family and to the party which had lately predominated there.

In the very week in which the great trial took place at Hertford, a feud arising out of the late election for Buckinghamshire very nearly produced fatal effects. Wharton, the chief of the Buckinghamshire Whigs, had with difficulty succeeded in bringing in his brother as one of the knights of the shire. Graham Viscount Cheyney, of the kingdom of Scotland, had been returned at the head of the poll by the Tories. The two noblemen met at the quarter sessions. In England Cheyney was before the Union merely an Esquire. Wharton was undoubtedly entitled to take place of him, and had repeatedly taken place of him without any dispute. But angry passions now ran so high that a decent pretext for indulging them was hardly thought necessary. Cheyney fastened a quarrel on Wharton. They drew. Wharton, whose cool good humoured courage and skill in fence were the envy of all

the swordsmen of that age, closed with his quarrelsome neighbour, disarmed him, and gave him his life.

A more tragical duel had just taken place at Westminster. Conway Seymour, the eldest son of Sir Edward Seymour, had lately come of age. He was in possession of an independent fortune of seven thousand pounds a year, which he lavished in costly fopperies. The town had nicknamed him Beau Seymour. He was displaying his curls and his embroidery in Saint James's Park on a midsummer evening, after indulging too freely in wine, when a young officer of the Blues named Kirke, who was as tipsy as himself, passed near him. "There goes Beau Seymour," said Kirke. Seymour flew into a rage. Angry words were exchanged between the foolish boys. They immediately went beyond the precincts of the Court, drew, and exchanged some pushes. Seymour was wounded in the neck. The wound was not very serious; but, when his cure was only half completed, he revelled in fruit, ice and Burgundy till he threw himself into a violent fever. Though a coxcomb and a voluptuary, he seems to have had some fine qualities. On the last day of his life he saw Kirke. Kirke implored forgiveness; and the dying man declared that he forgave as he hoped to be forgiven. There can be no doubt that a person who kills another in a duel is, according to law, guilty of murder. But the law had never been strictly enforced against gentlemen in such cases; and in this case there was no peculiar atrocity, no deep seated malice, no suspicion of foul play. Sir Edward, however, vehemently declared that he would have life for life. Much indulgence is due to the resentment of an affectionate father maddened by the loss of a son. But there is but too much reason to believe that the implacability of Seymour was the implacability, not of an affectionate father, but of a factious and malignant agitator. He tried to make what is, in the jargon of our time, called political capital out of the desolation of his house and the blood of his first born. A brawl between two dissolute youths, a brawl distinguished by nothing but its unhappy result from the hundred brawls which took place every month in theatres and taverns, he magnified into an attack on the liberties of the nation, an attempt to introduce a military tyranny. The question was whether a soldier was to be permitted to insult English gentlemen, and, if they murmured, to cut their throats? It was moved in the Court of King's Bench that Kirke should either be brought to immediate trial or admitted to bail. Shower, as counsel for Seymour, opposed the motion. But Seymour was not content to leave the

case in Shower's hands. In defiance of all decency, he went to Westminster Hall, demanded a hearing, and pronounced a harangue against standing armies. "Here," he said, "is a man who lives on money taken out of our pockets. The plea set up for taxing us in order to support him is that his sword protects us, and enables us to live in peace and security. And is he to be suffered to use that sword to destroy us?" Kirke was tried and found guilty of manslaughter. In his case, as in the case of Spencer Cowper, an attempt was made to obtain a writ of appeal. The attempt failed; and Seymour was disappointed of his revenge; but he was not left without consolation. If he had lost a son, he had found, what he seems to have prized quite as much, a fertile theme for invective.

The King, on his return from the Continent, found his subjects in no bland humour. All Scotland, exasperated by the fate of the first expedition to Darien, and anxiously waiting for news of the second, called loudly for a Parliament. Several of the Scottish peers carried to Kensington an address which was subscribed by thirty-six of their body, and which earnestly pressed William to convoke the Estates at Edinburgh, and to redress the wrongs which had been done to the colony of New Caledonia. A petition to the same effect was widely circulated among the commonalty of his Northern kingdom, and received, if report could be trusted, not less than thirty thousand signatures. Discontent was far from being as violent in England as in Scotland. Yet in England there was discontent enough to make even a resolute prince uneasy. The time drew near at which the Houses must reassemble; and how were the Commons to be managed? Montague, enraged, mortified, and intimidated by the baiting of the last session, was fully determined not again to appear in the character of chief minister of finance. The secure and luxurious retreat which he had, some months ago, prepared for himself was awaiting him. He took the Auditorship, and resigned his other places. Smith became Chancellor of the Exchequer. A new commission of Treasury issued; and the first name was that of Tankerville. He had entered on his career, more than twenty years before, with the fairest hopes, young, noble, nobly allied, of distinguished abilities, of graceful manners. There was no more brilliant man of fashion in the theatre and in the ring. There was no more popular tribune in Guildhall. Such was the commencement of a life so miserable that all the indignation excited by great faults is overpowered by pity. A guilty passion, amounting to a madness, left on the moral character of the unhappy man a stain at

which even libertines looked grave. He tried to make the errors of his private life forgotten by splendid and perilous services to a public cause; and, having endured in that cause penury and exile, the gloom of a dungeon, the prospect of a scaffold, the ruin of a noble estate, he was so unfortunate as to be regarded by the party for which he had sacrificed every thing as a coward, if not a traitor. Yet, even against such accumulated disasters and disgraces, his vigorous and aspiring mind bore up. His parts and eloquence gained for him the ear of the House of Lords; and at length, though not till his constitution was so broken that he was fitter for flannel and cushions than for a laborious office at Whitehall, he was put at the head of one of the most important departments of the administration. It might have been expected that this appointment would call forth clamours from widely different quarters; that the Tories would be offended by the elevation of a rebel; that the Whigs would set up a cry against the captain to whose treachery or faintheartedness they had been in the habit of imputing the rout of Sedgemoor; and that the whole of that great body of Englishmen which cannot be said to be steadily Whig or Tory, but which is zealous for decency and the domestic virtues, would see with indignation a signal mark of royal favour bestowed on one who had been convicted of debauching a noble damsel, the sister of his own wife. But so capricious is public feeling that it will be difficult, if not impossible, to find, in any of the letters, essays, dialogues, and poems which bear the date of 1699 or of 1700, a single allusion to the vices or misfortunes of the new First Lord of the Treasury. It is probable that his infirm health and his isolated position were his protection. The chiefs of the opposition did not fear him enough to hate him. The Whig junto was still their terror and their abhorrence. They continued to assail Montague and Orford, though with somewhat less ferocity than while Montague had the direction of the finances, and Orford of the marine. But the utmost spite of all the leading malecontents were concentrated on one object, the great magistrate who still held the highest civil post in the realm, and who was evidently determined to hold it in defiance of them. It was not so easy to get rid of him as it had been to drive his colleagues from office. His abilities the most intolerant Tories were forced grudgingly to acknowledge. His integrity might be questioned in nameless libels and in coffeehouse tattle, but was certain to come forth bright and pure from the most severe Parliamentary investigation. Nor was he guilty of those faults of temper and of manner to which, more than to

any grave delinquency, the unpopularity of his associates is to be ascribed. He had as little of the insolence and perverseness of Orford as of the petulance and vaingloriousness of Montague. One of the most severe trials to which the head and heart of man can be put is great and rapid elevation. To that trial both Montague and Somers were put. It was too much for Montague. But Somers was found equal to it. He was the son of a country attorney. At thirty-seven he had been sitting in a stuff gown on a back bench in the Court of King's Bench. At forty-two he was the first lay dignitary of the realm, and took precedence of the Archbishop of York, and of the Duke of Norfolk. He had risen from a lower point than Montague, had risen as fast as Montague, had risen as high as Montague, and yet had not excited envy such as dogged Montague through a long career. Garreteers, who were never weary of calling the cousin of the Earls of Manchester and Sandwich an upstart, could not, without an unwonted sense of shame, apply those words to the Chancellor, who, without one drop of patrician blood in his veins, had taken his place at the head of the patrician order with the quiet dignity of a man ennobled by nature. His serenity, his modesty, his selfcommand, proof even against the most sudden surprises of passion, his selfrespect, which forced the proudest grandees of the kingdom to respect him, his urbanity, which won the hearts of the youngest lawyers of the Chancery Bar, gained for him many private friends and admirers among the most respectable members of the opposition. But such men as Howe and Seymour hated him implacably; they hated his commanding genius much; they hated the mild majesty of his virtue still more. They sought occasion against him everywhere; and they at length flattered themselves that they had found it.

Some years before, while the war was still raging, there had been loud complaints in the city that even privateers of St. Malo's and Dunkirk caused less molestation to trade than another class of marauders. The English navy was fully employed in the Channel, in the Atlantic, and in the Mediterranean. The Indian Ocean, meanwhile, swarmed with pirates of whose rapacity and cruelty frightful stories were told. Many of these men, it was said, came from our North American colonies, and carried back to those colonies the spoils gained by crime. Adventurers who durst not show themselves in the Thames found a ready market for their illgotten spices and stuffs at New York. Even the Puritans of New England, who in sanctimonious austerity surpassed even their brethren of Scotland, were

accused of conniving at the wickedness which enabled them to enjoy abundantly and cheaply the produce of Indian looms and Chinese tea plantations.

In 1695 Richard Coote, Earl of Bellamont, an Irish peer who sat in the English House of Commons, was appointed Governor of New York and Massachusetts. He was a man of eminently fair character, upright, courageous and independent. Though a decided Whig, he had distinguished himself by bringing before the Parliament at Westminster some tyrannical acts done by Whigs at Dublin, and particularly the execution, if it is not rather to be called the murder, of Gafney. Before Bellamont sailed for America, William spoke strongly to him about the freebooting which was the disgrace of the colonies. "I send you, my Lord, to New York," he said, "because an honest and intrepid man is wanted to put these abuses down, and because I believe you to be such a man." Bellamont exerted himself to justify the high opinion which the King had formed of him. It was soon known at New York that the Governor who had just arrived from England was bent on the suppression of piracy; and some colonists in whom he placed great confidence suggested to him what they may perhaps have thought the best mode of attaining that object. There was then in the settlement a veteran mariner named William Kidd. He had passed most of his life on the waves, had distinguished himself by his seamanship, had had opportunities of showing his valour in action with the French, and had retired on a competence. No man knew the Eastern seas better. He was perfectly acquainted with all the haunts of the pirates who prowled between the Cape of Good Hope and the Straits of Malacca; and he would undertake, if he were entrusted with a single ship of thirty or forty guns, to clear the Indian Ocean of the whole race. The brigantines of the rovers were numerous, no doubt; but none of them was large; one man of war, which in the royal navy would hardly rank as a fourth rate, would easily deal with them all in succession; and the lawful spoils of the enemies of mankind would much more than defray the charges of the expedition. Bellamont was charmed with this plan, and recommended it to the King. The King referred it to the Admiralty. The Admiralty raised difficulties, such as are perpetually raised by public boards when any deviation, whether for the better or for the worse, from the established course of proceeding is proposed. It then occurred to Bellamont that his favourite scheme might be carried into effect without any cost to the state. A few public spirited men might easily fit out

a privateer which would soon make the Arabian Gulph and the Bay of Bengal secure highways for trade. He wrote to his friends in England imploring, remonstrating, complaining of their lamentable want of public spirit. Six thousand pounds would be enough. That sum would be repaid, and repaid with large interest, from the sale of prizes; and an inestimable benefit would be conferred on the kingdom and on the world. His urgency succeeded. Shrewsbury and Romney contributed. Orford, though, as first Lord of the Admiralty, he had been unwilling to send Kidd to the Indian ocean with a king's ship, consented to subscribe a thousand pounds. Somers subscribed another thousand. A ship called the Adventure Galley was equipped in the port of London; and Kidd took the command. He carried with him, besides the ordinary letters of marque, a commission under the Great Seal empowering him to seize pirates, and to take them to some place where they might be dealt with according to law. Whatever right the King might have to the goods found in the possession of these malefactors he granted, by letters patent, to the persons who had been at the expense of fitting out the expedition, reserving to himself only one tenth part of the gains of the adventure, which was to be paid into the treasury. With the claim of merchants to have back the property of which they had been robbed His Majesty of course did not interfere. He granted away, and could grant away, no rights but his own.

The press for sailors to man the royal navy was at that time so hot that Kidd could not obtain his full complement of hands in the Thames. He crossed the Atlantic, visited New York, and there found volunteers in abundance. At length, in February 1697, he sailed from the Hudson with a crew of more than a hundred and fifty men, and in July reached the coast of Madagascar.

It is possible that Kidd may at first have meant to act in accordance with his instructions. But, on the subject of piracy, he held the notions which were then common in the North American colonies; and most of his crew were of the same mind. He found himself in a sea which was constantly traversed by rich and defenceless merchant ships; and he had to determine whether he would plunder those ships or protect them. The gain which might be made by plundering them was immense, and might be snatched without the dangers of a battle or the delays of a trial. The rewards of protecting the lawful trade were likely to be comparatively small. Such as they were, they would be got only by first fighting with desperate ruffians

who would rather be killed than taken, and by then instituting a proceeding and obtaining a judgment in a Court of Admiralty. The risk of being called to a severe reckoning might not unnaturally seem small to one who had seen many old buccaneers living in comfort and credit at New York and Boston. Kidd soon threw off the character of a privateer, and became a pirate. He established friendly communications, and exchanged arms and ammunition, with the most notorious of those rovers whom his commission authorised him to destroy, and made war on those peaceful traders whom he was sent to defend. He began by robbing Mussulmans, and speedily proceeded from Mussulmans to Armenians, and from Armenians to Portuguese. The Adventure Galley took such quantities of cotton and silk, sugar and coffee, cinnamon and pepper, that the very foremast men received from a hundred to two hundred pounds each, and that the captain's share of the spoil would have enabled him to live at home as an opulent gentleman. With the rapacity Kidd had the cruelty of his odious calling. He burned houses; he massacred peasantry. His prisoners were tied up and beaten with naked cutlasses in order to extort information about their concealed hoards. One of his crew, whom he had called a dog, was provoked into exclaiming, in an agony of remorse, "Yes, I am a dog; but it is you that have made me so." Kidd, in a fury, struck the man dead.

News then travelled very slowly from the eastern seas to England. But, in August 1698, it was known in London that the Adventure Galley from which so much had been hoped was the terror of the merchants of Surat, and of the villagers of the coast of Malabar. It was thought probable that Kidd would carry his booty to some colony. Orders were therefore sent from Whitehall to the governors of the transmarine possessions of the Crown, directing them to be on the watch for him. He meanwhile, having burned his ship and dismissed most of his men, who easily found berths in the sloops of other pirates, returned to New York with the means, as he flattered himself, of making his peace and of living in splendour. He had fabricated a long romance to which Bellamont, naturally unwilling to believe that he had been duped and had been the means of duping others, was at first disposed to listen with favour. But the truth soon came out. The governor did his duty firmly; and Kidd was placed in close confinement till orders arrived from the Admiralty that he should be sent to England.

To an intelligent and candid judge of human actions it will not appear that any of the persons at whose expense the Adventure Galley was fitted

out deserved serious blame. The worst that could be imputed even to Bellamont, who had drawn in all the rest, was that he had been led into a fault by his ardent zeal for the public service, and by the generosity of a nature as little prone to suspect as to devise villanies. His friends in England might surely be pardoned for giving credit to his recommendation. It is highly probable that the motive which induced some of them to aid his design was genuine public spirit. But, if we suppose them to have had a view to gain, it was to legitimate gain. Their conduct was the very opposite of corrupt. Not only had they taken no money. They had disbursed money largely, and had disbursed it with the certainty that they should never be reimbursed unless the outlay proved beneficial to the public. That they meant well they proved by staking thousands on the success of their plan; and, if they erred in judgment, the loss of those thousands was surely a sufficient punishment for such an error. On this subject there would probably have been no difference of opinion had not Somers been one of the contributors. About the other patrons of Kidd the chiefs of the opposition cared little. Bellamont was far removed from the political scene. Romney could not, and Shrewsbury would not, play a first part. Orford had resigned his employments. But Somers still held the Great Seal, still presided in the House of Lords, still had constant access to the closet. The retreat of his friends had left him the sole and undisputed head of that party which had, in the late Parliament, been a majority, and which was, in the present Parliament, outnumbered indeed, disorganised and disheartened, but still numerous and respectable. His placid courage rose higher and higher to meet the dangers which threatened him. He provided for himself no refuge. He made no move towards flight; and, without uttering one boastful word, gave his enemies to understand, by the mild firmness of his demeanour, that he dared them to do their worst.

In their eagerness to displace and destroy him they overreached themselves. Had they been content to accuse him of lending his countenance, with a rashness unbecoming his high place, to an illconcerted scheme, that large part of mankind which judges of a plan simply by the event would probably have thought the accusation well founded. But the malice which they bore to him was not to be so satisfied. They affected to believe that he had from the first been aware of Kidd's character and designs. The Great Seal had been employed to sanction a piratical expedition. The head of the law had laid down a thousand pounds in the

hope of receiving tens of thousands when his accomplices should return, laden with the spoils of ruined merchants. It was fortunate for the Chancellor that the calumnies of which he was the object were too atrocious to be mischievous.

And now the time had come at which the hoarded illhumour of six months was at liberty to explode. On the sixteenth of November the Houses met. The King, in his speech, assured them in gracious and affectionate language that he was determined to do his best to merit their love by constant care to preserve their liberty and their religion, by a pure administration of justice, by countenancing virtue, by discouraging vice, by shrinking from no difficulty or danger when the welfare of the nation was at stake. "These," he said, "are my resolutions; and I am persuaded that you are come together with purposes on your part suitable to these on mine. Since then our aims are only for the general good, let us act with confidence in one another, which will not fail, by God's blessing, to make me a happy king, and you a great and flourishing people."

It might have been thought that no words less likely to give offence had ever been uttered from the English throne. But even in those words the malevolence of faction sought and found matter for a quarrel. The gentle exhortation, "Let us act with confidence in one another," must mean that such confidence did not now exist, that the King distrusted the Parliament, or that the Parliament had shown an unwarrantable distrust of the King. Such an exhortation was nothing less than a reproach; and such a reproach was a bad return for the gold and the blood which England had lavished in order to make and to keep him a great sovereign. There was a sharp debate, in which Seymour took part. With characteristic indelicacy and want of feeling he harangued the Commons as he had harangued the Court of King's Bench, about his son's death, and about the necessity of curbing the insolence of military men. There were loud complaints that the events of the preceding session had been misrepresented to the public, that emissaries of the Court, in every part of the kingdom, declaimed against the absurd jealousies or still more absurd parsimony which had refused to His Majesty the means of keeping up such an army as might secure the country against invasion. Even justices of the peace, it was said, even deputy-lieutenants, had used King James and King Lewis as bugbears, for the purpose of stirring up the people against honest and thrifty representatives. Angry resolutions were passed, declaring it to be the opinion of the House that the

best way to establish entire confidence between the King and the Estates of the Realm would be to put a brand on those evil advisers who had dared to breathe in the royal ear calumnies against a faithful Parliament. An address founded on these resolutions was voted; many thought that a violent rupture was inevitable. But William returned an answer so prudent and gentle that malice itself could not prolong the dispute. By this time, indeed, a new dispute had begun. The address had scarcely been moved when the House called for copies of the papers relating to Kidd's expedition. Somers, conscious of innocence, knew that it was wise as well as right to be perfectly ingenuous, and resolved that there should be no concealment. His friends stood manfully by him, and his enemies struck at him with such blind fury that their blows injured only themselves. Howe raved like a maniac. "What is to become of the country, plundered by land, plundered by sea? Our rulers have laid hold on our lands, our woods, our mines, our money. And all this is not enough. We cannot send a cargo to the farthest ends of the earth, but they must send a gang of thieves after it." Harley and Seymour tried to carry a vote of censure without giving the House time to read the papers. But the general feeling was strongly for a short delay. At length, on the sixth of December, the subject was considered in a committee of the whole House. Shower undertook to prove that the letters patent to which Somers had put the Great Seal were illegal. Cowper replied to him with immense applause, and seems to have completely refuted him. Some of the Tory orators had employed what was then a favourite claptrap. Very great men, no doubt, were concerned in this business. But were the Commons of England to stand in awe of great men? Would not they have the spirit to censure corruption and oppression in the highest places? Cowper answered finely that assuredly the House ought not to be deterred from the discharge of any duty by the fear of great men, but that fear was not the only base and evil passion of which great men were the objects, and that the flatterer who courted their favour was not a worse citizen than the envious calumniator who took pleasure in bringing whatever was eminent down to his own level. At length, after a debate which lasted from midday till nine at night, and in which all the leading members took part, the committee divided on the question that the letters patent were dishonourable to the King, inconsistent with the law of nations, contrary to the statutes of the realm, and destructive of property and trade. The Chancellor's enemies had felt confident of victory, and had made the

resolution so strong in order that it might be impossible for him to retain the Great Seal. They soon found that it would have been wise to propose a gentler censure. Great numbers of their adherents, convinced by Cowper's arguments, or unwilling to put a cruel stigma on a man of whose genius and accomplishments the nation was proud, stole away before the door was closed. To the general astonishment there were only one hundred and thirty-three Ayes to one hundred and eighty-nine Noes. That the City of London did not consider Somers as the destroyer, and his enemies as the protectors, of trade, was proved on the following morning by the most unequivocal of signs. As soon as the news of his triumph reached the Royal Exchange, the price of stocks went up.

Some weeks elapsed before the Tories ventured again to attack him. In the meantime they amused themselves by trying to worry another person whom they hated even more bitterly. When, in a financial debate, the arrangements of the household of the Duke of Gloucester were incidentally mentioned, one or two members took the opportunity of throwing reflections on Burnet. Burnet's very name sufficed to raise among the High Churchmen a storm of mingled merriment and anger. The Speaker in vain reminded the orators that they were wandering from the question. The majority was determined to have some fun with the Right Reverend Whig, and encouraged them to proceed. Nothing appears to have been said on the other side. The chiefs of the opposition inferred from the laughing and cheering of the Bishop's enemies, and from the silence of his friends, that there would be no difficulty in driving from Court, with contumely, the prelate whom of all prelates they most detested, as the personification of the latitudinarian spirit, a Jack Presbyter in lawn sleeves. They, therefore, after the lapse of a few hours, moved quite unexpectedly an address requesting the King to remove the Bishop of Salisbury from the place of preceptor to the young heir apparent. But it soon appeared that many who could not help smiling at Burnet's weaknesses did justice to his abilities and virtues. The debate was hot. The unlucky Pastoral Letter was of course not forgotten. It was asked whether a man who had proclaimed that England was a conquered country, a man whose servile pages the English Commons had ordered to be burned by the hangman, could be a fit instructor for an English Prince. Some reviled the Bishop for being a Socinian, which he was not, and some for being a Scotchman, which he was. His defenders fought his battle gallantly. "Grant," they said, "that it is possible to find, amidst an

immense mass of eloquent and learned matter published in defence of the Protestant religion and of the English Constitution, a paragraph which, though well intended, was not well considered, is that error of an unguarded minute to outweigh the services of more than twenty years? If one House of Commons, by a very small majority, censured a little tract of which his Lordship was the author, let it be remembered that another House of Commons unanimously voted thanks to him for a work of very different magnitude and importance, the History of the Reformation. And, as to what is said about his birthplace, is there not already ill humour enough in Scotland? Has not the failure of that unhappy expedition to Darien raised a sufficiently bitter feeling against us throughout that kingdom? Every wise and honest man is desirous to soothe the angry passions of our neighbours. And shall we, just at this moment, exasperate those passions by proclaiming that to be born on the north of the Tweed is a disqualification for all honourable trust?" The ministerial members would gladly have permitted the motion to be withdrawn. But the opposition, elated with hope, insisted on dividing, and were confounded by finding that, with all the advantage of a surprise, they were only one hundred and thirty-three to one hundred and seventy-three. Their defeat would probably have been less complete, had not all those members who were especially attached to the Princess of Denmark voted in the majority or absented themselves. Marlborough used all his influence against the motion; and he had strong reasons for doing so. He was by no means well pleased to see the Commons engaged in discussing the characters and past lives of the persons who were placed about the Duke of Gloucester. If the High Churchmen, by reviving old stories, succeeded in carrying a vote against the Preceptor, it was by no means unlikely that some malicious Whig might retaliate on the Governor. The Governor must have been conscious that he was not invulnerable; nor could he absolutely rely on the support of the whole body of Tories; for it was believed that their favourite leader, Rochester, thought himself the fittest person to superintend the education of his grand nephew.

From Burnet the opposition went back to Somers. Some Crown property near Reigate had been granted to Somers by the King. In this transaction there was nothing that deserved blame. The Great Seal ought always to be held by a lawyer of the highest distinction; nor can such a lawyer discharge his duties in a perfectly efficient manner unless, with the Great Seal, he accepts a peerage. But he may not have accumulated a fortune such as will

alone suffice to support a peerage; his peerage is permanent; and his tenure of the Great Seal is precarious. In a few weeks he may be dismissed from office, and may find that he has lost a lucrative profession, that he has got nothing but a costly dignity, that he has been transformed from a prosperous barrister into a mendicant lord. Such a risk no wise man will run. If, therefore, the state is to be well served in the highest civil post, it is absolutely necessary that a provision should be made for retired Chancellors. The Sovereign is now empowered by Act of Parliament to make such a provision out of the public revenue. In old times such a provision was ordinarily made out of the hereditary domain of the Crown. What had been bestowed on Somers appears to have amounted, after all deductions, to a net income of about sixteen hundred a year, a sum which will hardly shock us who have seen at one time five retired Chancellors enjoying pensions of five thousand a year each. For the crime, however, of accepting this grant the leaders of the opposition hoped that they should be able to punish Somers with disgrace and ruin. One difficulty stood in the way. All that he had received was but a pittance when compared with the wealth with which some of his persecutors had been loaded by the last two kings of the House of Stuart. It was not easy to pass any censure on him which should not imply a still more severe censure on two generations of Granvilles, on two generations of Hydes, and on two generations of Finches. At last some ingenious Tory thought of a device by which it might be possible to strike the enemy without wounding friends. The grants of Charles and James had been made in time of peace; and William's grant to Somers had been made in time of war. Malice eagerly caught at this childish distinction. It was moved that any minister who had been concerned in passing a grant for his own benefit while the nation was under the heavy taxes of the late war had violated his trust; as if the expenditure which is necessary to secure to the country a good administration of justice ought to be suspended by war; or as if it were not criminal in a government to squander the resources of the state in time of peace. The motion was made by James Brydges, eldest son of the Lord Chandos, the James Brydges who afterwards became Duke of Chandos, who raised a gigantic fortune out of war taxes, to squander it in comfortless and tasteless ostentation, and who is still remembered as the Timon of Pope's keen and brilliant satire. It was remarked as extraordinary that Brydges brought forward and defended his motion merely as the assertion of an abstract

truth, and avoided all mention of the Chancellor. It seemed still more extraordinary that Howe, whose whole eloquence consisted in cutting personalities, named nobody on this occasion, and contented himself with declaiming in general terms against corruption and profusion. It was plain that the enemies of Somers were at once urged forward by hatred and kept back by fear. They knew that they could not carry a resolution directly condemning him. They, therefore, cunningly brought forward a mere speculative proposition which many members might be willing to affirm without scrutinising it severely. But, as soon as the major premise had been admitted, the minor would be without difficulty established; and it would be impossible to avoid coming to the conclusion that Somers had violated his trust. Such tactics, however, have very seldom succeeded in English parliaments; for a little good sense and a little straightforwardness are quite sufficient to confound them. A sturdy Whig member, Sir Rowland Gwyn, disconcerted the whole scheme of operations. "Why this reserve?" he said, "Everybody knows your meaning. Everybody sees that you have not the courage to name the great man whom you are trying to destroy." "That is false," cried Brydges; and a stormy altercation followed. It soon appeared that innocence would again triumph. The two parties seemed to have exchanged characters for one day. The friends of the government, who in the Parliament were generally humble and timorous, took a high tone, and spoke as it becomes men to speak who are defending persecuted genius and virtue. The malecontents, generally so insolent and turbulent, seemed to be completely cowed. They abased themselves so low as to protest, what no human being could believe, that they had no intention of attacking the Chancellor, and had framed their resolution without any view to him. Howe, from whose lips scarcely any thing ever dropped but gall and poison, went so far as to say: "My Lord Somers is a man of eminent merit, of merit so eminent that, if he had made a slip, we might well overlook it." At a late hour the question was put; and the motion was rejected by a majority of fifty in a house of four hundred and nineteen members. It was long since there had been so large an attendance at a division.

The ignominious failure of the attacks on Somers and Burnet seemed to prove that the assembly was coming round to a better temper. But the temper of a House of Commons left without the guidance of a ministry is never to be trusted. "Nobody can tell today," said an experienced politician of that time, "what the majority may take it into their heads to do

tomorrow." Already a storm was gathering in which the Constitution itself was in danger of perishing, and from which none of the three branches of the legislature escaped without serious damage.

The question of the Irish forfeitures had been raised; and about that question the minds of men, both within and without the walls of Parliament, were in a strangely excitable state. Candid and intelligent men, whatever veneration they may feel for the memory of William, must find it impossible to deny that, in his eagerness to enrich and aggrandise his personal friends, he too often forgot what was due to his own reputation and to the public interest. It is true that in giving away the old domains of the Crown he did only what he had a right to do, and what all his predecessors had done; nor could the most factious opposition insist on resuming his grants of those domains without resuming at the same time the grants of his uncles. But between those domains and the estates recently forfeited in Ireland there was a distinction, which would not indeed have been recognised by the judges, but which to a popular assembly might well seem to be of grave importance. In the year 1690 a Bill had been brought in for applying the Irish forfeitures to the public service. That Bill passed the Commons, and would probably, with large amendments, have passed the Lords, had not the King, who was under the necessity of attending the Congress at the Hague, put an end to the session. In bidding the Houses farewell on that occasion, he assured them that he should not dispose of the property about which they had been deliberating, till they should have had another opportunity of settling that matter. He had, as he thought, strictly kept his word; for he had not disposed of this property till the Houses had repeatedly met and separated without presenting to him any bill on the subject. They had had the opportunity which he had assured them that they should have. They had had more than one such opportunity. The pledge which he had given had therefore been amply redeemed; and he did not conceive that he was bound to abstain longer from exercising his undoubted prerogative. But, though it could hardly be denied that he had literally fulfilled his promise, the general opinion was that such a promise ought to have been more than literally fulfilled. If his Parliament, overwhelmed with business which could not be postponed without danger to his throne and to his person, had been forced to defer, year after year, the consideration of so large and complex a question as that of the Irish forfeitures, it ill became him to take advantage of such a laches with the eagerness of a shrewd

attorney. Many persons, therefore, who were sincerely attached to his government, and who on principle disapproved of resumptions, thought the case of these forfeitures an exception to the general rule.

The Commons had at the close of the last session tacked to the Land Tax Bill a clause empowering seven Commissioners, who were designated by name, to take account of the Irish forfeitures; and the Lords and the King, afraid of losing the Land Tax Bill, had reluctantly consented to this clause. During the recess, the commissioners had visited Ireland. They had since returned to England. Their report was soon laid before both Houses. By the Tories, and by their allies the republicans, it was eagerly hailed. It had, indeed, been framed for the express purpose of flattering and of inflaming them. Three of the commissioners had strongly objected to some passages as indecorous, and even calumnious; but the other four had overruled every objection. Of the four the chief was Trenchard. He was by calling a pamphleteer, and seems not to have been aware that the sharpness of style and of temper which may be tolerated in a pamphlet is inexcusable in a state paper. He was certain that he should be protected and rewarded by the party to which he owed his appointment, and was delighted to have it in his power to publish, with perfect security and with a semblance of official authority, bitter reflections on King and ministry, Dutch favourites, French refugees, and Irish Papists. The consequence was that only four names were subscribed to the report. The three dissentients presented a separate memorial. As to the main facts, however, there was little or no dispute. It appeared that more than a million of Irish acres, or about seventeen hundred thousand English acres, an area equal to that of Middlesex, Hertfordshire, Bedfordshire, Cambridgeshire, and Huntingdonshire together, had been forfeited during the late troubles. But of the value of this large territory very different estimates were formed. The commissioners acknowledged that they could obtain no certain information. In the absence of such information they conjectured the annual rent to be about two hundred thousand pounds, and the fee simple to be worth thirteen years' purchase, that is to say, about two millions six hundred thousand pounds. They seem not to have been aware that much of the land had been let very low on perpetual leases, and that much was burdened with mortgages. A contemporary writer, who was evidently well acquainted with Ireland, asserted that the authors of the report had valued the forfeited property in Carlow at six times the real market price, and that the two million six hundred thousand pounds, of

which they talked, would be found to shrink to about half a million, which, as the exchanges then stood between Dublin and London, would have dwindled to four hundred thousand pounds by the time that it reached the English Exchequer. It was subsequently proved, beyond all dispute, that this estimate was very much nearer the truth than that which had been formed by Trenchard and Trenchard's colleagues.

Of the seventeen hundred thousand acres which had been forfeited, above a fourth part had been restored to the ancient proprietors in conformity with the civil articles of the treaty of Limerick. About one seventh of the remaining three fourths had been given back to unhappy families, which, though they could not plead the letter of the treaty, had been thought fit objects of clemency. The rest had been bestowed, partly on persons whose seances merited all and more than all that they obtained, but chiefly on the King's personal friends. Romney had obtained a considerable share of the royal bounty. But of all the grants the largest was to Woodstock, the eldest son of Portland; the next was to Albemarle. An admirer of William cannot relate without pain that he divided between these two foreigners an extent of country larger than Hertfordshire.

This fact, simply reported, would have sufficed to excite a strong feeling of indignation in a House of Commons less irritable and querulous than that which then sate at Westminster. But Trenchard and his confederates were not content with simply reporting the fact. They employed all their skill to inflame the passions of the majority. They at once applied goads to its anger and held out baits to its cupidity.

They censured that part of William's conduct which deserved high praise even more severely than that part of his conduct for which it is impossible to set up any defence. They told the Parliament that the old proprietors of the soil had been treated with pernicious indulgence; that the capitulation of Limerick had been construed in a manner far too favourable to the conquered race; and that the King had suffered his compassion to lead him into the error of showing indulgence to many who could not pretend that they were within the terms of the capitulation. Even now, after the lapse of eight years, it might be possible, by instituting a severe inquisition, and by giving proper encouragement to informers, to prove that many Papists, who were still permitted to enjoy their estates, had taken the side of James during the civil war. There would thus be a new and plentiful harvest of

confiscations. The four bitterly complained that their task had been made more difficult by the hostility of persons who held office in Ireland, and by the secret influence of great men who were interested in concealing the truth. These grave charges were made in general terms. No name was mentioned; no fact was specified; no evidence was tendered.

Had the report stopped here, those who drew it up might justly have been blamed for the unfair and ill natured manner in which they had discharged their functions; but they could not have been accused of usurping functions which did not belong to them for the purpose of insulting the Sovereign and exasperating the nation. But these men well knew in what way and for what purpose they might safely venture to exceed their commission. The Act of Parliament from which they derived their powers authorised them to report on estates forfeited during the late troubles. It contained not a word which could be construed into an authority to report on the old hereditary domain of the Crown. With that domain they had as little to do as with the seignorage levied on tin in the Duchy of Cornwall, or with the church patronage of the Duchy of Lancaster. But they had discovered that a part of that domain had been alienated by a grant which they could not deny themselves the pleasure of publishing to the world. It was indeed an unfortunate grant, a grant which could not be brought to light without much mischief and much scandal. It was long since William had ceased to be the lover of Elisabeth Villiers, long since he had asked her counsel or listened to her fascinating conversation except in the presence of other persons. She had been some years married to George Hamilton, a soldier who had distinguished himself by his courage in Ireland and Flanders, and who probably held the courtier like doctrine that a lady is not dishonoured by having been the paramour of a king. William was well pleased with the marriage, bestowed on the wife a portion of the old Crown property in Ireland, and created the husband a peer of Scotland by the title of Earl of Orkney. Assuredly William would not have raised his character by abandoning to poverty a woman whom he had loved, though with a criminal love. He was undoubtedly bound, as a man of humanity and honour, to provide liberally for her; but he should have provided for her rather by saving from his civil list than by alienating his hereditary revenue. The four malecontent commissioners rejoiced with spiteful joy over this discovery. It was in vain that the other three represented that the grant to Lady Orkney was one with which they had nothing to do, and that, if they

went out of their way to hold it up to obloquy, they might be justly said to fly in the King's face. "To fly in the King's face!" said one of the majority; "our business is to fly in the King's face. We were sent here to fly in the King's face." With this patriotic object a paragraph about Lady Orkney's grant was added to the report, a paragraph too in which the value of that grant was so monstrously exaggerated that William appeared to have surpassed the profligate extravagance of his uncle Charles. The estate bestowed on the countess was valued at twenty-four thousand pounds a year. The truth seems to be that the income which she derived from the royal bounty, after making allowance for incumbrances and for the rate of exchange, was about four thousand pounds.

The success of the report was complete. The nation and its representatives hated taxes, hated foreign favourites, and hated Irish Papists; and here was a document which held out the hope that England might, at the expense of foreign courtiers and of popish Celts, be relieved from a great load of taxes. Many, both within and without the walls of Parliament, gave entire faith to the estimate which the commissioners had formed by a wild guess, in the absence of trustworthy information. They gave entire faith also to the prediction that a strict inquiry would detect many traitors who had hitherto been permitted to escape with impunity, and that a large addition would thus be made to the extensive territory which had already been confiscated. It was popularly said that, if vigorous measures were taken, the gain to the kingdom would be not less than three hundred thousand pounds a year; and almost the whole of this sum, a sum more than sufficient to defray the whole charge of such an army as the Commons were disposed to keep up in time of peace, would be raised by simply taking away what had been unjustifiably given to Dutchmen, who would still retain immense wealth taken out of English pockets, or unjustifiably left to Irishmen, who thought it at once the most pleasant and the most pious of all employments to cut English throats. The Lower House went to work with the double eagerness of rapacity and of animosity. As soon as the report of the four and the protest of the three had been laid on the table and read by the clerk, it was resolved that a Resumption Bill should be brought in. It was then resolved, in opposition to the plainest principles of justice, that no petition from any person who might think himself aggrieved by this bill should ever be received. It was necessary to consider how the commissioners should be remunerated for their services;

and this question was decided with impudent injustice. It was determined that the commissioners who had signed the report should receive a thousand pounds each. But a large party thought that the dissentient three deserved no recompense; and two of them were merely allowed what was thought sufficient to cover the expense of their journey to Ireland. This was nothing less than to give notice to every man who should ever be employed in any similar inquiry that, if he wished to be paid, he must report what would please the assembly which held the purse of the state. In truth the House was despotic, and was fast contracting the vices of a despot. It was proud of its antipathy to courtiers; and it was calling into existence a new set of courtiers who would study all its humours, who would flatter all its weaknesses, who would prophesy to it smooth things, and who would assuredly be, in no respect, less greedy, less faithless, or less abject than the sycophants who bow in the antechambers of kings.

Indeed the dissentient commissioners had worse evils to apprehend than that of being left unremunerated. One of them, Sir Richard Levinz, had mentioned in private to his friends some disrespectful expressions which had been used by one of his colleagues about the King. What he had mentioned in private was, not perhaps very discreetly, repeated by Montague in the House. The predominant party eagerly seized the opportunity of worrying both Montague and Levinz. A resolution implying a severe censure on Montague was carried. Levinz was brought to the bar and examined. The four were also in attendance. They protested that he had misrepresented them. Trenchard declared that he had always spoken of His Majesty as a subject ought to speak of an excellent sovereign, who had been deceived by evil counsellors, and who would be grateful to those who should bring the truth to his knowledge. He vehemently denied that he had called the grant to Lady Orkney villainous. It was a word that he never used, a word that never came out of the mouth of a gentleman. These assertions will be estimated at the proper value by those who are acquainted with Trenchard's pamphlets, pamphlets in which the shocking word villainous will without difficulty be found, and which are full of malignant reflections on William. [20](#) But the House was determined not to believe Levinz. He was voted a calumniator, and sent to the Tower, as an example to all who should be tempted to speak truth which the Commons might not like to hear.

Meanwhile the bill had been brought in, and was proceeding easily. It provided that all the property which had belonged to the Crown at the time of the accession of James the Second, or which had been forfeited to the Crown since that time, should be vested in trustees. These trustees were named in the bill; and among them were the four commissioners who had signed the report. All the Irish grants of William were annulled. The legal rights of persons other than the grantees were saved. But of those rights the trustees were to be judges, and judges without appeal. A claimant who gave them the trouble of attending to him, and could not make out his case, was to be heavily fined. Rewards were offered to informers who should discover any property which was liable to confiscation, and which had not yet been confiscated. Though eight years had elapsed since an arm had been lifted up in the conquered island against the domination of the Englishry, the unhappy children of the soil, who had been suffered to live, submissive and obscure, on their hereditary fields, were threatened with a new and severe inquisition into old offences.

Objectionable as many parts of the bill undoubtedly were, nobody who knew the House of Commons believed it to be possible to carry any amendment. The King flattered himself that a motion for leaving at his disposal a third part of the forfeitures would be favourably received. There can be little doubt that a compromise would have been willingly accepted twelve months earlier. But the report had made all compromise impossible. William, however, was bent on trying the experiment; and Vernon consented to go on what he considered as a forlorn hope. He made his speech and his motion; but the reception which he met with was such that he did not venture to demand a division. This feeble attempt at obstruction only made the impetuous current chafe the more. Howe immediately moved two resolutions; one attributing the load of debts and taxes which lay on the nation to the Irish grants; the other censuring all who had been concerned in advising or passing those grants. Nobody was named; not because the majority was inclined to show any tenderness to the Whig ministers, but because some of the most objectionable grants had been sanctioned by the Board of Treasury when Godolphin and Seymour, who had great influence with the country party, sat at that board.

Howe's two resolutions were laid before the King by the Speaker, in whose train all the leaders of the opposition appeared at Kensington. Even Seymour, with characteristic effrontery, showed himself there as one of the

chief authors of a vote which pronounced him guilty of a breach of duty. William's answer was that he had thought himself bound to reward out of the forfeited property those who had served him well, and especially those who had borne a principal part in the reduction of Ireland. The war, he said, had undoubtedly left behind it a heavy debt; and he should be glad to see that debt reduced by just and effectual means. This answer was but a bad one; and, in truth, it was hardly possible for him to return a good one. He had done what was indefensible; and, by attempting to defend himself, he made his case worse. It was not true that the Irish forfeitures, or one fifth part of them, had been granted to men who had distinguished themselves in the Irish war; and it was not judicious to hint that those forfeitures could not justly be applied to the discharge of the public debts. The Commons murmured, and not altogether without reason. "His Majesty tells us," they said, "that the debts fall to us and the forfeitures to him. We are to make good out of the purses of Englishmen what was spent upon the war; and he is to put into the purses of Dutchmen what was got by the war." When the House met again, Howe moved that whoever had advised the King to return such an answer was an enemy to His Majesty and the kingdom; and this resolution was carried with some slight modification.

To whatever criticism William's answer might be open, he had said one thing which well deserved the attention of the House. A small part of the forfeited property had been bestowed on men whose services to the state well deserved a much larger recompense; and that part could not be resumed without gross injustice and ingratitude. An estate of very moderate value had been given, with the title of Earl of Athlone, to Ginkell, whose skill and valour had brought the war in Ireland to a triumphant close. Another estate had been given, with the title of Earl of Galway, to Rouvigny, who, in the crisis of the decisive battle, at the very moment when Saint Ruth was waving his hat, and exclaiming that the English should be beaten back to Dublin, had, at the head of a gallant body of horse, struggled through the morass, turned the left wing of the Celtic army, and retrieved the day. But the predominant faction, drunk with insolence and animosity, made no distinction between courtiers who had been enriched by injudicious partiality and warriors who had been sparingly rewarded for great exploits achieved in defence of the liberties and the religion of our country. Athlone was a Dutchman; Galway was a Frenchman; and it did not become a good Englishman to say a word in favour of either.

Yet this was not the most flagrant injustice of which the Commons were guilty. According to the plainest principles of common law and of common sense, no man can forfeit any rights except those which he has. All the donations which William had made he had made subject to this limitation. But by this limitation the Commons were too angry and too rapacious to be bound. They determined to vest in the trustees of the forfeited lands an estate greater than had ever belonged to the forfeiting landholders. Thus innocent persons were violently deprived of property which was theirs by descent or by purchase, of property which had been strictly respected by the King and by his grantees. No immunity was granted even to men who had fought on the English side, even to men who had lined the walls of Londonderry and rushed on the Irish guns at Newton Butler.

In some cases the Commons showed indulgence; but their indulgence was not less unjustifiable, nor of less pernicious example, than their severity. The ancient rule, a rule which is still strictly maintained, and which cannot be relaxed without danger of boundless profusion and shameless jobbery, is that whatever the Parliament grants shall be granted to the Sovereign, and that no public bounty shall be bestowed on any private person except by the Sovereign.

The Lower House now, contemptuously disregarding both principles and precedents, took on itself to carve estates out of the forfeitures for persons whom it was inclined to favour. To the Duke of Ormond especially, who ranked among the Tories and was distinguished by his dislike of the foreigners, marked partiality was shown. Some of his friends, indeed, hoped that they should be able to insert in the bill a clause bestowing on him all the confiscated estates in the county of Tipperary. But they found that it would be prudent in them to content themselves with conferring on him a boon smaller in amount, but equally objectionable in principle. He had owed very large debts to persons who had forfeited to the Crown all that belonged to them. Those debts were therefore now due from him to the Crown. The House determined to make him a present of the whole, that very House which would not consent to leave a single acre to the general who had stormed Athlone, who had gained the battle of Aghrim, who had entered Galway in triumph, and who had received the submission of Limerick.

That a bill so violent, so unjust, and so unconstitutional would pass the Lords without considerable alteration was hardly to be expected. The ruling demagogues, therefore, resolved to join it with the bill which granted to the Crown a land tax of two shillings in the pound for the service of the next year, and thus to place the Upper House under the necessity of either passing both bills together without the change of a word, or rejecting both together, and leaving the public creditor unpaid and the nation defenceless.

There was great indignation among the Peers. They were not indeed more disposed than the Commons to approve of the manner in which the Irish forfeitures had been granted away; for the antipathy to the foreigners, strong as it was in the nation generally, was strongest in the highest ranks. Old barons were angry at seeing themselves preceded by new earls from Holland and Guelders. Garters, gold keys, white staves, rangerships, which had been considered as peculiarly belonging to the hereditary grandees of the realm, were now intercepted by aliens. Every English nobleman felt that his chance of obtaining a share of the favours of the Crown was seriously diminished by the competition of Bentincks and Keppels, Auverquerque and Zulesteins. But, though the riches and dignities heaped on the little knot of Dutch courtiers might disgust him, the recent proceedings of the Commons could not but disgust him still more. The authority, the respectability, the existence of his order were threatened with destruction. Not only,—such were the just complaints of the Peers,—not only are we to be deprived of that coordinate legislative power to which we are, by the constitution of the realm, entitled. We are not to be allowed even a suspensive veto. We are not to dare to remonstrate, to suggest an amendment, to offer a reason, to ask for an explanation. Whenever the other House has passed a bill to which it is known that we have strong objections, that bill is to be tacked to a bill of supply. If we alter it, we are told that we are attacking the most sacred privilege of the representatives of the people, and that we must either take the whole or reject the whole. If we reject the whole, public credit is shaken; the Royal Exchange is in confusion; the Bank stops payment; the army is disbanded; the fleet is in mutiny; the island is left, without one regiment, without one frigate, at the mercy of every enemy. The danger of throwing out a bill of supply is doubtless great. Yet it may on the whole be better that we should face that danger, once for all, than that we should consent to be, what we are fast becoming, a body of no more importance than the Convocation.

Animated by such feelings as these, a party in the Upper House was eager to take the earliest opportunity of making a stand. On the fourth of April, the second reading was moved. Near a hundred lords were present. Somers, whose serene wisdom and persuasive eloquence had seldom been more needed, was confined to his room by illness; and his place on the woolsack was supplied by the Earl of Bridgewater. Several orators, both Whig and Tory, objected to proceeding farther. But the chiefs of both parties thought it better to try the almost hopeless experiment of committing the bill and sending it back amended to the Commons. The second reading was carried by seventy votes to twenty-three. It was remarked that both Portland and Albemarle voted in the majority.

In the Committee and on the third reading several amendments were proposed and carried. Wharton, the boldest and most active of the Whig peers, and the Lord Privy Seal Lonsdale, one of the most moderate and reasonable of the Tories, took the lead, and were strenuously supported by the Lord President Pembroke, and by the Archbishop of Canterbury, who seems on this occasion to have a little forgotten his habitual sobriety and caution. Two natural sons of Charles the Second, Richmond and Southampton, who had strong personal reasons for disliking resumption bills, were zealous on the same side. No peer, however, as far as can now be discovered, ventured to defend the way in which William had disposed of his Irish domains. The provisions which annulled the grants of those domains were left untouched. But the words of which the effect was to vest in the parliamentary trustees property which had never been forfeited to the King, and had never been given away by him, were altered; and the clauses by which estates and sums of money were, in defiance of constitutional principle and of immemorial practice, bestowed on persons who were favourites of the Commons, were so far modified as to be, in form, somewhat less exceptionable. The bill, improved by these changes, was sent down by two judges to the Lower House.

The Lower House was all in a flame. There was now no difference of opinion there. Even those members who thought that the Resumption Bill and the Land Tax Bill ought not to have been tacked together, yet felt that, since those bills had been tacked together, it was impossible to agree to the amendments made by the Lords without surrendering one of the most precious privileges of the Commons. The amendments were rejected without one dissentient voice. It was resolved that a conference should be

demanded; and the gentlemen who were to manage the conference were instructed to say merely that the Upper House had no right to alter a money bill; that the point had long been settled and was too clear for argument; that they should leave the bill with the Lords, and that they should leave with the Lords also the responsibility of stopping the supplies which were necessary for the public service. Several votes of menacing sound were passed at the same sitting. It was Monday the eighth of April. Tuesday the ninth was allowed to the other House for reflection and repentance. It was resolved that on the Wednesday morning the question of the Irish forfeitures should again be taken into consideration, and that every member who was in town should be then in his place on peril of the highest displeasure of the House. It was moved and carried that every Privy Councillor who had been concerned in procuring or passing any exorbitant grant for his own benefit had been guilty of a high crime and misdemeanour. Lest the courtiers should flatter themselves that this was meant to be a mere abstract proposition, it was ordered that a list of the members of the Privy Council should be laid on the table. As it was thought not improbable that the crisis might end in an appeal to the constituent bodies, nothing was omitted which could excite out of doors a feeling in favour of the bill. The Speaker was directed to print and publish the report signed by the four Commissioners, not accompanied, as in common justice it ought to have been, by the protest of the three dissentients, but accompanied by several extracts from the journals which were thought likely to produce an impression favourable to the House and unfavourable to the Court. All these resolutions passed without any division, and without, as far as appears, any debate. There was, indeed, much speaking, but all on one side. Seymour, Harley, Howe, Harcourt, Shower, Musgrave, declaimed, one after another, about the obstinacy of the other House, the alarming state of the country, the dangers which threatened the public peace and the public credit. If, it was said, none but Englishmen sate in the Parliament and in the Council, we might hope that they would relent at the thought of the calamities which impend over England. But we have to deal with men who are not Englishmen, with men who consider this country as their own only for evil, as their property, not as their home; who, when they have gorged themselves with our wealth, will, without one uneasy feeling, leave us sunk in bankruptcy, distracted by faction, exposed without defence to invasion. "A new war," said one of these orators, "a new war, as long, as bloody, and as costly as the last,

would do less mischief than has been done by the introduction of that batch of Dutchmen among the barons of the realm." Another was so absurd as to call on the House to declare that whoever should advise a dissolution would be guilty of high treason. A third gave utterance to a sentiment which it is difficult to understand how any assembly of civilised and Christian men, even in a moment of strong excitement, should have heard without horror. "They object to tacking; do they? Let them take care that they do not provoke us to tack in earnest. How would they like to have bills of supply with bills of attainder tacked to them?" This atrocious threat, worthy of the tribune of the French Convention in the worst days of the Jacobin tyranny, seems to have passed unreprehended. It was meant—such at least was the impression at the Dutch embassy—to intimidate Somers. He was confined by illness. He had been unable to take any public part in the proceedings of the Lords; and he had privately blamed them for engaging in a conflict in which he justly thought that they could not be victorious. Nevertheless, the Tory leaders hoped that they might be able to direct against him the whole force of the storm which they had raised. Seymour, in particular, encouraged by the wild and almost savage temper of his hearers, harangued with rancorous violence against the wisdom and the virtue which presented the strongest contrast to his own turbulence, insolence, faithlessness, and rapacity. No doubt, he said, the Lord Chancellor was a man of parts. Anybody might be glad to have for counsel so acute and eloquent an advocate. But a very good advocate might be a very bad minister; and, of all the ministers who had brought the kingdom into difficulties, this plausible, fair-spoken person was the most dangerous. Nor was the old reprobate ashamed to add that he was afraid that his Lordship was no better than a Hobbist in religion.

After a long sitting the members separated; but they reassembled early on the morning of the following day, Tuesday the ninth of April. A conference was held; and Seymour, as chief manager for the Commons, returned the bill and the amendments to the Peers in the manner which had been prescribed to him. From the Painted Chamber he went back to the Lower House, and reported what had passed. "If," he said, "I may venture to judge by the looks and manner of their Lordships, all will go right." But within half an hour evil tidings came through the Court of Requests and the lobbies. The Lords had divided on the question whether they would adhere to their amendments. Forty-seven had voted for adhering, and thirty-four

for giving way. The House of Commons broke up with gloomy looks, and in great agitation. All London looked forward to the next day with painful forebodings. The general feeling was in favour of the bill. It was rumoured that the majority which had determined to stand by the amendments had been swollen by several prelates, by several of the illegitimate sons of Charles the Second, and by several needy and greedy courtiers. The cry in all the public places of resort was that the nation would be ruined by the three B's, Bishops, Bastards, and Beggars. On Wednesday the tenth, at length, the contest came to a decisive issue. Both Houses were early crowded. The Lords demanded a conference. It was held; and Pembroke delivered back to Seymour the bill and the amendments, together with a paper containing a concise, but luminous and forcible, exposition of the grounds on which the Lords conceived themselves to be acting in a constitutional and strictly defensive manner. This paper was read at the bar; but, whatever effect it may now produce on a dispassionate student of history, it produced none on the thick ranks of country gentlemen. It was instantly resolved that the bill should again be sent back to the Lords with a peremptory announcement that the Commons' determination was unalterable.

The Lords again took the amendments into consideration. During the last forty-eight hours, great exertions had been made in various quarters to avert a complete rupture between the Houses. The statesmen of the junto were far too wise not to see that it would be madness to continue the struggle longer. It was indeed necessary, unless the King and the Lords were to be of as little weight in the State as in 1648, unless the House of Commons was not merely to exercise a general control over the government, but to be, as in the days of the Rump, itself the whole government, the sole legislative chamber, the fountain from which were to flow all those favours which had hitherto been in the gift of the Crown, that a determined stand should be made. But, in order that such a stand might be successful, the ground must be carefully selected; for a defeat might be fatal. The Lords must wait for some occasion on which their privileges would be bound up with the privileges of all Englishmen, for some occasion on which the constituent bodies would, if an appeal were made to them, disavow the acts of the representative body; and this was not such an occasion. The enlightened and large minded few considered tacking as a practice so pernicious that it would be justified only by an emergency which would justify a resort to

physical force. But, in the many, tacking, when employed for a popular end, excited little or no disapprobation. The public, which seldom troubles itself with nice distinctions, could not be made to understand that the question at issue was any other than this, whether a sum which was vulgarly estimated at millions, and which undoubtedly amounted to some hundreds of thousands, should be employed in paying the debts of the state and alleviating the load of taxation, or in making Dutchmen, who were already too rich, still richer. It was evident that on that question the Lords could not hope to have the country with them, and that, if a general election took place while that question was unsettled, the new House of Commons would be even more mutinous and impracticable than the present House. Somers, in his sick chamber, had given this opinion. Orford had voted for the bill in every stage. Montague, though no longer a minister, had obtained admission to the royal closet, and had strongly represented to the King the dangers which threatened the state. The King had at length consented to let it be understood that he considered the passing of the bill as on the whole the less of two great evils. It was soon clear that the temper of the Peers had undergone a considerable alteration since the preceding day. Scarcely any, indeed, changed sides. But not a few abstained from voting. Wharton, who had at first spoken powerfully for the amendments, left town for Newmarket. On the other hand, some Lords who had not yet taken their part came down to give a healing vote. Among them were the two persons to whom the education of the young heir apparent had been entrusted, Marlborough and Burnet. Marlborough showed his usual prudence. He had remained neutral while by taking a part he must have offended either the House of Commons or the King. He took a part as soon as he saw that it was possible to please both. Burnet, alarmed for the public peace, was in a state of great excitement, and, as was usual with him when in such a state, forgot dignity and decorum, called out "stuff" in a very audible voice while a noble Lord was haranguing in favour of the amendments, and was in great danger of being reprimanded at the bar or delivered over to Black Rod. The motion on which the division took place was that the House do adhere to the amendments. There were forty contents and thirty-seven not contents. Proxies were called; and the numbers were found to be exactly even. In the House of Lords there is no casting vote. When the numbers are even, the non contents have it. The motion to adhere had therefore been negatived. But this was not enough. It was necessary that an affirmative resolution

should be moved to the effect that the House agreed to the bill without amendments; and, if the numbers should again be equal, this motion would also be lost. It was an anxious moment. Fortunately the Primate's heart failed him. He had obstinately fought the battle down to the last stage. But he probably felt that it was no light thing to take on himself, and to bring on his order, the responsibility of throwing the whole kingdom into confusion. He started up and hurried out of the House, beckoning to some of his brethren. His brethren followed him with a prompt obedience, which, serious as the crisis was, caused no small merriment. In consequence of this defection, the motion to agree was carried by a majority of five. Meanwhile the members of the other House had been impatiently waiting for news, and had been alternately elated and depressed by the reports which followed one another in rapid succession. At first it was confidently expected that the Peers would yield; and there was general good humour. Then came intelligence that the majority of the Lords present had voted for adhering to the amendments. "I believe," so Vernon wrote the next day, "I believe there was not one man in the House that did not think the nation ruined." The lobbies were cleared; the back doors were locked; the keys were laid on the table; the Serjeant at Arms was directed to take his post at the front door, and to suffer no member to withdraw. An awful interval followed, during which the angry passions of the assembly seemed to be subdued by terror. Some of the leaders of the opposition, men of grave character and of large property, stood aghast at finding that they were engaged,—they scarcely knew how,—in a conflict such as they had not at all expected, in a conflict in which they could be victorious only at the expense of the peace and order of society. Even Seymour was sobered by the greatness and nearness of the danger. Even Howe thought it advisable to hold conciliatory language. It was no time, he said, for wrangling. Court party and country party were Englishmen alike. Their duty was to forget all past grievances, and to cooperate heartily for the purpose of saving the country.

In a moment all was changed. A message from the Lords was announced. It was a message which lightened many heavy hearts. The bill had been passed without amendments.

The leading malecontents, who, a few minutes before, scared by finding that their violence had brought on a crisis for which they were not prepared, had talked about the duty of mutual forgiveness and close union, instantly became again as rancorous as ever. One danger, they said, was over. So far

well. But it was the duty of the representatives of the people to take such steps as might make it impossible that there should ever again be such danger. Every adviser of the Crown, who had been concerned in the procuring or passing of any exorbitant grant, ought to be excluded from all access to the royal ear. A list of the privy councillors, furnished in conformity with the order made two days before, was on the table. That list the clerk was ordered to read. Prince George of Denmark and the Archbishop of Canterbury passed without remark. But, as soon as the Chancellor's name had been pronounced, the rage of his enemies broke forth. Twice already, in the course of that stormy session, they had attempted to ruin his fame and his fortunes; and twice his innocence and his calm fortitude had confounded all their politics. Perhaps, in the state of excitement to which the House had been wrought up, a third attack on him might be successful. Orator after orator declaimed against him. He was the great offender. He was responsible for all the grievances of which the nation complained. He had obtained exorbitant grants for himself. He had defended the exorbitant grants obtained by others. He had not, indeed, been able, in the late debates, to raise his own voice against the just demands of the nation. But it might well be suspected that he had in secret prompted the ungracious answer of the King and encouraged the pertinacious resistance of the Lords. Sir John Levison Gower, a noisy and acrimonious Tory, called for impeachment. But Musgrave, an abler and more experienced politician, saw that, if the imputations which the opposition had been in the habit of throwing on the Chancellor were exhibited with the precision of a legal charge, their futility would excite universal derision, and thought it more expedient to move that the House should, without assigning any reason, request the King to remove Lord Somers from His Majesty's counsels and presence for ever. Cowper defended his persecuted friend with great eloquence and effect; and he was warmly supported by many members who had been zealous for the resumption of the Irish grants. Only a hundred and six members went into the lobby with Musgrave; a hundred and sixty-seven voted against him. Such a division, in such a House of Commons, and on such a day, is sufficient evidence of the respect which the great qualities of Somers had extorted even from his political enemies.

The clerk then went on with the list. The Lord President and the Lord Privy Seal, who were well known to have stood up strongly for the privileges of the Lords, were reviled by some angry members; but no

motion was made against either. And soon the Tories became uneasy in their turn; for the name of the Duke of Leeds was read. He was one of themselves. They were very unwilling to put a stigma on him. Yet how could they, just after declaiming against the Chancellor for accepting a very moderate and well earned provision, undertake the defence of a statesman who had, out of grants, pardons and bribes, accumulated a princely fortune? There was actually on the table evidence that His Grace was receiving from the bounty of the Crown more than thrice as much as had been bestowed on Somers; and nobody could doubt that His Grace's secret gains had very far exceeded those of which there was evidence on the table. It was accordingly moved that the House, which had indeed been sitting massy hours, should adjourn. The motion was lost; but neither party was disposed to move that the consideration of the list should be resumed. It was however resolved, without a division, that an address should be presented to the King, requesting that no person not a native of his dominions, Prince George excepted, might be admitted to the Privy Council either of England or of Ireland. The evening was now far spent. The candles had been some time lighted; and the House rose. So ended one of the most anxious, turbulent, and variously eventful days in the long Parliamentary History of England.

What the morrow would have produced if time had been allowed for a renewal of hostilities can only be guessed. The supplies had been voted. The King was determined not to receive the address which requested him to disgrace his dearest and most trusty friends. Indeed he would have prevented the passing of that address by proroguing Parliament on the preceding day, had not the Lords risen the moment after they had agreed to the Resumption Bill. He had actually come from Kensington to the Treasury for that purpose; and his robes and crown were in readiness. He now took care to be at Westminster in good time. The Commons had scarcely met when the knock of Black Rod was heard. They repaired to the other House. The bills were passed; and Bridgewater, by the royal command, prorogued the Parliament. For the first time since the Revolution the session closed without a speech from the throne. William was too angry to thank the Commons, and too prudent to reprimand them.

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The health of James had been during some years declining and he had at length, on Good Friday, 1701, suffered a shock from which he had never

recovered. While he was listening in his chapel to the solemn service of the day, he fell down in a fit, and remained long insensible. Some people imagined that the words of the anthem which his choristers were chanting had produced in him emotions too violent to be borne by an enfeebled body and mind. For that anthem was taken from the plaintive elegy in which a servant of the true God, chastened by many sorrows and humiliations, banished, homesick, and living on the bounty of strangers, bewailed the fallen throne and the desolate Temple of Sion: "Remember, O Lord, what is come upon us; consider and behold our reproach. Our inheritance is turned to strangers, our houses to aliens; the crown is fallen from our head. Wherefore dost thou forget us for ever?"

The King's malady proved to be paralytic. Fagon, the first physician of the French Court, and, on medical questions, the oracle of all Europe, prescribed the waters of Bourbon. Lewis, with all his usual generosity, sent to Saint Germain ten thousand crowns in gold for the charges of the journey, and gave orders that every town along the road should receive his good brother with all the honours due to royalty. [21](#)

James, after passing some time at Bourbon, returned to the neighbourhood of Paris with health so far reestablished that he was able to take exercise on horseback, but with judgment and memory evidently impaired. On the thirteenth of September, he had a second fit in his chapel; and it soon became clear that this was a final stroke. He rallied the last energies of his failing body and mind to testify his firm belief in the religion for which he had sacrificed so much. He received the last sacraments with every mark of devotion, exhorted his son to hold fast to the true faith in spite of all temptations, and entreated Middleton, who, almost alone among the courtiers assembled in the bedchamber, professed himself a Protestant, to take refuge from doubt and error in the bosom of the one infallible Church. After the extreme unction had been administered, James declared that he pardoned all his enemies, and named particularly the Prince of Orange, the Princess of Denmark, and the Emperor. The Emperor's name he repeated with peculiar emphasis: "Take notice, father," he said to the confessor, "that I forgive the Emperor with all my heart." It may perhaps seem strange that he should have found this the hardest of all exercises of Christian charity. But it must be remembered that the Emperor was the only Roman Catholic Prince still living who had been accessory to the Revolution, and that James might not unnaturally consider Roman

Catholics who had been accessory to the Revolution as more inexcusably guilty than heretics who might have deluded themselves into the belief that, in violating their duty to him, they were discharging their duty to God.

While James was still able to understand what was said to him, and make intelligible answers, Lewis visited him twice. The English exiles observed that the Most Christian King was to the last considerate and kind in the very slightest matters which concerned his unfortunate guest. He would not allow his coach to enter the court of Saint Germain, lest the noise of the wheels should be heard in the sick room. In both interviews he was gracious, friendly, and even tender. But he carefully abstained from saying anything about the future position of the family which was about to lose its head. Indeed he could say nothing, for he had not yet made up his own mind. Soon, however, it became necessary for him to form some resolution. On the sixteenth James sank into a stupor which indicated the near approach of death. While he lay in this helpless state, Madame de Maintenon visited his consort. To this visit many persons who were likely to be well informed attributed a long series of great events. We cannot wonder that a woman should have been moved to pity by the misery of a woman; that a devout Roman Catholic should have taken a deep interest in the fate of a family persecuted, as she conceived, solely for being Roman Catholics; or that the pride of the widow of Scarron should have been intensely gratified by the supplications of a daughter of Este and a Queen of England. From mixed motives, probably, the wife of Lewis promised her powerful protection to the wife of James.

Madame de Maintenon was just leaving Saint Germain when, on the brow of the hill which overlooks the valley of the Seine, she met her husband, who had come to ask after his guest. It was probable at this moment that he was persuaded to form a resolution, of which neither he nor she by whom he was governed foresaw the consequences. Before he announced that resolution, however, he observed all the decent forms of deliberation. A council was held that evening at Marli, and was attended by the princes of the blood and by the ministers of state. The question was propounded, whether, when God should take James the Second of England to himself, France should recognise the Pretender as King James the Third?

The ministers were, one and all, against the recognition. Indeed, it seems difficult to understand how any person who had any pretensions to the name

of statesman should have been of a different opinion. Torcy took his stand on the ground that to recognise the Prince of Wales would be to violate the Treaty of Ryswick. This was indeed an impregnable position. By that treaty His Most Christian Majesty had bound himself to do nothing which could, directly or indirectly, disturb the existing order of things in England. And in what way, except by an actual invasion, could he do more to disturb the existing order of things in England than by solemnly declaring, in the face of the whole world, that he did not consider that order of things as legitimate, that he regarded the Bill of Rights and the Act of Settlement as nullities, and the King in possession as an usurper? The recognition would then be a breach of faith; and, even if all considerations of morality were set aside, it was plain that it would, at that moment, be wise in the French government to avoid every thing which could with plausibility be represented as a breach of faith. The crisis was a very peculiar one. The great diplomatic victory won by France in the preceding year had excited the fear and hatred of her neighbours. Nevertheless there was, as yet, no great coalition against her. The House of Austria, indeed, had appealed to arms. But with the House of Austria alone the House of Bourbon could easily deal. Other powers were still looking in doubt to England for the signal; and England, though her aspect was sullen and menacing, still preserved neutrality. That neutrality would not have lasted so long, if William could have relied on the support of his Parliament and of his people. In his Parliament there were agents of France, who, though few, had obtained so much influence by clamouring against standing armies, profuse grants, and Dutch favourites, that they were often blindly followed by the majority; and his people, distracted by domestic factions, unaccustomed to busy themselves about continental politics, and remembering with bitterness the disasters and burdens of the last war, the carnage of Landen, the loss of the Smyrna fleet, the land tax at four shillings in the pound, hesitated about engaging in another contest, and would probably continue to hesitate while he continued to live. He could not live long. It had, indeed, often been prophesied that his death was at hand; and the prophets had hitherto been mistaken. But there was now no possibility of mistake. His cough was more violent than ever; his legs were swollen; his eyes, once bright and clear as those of a falcon, had grown dim; he who, on the day of the Boyne, had been sixteen hours on the backs of different horses, could now with great difficulty creep into his state coach. [22](#) The vigorous

intellect, and the intrepid spirit, remained; but on the body fifty years had done the work of ninety. In a few months the vaults of Westminster would receive the emaciated and shattered frame which was animated by the most far-sighted, the most daring, the most commanding of souls. In a few months the British throne would be filled by a woman whose understanding was well known to be feeble, and who was believed to lean towards the party which was averse from war. To get over those few months without an open and violent rupture should have been the first object of the French government. Every engagement should have been punctually fulfilled; every occasion of quarrel should have been studiously avoided. Nothing should have been spared which could quiet the alarms and soothe the wounded pride of neighbouring nations.

The House of Bourbon was so situated that one year of moderation might not improbably be rewarded by thirty years of undisputed ascendancy. Was it possible the politic and experienced Lewis would at such a conjuncture offer a new and most galling provocation, not only to William, whose animosity was already as great as it could be, but to the people whom William had hitherto been vainly endeavouring to inspire with animosity resembling his own? How often, since the Revolution of 1688, had it seemed that the English were thoroughly weary of the new government. And how often had the detection of a Jacobite plot, or the approach of a French armament, changed the whole face of things. All at once the grumbling had ceased, the grumblers had crowded to sign loyal addresses to the usurper, had formed associations in support of his authority, had appeared in arms at the head of the militia, crying God save King William. So it would be now. Most of those who had taken a pleasure in crossing him on the question of his Dutch guards, on the question of his Irish grants, would be moved to vehement resentment when they learned that Lewis had, in direct violation of a treaty, determined to force on England a king of his own religion, a king bred in his own dominions, a king who would be at Westminster what Philip was at Madrid, a great feudatory of France.

These arguments were concisely but clearly and strongly urged by Torcy in a paper which is still extant, and which it is difficult to believe that his master can have read without great misgivings. [23](#) On one side were the faith of treaties, the peace of Europe, the welfare of France, nay the selfish interest of the House of Bourbon. On the other side were the influence of an artful woman, and the promptings of vanity which, we must in candour

acknowledge, was ennobled by a mixture of compassion and chivalrous generosity. The King determined to act in direct opposition to the advice of all his ablest servants; and the princes of the blood applauded his decision, as they would have applauded any decision which he had announced. Nowhere was he regarded with a more timorous, a more slavish, respect than in his own family.

On the following day he went again to Saint Germain, and, attended by a splendid retinue, entered James's bedchamber. The dying man scarcely opened his heavy eyes, and then closed them again. "I have something," said Lewis, "of great moment to communicate to Your Majesty." The courtiers who filled the room took this as a signal to retire, and were crowding towards the door, when they were stopped by that commanding voice: "Let nobody withdraw. I come to tell Your Majesty that, whenever it shall please God to take you from us, I will be to your son what I have been to you, and will acknowledge him as King of England, Scotland and Ireland." The English exiles who were standing round the couch fell on their knees. Some burst into tears. Some poured forth praises and blessings with clamour such as, was scarcely becoming in such a place and at such a time. Some indistinct murmurs which James uttered, and which were drowned by the noisy gratitude of his attendants, were interpreted to mean thanks. But from the most trustworthy accounts it appears that he was insensible to all that was passing around him. [24](#)

As soon as Lewis was again at Marli, he repeated to the Court assembled there the announcement which he had made at Saint Germain. The whole circle broke forth into exclamations of delight and admiration. What piety! What humanity! What magnanimity! Nor was this enthusiasm altogether feigned. For, in the estimation of the greater part of that brilliant crowd, nations were nothing and princes every thing. What could be more generous, more amiable, than to protect an innocent boy, who was kept out of his rightful inheritance by an ambitious kinsman? The fine gentlemen and fine ladies who talked thus forgot that, besides the innocent boy and that ambitious kinsman, five millions and a half of Englishmen were concerned, who were little disposed to consider themselves as the absolute property of any master, and who were still less disposed to accept a master chosen for them by the French King.

James lingered three days longer. He was occasionally sensible during a few minutes, and, during one of these lucid intervals, faintly expressed his gratitude to Lewis. On the sixteenth he died. His Queen retired that evening to the nunnery of Chaillot, where she could weep and pray undisturbed. She left Saint Germain in joyous agitation. A herald made his appearance before the palace gate, and, with sound of trumpet, proclaimed, in Latin, French and English, King James the Third of England and Eighth of Scotland. The streets, in consequence doubtless of orders from the government, were illuminated; and the townsmen with loud shouts wished a long reign to their illustrious neighbour. The poor lad received from his ministers, and delivered back to them, the seals of their offices, and held out his hand to be kissed. One of the first acts of his mock reign was to bestow some mock peerages in conformity with directions which he found in his father's will. Middleton, who had as yet no English title, was created Earl of Monmouth. Perth, who had stood high in the favour of his late master, both as an apostate from the Protestant religion, and as the author of the last improvements on the thumb screw, took the title of Duke.

Meanwhile the remains of James were escorted, in the dusk of the evening, by a slender retinue to the Chapel of the English Benedictines at Paris, and deposited there in the vain hope that, at some future time, they would be laid with kingly pomp at Westminster among the graves of the Plantagenets and Tudors.

Three days after these humble obsequies Lewis visited Saint Germain in form. On the morrow the visit was returned. The French Court was now at Versailles; and the Pretender was received there, in all points, as his father would have been, sate in his father's arm chair, took, as his father had always done, the right hand of the great monarch, and wore the long violet coloured mantle which was by ancient usage the mourning garb of the Kings of France. There was on that day a great concourse of ambassadors and envoys; but one well known figure was wanting. Manchester had sent off to Loo intelligence of the affront which had been offered to his country and his master, had solicited instructions, and had determined that, till these instructions should arrive, he would live in strict seclusion. He did not think that he should be justified in quitting his post without express orders; but his earnest hope was that he should be directed to turn his back in contemptuous defiance on the Court which had dared to treat England as a subject province.

As soon as the fault into which Lewis had been hurried by pity, by the desire of applause, and by female influence was complete and irreparable, he began to feel serious uneasiness. His ministers were directed to declare everywhere that their master had no intention of affronting the English government, that he had not violated the Treaty of Ryswick, that he had no intention of violating it, that he had merely meant to gratify an unfortunate family nearly related to himself by using names and observing forms which really meant nothing, and that he was resolved not to countenance any attempt to subvert the throne of William. Torcy, who had, a few days before, proved by irrefragable arguments that his master could not, without a gross breach of contract, recognise the Pretender, imagined that sophisms which had not imposed on himself might possibly impose on others. He visited the English embassy, obtained admittance, and, as was his duty, did his best to excuse the fatal act which he had done his best to prevent. Manchester's answer to this attempt at explanation was as strong and plain as it could be in the absence of precise instructions. The instructions speedily arrived. The courier who carried the news of the recognition to Loo arrived there when William was at table with some of his nobles and some princes of the German Empire who had visited him in his retreat. The King said not a word; but his pale cheek flushed; and he pulled his hat over his eyes to conceal the changes of his countenance. He hastened to send off several messengers. One carried a letter commanding Manchester to quit France without taking leave. Another started for London with a despatch which directed the Lords Justices to send Poussin instantly out of England.

England was already in a flame when it was first known there that James was dying. Some of his eager partisans formed plans and made preparations for a great public manifestation of feeling in different parts of the island. But the insolence of Lewis produced a burst of public indignation which scarcely any malecontent had the courage to face.

In the city of London, indeed, some zealots, who had probably swallowed too many bumpers to their new Sovereign, played one of those senseless pranks which were characteristic of their party. They dressed themselves in coats bearing some resemblance to the tabards of heralds, rode through the streets, halted at some places, and muttered something which nobody could understand. It was at first supposed that they were merely a company of prize fighters from Hockley in the Hole who had taken this way of advertising their performances with back sword, sword

and buckler, and single falchion. But it was soon discovered that these gaudily dressed horsemen were proclaiming James the Third. In an instant the pageant was at an end. The mock kings at arms and pursuivants threw away their finery and fled for their lives in all directions, followed by yells and showers of stones. [25](#) Already the Common Council of London had met, and had voted, without one dissentient voice, an address expressing the highest resentment at the insult which France had offered to the King and the kingdom. A few hours after this address had been presented to the Regents, the Livery assembled to choose a Lord Mayor. Duncombe, the Tory candidate, lately the popular favourite, was rejected, and a Whig alderman placed in the chair. All over the kingdom, corporations, grand juries, meetings of magistrates, meetings of freeholders, were passing resolutions breathing affection to William, and defiance to Lewis. It was necessary to enlarge the "London Gazette" from four columns to twelve; and even twelve were too few to hold the multitude of loyal and patriotic addresses. In some of those addresses severe reflections were thrown on the House of Commons. Our deliverer had been ungratefully requited, thwarted, mortified, denied the means of making the country respected and feared by neighbouring states. The factious wrangling, the penny wise economy, of three disgraceful years had produced the effect which might have been expected. His Majesty would never have been so grossly affronted abroad, if he had not first been affronted at home. But the eyes of his people were opened. He had only to appeal from the representatives to the constituents; and he would find that the nation was still sound at heart.

Poussin had been directed to offer to the Lords Justices explanations similar to those with which Torcy had attempted to appease Manchester. A memorial was accordingly drawn up and presented to Vernon; but Vernon refused to look at it. Soon a courier arrived from Loo with the letter in which William directed his vicegerents to send the French agent out of the kingdom. An officer of the royal household was charged with the execution of the order. He repaired to Poussin's lodgings; but Poussin was not at home; he was supping at the Blue Posts, a tavern much frequented by Jacobites, the very tavern indeed at which Charnock and his gang had breakfasted on the day fixed for the murderous ambushade of Turnham Green. To this house the messenger went; and there he found Poussin at table with three of the most virulent Tory members of the House of Commons, Tredenham, who returned himself for Saint Mawes; Hammond,

who had been sent to Parliament by the high churchmen of the University of Cambridge; and Davenant, who had recently, at Poussin's suggestion, been rewarded by Lewis for some savage invectives against the Whigs with a diamond ring worth three thousand pistoles. This supper party was, during some weeks, the chief topic of conversation. The exultation of the Whigs was boundless. These then were the true English patriots, the men who could not endure a foreigner, the men who would not suffer His Majesty to bestow a moderate reward on the foreigners who had stormed Athlone, and turned the flank of the Celtic army at Aghrim. It now appeared they could be on excellent terms with a foreigner, provided only that he was the emissary of a tyrant hostile to the liberty, the independence, and the religion of their country. The Tories, vexed and abashed, heartily wished that, on that unlucky day, their friends had been supping somewhere else. Even the bronze of Davenant's forehead was not proof to the general reproach. He defended himself by pretending that Poussin, with whom he had passed whole days, who had corrected his scurrilous pamphlets, and who had paid him his shameful wages, was a stranger to him, and that the meeting at the Blue Posts was purely accidental. If his word was doubted, he was willing to repeat his assertion on oath. The public, however, which had formed a very correct notion of his character, thought that his word was worth as much as his oath, and that his oath was worth nothing.

Meanwhile the arrival of William was impatiently expected. From Loo he had gone to Breda, where he had passed some time in reviewing his troops, and in conferring with Marlborough and Heinsius. He had hoped to be in England early in October. But adverse winds detained him three weeks at the Hague. At length, in the afternoon of the fourth of November, it was known in London that he had landed early that morning at Margate. Great preparations were made for welcoming him to his capital on the following day, the thirteenth anniversary of his landing in Devonshire. But a journey across the bridge, and along Cornhill and Cheapside, Fleet Street, and the Strand, would have been too great an effort for his enfeebled frame. He accordingly slept at Greenwich, and thence proceeded to Hampton Court without entering London. His return was, however, celebrated by the populace with every sign of joy and attachment. The bonfires blazed, and the gunpowder roared, all night. In every parish from Mile End to Saint James's was to be seen enthroned on the shoulders of stout Protestant porters a pope, gorgeous in robes of tinsel and triple crown of pasteboard;

and close to the ear of His Holiness stood a devil with horns, cloven hoof, and a snaky tail.

Even in his country house the king could find no refuge from the importunate loyalty of his people. Reputations from cities, counties, universities, besieged him all day. He was, he wrote to Heinsius, quite exhausted by the labour of hearing harangues and returning answers. The whole kingdom meanwhile was looking anxiously towards Hampton Court. Most of the ministers were assembled there. The most eminent men of the party which was out of power had repaired thither, to pay their duty to their sovereign, and to congratulate him on his safe return. It was remarked that Somers and Halifax, so malignantly persecuted a few months ago by the House of Commons, were received with such marks of esteem and kindness as William was little in the habit of vouchsafing to his English courtiers. The lower ranks of both the great factions were violently agitated. The Whigs, lately vanquished and dispirited, were full of hope and ardour. The Tories, lately triumphant and secure, were exasperated and alarmed. Both Whigs and Tories waited with intense anxiety for the decision of one momentous and pressing question. Would there be a dissolution? On the seventh of November the King propounded that question to his Privy Council. It was rumoured, and is highly probable, that Jersey, Wright and Hedges advised him to keep the existing Parliament. But they were not men whose opinion was likely to have much weight with him; and Rochester, whose opinion might have had some weight, had set out to take possession of his Viceroyalty just before the death of James, and was still at Dublin. William, however, had, as he owned to Heinsius, some difficulty in making up his mind. He had no doubt that a general election would give him a better House of Commons; but a general election would cause delay; and delay might cause much mischief. After balancing these considerations, during some hours, he determined to dissolve.

The writs were sent out with all expedition; and in three days the whole kingdom was up. Never—such was the intelligence sent from the Dutch Embassy to the Hague—had there been more intriguing, more canvassing, more virulence of party feeling. It was in the capital that the first great contests took place. The decisions of the Metropolitan constituent bodies were impatiently expected as auguries of the general result. All the pens of Grub Street, all the presses of Little Britain, were hard at work. Handbills for and against every candidate were sent to every voter. The popular

slogans on both sides were indefatigably repeated. Presbyterian, Papist, Tool of Holland, Pensioner of France, were the appellations interchanged between the contending factions. The Whig cry was that the Tory members of the last two Parliaments had, from a malignant desire to mortify the King, left the kingdom exposed to danger and insult, had unconstitutionally encroached both on the legislature and on the judicial functions of the House of Lords, had turned the House of Commons into a new Star Chamber, had used as instruments of capricious tyranny those privileges which ought never to be employed but in defence of freedom, had persecuted, without regard to law, to natural justice, or to decorum, the great Commander who had saved the state at La Hogue, the great Financier who had restored the currency and reestablished public credit, the great judge whom all persons not blinded by prejudice acknowledged to be, in virtue, in prudence, in learning and eloquence, the first of living English jurists and statesmen. The Tories answered that they had been only too moderate, only too merciful; that they had used the Speaker's warrant and the power of tacking only too sparingly; and that, if they ever again had a majority, the three Whig leaders who now imagined themselves secure should be impeached, not for high misdemeanours, but for high treason. It soon appeared that these threats were not likely to be very speedily executed. Four Whig and four Tory candidates contested the City of London. The show of hands was for the Whigs. A poll was demanded; and the Whigs polled nearly two votes to one. Sir John Levison Gower, who was supposed to have ingratiated himself with the whole body of shopkeepers by some parts of his parliamentary conduct, was put up for Westminster on the Tory interest; and the electors were reminded by puffs in the newspapers of the services which he had rendered to trade. But the dread of the French King, the Pope, and the Pretender, prevailed; and Sir John was at the bottom of the poll. Southwark not only returned Whigs, but gave them instructions of the most Whiggish character.

In the country, parties were more nearly balanced than in the capital. Yet the news from every quarter was that the Whigs had recovered part at least of the ground which they had lost. Wharton had regained his ascendancy in Buckinghamshire. Musgrave was rejected by Westmoreland. Nothing did more harm to the Tory candidates than the story of Poussin's farewell supper. We learn from their own acrimonious invectives that the unlucky discovery of the three members of Parliament at the Blue Posts cost thirty

honest gentlemen their seats. One of the criminals, Tredenham, escaped with impunity. For the dominion of his family over the borough of St. Mawes was absolute even to a proverb. The other two had the fate which they deserved. Davenant ceased to sit for Bedwin. Hammond, who had lately stood high in the favour of the University of Cambridge, was defeated by a great majority, and was succeeded by the glory of the Whig party, Isaac Newton.

There was one district to which the eyes of hundreds of thousands were turned with anxious interest, Gloucestershire. Would the patriotic and high spirited gentry and yeomanry of that great county again confide their dearest interests to the Impudent Scandal of parliaments, the renegade, the slanderer, the mountebank, who had been, during thirteen years, railing at his betters of every party with a spite restrained by nothing but the craven fear of corporal chastisement, and who had in the last Parliament made himself conspicuous by the abject court which he had paid to Lewis and by the impertinence with which he had spoken of William.

The Gloucestershire election became a national affair. Portmanteaus full of pamphlets and broadsides were sent down from London. Every freeholder in the county had several tracts left at his door. In every market place, on the market day, papers about the brazen forehead, the viperous tongue, and the white liver of Jack Howe, the French King's buffoon, flew about like flakes in a snow storm. Clowns from the Cotswold Hills and the forest of Dean, who had votes, but who did not know their letters, were invited to hear these satires read, and were asked whether they were prepared to endure the two great evils which were then considered by the common people of England as the inseparable concomitants of despotism, to wear wooden shoes, and to live on frogs. The dissenting preachers and the clothiers were peculiarly zealous. For Howe was considered as the enemy both of conventicles and of factories. Outvoters were brought up to Gloucester in extraordinary numbers. In the city of London the traders who frequented Blackwell Hall, then the great emporium for woollen goods, canvassed actively on the Whig side.

[Here the revised part ends.—EDITOR.]

Meanwhile reports about the state of the King's health were constantly becoming more and more alarming. His medical advisers, both English and Dutch, were at the end of their resources. He had consulted by letter all the

most eminent physicians of Europe; and, as he was apprehensive that they might return flattering answers if they knew who he was, he had written under feigned names. To Fagon he had described himself as a parish priest. Fagon replied, somewhat bluntly, that such symptoms could have only one meaning, and that the only advice which he had to give to the sick man was to prepare himself for death. Having obtained this plain answer, William consulted Fagon again without disguise, and obtained some prescriptions which were thought to have a little retarded the approach of the inevitable hour. But the great King's days were numbered. Headaches and shivering fits returned on him almost daily. He still rode and even hunted; [26](#) but he had no longer that firm seat or that perfect command of the bridle for which he had once been renowned. Still all his care was for the future. The filial respect and tenderness of Albemarle had been almost a necessary of life to him. But it was of importance that Heinsius should be fully informed both as to the whole plan of the next campaign and as to the state of the preparations. Albemarle was in full possession of the King's views on these subjects. He was therefore sent to the Hague. Heinsius was at that time suffering from indisposition, which was indeed a trifle when compared with the maladies under which William was sinking. But in the nature of William there was none of that selfishness which is the too common vice of invalids. On the twentieth of February he sent to Heinsius a letter in which he did not even allude to his own sufferings and infirmities. "I am," he said, "infinitely concerned to learn that your health is not yet quite reestablished. May God be pleased to grant you a speedy recovery. I am unalterably your good friend, William." Those were the last lines of that long correspondence.

On the twentieth of February William was ambling on a favourite horse, named Sorrel, through the park of Hampton Court. He urged his horse to strike into a gallop just at the spot where a mole had been at work. Sorrel stumbled on the mole-hill, and went down on his knees. The King fell off, and broke his collar bone. The bone was set; and he returned to Kensington in his coach. The jolting of the rough roads of that time made it necessary to reduce the fracture again. To a young and vigorous man such an accident would have been a trifle. But the frame of William was not in a condition to bear even the slightest shock. He felt that his time was short, and grieved, with a grief such as only noble spirits feel, to think that he must leave his work but half finished. It was possible that he might still live until one of his plans should be carried into execution. He had long known that the

relation in which England and Scotland stood to each other was at best precarious, and often unfriendly, and that it might be doubted whether, in an estimate of the British power, the resources of the smaller country ought not to be deducted from those of the larger. Recent events had proved that, without doubt, the two kingdoms could not possibly continue for another year to be on the terms on which they had been during the preceding century, and that there must be between them either absolute union or deadly enmity. Their enmity would bring frightful calamities, not on themselves alone, but on all the civilised world. Their union would be the best security for the prosperity of both, for the internal tranquillity of the island, for the just balance of power among European states, and for the immunities of all Protestant countries. On the twenty-eighth of February the Commons listened with uncovered heads to the last message that bore William's sign manual. An unhappy accident, he told them, had forced him to make to them in writing a communication which he would gladly have made from the throne. He had, in the first year of his reign, expressed his desire to see an union accomplished between England and Scotland. He was convinced that nothing could more conduce to the safety and happiness of both. He should think it his peculiar felicity if, before the close of his reign, some happy expedient could be devised for making the two kingdoms one; and he, in the most earnest manner, recommended the question to the consideration of the Houses. It was resolved that the message should betaken into consideration on Saturday, the seventh of March.

But on the first of March humours of menacing appearance showed themselves in the King's knee. On the fourth of March he was attacked by fever; on the fifth his strength failed greatly; and on the sixth he was scarcely kept alive by cordials. The Abjuration Bill and a money bill were awaiting his assent. That assent he felt that he should not be able to give in person. He therefore ordered a commission to be prepared for his signature. His hand was now too weak to form the letters of his name, and it was suggested that a stamp should be prepared. On the seventh of March the stamp was ready. The Lord Keeper and the clerks of the parliament came, according to usage, to witness the signing of the commission. But they were detained some hours in the antechamber while he was in one of the paroxysms of his malady. Meanwhile the Houses were sitting. It was Saturday, the seventh, the day on which the Commons had resolved to take into consideration the question of the union with Scotland. But that subject

was not mentioned. It was known that the King had but a few hours to live; and the members asked each other anxiously whether it was likely that the Abjuration and money bills would be passed before he died. After sitting long in the expectation of a message, the Commons adjourned till six in the afternoon. By that time William had recovered himself sufficiently to put the stamp on the parchment which authorised his commissioners to act for him. In the evening, when the Houses had assembled, Black Rod knocked. The Commons were summoned to the bar of the Lords; the commission was read, the Abjuration Bill and the Malt Bill became laws, and both Houses adjourned till nine o'clock in the morning of the following day. The following day was Sunday. But there was little chance that William would live through the night. It was of the highest importance that, within the shortest possible time after his decease, the successor designated by the Bill of Rights and the Act of Succession should receive the homage of the Estates of the Realm, and be publicly proclaimed in the Council: and the most rigid Pharisee in the Society for the Reformation of Manners could hardly deny that it was lawful to save the state, even on the Sabbath.

The King meanwhile was sinking fast. Albemarle had arrived at Kensington from the Hague, exhausted by rapid travelling. His master kindly bade him go to rest for some hours, and then summoned him to make his report. That report was in all respects satisfactory. The States General were in the best temper; the troops, the provisions and the magazines were in the best order. Every thing was in readiness for an early campaign. William received the intelligence with the calmness of a man whose work was done. He was under no illusion as to his danger. "I am fast drawing," he said, "to my end." His end was worthy of his life. His intellect was not for a moment clouded. His fortitude was the more admirable because he was not willing to die. He had very lately said to one of those whom he most loved: "You know that I never feared death; there have been times when I should have wished it; but, now that this great new prospect is opening before me, I do wish to stay here a little longer." Yet no weakness, no querulousness, disgraced the noble close of that noble career. To the physicians the King returned his thanks graciously and gently. "I know that you have done all that skill and learning could do for me; but the case is beyond your art; and I submit." From the words which escaped him he seemed to be frequently engaged in mental prayer. Burnet and Tenison remained many hours in the sick room. He professed to them his firm belief in the truth of the Christian

religion, and received the sacrament from their hands with great seriousness. The antechambers were crowded all night with lords and privy councillors. He ordered several of them to be called in, and exerted himself to take leave of them with a few kind and cheerful words. Among the English who were admitted to his bedside were Devonshire and Ormond. But there were in the crowd those who felt as no Englishman could feel, friends of his youth who had been true to him, and to whom he had been true, through all vicissitudes of fortune; who had served him with unalterable fidelity when his Secretaries of State, his Treasury and his Admiralty had betrayed him; who had never on any field of battle, or in an atmosphere tainted with loathsome and deadly disease, shrunk from placing their own lives in jeopardy to save his, and whose truth he had at the cost of his own popularity rewarded with bounteous munificence. He strained his feeble voice to thank Auverquerque for the affectionate and loyal services of thirty years. To Albemarle he gave the keys of his closet, and of his private drawers. "You know," he said, "what to do with them." By this time he could scarcely respire. "Can this," he said to the physicians, "last long?" He was told that the end was approaching. He swallowed a cordial, and asked for Bentinck. Those were his last articulate words. Bentinck instantly came to the bedside, bent down, and placed his ear close to the King's mouth. The lips of the dying man moved; but nothing could be heard. The King took the hand of his earliest friend, and pressed it tenderly to his heart. In that moment, no doubt, all that had cast a slight passing cloud over their long and pure friendship was forgotten. It was now between seven and eight in the morning. He closed his eyes, and gasped for breath. The bishops knelt down and read the commendatory prayer. When it ended William was no more.

When his remains were laid out, it was found that he wore next to his skin a small piece of black silk riband. The lords in waiting ordered it to be taken off. It contained a gold ring and a lock of the hair of Mary.

1 ([return](#))

[Evelyn saw the Mentz edition of the Offices among Lord Spencer's books in April 1699. Markland in his preface to the *Sylvae* of Statius acknowledges his obligations to the very rare Parmesan edition in Lord Spencer's collection. As to the Virgil of Zarottus, which his Lordship bought for 46L, see the extracts from Warley's Diary, in Nichols's *Literary Anecdotes*, i. 90.]

2 ([return](#))

[The more minutely we examine the history of the decline and fall of Lacedaemon, the more reason we shall find to admire the sagacity of Somers. The first great humiliation which befel the Lacedaemonians was the affair of Sphacteria. It is remarkable that on this occasion they were vanquished by men who made a trade of war. The force which Cleon carried out with him from Athens to the Bay of Pyles, and to which the event of the conflict is to be chiefly ascribed, consisted entirely of mercenaries, archers from Scythia and light infantry from Thrace. The victory gained by the Lacedaemonians over a great confederate army at Tegea retrieved that military reputation which the disaster of Sphacteria had impaired. Yet even at Tegea it was signally proved that the Lacedaemonians, though far superior to occasional soldiers, were not equal to professional soldiers. On every point but one the allies were put to rout; but on one point the Lacedaemonians gave way; and that was the point where they were opposed to a brigade of a thousand Argives, picked men, whom the state to which they belonged had during many years trained to war at the public charge, and who were, in fact a standing army. After the battle of Tegea, many years elapsed before the Lacedaemonians sustained a defeat. At length a calamity befel them which astonished all their neighbours. A division of the army of Agesilaus was cut off and destroyed almost to a man; and this exploit, which seemed almost portentous to the Greeks of that age, was achieved by Iphicrates, at the head of a body of mercenary light infantry. But it was from the day of Leuctya that the fall of Sparta became rapid and violent. Some time before that day the Thebans had resolved to follow the example set many years before by the Argives. Some hundreds of athletic youths, carefully selected, were set apart, under the names of the City Band and the Sacred Band, to form a standing army. Their business was war. They encamped in the citadel; they were supported at the expense of the community; and they became, under assiduous training, the first soldiers in Greece. They were constantly victorious till they were opposed to Philip's admirably disciplined phalanx at Charonea; and even at Chaeronea they were not defeated but slain in their ranks, fighting to the last. It was this band, directed by the skill of great captains, which gave the decisive blow to the Lacedaemonian power. It is to be observed that there was no degeneracy among the Lacedaemonians. Even down to the time of Pyrrhus they seem to have been in all military qualities equal to their ancestors who conquered at Plataea. But their ancestors at Plataea had not such enemies to encounter.]

3 ([return](#))

[L'Hermitage, Dec. 3/13 7/17, 1697.]

4 ([return](#))

[Commons' Journals, Dec. 3. 1697. L'Hermitage, Dec 7/17.]

5 ([return](#))

[L'Hermitage, Dec. 15/24., Dec. 14/24., Journals.]

6 ([return](#))

[The first act of Farquhar's Trip to the Jubilee, the passions which about his time agitated society are exhibited with much spirit. Alderman Smuggler sees Colonel Standard and exclaims, "There's another plague of the nation a red coat and feather." "I'm disbanded," says the Colonel. "This very morning, in Hyde Park, my brave regiment, a thousand men that looked like lions yesterday, were scattered and looked as poor and simple as the herd of deer that grazed beside them." "Fal al deral!" cries the Alderman: "I'll have a bonfire this night, as high as the monument." "A bonfire!" answered the soldier; "then dry, withered, ill nature! had not those brave fellows' swords' defended you, your house had been a bonfire ere this about your ears."]

7 ([return](#))

[L'Hermitage, January 11/21]

8 ([return](#))

[That a portion at least of the native population of Ireland looked to the Parliament at Westminster for protection against the tyranny of the Parliament at Dublin appears from a paper entitled The Case of the Roman Catholic Nation of Ireland. This paper, written in 1711 by one of the oppressed race and religion, is in a MS. belonging to Lord Fingall. The Parliament of Ireland is accused of treating the Irish worse than the Turks treat the Christians, worse than the Egyptians treated the Israelites. "Therefore," says the writer, "they (the Irish) apply themselves to the present Parliament of Great Britain as a Parliament of nice honour and stanch justice... Their request then is that this great Parliament may make good the Treaty of Limerick in all the Civil Articles." In order to propitiate those to whom he makes this appeal, he accuses the Irish Parliament of encroaching on the supreme authority of the English Parliament, and charges the colonists generally with ingratitude to the mother country to which they owe so much.]

9 ([return](#))

[London Gazette, Jan 6. 1697/8; Postman of the same date; Van Cleverskirke, Jan. 7/17; L'Hermitage, Jan. 4/14/, 7/17; Evelyn's Diary; Ward's London Spy; William to Heinsius, Jan. 7/17. "The loss," the King writes, "is less to me than it would be to another person, for I cannot live there. Yet it is serious." So late as 1758 Johnson described a furious Jacobite as firmly convinced that William burned down

Whitehall in order to steal the furniture. Idler, No. 10. Pope, in Windsor Forest, a poem which has a stronger tinge of Toryism than anything else that he ever wrote, predicts the speedy restoration of the fallen palace.

*"I see, I see, where two fair cities bend
their ample bow, a new Whitehall ascend."*

See Ralph's bitter remarks on the fate of Whitehall.]

10 ([return](#))

[As to the Czar: London Gazette; Van Citters, 1698; Jan. 11/21. 14/24 Mar 11/21, Mar 29/April 8; L'Hermitage 11/21, 18/28, Jan 25/Feb 4, Feb 1/11 8/18, 11/21 Feb 22/Mar 4; Feb 25/Mar 7, Mar 1/4, Mar 29/April 8/ April 22/ May 2 See also Evelyn's Diary; Burnet Postman, Jan. 13. 15., Feb. 10 12, 24.; Mar. 24. 26. 31. As to Russia, see Hakluyt, Purchas, Voltaire, St. Simon. Estat de Russie par Margeret, Paris, 1607. State of Russia, London, 1671. La Relation des Trois Ambassades de M. Le Comte de Carlisle, Amsterdam, 1672. (There is an English translation from this French original.) North's Life of Dudley North. Seymour's History of London, ii. 426. Pepys and Evelyn on the Russian Embassies; Milton's account of Muscovy. On the personal habits of the Czar see the Memoirs of the Margravine of Bayreuth.]

11 ([return](#))

[It is worth while to transcribe the words of the engagement which Lewis, a chivalrous and a devout prince, violated without the smallest scruple. "Nous, Louis, par la grace de Dieu, Roi tres Chretien de France et de Navarre, promettons pour notre honneur, en foi et parole de Roi, jurons sue la croix, les saints Evangiles, et les canons de la Messe, que nous avons touches, que nous observerons et accomplirons entierement de bonne foi tous et chacun des points et articles contenus au traite de paix, renonciation, et amitie."]

12 ([return](#))

[George Psalmanazar's account of the state of the south of France at this time is curious. On the high road near Lyons he frequently passed corpses fastened to posts. "These," he says, "were the bodies of highwaymen, or rather of soldiers, sailors, mariners and even galley slaves, disbanded after the peace of Reswick, who, having neither home nor occupation, used to infest the roads in troops, plunder towns and villages, and, when taken, were hanged at the county town by dozens, or even scores sometimes, after which their bodies were thus exposed along the highway in terrorem."]

13 ([return](#))

["Il est de bonne foi dans tout ce qu'il fait. Son procede est droit et sincere." Tallard to Lewis, July 3. 1698.]

14 ([return](#))

["Le Roi d'Angleterre, Sire, va tres sincerement jusqu'a present; et j'ose dire que s'il entre une fois en traite avec Votre Majeste, il le tiendra de bonne foi."—"Si je l'ose dire a V. M., il est tres penetrant, et a l'esprit juste. Il s'apercevra bientôt qu'on barguigne si les choses traient trop de long." July 8.]

15 ([return](#))

[I will quote from the despatches of Lewis to Tallard three or four passages which show that the value of the kingdom of the Two Sicilies was quite justly appreciated at Versailles. "A l'egard du royaume de Naples et de Sicile le roi d'Angleterre objectera que les places de ces etats entre mes mains me rendront maitre du commerce de la Mediteranee. Vous pourrez en ce cas laissez entendre, comme de vous meme, qu'il serait si difficile de conserver ces royaumes unis a ma couronne, que les depenses necessaires pour y envoyer des secours seraient si grands, et qu'autrefois il a tant coute a la France pour les maintenir dans son obeissance, que vraisemblablement j'etablirois un roi pour les gouverner, et que peut-etre ce serait le partage d'un de mes petits-fils qui voudroit regner independamment." April 7/17 1698. "Les royaumes de Naples et de Sicile ne peuvent se regarder comme un partage dont mon fils puisse se contenter pour lui tenir lieu de tous ses droits. Les exemples du passe n'ont que trop appris combien ces etats content a la France le peu d'utilite dont ils sont pour elle, et la difficulte de les conserver." May 16. 1698. "Je considere la cession de ces royaumes comme une source continuelle de depenses et d'embarras. Il n'en a que trop coute a la France pour les conserver; et l'experience a fait voir la necessite indispensable d'y entretenir toujours des troupes, et d'y envoyer incessamment des vaisseaux, et combien toutes ces peines ont ete inutiles." May 29. 1698. It would be easy to cite other passages of the same kind. But these are sufficient to vindicate what I have said in the text.]

16 ([return](#))

[Dec. 20/30 1698.]

17 ([return](#))

[Commons' Journals, February 24. 27.; March 9. 1698/9 In the Vernon Correspondence a letter about the East India question which belongs to the year 1699/1700 is put under the date of Feb. 10 1698. The truth is that this most valuable correspondence cannot be used to good purpose by any writer who does not do for himself all that the editor ought to have done.]

18 ([return](#))

[I doubt whether there be extant a sentence of worse English than that on which the House divided. It is not

merely inelegant and ungrammatical but is evidently the work of a man of puzzled understanding, probably of Harley. "It is Sir, to your loyal Commons an unspeakable grief, that any thing should be asked by Your Majesty's message to which they cannot consent, without doing violence to that constitution Your Majesty came over to restore and preserve; and did, at that time, in your gracious declaration promise, that all those foreign forces which came over with you should be sent back."]

19 ([return](#))

[It is curious that all Cowper's biographers with whom I am acquainted, Hayley, Southey, Grimshawe Chalmers, mention the judge, the common ancestor of the poet, of his first love Theodora Cowper, and of Lady Hesketh; but that none of those biographers makes the faintest allusion to the Hertford trial, the most remarkable event in the history of the family; nor do I believe that any allusion to that trial can be found in any of the poet's numerous letters.]

20 ([return](#))

[I give an example of Trenchard's mode of showing his profound respect for an excellent Sovereign. He speaks thus of the commencement of the reign of Henry the Third. "The kingdom was recently delivered from a bitter tyrant, King John, and had likewise got rid of their perfidious deliverer, the Dauphin of France, who after the English had accepted him for their King, had secretly vowed their extirpation."]

21 ([return](#))

[Life of James; St. Simon; Dangeau.]

22 ([return](#))

[Poussin to Torcy April 28/May 8 1701 "Le roi d'Angleterre tousse plus qu'il n'a jamais fait, et ses jambes sont fort enfles. Je le vis hier sortir du preche de Saint James. Je le trouve fort casse, les yeux eteints, et il eut beaucoup de peine a monter en carrosse."]

23 ([return](#))

[Memoire sur la proposition de reconnoitre au prince des Galles le titre du Roi de la Grande Bretagne, Sept. 9/19, 1701.]

24 ([return](#))

[By the most trustworthy accounts I mean those of St. Simon and Dangeau. The reader may compare their narratives with the Life of James.]

25 ([return](#))

[Lettres Historiques Mois de Novembre 1701.]

26 ([return](#))

[Last letter to Heinsius.]

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